CRIMINAL LAW DRAFTS & FORMATS

A Complete Template Kit

Under the **Bharatiya Nyaya Sanhita, 2023 • Bharatiya Nagarik Suraksha Sanhita, 2023 • Bharatiya Sakshya Adhiniyam, 2023**

Blank formats with worked illustrations | Investigation, bail, trial, appeal & miscellaneous stages | Annexures, bonds, affidavits, checklists & ready-reckoners

44 draft formats with worked illustrations + 8 annexures | Edition: October 2026

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About this kit, drafting conventions and how to adapt a format

1. What this kit contains

This kit contains 44 ready-to-adapt draft formats covering the whole life of a criminal case — from the information given to a police station, through the grant of bail and the trial before a Magistrate or a Court of Session, to appeals, revisions and quashing petitions — together with 7 annexures containing the supporting documents (vakalatnama, affidavit, bonds, surety declaration, index), a limitation and timeline ready-reckoner, an index of the statutory court forms in the Second Schedule to the BNSS, and a conversion table from the Code of Criminal Procedure, 1973 to the BNSS, 2023.

Every format appears twice: Part I is the BLANK FORMAT, with every fact-specific particular left as a dotted blank or a square-bracket instruction; Part II is an ILLUSTRATION — the same format filled in with invented parties and facts, so that the user can see at a glance which fact goes where.

2. Drafting conventions used in this kit

(a) Text in [square brackets] is an instruction or a choice of words, not part of the draft; delete it before filing and put in words appropriate to the case.

(b) Dotted blanks (_____) mark the places where the user must insert dates, names, amounts, section numbers or court details.

(c) Section references without a statute name are to the Bharatiya Nagarik Suraksha Sanhita, 2023. References to the penal law are shown as "BNS", and references to the law of evidence as "BSA".

(d) A reference in the form "Section 480 BNSS [Section 437 CrPC]" gives the corresponding provision of the repealed Code of Criminal Procedure, 1973, for the assistance of practitioners using older precedent.

(e) The recital "MOST RESPECTFULLY SHOWETH" is used in applications and petitions; original petitions addressed to the police or an authority use "Respected Sir/Madam" instead.

3. Anatomy of a criminal application

Every application or petition filed in a criminal court should, in the ordinary course, contain the following, in this order: (i) the name and designation of the Court ("IN THE COURT OF …"); (ii) the case number and year, and the case from which it arises; (iii) the cause title, describing the parties — the applicant/accused first and the State or the respondent next, with the description "… APPLICANT/ACCUSED" and "… RESPONDENT/STATE"; (iv) the title of the application, stating the provision under which it is made; (v) the recital, "MOST RESPECTFULLY SHOWETH", followed by numbered paragraphs containing only relevant facts and the grounds; (vi) the prayer, which must be precise and self-contained, since the relief not prayed for is ordinarily not granted; (vii) the verification, signed and dated by the applicant; (viii) the place and date of execution, and the signature with the name and enrolment details of the advocate; and (ix) the list of annexures and the index.

4. How to adapt a format

(a) Choose the format that corresponds to the stage of your case and to the Court that has jurisdiction.

(b) Replace the Court heading, the case number and the cause title with those of your case.

(c) Plead facts, not adjectives. A court is persuaded by a compact, chronological narration — the date, the place, the act, the document — and not by a long commentary on the law.

(d) Quote the statutory provision and one or two decisions of the Supreme Court or the jurisdictional High Court in support of each ground.

(e) Verify every annexure against the list, and ensure that the affidavit (where required) is sworn before the competent officer on the same date as the application.

(f) Retain a copy with the Court's stamp or the online filing receipt, and keep the original exhibits in a separate folder.

5. Status of the law stated in this kit

The Bharatiya Nagarik Suraksha Sanhita, 2023 (Act 46 of 2023), the Bharatiya Nyaya Sanhita, 2023 (Act 45 of 2023) and the Bharatiya Sakshya Adhiniyam, 2023 (Act 47 of 2023) were notified in the Gazette on 25.12.2023 and came into force on 01.07.2024, repealing the Code of Criminal Procedure, 1973, the Indian Penal Code, 1860 and the Indian Evidence Act, 1872 respectively (Section 531, BNSS; Section 358, BNS; Section 170, BSA).

All statutory references in this kit are to the Sanhita as brought into force on 01.07.2024, and have been verified against the text of the Act as published by the Government. Statutory provisions and the rules and schemes framed thereunder are subject to amendment; the correctness of a provision should be re-verified against the current text before filing.

6. Disclaimer

This kit is a drafting aid and an educational resource. It is not a substitute for legal advice, nor for the professional judgement of an advocate on the facts of a particular case. No drafting format can be used blindly: the choice of forum, the framing of the cause title, the averments, the evidence and the relief are matters that depend entirely on the facts and the current state of the law. The illustrations use fictitious names, dates, amounts and facts, and no resemblance to any living person or real transaction is intended. The authors and publishers of this kit, and the website on which it is published, disclaim all liability for any loss arising from the use of, or reliance upon, these formats.

Master checklist before filing any criminal application

A. Court and jurisdiction

1. Is the application to be filed before the Magistrate, the Court of Session, the High Court, or the police/executive authority? (See Sections 21 to 23 and Chapter XIV, BNSS, for the powers and jurisdiction of Courts.)

2. Is the Court at the place of the commission of the offence, or has the case been made over or transferred?

3. Where the applicant is in custody, has the jurisdictional fact of custody been pleaded with the date of arrest and the duration of detention?

B. Cause title and particulars

4. Correct case number, police station, FIR number, sections and the date of the impugned order.

5. Complete description of parties — parentage, age, address — and the correct designation of each party.

6. Correct provision in the title of the application (for example, "Section 480 BNSS" and not "Section 439 CrPC", unless the corresponding provision is also cited for the reader's convenience).

C. Contents

7. The impugned judgment/order/FIR is pleaded and a copy is annexed.

8. Grounds are stated separately and are supported by documents, not by adjectives.

9. Parity with co-accused, delay in trial, custody already undergone, and the triple test of bail (flight risk, tampering with evidence, influencing witnesses) are addressed where bail is sought.

10. The prayer is precise, is capable of being granted, and flows from the grounds pleaded.

11. The verification and the affidavit (where the statute requires one — for example, Section 175(3) BNSS, or a plea-bargaining application under Section 290 BNSS) are complete and signed.

D. Annexures and formalities

12. Index and list of documents are paginated and cross-checked.

13. Certified copies of the impugned order/judgment and of the lower court record, where required, are annexed.

14. Vakalatnama/memo of appearance is signed by the applicant and the advocate with the enrolment number.

15. Court fee/process fee is affixed or paid, and where e-filing is provided (Section 530 BNSS and the rules thereunder), the application has been uploaded with the correct digital signature.

16. Sufficient copies have been filed — for the Court, the Public Prosecutor, the co-accused and the applicant/party.

E. After filing

17. Diary number/CNR, next date of hearing and the Court's directions are noted and communicated to the client.

18. Where an order of release on bail is passed, the bail bond and surety declaration (Formats H3 and H4) are executed at once, since the release follows only after the bond is accepted (Sections 485, 486 and

487, BNSS).

PART A — COMPLAINT, FIR AND INVESTIGATION-STAGE FORMATS

Formats to be used before the police and before the Magistrate while the case is still at the stage of information, investigation and collection of evidence. All references are to the Bharatiya Nagarik Suraksha Sanhita, 2023 (BNSS) and the Bharatiya Nyaya Sanhita, 2023 (BNS).

A1. WRITTEN COMPLAINT TO THE POLICE FOR REGISTRATION OF AN FIR

Legal basis: Sections 173(1) and 173(2), BNSS, 2023 [corresponding to Section 154, CrPC, 1973]

Stage: Pre-investigation — police station stage

Filed by: Informant / victim / eyewitness / any person having knowledge of a cognizable offence

Filed before: Officer-in-Charge of the police station (or any police station, under the Zero-FIR rule)

Timeline / Limitation: Information must be recorded forthwith and read over and signed by the informant; an FIR received by electronic communication must be signed by the informant within three days; a free copy of the FIR must be given to the informant/victim forthwith under Section 173(2).

Key points to plead:

- Information relating to a cognizable offence may be given orally or by electronic communication, and at ANY police station, irrespective of the area where the offence was committed (statutory Zero FIR, Section 173(1)).
- Where the information is given by a woman alleging an offence under Sections 64 to 79 or Section 124 of the BNS, it must be recorded by a woman police officer or any woman officer.
- Where the victim is temporarily or permanently mentally or physically disabled, the information must be recorded at the residence/place of choice of the victim, in the presence of an interpreter or special educator, and the recording must be videographed.
- The substance of the information must be entered in the prescribed register/book, and a free copy must be supplied to the informant or victim.

Documents generally enclosed: Copy of identity proof of the complainant; Chronological narration of facts with dates, times and place; Medical papers, photographs, CCTV clips, chat/WhatsApp records or other electronic evidence in original; List of witnesses with their addresses and contact details; Proof of ownership/possession where property is involved.

PART I — BLANK FORMAT

WRITTEN COMPLAINT FOR REGISTRATION OF A FIRST INFORMATION REPORT

(Under Sections 173(1) and 173(2) of the Bharatiya Nagarik Suraksha Sanhita, 2023)

To,

The Station House Officer,

Police Station _____,

District _____, State/UT _____

Subject: Complaint for registration of a First Information Report against the accused person(s) for the commission of offences punishable under Sections _____ of the Bharatiya Nyaya Sanhita, 2023.

Respected Sir/Madam,

1. That the Complainant, _____, son/daughter/wife of Shri _____, aged about _____ years, resident of _____, is the [victim / eyewitness / person having knowledge of the facts] and is competent to lodge the present complaint.

2. That on _____ (date) at about _____ (time), at _____ (place), the following incident took place: [set out the facts in strict chronological order — date, time, place, names and descriptions of the accused, the acts done by each accused, the words used, the weapons or means employed, the property involved and its value, the injuries caused and the names of witnesses present].

3. That the accused person(s) named above, by the aforesaid acts, have committed the following offences: (i) Section _____ BNS — _____; (ii) Section _____ BNS — _____; and (iii) Section _____ BNS — _____.

4. That the offence(s) complained of is/are cognizable in nature, and the information relating to its/their commission is being furnished to this police station under Section 173(1) of the BNSS, 2023. [Where the place of occurrence falls outside the jurisdiction of this police station: The place of occurrence lies outside the territorial jurisdiction of this police station; however, under Section 173(1) of the BNSS, 2023, information relating to a cognizable offence may be given to any police station irrespective of the area where the offence is committed, and the present complaint is, therefore, being registered as a Zero FIR and forwarded to Police Station _____ for investigation.]

5. That the Complainant undertakes to produce all documents and evidence in his/her possession and to co-operate with the investigation. The names of the witnesses acquainted with the facts of the case are: (i) _____, (ii) _____, (iii) _____.

6. That the delay, if any, in lodging the present complaint is explained as follows: [explain any delay — illness, threats, attempts at compromise, fear of the accused, distance, or ignorance of law].

PRAYER

It is, therefore, most respectfully prayed that the Officer-in-Charge of this police station may be pleased to:

(a) record the above information and register a First Information Report under Section 173(1) of the BNSS, 2023;

(b) read over the information so recorded to the Complainant and obtain his/her signature thereon, and give the substance thereof in writing to the Complainant;

(c) supply a copy of the First Information Report, free of cost, to the Complainant under Section 173(2) of the BNSS, 2023;

(d) inform the Complainant of the progress of the investigation within ninety days, as required by Section 193(3)(ii) of the BNSS, 2023; and

(e) grant such protection to the Complainant and the witnesses as may be necessary, and proceed against the accused in accordance with law.

Yours faithfully,

_____

(Complainant / Informant)

Contact: _____ E-mail: _____

Place: _____

Date: _____

Annexures

1. Copy of identity proof of the Complainant. 2. Documentary/electronic evidence relied upon. 3. List of witnesses. 4. [Any other document].

Acknowledgement by the police station (to be retained by the Complainant)

Complaint received on _____ at _____ hrs. — Diary No. _____ — FIR No. _____ dated _____ — Signature and stamp of the Officer-in-Charge.

PART II — ILLUSTRATION (SPECIMEN DRAFT WITH SAMPLE FACTS)

The specimen uses illustrative parties, dates and figures only. Replace every particular with the facts of your own case.

WRITTEN COMPLAINT FOR REGISTRATION OF A FIRST INFORMATION REPORT (Under Sections 173(1) and 173(2) of the Bharatiya Nagarik Suraksha Sanhita, 2023)

To,

The Station House Officer,

Police Station Malviya Nagar,

South District, Delhi.

Subject: Complaint for registration of a First Information Report against Ramesh Kumar and Suresh Kumar for offences punishable under Sections 303(2) and 329(4) of the Bharatiya Nyaya Sanhita, 2023.

Respected Sir/Madam,

1. That the Complainant, Anita Sharma, wife of Shri Mahesh Sharma, aged about 41 years, resident of H-14, Block C, Malviya Nagar, New Delhi-110017, is the victim of the offence complained of and is competent to lodge the present complaint.

2. That on 02.10.2026 at about 11.30 p.m., at the ground-floor shop bearing No. 14-A, Block C Market, Malviya Nagar, the accused Ramesh Kumar, son of Shri Hari Ram, resident of 27/4, Block C, Malviya Nagar, and his brother Suresh Kumar, son of Shri Hari Ram, resident of the same address, with a common intention, broke open the shutter of the Complainant's shop, entered the shop unauthorisedly and removed articles, namely, mobile phone accessories, a cash box containing Rs. 42,000/- and two headphones, collectively worth about Rs. 1,15,000/-. The whole incident was captured on the CCTV camera installed by the neighbouring shop; a clip thereof, transferred from the DVR to a pen drive, is enclosed.

3. That the accused persons have thereby committed offences punishable under Sections 303(2) (theft) and 329(4) (house-trespass) read with Section 3(5) of the Bharatiya Nyaya Sanhita, 2023.

4. That the offence is cognizable in nature and the information is being furnished under Section 173(1) of the BNSS, 2023. Since the place of occurrence falls within the jurisdiction of Police Station Malviya Nagar itself, no question of transfer of the FIR arises.

5. That the names of the witnesses acquainted with the facts of the case are: (i) Shri Mohan Verma, shopkeeper of Shop No. 15-A, Block C Market, Malviya Nagar; (ii) Shri Salim Khan, security guard on night duty; and (iii) Smt. Renu Sharma, the Complainant's sister-in-law, to whom the fact of theft was narrated immediately afterwards.

6. That there is no delay in lodging the present complaint, the incident having occurred late at night on 02.10.2026 and the complaint being made on the morning of the very next day.

PRAYER

It is, therefore, most respectfully prayed that this police station may kindly register a First Information Report under Section 173(1) of the BNSS, 2023, read over the contents to the Complainant, supply a free copy of the FIR under Section 173(2) of the BNSS, 2023, and investigate the matter in accordance with law.

Yours faithfully,
(Anita Sharma)
Complainant
Mobile: 98XXXXXXXX

Place: New Delhi

Date: 03.10.2026

Annexures

1. Copy of Aadhaar card of the Complainant. 2. CCTV clip (pen drive) with a certificate under Section 63(4) of the Bharatiya Sakshya Adhiniyam, 2023. 3. Bills/invoices of the stolen articles. 4. List of witnesses.

Drafting notes / common errors: Never mix argument with narration — the FIR must contain facts, not conclusions of law. Insist on the free copy under Section 173(2) and on the diary number; if the police refuse to register, escalate under Section 173(4) BNSS (Format A2) and thereafter move the Magistrate in view of the last limb of Section 173(4). A complaint that mentions an offence punishable with three to seven years' imprisonment may attract a preliminary enquiry under Section 173(3) BNSS, but enquiry cannot be ordered for offences punishable with seven years or more.

A2. COMPLAINT TO THE SUPERINTENDENT OF POLICE ON REFUSAL TO REGISTER AN FIR

Legal basis: Section 173(4), BNSS, 2023 [corresponding to Section 154(3), CrPC, 1973]

Stage: Pre-investigation — where the police station has refused to record the information

Filed by: Aggrieved informant/complainant, or the victim or his/her representative

Filed before: Superintendent of Police of the district (copies to the Range DIG/Commissioner of Police)

Timeline / Limitation: No prescribed period; to be sent at the earliest. The Supreme Court in Lalita Kumari v. State of U.P., (2014) 2 SCC 1, and in its subsequent order dated 20.03.2024, requires FIRs to be registered in every cognizable case except in the limited category of preliminary enquiries.

Key points to plead:

- The substance of the information must be sent to the Superintendent of Police, in writing and by post (or by any acceptable mode), and the SP may either investigate himself or direct a subordinate officer to investigate.
- The aggrieved person may also/alternatively make an application to the Magistrate, as expressly preserved by the closing words of Section 173(4) BNSS.
- Highlight that refusal to register an FIR in a cognizable case is a dereliction of statutory duty, and that the accused has the right to seek police protection thereafter.

Documents generally enclosed: Copy of the earlier complaint made at the police station; Proof of making the earlier complaint (receipt, courier, e-mail or electronic acknowledgement); Copy of identity proof; Supporting documents and electronic evidence.

PART I — BLANK FORMAT

COMPLAINT UNDER SECTION 173(4) OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023

To,

The Superintendent of Police,

District _____, State/UT _____

(Through Speed Post/Registered Post A.D. and by e-mail)

Subject: Complaint against the refusal of the Officer-in-Charge, Police Station _____, to record information relating to a cognizable offence and to register an FIR — request for investigation under Section 173(4) of the BNSS, 2023.

Most respectfully showeth:

1. That the Complainant, _____, resident of _____, submitted a written complaint dated _____ to the Officer-in-Charge, Police Station _____, disclosing the commission of cognizable offences punishable under Sections _____ BNS, 2023 (copy annexed as Annexure A-1).

2. That the said complaint was received in the police station on _____ at _____ hrs. and [was/was not] entered in the daily diary/register. The officer concerned orally declined to register an FIR on the ground that _____, which is not a ground recognised by law.

3. That though the information disclosed a cognizable offence and obliged the Officer-in-Charge to register an FIR under Section 173(1) of the BNSS, 2023, no First Information Report has been registered till date, as would appear from the [written acknowledgement/refusal memo/e-mail/DDR copy] annexed as Annexure A-2.

4. That the refusal is in the teeth of Section 173(1) BNSS and of the judgment of the Hon'ble Supreme Court in Lalita Kumari v. State of U.P., (2014) 2 SCC 1, whereunder registration of FIR is mandatory

when information discloses the commission of a cognizable offence.

5. That unless the investigation is promptly taken up, the evidence — including _____ (electronic record / CCTV footage / medical evidence / physical exhibits) — is likely to be lost, and the Complainant is exposed to further threat and intimidation at the hands of the accused.

6. That the present complaint is being made within the scope of Section 173(4) of the BNSS, 2023, which entitles the aggrieved person to send the substance of the information, in writing and by post, to the Superintendent of Police, and preserves the right of the aggrieved person to make an application to the Magistrate thereafter.

PRAYER

It is, therefore, most respectfully prayed that Your Honour may be pleased to:

(a) call for a report from the Officer-in-Charge, Police Station _____, in respect of the complaint dated _____;

(b) direct the registration of a First Information Report against the accused person(s) named in the complaint and entrust the investigation to an officer of appropriate rank, preferably not below the rank of Deputy Superintendent of Police, in view of the nature and gravity of the offence;

(c) direct the supply of a free copy of the FIR to the Complainant under Section 173(2) of the BNSS, 2023; and

(d) direct that the Complainant and the witnesses be provided police protection, if required.

Complainant: _____

(Name, address, contact and e-mail)

Place: _____

Date: _____

Annexures

A-1: Copy of the complaint dated _____ given to the police station.

A-2: Proof of refusal/non-registration (acknowledgement, DDR extract, e-mail or portal receipt).

A-3: Identity proof and supporting documents.

A-4: Postal receipt / e-mail dispatch proof of the present complaint.

PART II — ILLUSTRATION (SPECIMEN DRAFT WITH SAMPLE FACTS)

The specimen uses illustrative parties, dates and figures only. Replace every particular with the facts of your own case.

COMPLAINT UNDER SECTION 173(4) OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023

To,

The Superintendent of Police, South District,

New Delhi — 110017.

(By Speed Post A.D. and by e-mail to deosp-south@delhipolice.gov.in)

Subject: Refusal by Police Station Saket to register an FIR on the complaint of the Complainant alleging cheating of Rs. 9,50,000/- — request for direction under Section 173(4) BNSS, 2023.

Most respectfully showeth:

1. That the Complainant, Vikram Mehta, son of Shri S.K. Mehta, resident of B-42, Malviya Nagar, New Delhi, submitted a written complaint dated 14.09.2026 to the Officer-in-Charge, Police Station Saket, alleging that one Praveen Chauhan induced the Complainant to part with Rs. 9,50,000/- on the false representation that he would obtain a commercial licence for the Complainant's restaurant, and thereafter neither obtained the licence nor returned the money (Annexure A-1).

2. That the said complaint was received at the police station on 14.09.2026 at 4.10 p.m. and was entered in the daily diary vide DD No. 27-B. The officer on duty, however, orally informed the Complainant that the matter was "civil in nature" and declined to register an FIR.

3. That the transaction is squarely covered by clause (4) of Section 318 read with Section 61(2) of the BNS, 2023 (cheating and dishonest inducement to deliver property), and the offence is cognizable and non-bailable. The refusal is therefore wholly unsustainable.

4. That the Complainant has preserved the entire WhatsApp conversation of 12.08.2026 to 09.09.2026, the bank transfer receipts for Rs. 6,00,000/- and Rs. 3,50,000/-, and the "receipt-cum-promise" note executed by Praveen Chauhan on 12.09.2026. Prompt investigation is necessary before the accused withdraws the amounts lying in his account.

5. That a similar complaint dated 22.09.2026 with a request for a copy of the FIR has elicited no response from the police station, forcing the Complainant to approach Your Honour under Section 173(4) of the BNSS, 2023.

PRAYER

It is, therefore, most respectfully prayed that Your Honour may kindly direct the registration of an FIR against Praveen Chauhan under Sections 318(4) and 61(2) of the BNS, 2023, and entrust the investigation to an officer not below the rank of Inspector, with a direction to supply the Complainant a free copy of the FIR under Section 173(2) BNSS.

(Vikram Mehta)

Complainant — Mobile: 99XXXXXXXX

Place: New Delhi

Date: 28.09.2026

Annexures

A-1: Complaint dated 14.09.2026 with DD No. 27-B. A-2: Reminder dated 22.09.2026. A-3: WhatsApp chat printout with certificate under Section 63(4) BSA. A-4: Bank statements and transfer receipts. A-5: Receipt-cum-promise note dated 12.09.2026.

Drafting notes / common errors: Always annex proof of the first complaint — a bare allegation of refusal is not enough. Send the complaint by speed post A.D. and by e-mail, and retain the receipts: they are the foundation of the later application to the Magistrate under Section 175(3)/173(4) BNSS (Format A3).

A3. APPLICATION TO THE MAGISTRATE FOR A DIRECTION TO REGISTER AN FIR AND INVESTIGATE

Legal basis: Section 175(3) read with Section 173(4), BNSS, 2023 [corresponding to Section 156(3), CrPC, 1973]

Stage: Pre-investigation — after the police have refused to register/investigate

Filed by: Aggrieved informant or victim, through an advocate

Filed before: Judicial Magistrate First Class having jurisdiction (Chief Judicial Magistrate where the complaint relates to a public servant in the course of official duty, under Section 175(4))

Timeline / Limitation: No limitation under the BNSS (Article 137 of the Limitation Act, 1963, may apply to the underlying civil right, if any). Delay, if any, should be explained in the application itself.

Key points to plead:

- Section 175(3) BNSS requires the application to be supported by an affidavit made under Section 173(4) BNSS — a mandatory procedural change from Section 156(3) CrPC.
- The Magistrate may consider the application, make such inquiry as he thinks necessary, and hear the submission of the police officer before ordering investigation.
- Do not seek monitoring of the investigation in the same application; it is a separate prayer to be made later, and only in exceptional cases.
- Where the accused is a public servant and the offence arose in the course of official duty, the route is Section 175(4) before the Magistrate empowered under Section 210.

Documents generally enclosed: Affidavit in support (mandatory); Copy of the complaint to the police with proof of receipt/refusal; Copies of the complaint to the Superintendent of Police under Section 173(4) BNSS with postal proof; Documents/electronic evidence relied upon; Vakalatnama.

PART I — BLANK FORMAT

IN THE COURT OF THE JUDICIAL MAGISTRATE FIRST CLASS, _____,

_____

CRIMINAL MISC. APPLICATION NO. _____ OF 20____

IN THE MATTER OF:

_____ S/o Shri _____, aged about _____ years, R/o _____ ... APPLICANT / COMPLAINANT

VERSUS

State (Government of _____) through the Station House Officer, Police Station _____ ... RESPONDENT

And

(1) _____ S/o _____, R/o _____

(2) _____ S/o _____, R/o _____ ... PROPOSED ACCUSED

APPLICATION UNDER SECTION 175(3) READ WITH SECTION 173(4) OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023, FOR A DIRECTION TO REGISTER A FIRST INFORMATION REPORT AND TO INVESTIGATE THE OFFENCE

MOST RESPECTFULLY SHOWETH:

1. That the Applicant is the complainant/victim in the present matter and is aggrieved by the refusal of the police to register a First Information Report in respect of cognizable offences committed by the

proposed accused persons. The Applicant is filing the accompanying affidavit, as required by Section 175(3) read with Section 173(4) of the BNSS, 2023.

2. That on _____ the Applicant gave a written complaint (Annexure A-1) to the Station House Officer, Police Station _____, narrating the following facts: [briefly and precisely set out the substratum of the complaint, the date, time, place and manner of the offence, the role of each accused, and the loss/injury caused].

3. That the facts disclosed the commission of cognizable offences punishable under Sections _____ of the Bharatiya Nyaya Sanhita, 2023, and the police were under a statutory obligation to register an FIR forthwith under Section 173(1) BNSS.

4. That the police, however, refused to register the FIR, vide [oral refusal dated _____/refusal memo dated _____/DDR No. _____], although the complaint was duly received in the police station.

5. That thereafter the Applicant approached the Superintendent of Police under Section 173(4) of the BNSS, 2023, by complaint dated _____ sent by registered post/e-mail (Annexure A-2 with postal proof). The said complaint has not resulted in registration of the FIR, as [no communication has been received till date/nor has any FIR been registered, as intimated by the office of the Superintendent of Police vide letter dated _____].

6. That the closing words of Section 173(4) of the BNSS, 2023 expressly preserve the right of an aggrieved person to make an application to the Magistrate where the police fail to act upon the information; the present application is filed in terms thereof and of Section 175(3) BNSS.

7. That the information furnished makes out a prima facie case; the allegations are specific, the evidence is documentary and electronic, and no investigation worth the name has been conducted till date. Registration of a preliminary enquiry under Section 173(3) was never warranted since the offences complained of are punishable with imprisonment of seven years and more, and in any event no such enquiry was ever conducted.

8. That unless the police are directed to register an FIR and investigate, the Applicant will suffer irreparable loss; the electronic evidence is liable to be deleted and the accused, being influential, may tamper with the evidence and intimidate the witnesses.

9. That the present application is made bona fide and in the interest of justice; there is no other efficacious remedy available to the Applicant, and no such application has been filed earlier before any other Court.

PRAYER

In the premises aforesaid, it is most respectfully prayed that this Hon'ble Court may be pleased to:

(a) direct the Station House Officer, Police Station _____ (or such other officer as this Hon'ble Court may deem fit) to register a First Information Report against the proposed accused persons under Sections _____ of the Bharatiya Nyaya Sanhita, 2023, and to investigate the same in accordance with law;

(b) direct the supply of a free copy of the FIR to the Applicant under Section 173(2) of the BNSS, 2023;

(c) direct that the investigation be conducted by an officer not below the rank of _____, in view of the nature and gravity of the offence; and

(d) pass such other and further orders as this Hon'ble Court may deem fit and proper in the facts and circumstances of the case and in the interest of justice.

_____

(ADVOCATE FOR THE APPLICANT / APPLICANT)

Place: _____

Date: _____

VERIFICATION

I, _____, the Applicant above named, do hereby verify that the contents of paragraphs 1 to 9 above are true to my knowledge, derived from the record, and are believed by me to be true; nothing material has been concealed therefrom, and no part of it is false.

Verified at _____ on this _____ day of _____, 20____.

APPLICANT

LIST OF ANNEXURES

A-1: Complaint dated _____ to the Station House Officer. A-2: Complaint dated _____ to the Superintendent of Police with postal/e-mail proof. A-3: Refusal memo / DDR extract. A-4: Documentary and electronic evidence. A-5: Copy of the affidavit of the Applicant.

PART II — ILLUSTRATION (SPECIMEN DRAFT WITH SAMPLE FACTS)

The specimen uses illustrative parties, dates and figures only. Replace every particular with the facts of your own case.

IN THE COURT OF THE JUDICIAL MAGISTRATE FIRST CLASS, SAKET COURTS, NEW DELHI

CRIMINAL MISC. APPLICATION NO. _____ OF 2026

IN THE MATTER OF:

Vikram Mehta, son of Shri S.K. Mehta, aged about 38 years, resident of B-42, Malviya Nagar, New Delhi — 110017 ... APPLICANT

VERSUS

State (Govt. of NCT of Delhi) through the Station House Officer, Police Station Saket, New Delhi ... RESPONDENT

And

Praveen Chauhan, son of Shri Ram Nath Chauhan, resident of D-9, Neb Sarai, New Delhi — 110068 ... PROPOSED ACCUSED

APPLICATION UNDER SECTION 175(3) READ WITH SECTION 173(4) OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023

MOST RESPECTFULLY SHOWETH:

1. That the Applicant is the complainant and is aggrieved by the refusal of Police Station Saket to register an FIR on his complaint dated 14.09.2026. The accompanying affidavit has been filed as required by Section 175(3) read with Section 173(4) of the BNSS, 2023.

2. That the Applicant, who runs a restaurant under the name and style of "Spice Route" at Green Park, New Delhi, was approached in August 2026 by the proposed accused, who represented that he had close contacts in the municipal licensing wing and could obtain a health-cum-trade licence for the Applicant's restaurant for a consideration of Rs. 9,50,000/-. Relying on this representation, the Applicant transferred Rs. 6,00,000/- on 20.08.2026 and Rs. 3,50,000/- on 02.09.2026 to the account of the proposed accused. The proposed accused executed a writing on 12.09.2026 acknowledging the receipt and promising the licence within ten days, but neither the licence nor the money has been forthcoming.

3. That the above facts disclose the commission of offences punishable under Section 318(4) (cheating and dishonestly inducing delivery of property) and Section 61(2) of the BNS, 2023, both of which are cognizable offences.

4. That the police station, however, declined to register the FIR on the oral plea that the dispute was "civil in nature", vide DD entry No. 27-B dated 14.09.2026.

5. That the Applicant thereafter sent a detailed complaint dated 28.09.2026 to the Superintendent of Police, South District, by speed post as well as by e-mail (Annexures A-2 and A-2A); no FIR has been registered pursuant thereto till date, and the Applicant has been verbally informed at the police station that "no case is made out".

6. That the Applicant has preserved the complete WhatsApp exchange between the parties (Annexure A-3 with a certificate under Section 63(4) of the Bharatiya Sakshya Adhiniyam, 2023), the bank transfer receipts (Annexure A-4) and the acknowledgment dated 12.09.2026 (Annexure A-5). There is thus abundant material to make out a prima facie case.

7. That the Applicant has reason to believe that the proposed accused is in the process of transferring the amounts lying in his account and may remove the digital trail; immediate registration and investigation are, therefore, essential.

8. That no other efficacious remedy is available to the Applicant, and the present application is being filed bona fide and in the interest of justice.

PRAYER

It is, therefore, most respectfully prayed that this Hon'ble Court may kindly direct the registration of an FIR against the proposed accused under Sections 318(4) and 61(2) of the BNS, 2023, and entrust the investigation to an officer not below the rank of Inspector, Police Station Saket, with a further direction to supply a free copy of the FIR to the Applicant.

(Advocate for the Applicant)

(Vikram Mehta) — Applicant

Place: New Delhi

Date: 05.10.2026

VERIFICATION

I, Vikram Mehta, the Applicant above named, do hereby verify that the contents of paragraphs 1 to 8 above are true to my knowledge and belief, based on the record, and that nothing material has been concealed therefrom.

Verified at New Delhi on this 5th day of October, 2026.

APPLICANT

LIST OF ANNEXURES

A-1: Complaint dated 14.09.2026 with DD No. 27-B. A-2: Complaint dated 28.09.2026 to the Superintendent of Police (speed post proof). A-2A: E-mail dispatch proof. A-3: WhatsApp chat with Section 63(4) BSA certificate. A-4: Bank statements and transfer receipts. A-5: Acknowledgment dated 12.09.2026. A-6: Affidavit of the Applicant.

Drafting notes / common errors: The single most common mistake is filing the application without the affidavit that Section 175(3) BNSS makes mandatory — such applications are dismissed at the threshold. Do not convert the application into a mini-trial: plead the substratum of the offence and confine the material to documents that establish the offence. The Magistrate may seek the police officer's submission before ordering investigation, so annex the proof of refusal.

A4. APPLICATION FOR SUPPLY OF A COPY OF THE FIR, CASE PAPERS AND STATUS OF INVESTIGATION

Legal basis: Sections 173(2), 192 and 193(3)(ii), BNSS, 2023

Stage: During investigation

Filed by: Informant, victim, or the accused (to a limited extent, through the Court)

Filed before: The police station concerned; and, if refused, the Magistrate concerned

Timeline / Limitation: A free copy of the FIR must be given forthwith under Section 173(2). The informant/victim must be informed of the progress of investigation within ninety days under Section 193(3)(ii).

Key points to plead:

- The informant or the victim is entitled to a copy of the FIR free of cost as a matter of right — no application is normally required.
- The progress of the investigation must be communicated to the informant or the victim within ninety days under Section 193(3)(ii) BNSS (a new statutory obligation, absent in the CrPC).
- An accused is not entitled to the case diary as of right; access is granted by the Court at the stage of trial under Section 230 or Section 231 BNSS. Use this format to seek supply of documents at the trial stage and, in the alternative, to seek a status report.
- Where the police fail to inform the victim, the victim may also invoke the victim's right of participation under Section 397 BNSS (treatment of victims) and the scheme under Section 396.

Documents generally enclosed: Copy of the FIR/complaint already lodged; Identity proof; Any postal/e-mail acknowledgement of the earlier request.

PART I — BLANK FORMAT

BEFORE THE STATION HOUSE OFFICER, POLICE STATION _____,

_____

(Or, if refused, an application in the same terms before the Judicial Magistrate concerned, in the format of an application under the relevant provision)

APPLICATION FOR SUPPLY OF A COPY OF THE FIRST INFORMATION REPORT AND FOR COMMUNICATION OF THE PROGRESS OF THE INVESTIGATION

1. That the Applicant, _____, is the [informant/victim] in FIR No. _____ of 20____, registered at Police Station _____ under Sections _____ of the Bharatiya Nyaya Sanhita, 2023.

2. That the Applicant submitted the information/complaint leading to the registration of the above FIR on _____, but has not been supplied a copy of the FIR recorded under Section 173(1) of the BNSS, 2023, though entitled to the same free of cost under Section 173(2) of the BNSS, 2023.

3. That the Applicant has also not been informed of the progress of the investigation, although Section 193(3)(ii) of the BNSS, 2023 requires the police officer to inform the informant or the victim of the progress of the investigation within a period of ninety days by any means including electronic communication.

4. That the Applicant requires the said documents and information for [pursuing the case / preferring an application for compensation under Section 395-396 BNSS / seeking protection under Section 398 BNSS / contesting the proceedings].

5. That the Applicant has earlier made a request dated _____ (Annexure A-1) which has not been attended to, obliging the Applicant to approach the said authority/Court.

PRAYER

It is, therefore, most respectfully prayed that the Applicant may kindly be supplied with (i) a legible copy of the FIR free of cost under Section 173(2) of the BNSS, 2023; (ii) information regarding the progress of the investigation as required by Section 193(3)(ii) BNSS; and (iii) copies of such other documents as the Applicant is entitled to in law, and the Applicant may be granted such further relief as may be deemed fit.

(APPLICANT)

Place: _____ Date: _____

[For the trial stage, substitute prayer clause (iii) with the following and cite Section 230 BNSS: "…(iii) copies of the police report, statements recorded under Section 180(3), confessions and statements recorded under Section 183, and all other documents forwarded with the police report, as required to be furnished free of cost under Section 230 of the BNSS, 2023, within fourteen days of the production/appearance of the accused."]

PART II — ILLUSTRATION (SPECIMEN DRAFT WITH SAMPLE FACTS)

The specimen uses illustrative parties, dates and figures only. Replace every particular with the facts of your own case.

BEFORE THE STATION HOUSE OFFICER, POLICE STATION LAJPAT NAGAR, NEW DELHI

APPLICATION FOR SUPPLY OF A COPY OF THE FIRST INFORMATION REPORT AND FOR COMMUNICATION OF THE PROGRESS OF THE INVESTIGATION

1. That the Applicant, Sunita Rawat, resident of 22/3, Lajpat Nagar-IV, New Delhi, is the victim/informant in FIR No. 0417 of 2026, registered at Police Station Lajpat Nagar under Sections 115(2) and 351(2) of the Bharatiya Nyaya Sanhita, 2023.

2. That the Applicant lodged the written complaint leading to the registration of the above FIR on 18.06.2026, but was not handed over a copy of the FIR despite a request made at the counter on the same day and again on 26.06.2026.

3. That more than ninety days have elapsed since the registration of the FIR; the Applicant has not been informed of the progress of the investigation as mandated by Section 193(3)(ii) of the BNSS, 2023, and has received no communication regarding the arrest or release of the accused or the result of the investigation.

4. That the Applicant needs the copy of the FIR to pursue her application for compensation and interim protection, and to participate in the proceedings effectively in terms of the victim's rights recognised by Section 397 of the BNSS, 2023.

PRAYER

It is most respectfully prayed that the Applicant may kindly be furnished a free copy of FIR No. 0417 of 2026 and be informed of the progress of the investigation by e-mail/SMS as required under Section 193(3)(ii) of the BNSS, 2023.

(Sunita Rawat)

Applicant — Mobile: 98XXXXXXXX E-mail: sunita.rawat@xxmail.com

Place: New Delhi

Date: 30.09.2026

Drafting notes / common errors: The ninety-day progress report under Section 193(3)(ii) is a hard statutory right introduced by the BNSS — quote it verbatim in the application. If the police station does not respond, the same application can be moved before the Magistrate, who can call for the case diary under Section 192 BNSS.

A5. APPLICATION FOR WITNESS PROTECTION AND POLICE PROTECTION

Legal basis: Sections 398 and 397, BNSS, 2023 read with the Witness Protection Scheme, 2018

Stage: At any stage of investigation, inquiry or trial

Filed by: Witness, victim, informant or the Public Prosecutor on their behalf

Filed before: The Magistrate or Court before whom the case is pending (with a copy to the Superintendent of Police and the District Legal Services Authority)

Timeline / Limitation: No limitation; to be moved as soon as the threat perception arises.

Key points to plead:

- Section 398 BNSS casts a statutory duty on every State Government to prepare and notify a Witness Protection Scheme; the Witness Protection Scheme, 2018 (as approved in Mahender Chawla v. Union of India, (2019) 14 SCC 615) supplies the framework until a State scheme is notified.
- Threat perception is the foundation of the application; plead specific instances of threat, intimidation, assault, inducement or the accused's antecedents.
- Ask for measures such as police protection, concealment of identity, in-camera proceedings, change of the witness's address/phone, and recording of evidence through audio-video electronic means under Section 530 BNSS.
- Witness Protection is distinct from victim compensation (Format F4) and should not be mixed with it.

Documents generally enclosed: Affidavit of the witness setting out the threat perception; Copies of threat messages/call records/complaints to the police; Details of the earlier police complaints, if any; Medical records where violence has been used.

PART I — BLANK FORMAT

IN THE COURT OF _____, AT _____

CRIMINAL MISC. APPLICATION NO. _____ OF 20____

(Arising out of FIR No. _____ of 20____, Police Station _____)

IN THE MATTER OF:

_____, aged about _____ years, R/o _____ ...

APPLICANT / WITNESS NO. _____

VERSUS

State through the Public Prosecutor ... RESPONDENT

APPLICATION FOR WITNESS PROTECTION UNDER SECTION 398 OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023

MOST RESPECTFULLY SHOWETH:

1. That the Applicant is [the complainant/victim/witness No. _____] in the above case and is acquainted with material facts of the case. The Applicant's testimony is crucial for a just decision of the case.

2. That the accused person(s) in the case, namely _____, being influential and having connections with _____, have been intimidating, threatening and inducing the Applicant and the Applicant's family members to (i) not depose against them, (ii) turn hostile, and (iii) withdraw the case. The particulars of the threats are as under: [give dates, manner of threat, persons through whom it was conveyed, words used, and instances of violence, if any].

3. That on _____, the Applicant was [assaulted / accosted / threatened through messages/calls from the number _____ / approached through a common acquaintance], and the Applicant lodged a complaint to that effect at Police Station _____ vide DD No. _____ dated _____ (Annexure A-2), but no action has been taken.

4. That the Applicant is a resident of the locality in which the accused reside, and the Applicant and the Applicant's family are exposed to imminent danger to their life, limb and property.

5. That Section 398 of the BNSS, 2023 obliges the State Government to prepare and notify a Witness Protection Scheme to ensure the protection of witnesses, and the Hon'ble Supreme Court in Mahender Chawla v. Union of India, (2019) 14 SCC 615 has directed the implementation of the Witness Protection Scheme, 2018 throughout the country.

6. That the Applicant is entitled to protection under the scheme and to the facilities under Section 397 BNSS; the threat to the Applicant can be addressed by (i) providing police protection to the Applicant and family, (ii) directing the accused not to enter the locality, (iii) concealing the identity and address of the Applicant, and (iv) recording the evidence of the Applicant through audio-video electronic means under Section 530 BNSS, 2023.

7. That unless the protection sought is granted, the Applicant will not be able to depose freely and truthfully, which will cause a miscarriage of justice and frustrate the object of the new victim- and witness-centric provisions of the BNSS.

PRAYER

In the premises aforesaid, it is most respectfully prayed that this Hon'ble Court may be pleased to:

(a) direct that the Applicant be provided police protection for himself/herself and his/her family members for the duration of the trial;

(b) direct concealment of the identity, address and contact details of the Applicant and to hold the proceedings, in respect of the Applicant's evidence, in camera;

(c) direct that the evidence of the Applicant be recorded through audio-video electronic means under Section 530 BNSS, 2023; and

(d) pass such other orders for the protection of the Applicant as may be deemed fit, including a reference to the Competent Authority/Witness Protection Committee under the Witness Protection Scheme.

(ADVOCATE FOR THE APPLICANT)
(APPLICANT / WITNESS)

Place: _____

Date: _____

AFFIDAVIT

I, _____, do hereby solemnly affirm and state that the facts stated in paragraphs 1 to 6 above are true to my knowledge and that I apprehend threat to my life and limb at the hands of the accused and persons acting on their behalf. Nothing material has been concealed.

Verified at _____ on this _____ day of _____, 20____.

DEPONENT

PART II — ILLUSTRATION (SPECIMEN DRAFT WITH SAMPLE FACTS)

The specimen uses illustrative parties, dates and figures only. Replace every particular with the facts of your own case.

IN THE COURT OF THE JUDICIAL MAGISTRATE FIRST CLASS, KARKARDOOMA COURTS, DELHI

CRIMINAL MISC. APPLICATION NO. _____ OF 2026

(Arising out of FIR No. 0288 of 2026, Police Station Gokalpuri, under Sections 137(2), 140(2) and 61(2) BNS)

IN THE MATTER OF:

Mohd. Irfan, son of Shri Abdul Rehman, aged about 34 years, resident of House No. 118, Gali No. 6, Mustafabad, Delhi — 110094 ... APPLICANT / WITNESS

VERSUS

State (Govt. of NCT of Delhi) ... RESPONDENT

APPLICATION FOR WITNESS PROTECTION UNDER SECTION 398 OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023

MOST RESPECTFULLY SHOWETH:

1. That the Applicant is the eyewitness to the abduction of the minor child of the complainant, having seen the accused Salim Sheikh and two others forcibly dragging the child into a white car bearing registration No. DL 8C XX 1234 on 11.05.2026 at about 6.45 p.m. near Gali No. 9, Mustafabad. The Applicant's testimony is central to the prosecution case.

2. That after the arrest of the accused, the Applicant has been repeatedly threatened. On 24.06.2026, the elder brother of the accused, one Shahid Sheikh, came to the Applicant's shop and threatened that "if you depose against Salim, your children will not reach school". On 02.07.2026 and 09.07.2026, the Applicant received voice calls from mobile number 98XXXXXX21 repeating the threats, and on 15.07.2026 unknown persons pelted stones at the Applicant's house at about 2.00 a.m., damaging the window panes.

3. That the Applicant lodged a complaint at Police Station Gokalpuri vide DD No. 41-B dated 16.07.2026 (Annexure A-2) and another written complaint dated 21.07.2026 (Annexure A-3); no effective protection has been provided so far.

4. That the Applicant and his family reside in the same locality as the accused and are, therefore, highly vulnerable. The Applicant is willing to depose truthfully but is unable to do so without protection.

5. That the threats strike at the root of a fair trial and at the integrity of the criminal justice system; the Applicant is entitled to protection under the Witness Protection Scheme, 2018 read with Section 398 of the BNSS, 2023 and to the rights recognised under Section 397 BNSS.

PRAYER

It is most respectfully prayed that this Hon'ble Court may kindly: (a) direct the Commissioner of Police, Delhi, to provide round-the-clock police protection to the Applicant and his family members; (b) direct the accused and his associates not to approach the Applicant or his family; (c) direct concealment of the Applicant's address in the record and in-camera recording of his statement; and (d) refer the matter to the Witness Protection Committee for adoption of appropriate measures under the Scheme.

(Advocate for the Applicant)

(Mohd. Irfan) — Applicant

Place: Delhi Date: 28.07.2026

AFFIDAVIT

I, Mohd. Irfan, do hereby solemnly affirm that the contents of paragraphs 1 to 5 are true to my knowledge and that I apprehend serious threat to the life and limb of myself and my family at the hands of the accused and persons acting on their behalf.

DEPONENT

Drafting notes / common errors: Describe the threat concretely and contemporaneously — dates, phone numbers, words used, and the police complaints lodged. A vague fear of the accused will not persuade a court to invoke the Scheme. Keep the prayer practical (protection, in-camera hearing, audio-video deposition) rather than asking for change of identity, which is a last-resort measure.

A6. APPLICATION FOR RETURN OF SEIZED PROPERTY (MUDDAMAAL)

Legal basis: Sections 497, 498 and 503, BNSS, 2023 [corresponding to Sections 451, 452 and 457, CrPC, 1973]

Stage: During investigation, inquiry or trial

Filed by: Person entitled to possession — owner, registered keeper of a vehicle, insured, or lawful claimant

Filed before: The Magistrate empowered to take cognizance or commit the case for trial, or the Court before which the property is produced

Timeline / Limitation: Section 502 BNSS (restoration of immovable property) carries a special proviso: the order must be made within one month of the date of conviction. For moveable property there is no fixed period; move early where the property is perishable or is a vehicle.

Key points to plead:

- Property produced before the Court must be returned to the person entitled to possession, on a bond with or without sureties, where it is not required for the trial and where retention would cause deterioration or loss.
- For vehicles, cite Sunderbhai Ambalal Desai v. State of Gujarat, (2002) 10 SCC 283, as followed by the High Courts: the vehicle should ordinarily be released on a supardnama instead of being left to rot in the police station.
- Where the police seize property but do not produce it before the Court, the Magistrate's jurisdiction under Section 503 BNSS is attracted.
- Where the property is derived from criminal activity, the police may invoke Section 107 BNSS (attachment, forfeiture or restoration of property) — be prepared for an objection.

Documents generally enclosed: Copy of FIR, seizure memo/inventory prepared under Section 105 BNSS (with the audio-video recording, if any); Proof of ownership — registration certificate, invoice, insurance, title documents or medical records; Photographs of the property; Bond/supardnama of a solvent surety.

PART I — BLANK FORMAT

IN THE COURT OF _____, AT _____

CRIMINAL MISC. APPLICATION NO. _____ OF 20____

(Arising out of FIR No. _____ of 20____, Police Station _____)

IN THE MATTER OF:

_____ S/o Shri _____, R/o _____ ... APPLICANT / OWNER

VERSUS

State through Station House Officer, Police Station _____ ... RESPONDENT

APPLICATION FOR RELEASE/RETURN OF SEIZED PROPERTY (MUDDAMAAL) UNDER SECTIONS 497, 498 AND 503 OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023

MOST RESPECTFULLY SHOWETH:

1. That the Applicant is the lawful owner/registered keeper of the property described in the Schedule below, which was seized by Police Station _____ on _____ in connection with FIR No. _____ of 20____ and was [produced before this Hon'ble Court / reported to this Hon'ble Court under Section 503 BNSS].

2. That the Applicant's ownership/right to possession is established by [registration certificate/invoice/title deed/insurance policy/gift deed/succession certificate], annexed herewith as Annexure A-2.

3. That the property is not required for the purposes of investigation, inquiry or trial, as [the investigation is complete and the police report has been filed / the photographs and videography of the property have

been preserved under Section 105 BNSS / no identification proceeding is pending].

4. That the continued retention of the property in the police station/court custody will result in its deterioration and loss of value; in the case of a vehicle, it is exposed to rust, tyre damage, battery discharge and theft of parts. The Hon'ble Supreme Court in Sunderbhai Ambalal Desai v. State of Gujarat, (2002) 10 SCC 283 has deprecated the practice of keeping vehicles in police custody for long periods and has directed that they be released on a supardnama.

5. That the Applicant is ready and willing to execute a bond with sureties, as required, undertaking to produce the property before the Court as and when directed, and not to transfer, alienate, alter or part with possession thereof without the leave of the Court.

6. That no prejudice whatsoever will be caused to the prosecution by the release of the property, whereas grave prejudice will be caused to the Applicant by its continued retention.

SCHEDULE OF PROPERTY

(i) _____ [description, make, model, year, registration number, chassis/engine number, quantity and approximate value].

(ii) _____.

PRAYER

In the premises aforesaid, it is most respectfully prayed that this Hon'ble Court may be pleased to:

(a) direct the release of the property described in the Schedule above to the Applicant on superdari, on his executing a bond with/without sureties as this Hon'ble Court may deem fit, and on such other conditions as may be imposed for its production as and when required;

(b) permit the Applicant to produce the property before the Court for identification/photography before its release, if the Court so requires; and

(c) pass such other and further orders as may be deemed fit and proper in the interest of justice.

(ADVOCATE FOR THE APPLICANT / APPLICANT)

Place: _____

Date: _____

VERIFICATION

I, _____, the Applicant above named, verify that the contents of paragraphs 1 to 6 are true to my knowledge and belief, and nothing material has been concealed therefrom.

APPLICANT

PART II — ILLUSTRATION (SPECIMEN DRAFT WITH SAMPLE FACTS)

The specimen uses illustrative parties, dates and figures only. Replace every particular with the facts of your own case.

IN THE COURT OF THE JUDICIAL MAGISTRATE FIRST CLASS, PATIALA HOUSE COURTS, NEW DELHI

CRIMINAL MISC. APPLICATION NO. _____ OF 2026

(Arising out of FIR No. 0311 of 2026, Police Station Barakhamba Road, under Sections 303(2) and 317(2) BNS)

IN THE MATTER OF:

Rohit Anand, son of Shri Deepak Anand, resident of 77, Sector 15-A, Noida, Uttar Pradesh ... APPLICANT / OWNER

VERSUS

State (Govt. of NCT of Delhi) through Station House Officer, Police Station Barakhamba Road ... RESPONDENT

APPLICATION FOR RELEASE OF SEIZED PROPERTY (MUDDAMAAL) UNDER SECTIONS 497, 498 AND 503 OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023

MOST RESPECTFULLY SHOWETH:

1. That the Applicant is the registered owner of a Hyundai Creta motor car bearing registration No. DL 3C BX 8842 (chassis No. MALXXXXXXXXXXX, engine No. G4NAXXXXXX), which was seized by Police Station Barakhamba Road on 09.08.2026 in connection with FIR No. 0311 of 2026 and has since been lying in the police station/MTNL compound under open sky.

2. That the Applicant purchased the said vehicle vide invoice No. XXXXX dated 18.01.2024 issued by Bagga Link Motors and the vehicle stands registered in the name of the Applicant with the Transport Authority, Delhi, as per the Registration Certificate annexed as Annexure A-2. The vehicle is also insured with ICICI Lombard under Policy No. XXXXXXX.

3. That the Applicant has been falsely implicated in the case only because the alleged stolen goods were being transported in his vehicle by his driver, one Sandeep Yadav, who had taken the vehicle for servicing without the Applicant's knowledge. In any event, the vehicle is not the subject matter of the offence and is not required for the trial.

4. That the police have already photographed and videographed the vehicle at the time of seizure as required by Section 105 of the BNSS, 2023, and the seizure memo has been signed by the witnesses; the vehicle is thus no longer required to be kept in police custody.

5. That the said vehicle has been exposed to the rains since 09.08.2026, its tyres have deflated and its battery has discharged. The registered owner is suffering loss of use and is exposed to the risk of theft of parts, whereas he continues to pay the instalments of the vehicle loan and the insurance premium.

6. That the Applicant is ready and willing to produce the vehicle before this Hon'ble Court on every date of hearing, and to execute a bond in terms of Section 498(2) of the BNSS, 2023 for its production as and when directed.

PRAYER

It is, therefore, most respectfully prayed that this Hon'ble Court may kindly direct the release of the Hyundai Creta motor car bearing registration No. DL 3C BX 8842 to the Applicant on superdari, on his executing a bond with sureties to the satisfaction of this Hon'ble Court, with a direction to produce the same as and when required.

(Advocate for the Applicant)

(Rohit Anand) — Applicant

Place: New Delhi Date: 12.10.2026

VERIFICATION

I, Rohit Anand, the Applicant above named, verify that the contents of paragraphs 1 to 6 are true to my knowledge and belief, and nothing material has been concealed therefrom.

APPLICANT

Drafting notes / common errors: Attach proof of ownership — an application without the RC/invoice is the most common reason for dismissal. Ask for permission to produce the property for photography/identification before release. Where the value or the nature of the property is disputed, offer solvent sureties and an undertaking not to alienate it.

A7. APPLICATION FOR RESTORATION OF POSSESSION OF IMMOVABLE PROPERTY

Legal basis: Section 502, BNSS, 2023 (a new provision, without a counterpart in the CrPC)

Stage: On conviction for dispossession by criminal force, show of force or criminal intimidation

Filed by: Person dispossessed of immovable property

Filed before: The trial Court; if it has not passed an order, the Court of appeal, confirmation or revision

Timeline / Limitation: The order under Section 502(1) cannot be made more than one month after the date of conviction — the application must be moved within that period.

Key points to plead:

- Section 502 BNSS permits the Court, on conviction, to restore possession by evicting, if necessary by force, any person in possession; it applies where dispossession was caused by criminal force, show of force or criminal intimidation.
- The one-month limitation from the date of conviction is strict; if the trial Court has not ordered restoration, the appellate/revisional Court can still do so under Section 502(2).
- This is a summary, time-bound remedy at the end of a criminal trial — it is not a substitute for a civil suit for possession, but it is far quicker and can be sought in addition to other remedies.
- Plead the conviction, the identity of the property, the fact of dispossession by force or intimidation, and the continued occupation of the wrongdoer.

Documents generally enclosed: Copy of the judgment of conviction; Proof of title/possession — title deed, mutation, rent receipts, electricity bills, possession certificate; Revenue records/khasra or survey documents; Photographs and witness details proving dispossession.

PART I — BLANK FORMAT

IN THE COURT OF _____, AT _____

CRIMINAL MISC. APPLICATION NO. _____ OF 20____

(In Sessions Case / Criminal Case No. _____ of 20____, decided on _____)

IN THE MATTER OF:

_____ S/o Shri _____, R/o _____ ... APPLICANT / FIRST INFORMANT

VERSUS

(1) _____ S/o _____, R/o _____

(2) State through the Public Prosecutor ... RESPONDENTS

APPLICATION FOR RESTORATION OF POSSESSION OF IMMOVABLE PROPERTY UNDER SECTION 502 OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023

MOST RESPECTFULLY SHOWETH:

1. That the accused No. 1 was convicted by this Hon'ble Court vide judgment dated _____ under Sections _____ of the Bharatiya Nyaya Sanhita, 2023, for having dispossessed the Applicant from the immovable property described in the Schedule below by use of criminal force/show of force/criminal intimidation.

2. That the Applicant was in lawful possession and occupation of the said property, as is established by [title deed/mutation entry in the revenue records/rent receipts/electricity and water bills/patta/lease deed], and was dispossessed on _____ by the accused by [forcibly removing the lock and throwing out the Applicant's goods/making threats of death and causing hurt/erecting a structure and

preventing ingress and egress].

3. That the convicted accused is still in unauthorised possession and enjoyment of the said property and continues to threaten the Applicant, who has been rendered homeless/without the use of the property since _____.

4. That Section 502 of the BNSS, 2023 empowers this Hon'ble Court, upon conviction of a person for an offence committed by use of criminal force or show of force or by criminal intimidation whereby any person has been dispossessed of immovable property, to order restoration of possession to that person, after evicting, if necessary by force, any other person in possession of the property.

5. That the present application is being filed within one month from the date of conviction, as required by the proviso to Section 502(1) of the BNSS, 2023 [or: Though the trial Court has not passed an order under Section 502(1), this Hon'ble Court may, in exercise of the powers under Section 502(2) of the BNSS, 2023, restore possession to the Applicant].

6. That restoration of possession is necessary to give the Applicant the fruit of the criminal proceedings and to prevent the convict from enjoying the benefit of his own crime.

SCHEDULE OF PROPERTY

Property situated at _____, admeasuring _____, bearing [Khasra No./Survey No./Plot No./Municipal No.] _____, bounded as follows: North _____, South _____, East _____, West _____.

PRAYER

It is, therefore, most respectfully prayed that this Hon'ble Court may be pleased to order the restoration of possession of the immovable property described in the Schedule above to the Applicant, evicting by force, if necessary, the convict/any other person found in possession thereof, and to pass such further orders, including the use of police assistance for implementation of the order, as may be deemed fit and proper in the interest of justice.

(ADVOCATE FOR THE APPLICANT / APPLICANT)

Place: _____

Date: _____

AFFIDAVIT

I, _____, do hereby solemnly affirm that the contents of paragraphs 1 to 6 above are true to my knowledge and belief, based on the record, and that nothing material has been concealed therefrom.

Verified at _____ on this _____ day of _____, 20____.

DEPONENT

PART II — ILLUSTRATION (SPECIMEN DRAFT WITH SAMPLE FACTS)

The specimen uses illustrative parties, dates and figures only. Replace every particular with the facts of your own case.

IN THE COURT OF THE ADDITIONAL SESSIONS JUDGE-02, TIS HAZARI COURTS, DELHI

CRIMINAL MISC. APPLICATION NO. _____ OF 2026

(In Sessions Case No. 118 of 2025, decided on 22.09.2026)

IN THE MATTER OF:

Smt. Kamla Devi, widow of late Shri Ram Swaroop, resident of House No. 214, Village Khyala, Delhi — 110018 ... APPLICANT

VERSUS

(1) Jai Prakash, son of Shri Ramesh Chand, resident of House No. 214, Village Khyala, Delhi — 110018; (2) State (Govt. of NCT of Delhi) ... RESPONDENTS

APPLICATION FOR RESTORATION OF POSSESSION OF IMMOVABLE PROPERTY UNDER SECTION 502 OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023

MOST RESPECTFULLY SHOWETH:

1. That the accused Jai Prakash, the Applicant's brother-in-law, was convicted by this Hon'ble Court vide judgment dated 22.09.2026 under Sections 115(2), 351(2) and 329(4) of the BNS, 2023 for having forcibly dispossessed the Applicant from the ground floor of House No. 214, Village Khyala, Delhi, on 05.03.2025 by breaking open the lock, throwing her household articles on the road and threatening to kill her if she returned.

2. That the Applicant is the widow of late Shri Ram Swaroop, who was the recorded owner of the said property as per the mutation dated 12.07.2019 in the records of the Revenue Department, Delhi (Annexure A-2), and the Applicant has been in settled possession of the property since her marriage in 1998, paying the electricity and water charges (Annexure A-3).

3. That the Applicant has been living with her minor daughter at her parental home since 05.03.2025 while the convict continues in unauthorised possession and has let out a portion of the property to a tenant for a monthly rent of Rs. 9,000/-, thereby enjoying the fruits of his own wrong.

4. That the Applicant is entitled to restoration of possession under Section 502 of the BNSS, 2023, and this application is filed well within one month of the date of conviction, the judgment having been pronounced on 22.09.2026.

5. That the Applicant is facing irreparable hardship and humiliation; the convict, emboldened by his continued occupation, has also threatened the Applicant to withdraw her complaint.

PRAYER

It is, therefore, most respectfully prayed that this Hon'ble Court may kindly order the restoration of possession of the ground floor of House No. 214, Village Khyala, Delhi — 110018, to the Applicant, evicting by force if necessary the convict and any other person in possession thereof, and may further direct the Station House Officer, Police Station Khyala, to render all necessary assistance for the implementation of the order.

(Advocate for the Applicant)

(Kamla Devi) — Applicant

Place: Delhi Date: 06.10.2026

AFFIDAVIT

I, Kamla Devi, do hereby solemnly affirm that the contents of paragraphs 1 to 5 above are true to my knowledge and belief, based on the record, and that nothing material has been concealed therefrom.

DEPONENT

Drafting notes / common errors: Section 502 is a powerful but little-used provision — plead the conviction itself as the jurisdictional fact, and annex the judgment. Watch the one-month clock from the date of conviction; if it has expired, seek the remedy from the appellate or revisional Court under Section 502(2). Keep a certified copy of the title/mutation documents ready, since restoration is summary in nature and the Court will not decide title.

PART B — BAIL, BOND AND CUSTODY FORMATS

Chapter XXXV of the BNSS (Sections 478 to 496) contains the law relating to bail and bonds. Note that under the BNSS, 'bail' means release on a bond or bail bond; a 'bond' is an undertaking without surety, and a 'bail bond' is an undertaking with surety (Section 2(1)(b) to (e) BNSS). Every surety must now make a declaration before the Court under Section 486 BNSS.

B1. BAIL APPLICATION IN A BAILABLE OFFENCE

Legal basis: Section 478, BNSS, 2023 [corresponding to Section 436, CrPC, 1973]

Stage: After arrest or on appearance in a bailable case — at any stage

Filed by: Accused (a police officer or the Court must release him if he is prepared to give bail)

Filed before: The police officer having custody, or the Magistrate before whom the accused appears

Timeline / Limitation: No limitation — bail in a bailable offence is a right and the release must follow on furnishing bail; if the accused is indigent and unable to furnish surety, he must be discharged on his own bond.

Key points to plead:

- Bail in a bailable offence cannot be refused; the discretion is only as to the amount of the bond and the sufficiency of the sureties.
- The proviso to Section 478(1) requires that an indigent person unable to furnish surety be discharged on his own bond without sureties.
- The undertaking required by Section 481 BNSS (appearance before the higher Court after trial) is a separate bond, and is not a condition of bail.

Documents generally enclosed: Copy of FIR / charge sheet; Identity and address proof; Surety documents — identity, address and property proof.

PART I — BLANK FORMAT

IN THE COURT OF _____, AT _____

CRIMINAL MISC. APPLICATION NO. _____ OF 20____

(Arising out of FIR No. _____ of 20____, Police Station _____, under Sections _____ BNS, 2023)

IN THE MATTER OF:

_____ S/o Shri _____, aged about _____ years, R/o _____ ... APPLICANT / ACCUSED

VERSUS

State through the Station House Officer, Police Station _____ ... RESPONDENT / STATE

APPLICATION FOR BAIL IN A BAILABLE OFFENCE UNDER SECTION 478 OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023

MOST RESPECTFULLY SHOWETH:

1. That the Applicant has been arrayed as an accused in the above case registered under Sections _____ of the Bharatiya Nyaya Sanhita, 2023, all of which are bailable offences within the meaning of Section 2(1)(c) read with the First Schedule of the BNSS, 2023.

2. That the Applicant was [arrested on _____ and released on interim bail by the police / has been served with a summons to appear before this Hon'ble Court / is in custody since _____] and is now before this Hon'ble Court.

3. That in the case of a bailable offence, the Applicant is entitled to be released on bail as a matter of right under Section 478 of the BNSS, 2023, which provides that a person accused of a bailable offence "shall be released on bail" if he is prepared to give bail.

4. That the Applicant is a permanent resident of _____, is not a flight risk, and is ready and willing to furnish a personal bond and surety/sureties to the satisfaction of this Hon'ble Court and to abide by all conditions that may be imposed.

5. That the Applicant undertakes to attend every date of hearing in the case, not to tamper with the evidence and not to influence the witnesses.

6. That the Applicant has not been previously convicted of any offence and there is no likelihood of his absconding or committing any offence while on bail.

PRAYER

It is, therefore, most respectfully prayed that this Hon'ble Court may kindly be pleased to release the Applicant on bail in the above case on his furnishing a personal bond in the sum of Rs. _____ with one surety in the like amount to the satisfaction of this Hon'ble Court, and to pass such other orders as may be deemed fit in the interest of justice.

[Where the Applicant is indigent and unable to furnish surety: It is further prayed that in view of the proviso to Section 478(1) of the BNSS, 2023, the Applicant being indigent and unable to furnish surety, he may kindly be ordered to be discharged on his executing a bond without sureties for his appearance, in the prescribed form.]

(ADVOCATE FOR THE APPLICANT)

(APPLICANT / ACCUSED)

Place: _____

Date: _____

VERIFICATION

I, _____, the Applicant above named, verify that the contents of paragraphs 1 to 6 are true to my knowledge and belief, and nothing material has been concealed therefrom.

APPLICANT

PART II — ILLUSTRATION (SPECIMEN DRAFT WITH SAMPLE FACTS)

The specimen uses illustrative parties, dates and figures only. Replace every particular with the facts of your own case.

IN THE COURT OF THE CHIEF JUDICIAL MAGISTRATE, GHAZIABAD, UTTAR PRADESH

CRIMINAL MISC. APPLICATION NO. _____ OF 2026

(Arising out of FIR No. 0522 of 2026, Police Station Indirapuram, under Sections 115(2), 351(2) and 352 BNS, 2023)

IN THE MATTER OF:

Ankit Tyagi, son of Shri Devender Tyagi, aged about 29 years, resident of Flat No. C-304, Shanti Enclave, Vaishali, Ghaziabad, Uttar Pradesh ... APPLICANT

VERSUS

State of Uttar Pradesh through Station House Officer, Police Station Indirapuram, Ghaziabad ... RESPONDENT

APPLICATION FOR BAIL IN A BAILABLE OFFENCE UNDER SECTION 478 OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023

MOST RESPECTFULLY SHOWETH:

1. That the Applicant has been arrayed as an accused in FIR No. 0522 of 2026 under Sections 115(2) (voluntarily causing hurt), 351(2) (criminal intimidation) and 352 (insult intended to provoke a breach of the peace) of the BNS, 2023. Each of these offences is shown as BAILABLE in the First Schedule to the BNSS, 2023.

2. That the Applicant was served with a notice under Section 35(3) of the BNSS, 2023 dated 18.08.2026 and has duly appeared before the Investigating Officer and before this Hon'ble Court on all dates; he was never arrested in the case.

3. That the dispute arises out of a parking altercation with the first informant, who is the Applicant's neighbour in the same tower. The Applicant has been implicated on account of an old enmity, and the injuries alleged are simple in nature.

4. That the Applicant is a permanent resident of Ghaziabad, is employed as a software engineer with XYZ Technologies Pvt. Ltd., Noida, and has deep roots in society. He is not a flight risk and is ready to furnish a personal bond and surety to the satisfaction of this Hon'ble Court.

5. That the Applicant undertakes to attend every date of hearing, not to tamper with the evidence, not to influence the witnesses and not to enter into any dispute with the first informant pending trial.

6. That the Applicant has no criminal antecedents whatsoever.

PRAYER

It is, therefore, most respectfully prayed that this Hon'ble Court may kindly release the Applicant on bail in FIR No. 0522 of 2026, Police Station Indirapuram, on his furnishing a personal bond in the sum of Rs. 20,000/- with one surety in the like amount to the satisfaction of this Hon'ble Court, and may further direct the release of the Applicant forthwith.

(Advocate for the Applicant)

(Ankit Tyagi) — Applicant

Place: Ghaziabad Date: 09.10.2026

VERIFICATION

I, Ankit Tyagi, verify that the contents of paragraphs 1 to 6 above are true to my knowledge and belief and nothing material has been concealed therefrom.

APPLICANT

Drafting notes / common errors: There is no reason to make a bailable-offence bail application elaborate — the shorter and simpler it is, the better. Do annex the FIR and the notice under Section 35(3) BNSS to show that the applicant has been cooperating. Check the First Schedule before describing an offence as bailable: under the BNS, several offences traditionally treated as non-cognizable/non-bailable have changed classification (for example, voluntarily causing grievous hurt under Section 117(2) is cognizable but bailable, whereas cheating simpliciter under Section 318(2) is non-cognizable and bailable).

B2. REGULAR BAIL APPLICATION IN A NON-BAILABLE OFFENCE BEFORE THE MAGISTRATE

Legal basis: Section 480 read with Sections 482 to 484, BNSS, 2023 [corresponding to Sections 437 and 439, CrPC, 1973]

Stage: After arrest and production, during investigation, inquiry or trial

Filed by: Accused, through an advocate

Filed before: The Magistrate before whom the accused appears or is produced

Timeline / Limitation: No limitation for moving the application. Where investigation is not completed within 60/90 days, the right to default bail under Section 187(3) BNSS arises — a separate format (B5).

Key points to plead:

- Section 480(1) bars bail only where there appear reasonable grounds to believe the accused is guilty of an offence punishable with death or imprisonment for life, or where the accused has the specified previous convictions; the bar is lifted for a child, a woman, or a sick or infirm person by the first proviso.
- The fourth proviso to Section 480(1) requires the Court to give the Public Prosecutor an opportunity of hearing before releasing a person accused of an offence punishable with death, imprisonment for life or imprisonment for seven years or more.
- The third proviso clarifies that the mere fact that the accused may be required for identification, or for police custody beyond the first fifteen days, is not a sufficient ground to refuse bail.
- Address the triple test — flight risk, tampering with evidence, and influencing witnesses — and plead parity, custody undergone, completion of investigation, and the absence of antecedents.

Documents generally enclosed: Copy of FIR, arrest memo and the police report/charge sheet; Order granting or refusing bail to co-accused, if any; Proof of residence, employment and family ties; Medical records of the applicant or of a dependent relative where relevant; Surety documents.

PART I — BLANK FORMAT

IN THE COURT OF _____, AT _____

CRIMINAL MISC. APPLICATION NO. _____ OF 20____

(Arising out of FIR No. _____ of 20____, Police Station _____, under Sections _____ BNS, 2023)

IN THE MATTER OF:

_____ S/o Shri _____, aged about _____ years, R/o _____ ... APPLICANT / ACCUSED (IN JUDICIAL CUSTODY SINCE _____)

VERSUS

State through the Station House Officer, Police Station _____ ... RESPONDENT / STATE

APPLICATION FOR GRANT OF REGULAR BAIL UNDER SECTION 480 OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023

MOST RESPECTFULLY SHOWETH:

BRIEF FACTS

1. That on the complaint of _____, FIR No. _____ of 20____ has been registered at Police Station _____ under Sections _____ of the Bharatiya Nyaya Sanhita, 2023, alleging in substance that [state the prosecution case in three or four sentences, without argument].

2. That the Applicant was arrested on _____ and has been in judicial custody since then, having undergone detention of about _____ days as on date.

3. That the investigation is [complete and the police report has been filed before this Hon'ble Court on _____ / still in progress, but the custodial interrogation of the Applicant is not required, for the reasons set out below].

GROUNDS

4. That the Applicant is innocent and has been falsely implicated in the case; the role attributed to the Applicant is limited to _____, which does not make out the offence alleged.

5. That the Applicant is a permanent resident of _____ and has deep roots in society; he has a family consisting of _____ dependent upon him, and there is no likelihood of his absconding or fleeing from justice.

6. That the Applicant has no criminal antecedents [or: the antecedents of the Applicant are set out below and do not warrant refusal of bail, inasmuch as _____].

7. That no useful purpose will be served by keeping the Applicant in further custody, as (i) the recoveries, if any, have already been effected; (ii) the statement of the Applicant has already been recorded; (iii) the evidence is documentary and is in the custody of the prosecution; and (iv) there is no possibility of the Applicant tampering with the evidence or influencing the witnesses, who are [official witnesses / residents of the same locality and already examined / fully identified].

8. That the co-accused, namely _____, has been granted bail by this Hon'ble Court/the Court of Session vide order dated _____ passed in Bail Application No. _____ of 20____ (Annexure A-3), and the Applicant stands on the same footing; the Applicant is entitled to parity.

9. That the Applicant is [a woman / below sixteen years of age / sick and infirm], and in view of the first proviso to Section 480(1) of the BNSS, 2023, the Applicant is entitled to be released on bail.

10. That the trial is likely to take considerable time, and the continued detention of the Applicant would amount to punishment before conviction, in violation of the presumption of innocence and of the right to speedy trial under Article 21 of the Constitution of India. The Hon'ble Supreme Court has repeatedly held that bail is the rule and jail the exception {Satender Kumar Antil v. Central Bureau of Investigation, (2022) 10 SCC 51; Gudikanti Narasimhulu v. Public Prosecutor, (1978) 1 SCC 240}.

11. That the Applicant is ready and willing to (i) furnish a personal bond with surety/sureties to the satisfaction of this Hon'ble Court; (ii) surrender his passport, if any, or undertake not to leave the country without the leave of the Court; (iii) appear before the Investigating Officer and before this Hon'ble Court as and when required; (iv) not tamper with the evidence or influence the witnesses; and (v) not commit any offence while on bail.

12. That the present application is bona fide; the Applicant has not filed any earlier application for bail before this Hon'ble Court [or: the earlier application was withdrawn/rejected vide order dated _____, and the present application is moved on the fresh ground that _____].

PRAYER

In the premises aforesaid, it is most respectfully prayed that this Hon'ble Court may kindly be pleased to:

(a) release the Applicant on bail in FIR No. _____ of 20____, Police Station _____, on his executing a personal bond in the sum of Rs. _____ with surety/sureties in the like amount to the satisfaction of this Hon'ble Court, and on such conditions as this Hon'ble Court may deem fit to

impose, including the conditions under Section 480(3) of the BNSS, 2023; and

(b) pass such other and further orders as may be deemed fit and proper in the interest of justice.

(ADVOCATE FOR THE APPLICANT)

(APPLICANT / ACCUSED)

Place: _____

Date: _____

VERIFICATION

I, _____, the Applicant above named, verify that the contents of paragraphs 1 to 12 above are true to my knowledge and belief; nothing material has been concealed therefrom and no part thereof is false.

Verified at _____ on this _____ day of _____, 20____.

APPLICANT

LIST OF ANNEXURES

A-1: Copy of the FIR. A-2: Copy of the arrest memo/remand papers. A-3: Order granting bail to the co-accused. A-4: Proof of residence and employment. A-5: Copies of the charge sheet, if filed.

PART II — ILLUSTRATION (SPECIMEN DRAFT WITH SAMPLE FACTS)

The specimen uses illustrative parties, dates and figures only. Replace every particular with the facts of your own case.

IN THE COURT OF THE METROPOLITAN MAGISTRATE-04, SAKET COURTS, NEW DELHI

CRIMINAL MISC. APPLICATION NO. _____ OF 2026

(Arising out of FIR No. 0311 of 2026, Police Station Barakhamba Road, under Sections 316(2), 318(4) and 61(2) BNS, 2023)

IN THE MATTER OF:

Rohit Anand, son of Shri Deepak Anand, aged about 41 years, resident of 77, Sector 15-A, Noida, Uttar Pradesh ... APPLICANT / ACCUSED (IN JUDICIAL CUSTODY SINCE 09.08.2026)

VERSUS

State (Govt. of NCT of Delhi) through Station House Officer, Police Station Barakhamba Road ... RESPONDENT

APPLICATION FOR GRANT OF REGULAR BAIL UNDER SECTION 480 OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023

MOST RESPECTFULLY SHOWETH:

BRIEF FACTS

1. That on the complaint of M/s. Orion Traders Pvt. Ltd., FIR No. 0311 of 2026 has been registered at Police Station Barakhamba Road under Sections 316(2) (criminal breach of trust) and 318(4) (cheating and dishonestly inducing delivery of property), read with Section 61(2) (criminal conspiracy) of the BNS, 2023, alleging that goods worth Rs. 18,40,000/- entrusted to the Applicant's transport firm were not accounted for and were misappropriated by the Applicant.

2. That the Applicant was arrested on 09.08.2026 and has been in judicial custody since then, having undergone detention of more than sixty days as on date. The police report has been filed in this Hon'ble Court on 02.10.2026 and cognizance has been taken.

3. That the Applicant is the sole proprietor of M/s. Anand Roadways and had engaged the co-accused Sandeep Yadav as a driver in the regular course of business. The entire consignment was entrusted to the said driver, who misappropriated the goods. The Applicant is himself the complainant in FIR No. 0398 of 2026 registered at Police Station Sector 20, Noida, against the said driver for the very same goods, a copy of which is annexed.

4. That the dispute, in so far as the Applicant is concerned, is essentially civil in nature arising out of a transport contract, and the dispute regarding the shortage of goods is pending adjudication before the Arbitrator appointed under the contract.

5. That the Applicant was not named in the FIR and was implicated only during the investigation, after he refused to accede to the complainant's demand for payment of the entire consignment value.

6. That the Applicant is a permanent resident of Noida with his wife, two school-going children and aged parents; he has no criminal antecedents; his passport is already in the custody of the Investigating Officer; and he is not a flight risk.

7. That the co-accused Sandeep Yadav has been granted bail by the learned Additional Sessions Judge, Saket Courts, vide order dated 21.09.2026 in Bail Application No. 1187 of 2026. The Applicant, whose case is on a better footing, is entitled to parity.

8. That the evidence in the case is entirely documentary — consignment notes, e-way bills and bank statements — all of which are in the custody of the prosecution. There is, therefore, no possibility of tampering with evidence, and all the witnesses are employees of the complainant company, whose testimony cannot be influenced by the Applicant.

9. That the Applicant is ready to cooperate with the trial, to appear on every date of hearing and to abide by the conditions under Section 480(3) of the BNSS, 2023.

PRAYER

It is, therefore, most respectfully prayed that this Hon'ble Court may kindly release the Applicant on bail in FIR No. 0311 of 2026, Police Station Barakhamba Road, on his executing a personal bond in the sum of Rs. 50,000/- with two sureties in the like amount to the satisfaction of this Hon'ble Court, with a direction that the Applicant shall not leave the country without the leave of this Hon'ble Court and shall appear before the Investigating Officer as and when required.

(Advocate for the Applicant)

(Rohit Anand) — Applicant

Place: New Delhi Date: 13.10.2026

VERIFICATION

I, Rohit Anand, the Applicant above named, verify that the contents of paragraphs 1 to 9 above are true to my knowledge and belief and nothing material has been concealed therefrom.

APPLICANT

LIST OF ANNEXURES

A-1: Copy of the FIR. A-2: Letter of appointment/engagement of the co-accused driver. A-3: Copy of FIR No. 0398 of 2026, Police Station Sector 20, Noida. A-4: Order dated 21.09.2026 granting bail to the co-accused. A-5: Medical records of the Applicant's father.

Drafting notes / common errors: The strongest bail applications are fact-specific: state the exact role attributed to the applicant, the exact stage of the investigation and the exact material already collected. Always address the two statutory bars in Section 480(1) and the fourth proviso (notice to the Public Prosecutor), because a bail order passed without hearing the Public Prosecutor in a case covered by that proviso is vulnerable. Where the offence is punishable with seven years or more, offer the Section 480(3) conditions proactively.

B3. BAIL APPLICATION BEFORE THE COURT OF SESSION OR THE HIGH COURT

Legal basis: Section 483, BNSS, 2023 [corresponding to Section 439, CrPC, 1973]

Stage: After refusal of bail by the Magistrate, or directly in a case triable exclusively by the Court of Session

Filed by: Accused in custody

Filed before: The Court of Session or the High Court

Timeline / Limitation: No limitation. The proviso to Section 483(1) requires notice of the bail application to the Public Prosecutor where the offence is triable exclusively by the Court of Session, or is punishable with imprisonment for life.

Key points to plead:

- Section 483 empowers the Court of Session and the High Court to release an accused in custody, or to set aside or modify a condition imposed by a Magistrate.
- Notice to the Public Prosecutor is mandatory (unless the Court records reasons that it is not practicable) in offences triable exclusively by the Court of Session or punishable with imprisonment for life — ensure that service is effected and acknowledged on the file.
- Where the Magistrate has rejected bail, the application must set out the order of rejection, its date and the ground on which it was refused, and must dismantle that reasoning.
- Where the applicant is a woman, a child or a sick person, invoke the first proviso to Section 480(1) even before the higher Court.

Documents generally enclosed: Copy of the FIR, charge sheet, and the order of the Magistrate refusing bail; Custody certificate; Medical records, if any; Proof of family, employment and residence; Surety documents.

PART I — BLANK FORMAT

IN THE COURT OF THE SESSIONS JUDGE / IN THE HIGH COURT OF _____

CRIMINAL MISC. (BAIL) APPLICATION NO. _____ OF 20____

(Arising out of FIR No. _____ of 20____, Police Station _____, under Sections _____ BNS, 2023)

IN THE MATTER OF:

_____ S/o Shri _____, aged about _____ years, R/o _____ ... PETITIONER / ACCUSED (IN CUSTODY SINCE _____)

VERSUS

State (Government of _____) through the Station House Officer, Police Station _____ ... RESPONDENT

APPLICATION FOR BAIL UNDER SECTION 483 OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023

MOST RESPECTFULLY SHOWETH:

1. That the Petitioner is the accused in the above case and is in judicial custody since _____. By order dated _____ passed in Bail Application No. _____ of 20____ by the learned _____, the Petitioner's application for bail was rejected [state the substance of the reasons given].

2. That the Petitioner is innocent and has been falsely implicated; the material collected by the prosecution does not disclose the ingredients of the offence alleged, namely _____.

3. That the reasons assigned by the learned Magistrate for refusing bail are unsustainable, inasmuch as (i) _____; (ii) _____; and (iii) _____.

4. That the investigation is complete and the police report has been filed; no recovery or discovery is to be made from the Petitioner, and his custodial interrogation is not required.

5. That the co-accused _____ has been granted bail by this Hon'ble Court vide order dated _____, and the Petitioner stands on the same footing.

6. That the Petitioner is a permanent resident of _____ with roots in society, has no criminal antecedents [or: antecedents set out], and is ready and willing to abide by any condition that may be imposed, including the conditions under Section 483(1)(a) read with Section 480(3) of the BNSS, 2023.

7. That the trial is likely to take a long time, and the continued incarceration of the Petitioner would frustrate his right to a speedy trial and to personal liberty under Article 21 of the Constitution of India. It is settled that the gravity of the accusation alone cannot be a ground for refusing bail {State of Kerala v. Raneef, (2011) 1 SCC 784; Satender Kumar Antil v. CBI, (2022) 10 SCC 51}.

8. That notice of the present application has been/is being given to the learned Public Prosecutor as required by the proviso to Section 483(1) of the BNSS, 2023.

PRAYER

It is, therefore, most respectfully prayed that this Hon'ble Court may kindly:

(a) set aside the order dated _____ passed by the learned _____, and release the Petitioner on bail in FIR No. _____ of 20____, Police Station _____, on such terms and conditions as this Hon'ble Court may deem fit; and

(b) [in the alternative] modify the conditions imposed while granting bail, in the manner prayed above;

(c) pass such other and further orders as may be deemed fit and proper in the interest of justice.

(ADVOCATE FOR THE PETITIONER)

(PETITIONER / ACCUSED)

Place: _____

Date: _____

AFFIDAVIT / VERIFICATION

I, _____, the Petitioner above named, do hereby verify that the contents of paragraphs 1 to 8 above are true to my knowledge and belief, based on the record, and that nothing material has been concealed therefrom.

Verified at _____ on this _____ day of _____, 20____.

PETITIONER

LIST OF ANNEXURES

A-1: FIR and charge sheet. A-2: Order of the Magistrate refusing bail. A-3: Custody certificate. A-4: Bail order of the co-accused. A-5: Proof of permanent residence and family ties.

PART II — ILLUSTRATION (SPECIMEN DRAFT WITH SAMPLE FACTS)

The specimen uses illustrative parties, dates and figures only. Replace every particular with the facts of your own case.

IN THE HIGH COURT OF DELHI AT NEW DELHI

CRIMINAL MISC. (BAIL) APPLICATION NO. _____ OF 2026

(Arising out of FIR No. 0201 of 2026, Police Station Seelampur, under Sections 103(1), 3(5) and 61(2) BNS, 2023)

IN THE MATTER OF:

Mohd. Imran, son of Shri Mohd. Yaseen, aged about 33 years, resident of H. No. 44, Gali No. 4, Jafrabad, Delhi — 110053 ... PETITIONER (IN JUDICIAL CUSTODY SINCE 12.04.2026)

VERSUS

State (Govt. of NCT of Delhi) ... RESPONDENT

APPLICATION FOR BAIL UNDER SECTION 483 OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023

MOST RESPECTFULLY SHOWETH:

1. That the Petitioner is an accused in FIR No. 0201 of 2026 registered under Section 103(1) of the BNS, 2023 on the allegation that he, along with the co-accused, caused the death of one Shri Bablu on 11.04.2026 at Jafrabad, Delhi. The Petitioner was arrested on 12.04.2026 and has been in judicial custody for over six months. His bail application was rejected by the learned Additional Sessions Judge-03, Karkardooma Courts, vide order dated 24.07.2026, primarily on the ground of the "gravity of the offence" and the "possibility of the witnesses being influenced".

2. That the Petitioner has been falsely implicated on account of an old property dispute between the families. The prosecution case, as disclosed in the statements under Section 180 BNSS, attributes the fatal injury to the co-accused Saleem, who was granted regular bail by this Hon'ble Court vide order dated 08.09.2026 in Bail Application No. 0921 of 2026. The role attributed to the Petitioner is that of catching hold of the deceased.

3. That the investigation stands concluded and the charge sheet was filed on 02.08.2026; all the material witnesses are residents of the same locality and are already cited in the charge sheet; the eye-witnesses were examined during investigation and their statements are on record. There is thus no possibility of tampering with the evidence at this distance of time.

4. That the learned Sessions Court has itself found, in paragraph 9 of the impugned order, that the Petitioner is a first-time offender with no previous involvement in any criminal case, and that he has permanent residence in Delhi. The sole ground of "possibility of influencing witnesses" is unsupported by any material on record and is contrary to the law laid down by the Hon'ble Supreme Court, which requires a rational and evidence-based assessment of the triple test rather than a mechanical recital.

5. That the Petitioner is the sole breadwinner of his family comprising his wife, three minor children and aged widowed mother, all of whom are facing destitution on account of his continued incarceration. The Petitioner's mother is suffering from chronic renal disease, as borne out by the medical records annexed as Annexure A-6.

6. That the Petitioner undertakes to abide by all conditions that may be imposed by this Hon'ble Court, including conditions under Section 480(3) of the BNSS, 2023, to mark his presence at Police Station Seelampur on the first Monday of every month, to surrender his passport and not to leave Delhi without the leave of this Hon'ble Court.

7. That notice of the present application has been given to the learned Public Prosecutor for the State in compliance with the proviso to Section 483(1) of the BNSS, 2023.

PRAYER

It is, therefore, most respectfully prayed that this Hon'ble Court may kindly set aside the order dated 24.07.2026 and release the Petitioner on bail in FIR No. 0201 of 2026, Police Station Seelampur, on such terms and conditions as this Hon'ble Court may deem fit and proper.

(Advocate for the Petitioner)

(Mohd. Imran) — Petitioner

Place: New Delhi Date: 14.10.2026

LIST OF ANNEXURES

A-1: FIR. A-2: Charge sheet dated 02.08.2026. A-3: Order of the learned ASJ dated 24.07.2026 refusing bail. A-4: Bail order dated 08.09.2026 of the co-accused Saleem. A-5: Custody certificate. A-6: Medical records of the Petitioner's mother. A-7: Proof of residence of the Petitioner.

Drafting notes / common errors: Before the Sessions Court or the High Court, do not repeat the bail application filed before the Magistrate; dismantle the record of the refusal. Point to the actual paragraph of the impugned order and explain why it is wrong. Serve the Public Prosecutor and file the proof of service along with the application, since the proviso to Section 483(1) makes the notice a condition of a valid order.

B4. ANTICIPATORY BAIL APPLICATION

Legal basis: Section 482, BNSS, 2023 [corresponding to Section 438, CrPC, 1973]

Stage: When the applicant has reason to believe that he may be arrested on an accusation of having committed a non-bailable offence

Filed by: Person apprehending arrest (including a person not named in the FIR, where the apprehension is founded on material)

Filed before: The High Court or the Court of Session (NOT the Magistrate)

Timeline / Limitation: No limitation. Interim protection may be granted pending hearing. Note: Section 482(4) BNSS excludes this remedy in cases involving arrest on accusation of offences under Section 65 and Section 70(2) of the BNS, 2023.

Key points to plead:

- Plead the 'reason to believe' — the FIR, the notice under Section 35(3) BNSS, the summons or other material that gives rise to an apprehension of arrest; a bare fear is not enough.
- The Court may impose the conditions set out in Section 482(2), including availability for interrogation, no threat to witnesses, no departure from India, and the conditions under Section 480(3).
- On grant, if the applicant is thereafter arrested, he must be released on bail, and if the Magistrate decides to issue a warrant, it shall be a bailable warrant (Section 482(3)).
- Interim protection is granted pending the hearing of the application; press for a limited-duration interim order and then for confirmation, as held in Sushila Aggarwal v. State (NCT of Delhi), (2020) 5 SCC 1.
- Set out the applicant's willingness to cooperate with the investigation — this is the strongest circumstance in an anticipatory bail plea.

Documents generally enclosed: Copy of the FIR/complaint or of the notice under Section 35(3) BNSS; Copies of any communications with the police; Documents showing the applicant's cooperation (letters, e-mails, appearance memos); Proof of permanent residence, employment and family ties.

PART I — BLANK FORMAT

IN THE HIGH COURT OF _____ / IN THE COURT OF THE SESSIONS JUDGE, _____

CRIMINAL MISC. (ANTICIPATORY BAIL) APPLICATION NO. _____ OF 20____

(Arising out of FIR No. _____ of 20____, Police Station _____, under Sections _____ BNS, 2023)

IN THE MATTER OF:

_____ S/o Shri _____, aged about _____ years, R/o _____ ... APPLICANT

VERSUS

State (Government of _____) ... RESPONDENT

APPLICATION FOR ANTICIPATORY BAIL UNDER SECTION 482 OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023

MOST RESPECTFULLY SHOWETH:

1. That the Applicant has reason to believe that he may be arrested on an accusation of having committed a non-bailable offence in connection with FIR No. _____ of 20____ registered at Police Station _____ under Sections _____ of the Bharatiya Nyaya Sanhita, 2023. The apprehension is founded on [the fact that the Applicant is named in the FIR and has been summoned to the police station on _____ / a notice under Section 35(3) BNSS dated _____ has been served on the Applicant / the Applicant has learnt from reliable sources that a non-bailable warrant is

likely to be issued].

2. That the brief facts of the case, as disclosed in the FIR, are: [set out the prosecution case in three or four sentences].

3. That the Applicant is innocent and has been falsely implicated in the case. [Set out the applicant's defence or the circumstances which show that the accusation is unfounded — for example, that the transaction was civil in nature, that the applicant was not present at the spot, that the applicant is a bona fide purchaser without notice, that the dispute is between the complainant and a third party, or that the FIR is an afterthought.]

4. That the Applicant has received [a notice under Section 35(3) BNSS / a call from the Investigating Officer] and has already joined the investigation on _____ and _____, thereby demonstrating his bona fide intention to cooperate with the investigation.

5. That the Applicant undertakes to: (i) make himself available for interrogation by the police officer as and when required; (ii) not directly or indirectly make any inducement, threat or promise to any person acquainted with the facts of the case so as to dissuade him from disclosing such facts to the Court or to any police officer or tamper with the evidence; (iii) not leave India without the previous permission of this Hon'ble Court; and (iv) comply with such other conditions as may be imposed under Section 480(3) of the BNSS, 2023.

6. That the Applicant is a permanent resident of _____, has roots in society, is employed as _____, has no criminal antecedents and is not a flight risk. There is no apprehension that the Applicant would flee from justice or abuse the liberty granted.

7. That the custodial interrogation of the Applicant is not required, as the entire evidence in the case is [documentary / electronic / already in the possession of the investigating agency], and the Applicant has already furnished all the information and documents sought by the Investigating Officer vide letter dated _____.

8. That the Hon'ble Supreme Court has held that the power to grant anticipatory bail is to be exercised liberally and that the applicant is not required to make out a 'special case' {Gurbaksh Singh Sibbia v. State of Punjab, (1980) 2 SCC 565; Sushila Aggarwal v. State (NCT of Delhi), (2020) 5 SCC 1}. The apprehension of arrest in the present case is reasonable and the Applicant is entitled to the protection sought.

9. That the Applicant is ready and willing to abide by any condition that may be imposed; if the Applicant is not protected, he will suffer irreparable loss and injury to his reputation and liberty which cannot be undone.

10. That the present application is not barred by Section 482(4) of the BNSS, 2023, as the offence alleged against the Applicant is not one under Section 65 or Section 70(2) of the BNS, 2023.

PRAYER

In the premises aforesaid, it is most respectfully prayed that this Hon'ble Court may kindly be pleased to:

(a) direct that, in the event of the arrest of the Applicant in connection with FIR No. _____ of 20____, Police Station _____, the Applicant shall be released on bail forthwith on such terms and conditions as this Hon'ble Court may impose, including the conditions specified in Section 482(2) and Section 480(3) of the BNSS, 2023;

(b) grant interim protection to the Applicant till the disposal of the present application, in the event of arrest; and

(c) pass such other and further orders as may be deemed fit and proper in the interest of justice.

(ADVOCATE FOR THE APPLICANT)

(APPLICANT)

Place: _____

Date: _____

AFFIDAVIT

I, _____, the Applicant above named, do hereby solemnly affirm and state that the contents of paragraphs 1 to 10 above are true to my knowledge and belief; that I have reason to believe that I may be arrested in connection with the above FIR; and that I undertake to abide by all conditions that may be imposed by this Hon'ble Court.

Verified at _____ on this _____ day of _____, 20____.

DEPONENT

LIST OF ANNEXURES

A-1: Copy of the FIR/complaint. A-2: Notice under Section 35(3) BNSS (if any). A-3: Proof of the Applicant joining the investigation. A-4: Proof of residence, employment and antecedents.

PART II — ILLUSTRATION (SPECIMEN DRAFT WITH SAMPLE FACTS)

The specimen uses illustrative parties, dates and figures only. Replace every particular with the facts of your own case.

IN THE COURT OF THE SESSIONS JUDGE, GURUGRAM, HARYANA

CRIMINAL MISC. (ANTICIPATORY BAIL) APPLICATION NO. _____ OF 2026

(Arising out of FIR No. 0774 of 2026, Police Station Sector 56, Gurugram, under Sections 318(4), 336(2) and 61(2) BNS, 2023)

IN THE MATTER OF:

Neha Kapoor, wife of Shri Aditya Kapoor, aged about 36 years, resident of Flat 1204, Tower B, Ireo Skyon, Sector 60, Gurugram, Haryana ... APPLICANT

VERSUS

State of Haryana ... RESPONDENT

APPLICATION FOR ANTICIPATORY BAIL UNDER SECTION 482 OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023

MOST RESPECTFULLY SHOWETH:

1. That the Applicant has reason to believe that she may be arrested in connection with FIR No. 0774 of 2026 registered at Police Station Sector 56, Gurugram, under Sections 318(4), 336(2) and 61(2) of the BNS, 2023, in which a notice under Section 35(3) of the BNSS, 2023 dated 21.09.2026 has been served upon her requiring her to appear at the police station on 26.09.2026.

2. That the FIR has been lodged by one Shri Mahesh Gupta, a tenant of the Applicant's late father-in-law, alleging that the Applicant and her husband induced him to pay a security deposit of Rs. 12,00,000/- for a commercial premises and thereafter executed a forged sale deed in respect of the said property.

3. That the Applicant is innocent and has been falsely implicated. The premises in question, being Shop No. G-14, Sector 56, Gurugram, devolved upon the Applicant and her husband by virtue of the

registered Will dated 04.02.2021 of late Shri R.K. Kapoor and the consequent mutation dated 18.05.2021. The Applicant has never executed any sale deed, forged or otherwise, and the alleged document has never been produced by the complainant despite repeated requests.

4. That the dispute is essentially civil in nature and arises out of a tenancy arrangement of the year 2019, in respect of which a civil suit for permanent injunction, bearing Civil Suit No. 421 of 2026, is pending before the learned Civil Judge, Gurugram, and the complainant has already been restrained from creating third-party rights in the premises.

5. That the Applicant has duly joined the investigation pursuant to the notice under Section 35(3) BNSS and has furnished her explanation along with the Will, mutation records and the tenancy agreement (Annexure A-3) to the Investigating Officer. She undertakes to continue to cooperate fully with the investigation.

6. That the Applicant is a permanent resident of Gurugram, is a homemaker with two minor children, has no criminal antecedents whatsoever, and there is not the remotest possibility of her absconding or abusing the liberty of bail.

7. That the Applicant undertakes to make herself available for interrogation as and when required, not to tamper with the evidence, and not to leave India without the permission of this Hon'ble Court.

PRAYER

It is, therefore, most respectfully prayed that this Hon'ble Court may kindly direct that, in the event of the arrest of the Applicant in connection with FIR No. 0774 of 2026, Police Station Sector 56, Gurugram, she shall be released on bail forthwith on her furnishing a personal bond in the sum of Rs. 50,000/- with one surety in the like amount, on such conditions as the Hon'ble Court may deem fit, and may grant interim protection in the meanwhile.

(Advocate for the Applicant)

(Neha Kapoor) — Applicant

Place: Gurugram Date: 28.09.2026

AFFIDAVIT

I, Neha Kapoor, do hereby solemnly affirm that the contents of paragraphs 1 to 7 are true to my knowledge and belief; that I have reason to believe that I may be arrested in the above FIR; and that I undertake to abide by all conditions imposed by this Hon'ble Court.

DEPONENT

Drafting notes / common errors: Do not plead anticipatory bail as though it were a regular bail application — the Court is testing the bona fides of the apprehension and the likelihood of cooperation. Show that the applicant has already appeared before the police and produced documents. Where the applicant is a woman, say so expressly, since the provisos to Section 480(1) and the approach of the courts favour protection. Remember the statutory bar in Section 482(4) BNSS for offences under Sections 65 and 70(2) BNS.

B5. DEFAULT BAIL (STATUTORY BAIL) ON EXPIRY OF THE PERIOD OF INVESTIGATION

Legal basis: Section 187(3) read with Section 187(6), BNSS, 2023 [corresponding to Section 167(2), CrPC, 1973]

Stage: Where the investigation is not completed within 60/90 days and the charge sheet is not filed

Filed by: Accused in custody, through an advocate

Filed before: The Magistrate before whom the accused is in custody (or the Special Court concerned)

Timeline / Limitation: The right arises on the expiry of 60 days (offences punishable with less than 10 years) or 90 days (offences punishable with death, imprisonment for life or imprisonment of 10 years or more) from the date of the first remand authorisation.

Key points to plead:

- The period of 60/90 days is computed from the date of the accused's first detention/remand in the case, and is to be counted day-wise.
- The right is indefeasible and accrues the moment the statutory period expires without a charge sheet — the application must be filed before the charge sheet is filed, and a mere oral prayer is not enough {Bikramjit Singh v. State of Punjab, (2020) 12 SCC 205; M. Ravindran v. Intelligence Officer, DRI, (2021) 2 SCC 485}.
- Note that Section 187(2) BNSS permits police custody for a maximum of fifteen days in the whole, in parts, during the initial forty or sixty days of the detention period — an important point to plead if the police press for custody.
- Where the charge sheet is filed without completing the investigation, it cannot defeat the accrued right.

Documents generally enclosed: Copy of the FIR, remand orders and the custody certificate; Chronology computing the days of custody; Copy of the charge sheet, if filed, with its date.

PART I — BLANK FORMAT

IN THE COURT OF _____, AT _____

CRIMINAL MISC. APPLICATION NO. _____ OF 20____

(Arising out of FIR No. _____ of 20____, Police Station _____, under Sections _____ BNS, 2023)

IN THE MATTER OF:

_____ S/o Shri _____, aged about _____ years, [presently lodged in District Jail _____] ... APPLICANT / ACCUSED

VERSUS

State through the Station House Officer, Police Station _____ ... RESPONDENT

APPLICATION FOR STATUTORY (DEFAULT) BAIL UNDER SECTION 187(3) OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023

MOST RESPECTFULLY SHOWETH:

1. That the Applicant was arrested in the above case on _____ and was produced before this Hon'ble Court on _____, on which date he was remanded to [police/judicial] custody. The Applicant has been in custody continuously since then.

2. That the offence alleged against the Applicant is punishable with imprisonment of [less than ten years / ten years or more or with death or imprisonment for life], and the period of investigation prescribed by Section 187(3) of the BNSS, 2023 is therefore [sixty / ninety] days from the date of the first authorisation of detention.

3. That [sixty / ninety] days from the date of the first remand, that is, up to and including _____, expired on _____. No police report under Section 193(3) of the BNSS, 2023 has been filed before this Hon'ble Court till date, and the investigation has not been completed.

4. That by reason of the failure of the investigating agency to complete the investigation and file the police report within the statutory period, an indefeasible right to be released on bail has accrued to the Applicant under Section 187(3) of the BNSS, 2023, which provides that on the expiry of the said period the accused "shall be released on bail if he is prepared to and does furnish bail".

5. That the Applicant is prepared to and hereby offers to furnish bail; he is a permanent resident of _____, has roots in society and is not a flight risk.

6. That the right of the Applicant to be released on default bail is a facet of the right to personal liberty under Article 21 of the Constitution of India, and the Hon'ble Supreme Court has held that the right is indefeasible and that the prosecution cannot defeat it by filing an incomplete charge sheet or by oral submissions {Bikramjit Singh v. State of Punjab, (2020) 12 SCC 205; M. Ravindran v. Intelligence Officer, DRI, (2021) 2 SCC 485; Uday Mohanlal Acharya v. State of Maharashtra, (2001) 5 SCC 453}.

7. That this application is being moved immediately on the accrual of the right and before any valid police report is filed; the Applicant undertakes to abide by all conditions that may be imposed.

PRAYER

It is, therefore, most respectfully prayed that this Hon'ble Court may kindly:

(a) direct the release of the Applicant on bail in FIR No. _____ of 20____, Police Station _____, under Section 187(3) of the BNSS, 2023, on his furnishing a bail bond with surety/sureties to the satisfaction of this Hon'ble Court; and

(b) pass such other orders as may be deemed fit and proper in the interest of justice.

(ADVOCATE FOR THE APPLICANT)
(APPLICANT / ACCUSED)

Place: _____

Date: _____

VERIFICATION

I, _____, the Applicant above named, verify that the contents of paragraphs 1 to 7 are true to my knowledge and belief, based on the record, and that nothing material has been concealed therefrom.

APPLICANT

COMPUTATION OF THE PERIOD OF DETENTION

Date of arrest: _____. Date of first remand order: _____. Statutory period prescribed: [60 / 90] days. Expiry date: _____. Number of days of custody undergone as on the date of this application: _____. Whether police report under Section 193(3) BNSS filed: NO.

PART II — ILLUSTRATION (SPECIMEN DRAFT WITH SAMPLE FACTS)

The specimen uses illustrative parties, dates and figures only. Replace every particular with the facts of your own case.

IN THE COURT OF THE CHIEF METROPOLITAN MAGISTRATE, TIS HAZARI COURTS, DELHI

CRIMINAL MISC. APPLICATION NO. _____ OF 2026

(Arising out of FIR No. 0188 of 2026, Police Station Subzi Mandi, under Sections 309(4), 3(5) and 61(2) BNS, 2023)

IN THE MATTER OF:

Sonu Verma, son of Shri Raj Kumar Verma, aged about 27 years, presently lodged in District Jail No. 06, Tihar, New Delhi ... APPLICANT

VERSUS

State (Govt. of NCT of Delhi) ... RESPONDENT

APPLICATION FOR STATUTORY (DEFAULT) BAIL UNDER SECTION 187(3) OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023

MOST RESPECTFULLY SHOWETH:

1. That the Applicant was arrested in FIR No. 0188 of 2026 on 06.07.2026 and was produced before this Hon'ble Court on 07.07.2026, whereupon he was remanded to judicial custody by an order of the same date. The Applicant has been in continuous custody since 07.07.2026.

2. That the offence alleged against the Applicant, namely Section 309(4) of the BNS, 2023 (robbery), is punishable with rigorous imprisonment for ten years, and the statutory period of investigation under Section 187(3) of the BNSS, 2023 is accordingly ninety days from the date of the first authorisation of detention, that is, up to 04.10.2026.

3. That the said period of ninety days expired on 04.10.2026. No police report under Section 193(3) of the BNSS, 2023 has been filed in this Hon'ble Court till date, as is evident from the fact that the matter is still being repeatedly adjourned at the request of the Investigating Officer for "further investigation". Even the incomplete challan has not been placed on record.

4. That an indefeasible right to be released on bail has accordingly accrued to the Applicant under Section 187(3) of the BNSS, 2023, and the Applicant is prepared to furnish bail.

5. That the Applicant is a resident of 89/2, Gali No. 3, Nabi Karim, Delhi, and is not a flight risk. The Applicant's continued detention beyond the statutory period has become wholly illegal, and his right to liberty under Article 21 of the Constitution of India has been infringed.

PRAYER

It is, therefore, most respectfully prayed that this Hon'ble Court may kindly release the Applicant on bail under Section 187(3) of the BNSS, 2023, in FIR No. 0188 of 2026, Police Station Subzi Mandi, on his executing a bail bond in the sum of Rs. 25,000/- with one surety in the like amount to the satisfaction of this Hon'ble Court.

(Advocate for the Applicant)

(Sonu Verma) — Applicant

Place: Delhi Date: 05.10.2026

COMPUTATION OF THE PERIOD OF DETENTION

Date of arrest: 06.07.2026. Date of first remand: 07.07.2026. Statutory period: 90 days. Date of expiry: 04.10.2026. Total custody undergone: 91 days. Police report filed: NO.

Drafting notes / common errors: Compute the period day-wise and annex a chart — courts act on the exact date of expiry, not on an approximate duration. File the application the moment the period expires and take an immediate order; if the police report is filed moments later, argue that the right had already accrued (Fakhrey Alam v. State of U.P., 2021 SCC OnLine SC 361). Where the offence is punishable with less than ten years, the period is sixty days — do not concede a longer period.

B6. APPLICATION FOR RELEASE OF AN UNDERTRIAL PRISONER UNDER SECTION 479

Legal basis: Section 479, BNSS, 2023 [corresponding to Section 436A, CrPC, 1973]

Stage: Where the undertrial prisoner has undergone one-half (or, for a first-time offender, one-third) of the maximum sentence prescribed for the offence

Filed by: Undertrial prisoner, through an advocate or jail visiting counsel / the Legal Services Authority

Filed before: The Court before which the case is pending

Timeline / Limitation: The right arises on the completion of one-half of the maximum period of imprisonment specified for the offence; one-third for a first-time offender who has never been convicted of any offence in the past.

Key points to plead:

- Section 479 does not apply to an offence for which death or imprisonment for life has been specified as one of the punishments.
- The first proviso reduces the threshold to one-third of the maximum sentence for a first-time offender (never previously convicted) — plead this expressly where applicable.
- The second proviso permits the Court, after hearing the Public Prosecutor and for reasons recorded in writing, to extend the period of detention — so pre-empt the objections of the prosecution by addressing the likely grounds (gravity, witness protection, absconding).
- The combined effect of Section 479 BNSS and the Supreme Court's directions in Re: Inhuman Conditions in Prisons (2024) and Satender Kumar Antil (supra) is to make release the norm for long-incarcerated undertrials.

Documents generally enclosed: Custody certificate from the jail; Charge sheet/record indicating the offence and maximum sentence; Proof that the applicant is a first-time offender (or antecedents, if any); Proof of residence.

PART I — BLANK FORMAT

IN THE COURT OF _____, AT _____

CRIMINAL MISC. APPLICATION NO. _____ OF 20____

(In Criminal Case / Sessions Case No. _____ of 20____, arising out of FIR No. _____ of 20____, Police Station _____)

IN THE MATTER OF:

_____ S/o Shri _____, aged about _____ years, [presently lodged in District Jail _____] ... APPLICANT / UNDERTRIAL PRISONER

VERSUS

State through the Station House Officer, Police Station _____ ... RESPONDENT

APPLICATION FOR RELEASE ON BAIL UNDER SECTION 479 OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023

MOST RESPECTFULLY SHOWETH:

1. That the Applicant has been in custody in the above case since _____ and has, as on the date of this application, undergone actual detention of _____ years and _____ months, as certified by the Superintendent, District Jail _____, vide custody certificate dated _____ (Annexure A-1).

2. That the offence alleged against the Applicant is punishable with a maximum of _____ years' imprisonment under Section _____ of the Bharatiya Nyaya Sanhita, 2023. The offence is not one for which death or imprisonment for life has been specified as a punishment, and Section 479 of the BNSS, 2023 is therefore attracted in full.

3. That the Applicant [has never been convicted of any offence in the past and is therefore a first-time offender within the meaning of the first proviso to Section 479(1) BNSS, entitling him to release on bond on the completion of one-third of the maximum sentence / has undergone one-half of the maximum period of imprisonment specified for the offence].

4. That the Applicant has accordingly undergone detention beyond the period stipulated in Section 479(1) of the BNSS, 2023, and is entitled to be released by the Court on bail/bond.

5. That the Applicant is a permanent resident of _____ and is not a flight risk; he has family, including _____, dependent upon him, and he undertakes to abide by all conditions that may be imposed.

6. That there is no material on record to show that the Applicant would tamper with the evidence or influence the witnesses; the prosecution's own witnesses are [official witnesses / already examined], and the trial is at the stage of _____ and is likely to take a considerable time.

7. That the continuation of the detention of the Applicant would amount to a denial of his right to liberty under Article 21 of the Constitution of India, and would defeat the reformative object of Section 479 BNSS, which reflects the legislative policy of decongesting prisons by releasing undertrial prisoners who have already undergone a substantial part of the maximum sentence.

PRAYER

In the premises aforesaid, it is most respectfully prayed that this Hon'ble Court may kindly be pleased to:

(a) release the Applicant on bail/bond under Section 479 of the BNSS, 2023, in the above case, on his executing a bond/bail bond to the satisfaction of this Hon'ble Court; and

(b) direct the Superintendent, District Jail _____, to release the Applicant forthwith on receipt of the release order, if not required in any other case;

(c) pass such other orders as may be deemed fit and proper in the interest of justice.

(ADVOCATE FOR THE APPLICANT)

(APPLICANT / UNDERTRIAL PRISONER)

Place: _____

Date: _____

COMPUTATION

Date of arrest: _____. Date of first remand: _____. Custody undergone as on date: _____ years _____ months _____ days. Maximum sentence prescribed: _____ years. One-half: _____ years. One-third (first-time offender): _____ years. Whether the offence carries death/life imprisonment as a punishment: NO.

PART II — ILLUSTRATION (SPECIMEN DRAFT WITH SAMPLE FACTS)

The specimen uses illustrative parties, dates and figures only. Replace every particular with the facts of your own case.

IN THE COURT OF THE ADDITIONAL SESSIONS JUDGE-05, KARKARDOOMA COURTS, DELHI

CRIMINAL MISC. APPLICATION NO. _____ OF 2026

(In Sessions Case No. 226 of 2024, arising out of FIR No. 0091 of 2024, Police Station Chand Bagh, under Section 308(2) read with Section 3(5) BNS, 2023)

IN THE MATTER OF:

Irfan Khan, son of Shri Nasir Khan, aged about 31 years, presently lodged in District Jail No. 13, Mandoli, Delhi ... APPLICANT / UNDERTRIAL PRISONER

VERSUS

State (Govt. of NCT of Delhi) ... RESPONDENT

APPLICATION FOR RELEASE ON BAIL UNDER SECTION 479 OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023

MOST RESPECTFULLY SHOWETH:

1. That the Applicant was arrested in the above case on 04.06.2024 and has been in continuous custody since then, that is, for about two years and four months as on the date of this application, as certified by the Superintendent, District Jail No. 13, Mandoli, vide custody certificate dated 22.09.2026 (Annexure A-1).

2. That the offence alleged against the Applicant under Section 308(2) of the BNS, 2023 (extortion) is punishable with imprisonment of seven years or fine or both. Neither death nor imprisonment for life is prescribed for the said offence, and consequently Section 479 of the BNSS, 2023 applies to the Applicant.

3. That the Applicant is a first-time offender who has never been convicted of any offence in the past, as would appear from the report of the Jail Superintendent and the absence of any prior conviction on record. Under the first proviso to Section 479(1) BNSS, a first-time offender is entitled to be released on bond upon the completion of one-third of the maximum period of imprisonment specified for the offence.

4. That one-third of the maximum sentence of seven years is two years and four months, which period the Applicant has completed. The Applicant has thus become entitled to be released on bond by operation of law.

5. That the delay in the trial has occurred for reasons wholly beyond the control of the Applicant — the prosecution has examined only six of the twenty-four witnesses in twenty-nine months, and hearings have repeatedly been adjourned at the instance of the prosecution. The Applicant cannot be made to suffer incarceration beyond the statutory threshold for the delays of the system.

6. That the Applicant is a resident of B-118, Gali No. 8, Chand Bagh, Delhi, and would be residing at the same address if released. He undertakes to abide by all conditions, including marking his presence at the police station as may be directed.

PRAYER

It is, therefore, most respectfully prayed that this Hon'ble Court may kindly release the Applicant on bond under Section 479 of the BNSS, 2023, and direct the Superintendent, District Jail No. 13, Mandoli, to release the Applicant forthwith on the acceptance of the bond, if he is not required in any other case.

(Advocate for the Applicant)

(Irfan Khan) — Applicant

Place: Delhi Date: 24.09.2026

COMPUTATION

Date of arrest: 04.06.2024. Custody undergone: 2 years 3 months 20 days. Maximum sentence: 7 years. One-third threshold (first-time offender): 2 years 4 months. Offence carrying death/life imprisonment: NO. Previous convictions: NIL.

Drafting notes / common errors: Always obtain a current custody certificate from the jail and a report on antecedents — the one-third benefit depends entirely on the applicant being a first-time offender. Address the second proviso consciously: set out why the extension contemplated by that proviso is not warranted, since the prosecution will press for it.

B7. APPLICATION FOR CANCELLATION OF BAIL / CANCELLATION OF BOND

Legal basis: Section 492 read with Sections 485(5) and 491, BNSS, 2023 [corresponding to Sections 439(2) and 446-A, CrPC, 1973]

Stage: After the grant of bail, on breach of a condition or misuse of liberty

Filed by: Public Prosecutor, State, complainant/informant or victim

Filed before: The Court which granted the bail, or the Court of Session/High Court

Timeline / Limitation: No limitation, but the application must disclose promptitude — delay in moving the Court is itself a ground on which cancellation may be refused.

Key points to plead:

- Under Section 492 BNSS, where a bond or bail bond is forfeited for breach of a condition, the bond executed by the accused and by the sureties stands cancelled, and the accused cannot thereafter be released on his own bond alone if the Court is satisfied that there was no sufficient cause for the failure.
- Grounds for cancellation must be supervening circumstances — tampering, threats to witnesses, non-appearance, commission of a fresh offence, or the obtaining of bail by fraud or suppression.
- Cancellation is not a review of the bail order: do not re-argue the merits of the grant of bail.
- Pray, in the alternative, for forfeiture of the bond and for directions for recovery of the penalty amount under Section 491 BNSS.

Documents generally enclosed: Copy of the bail order and the bail bond executed by the accused and the sureties; Evidence of breach — non-appearance orders, complaints of tampering or threats, transcripts of calls or messages, and the FIR registered for the fresh offence; Proof of prompt complaint to the police.

PART I — BLANK FORMAT

IN THE COURT OF _____, AT _____

CRIMINAL MISC. APPLICATION NO. _____ OF 20____

(Arising out of FIR No. _____ of 20____, Police Station _____)

IN THE MATTER OF:

State through the Public Prosecutor / _____ (first informant/victim) ... APPLICANT

VERSUS

_____ S/o _____, R/o _____ ... RESPONDENT / ACCUSED (ON BAIL)

APPLICATION FOR CANCELLATION OF BAIL AND FORFEITURE OF BAIL BOND UNDER SECTION 492 OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023

MOST RESPECTFULLY SHOWETH:

1. That the Respondent was released on bail by this Hon'ble Court vide order dated _____ in Bail Application No. _____ of 20____, on his executing a bail bond with surety/sureties, subject to the conditions set out in the said order, namely [reproduce the conditions].

2. That the Respondent has flagrantly violated the conditions of the bail order in the following manner: [set out each violation separately with date, place and particulars — for example, failure to appear on _____ and _____ despite orders; directly and through his associates threatening the witnesses on _____; contacting the complainant through the number _____; commission of a fresh offence registered vide FIR No. _____ dated _____ at Police Station _____].

3. That the conduct of the Respondent has demonstrated that he is using the liberty granted by this Hon'ble Court to subvert the course of justice, and that the conditions imposed have failed to secure his appearance and good conduct.

4. That a complaint dated _____ was made to Police Station _____, and the record reveals [non-bailable warrants issued against the Respondent on _____/the fresh FIR/the statement of the witness recorded under Section 183 BNSS].

5. That Section 492 of the BNSS, 2023 provides that where a bond or bail bond for the appearance of a person is forfeited for breach of a condition, the bond executed by that person as well as by his sureties shall stand cancelled, and that such person shall not thereafter be released only on his own bond if the Court is satisfied that there was no sufficient cause for his failure.

6. That the continuation of the Respondent on bail is prejudicial to the trial and to the safety of the witnesses and the complainant; the present application has been moved promptly on coming to know of the breach.

7. That the sureties, namely _____ and _____, are also liable to be proceeded against in terms of Section 491 of the BNSS, 2023.

PRAYER

It is, therefore, most respectfully prayed that this Hon'ble Court may kindly:

(a) cancel the bail granted to the Respondent vide order dated _____ and direct the Respondent to be taken into custody forthwith;

(b) direct the forfeiture of the bail bond executed by the Respondent and his sureties, and proceed against them for the penalty thereof under Section 491 of the BNSS, 2023;

(c) direct that the Respondent shall not be released thereafter on his own bond, in view of Section 492 of the BNSS, 2023; and

(d) pass such other orders as may be deemed fit and proper in the interest of justice.

(PUBLIC PROSECUTOR / ADVOCATE FOR THE APPLICANT)

Place: _____

Date: _____

LIST OF ANNEXURES

A-1: Bail order and bail bond. A-2: Order sheets showing non-appearance. A-3: Complaint dated _____ to the police. A-4: Statements/electronic evidence showing threats. A-5: Copy of the fresh FIR, if any.

PART II — ILLUSTRATION (SPECIMEN DRAFT WITH SAMPLE FACTS)

The specimen uses illustrative parties, dates and figures only. Replace every particular with the facts of your own case.

IN THE COURT OF THE ADDITIONAL SESSIONS JUDGE-02, DWARKA COURTS, NEW DELHI

CRIMINAL MISC. APPLICATION NO. _____ OF 2026

(Arising out of FIR No. 0166 of 2025, Police Station Dwarka North, under Sections 115(2), 351(3) and 329(4) BNS, 2023)

IN THE MATTER OF:

State (Govt. of NCT of Delhi) through the Public Prosecutor ... APPLICANT

VERSUS

Naveen Rathi, son of Shri Suresh Rathi, resident of 45, Sector 12, Dwarka, New Delhi ... RESPONDENT / ACCUSED (ON BAIL)

APPLICATION FOR CANCELLATION OF BAIL AND FORFEITURE OF BAIL BOND UNDER SECTION 492 OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023

MOST RESPECTFULLY SHOWETH:

1. That the Respondent was enlarged on bail by this Hon'ble Court vide order dated 18.02.2026 in Bail Application No. 0219 of 2026 on the conditions, inter alia, that he (i) shall appear before this Hon'ble Court on every date of hearing; (ii) shall not contact, influence or threaten the complainant or any witness; and (iii) shall not enter the premises bearing No. 45, Sector 12, Dwarka, where the complainant resides on the first floor.

2. That the Respondent has repeatedly and wilfully violated each of the said conditions: (a) the Respondent remained absent without leave on 12.05.2026, 03.07.2026 and 21.08.2026, and on each occasion non-bailable warrants had to be issued; (b) on 07.07.2026 at about 8.30 p.m., the Respondent along with his brother Dabbu Rathi entered the first-floor premises of the complainant, abused her and threatened that "we will see you in court and outside it"; (c) on 10.07.2026 and 12.07.2026, the Respondent called the complainant from mobile number 98XXXXXX77 and induced her to settle the matter; the call detail record and the audio recording of the call of 10.07.2026 are annexed.

3. That the complainant lodged a complaint on 12.07.2026 at Police Station Dwarka North vide DD No. 33-B, and a further complaint dated 22.08.2026, on the basis of which the Investigating Officer has recorded the statement of the complainant and of the witness Smt. Sarla Devi under Section 183 BNSS.

4. That the conduct of the Respondent shows that he is using the liberty of bail to intimidate the victim and to derail the trial, and that the sureties have proved wholly ineffective in ensuring his good conduct or appearance.

5. That Section 492 BNSS requires that upon forfeiture of the bond for breach of a condition, the bonds of both the accused and the sureties be cancelled, and that the accused shall not thereafter be released on his own bond alone.

PRAYER

It is, therefore, most respectfully prayed that this Hon'ble Court may kindly cancel the bail granted to the Respondent vide order dated 18.02.2026, direct his immediate re-arrest, forfeit the bail bond and proceed against the Respondent and his sureties under Section 491 of the BNSS, 2023, and further direct, in terms of Section 492 BNSS, that the Respondent shall not be released on his own bond in this case.

(Public Prosecutor)

For the State

Place: New Delhi Date: 26.09.2026

LIST OF ANNEXURES

A-1: Bail order dated 18.02.2026 and the bail bond. A-2: Order sheets showing absences and issuance of non-bailable warrants. A-3: Complaints dated 12.07.2026 and 22.08.2026. A-4: Call detail record and audio recording. A-5: Statements recorded under Section 183 BNSS.

Drafting notes / common errors: Cancellation is granted only on supervening circumstances established by material — a bald allegation that the accused is 'influencing witnesses' will not suffice. Set out each breach separately, with date and proof. Remember that Section 492 BNSS also protects the prosecution by barring subsequent release on the accused's own bond where there was no sufficient cause for the breach.

B8. APPLICATION FOR REDUCTION OF THE BOND AMOUNT, FOR CHANGE OF SURETY AND FOR DISCHARGE OF SURETY

Legal basis: Sections 484, 486, 489 and 490, BNSS, 2023 [corresponding to Sections 440, 441, 444 and 445, CrPC, 1973]

Stage: After bail has been granted, where the bond amount is excessive or the surety is unwilling or unable to continue

Filed by: Accused, or the surety seeking discharge

Filed before: The Court which fixed the bond (for reduction, the High Court or Court of Session under Section 484(2)); the Magistrate, for discharge of a surety under Section 489

Timeline / Limitation: No limitation. Note that the High Court or Court of Session alone may direct reduction of the bail required by a police officer or Magistrate (Section 484(2)).

Key points to plead:

- The amount of every bond must be fixed with due regard to the circumstances of the case and must not be excessive (Section 484(1) BNSS).
- A surety may apply to a Magistrate at any time to discharge the bond, whereupon the Magistrate shall issue a warrant for the appearance of the accused; on his appearance, the bond is discharged and other sureties are called for (Section 489 BNSS).
- For a surety who becomes insolvent or dies, or where a bond is forfeited, the Court may order fresh security under Section 493 BNSS.
- Instead of executing a bond, the Court may permit the deposit of a sum of money or Government promissory notes under Section 490 BNSS (except in the case of a bond for good behaviour).
- Every surety must, at the time of standing surety, make a declaration under Section 486 BNSS as to the number of persons to whom he has stood surety, including the accused, with all relevant particulars.

Documents generally enclosed: Copy of the bail order; Bail bond executed earlier; Proof of the surety's inability (medical records, transfer order, insolvency, change of residence); Fresh surety documents with identity, address and property proof; Affidavit/declaration of the surety under Section 486 BNSS.

PART I — BLANK FORMAT

IN THE COURT OF _____, AT _____

CRIMINAL MISC. APPLICATION NO. _____ OF 20____

(Arising out of FIR No. _____ of 20____, Police Station _____)

IN THE MATTER OF:

_____ S/o _____, R/o _____ ... APPLICANT / ACCUSED (ON BAIL)

And

_____ S/o _____, R/o _____ ... APPLICANT / SURETY

VERSUS

State through the Station House Officer, Police Station _____ ... RESPONDENT

APPLICATION FOR REDUCTION OF THE AMOUNT OF THE BOND AND/OR FOR DISCHARGE OF THE SURETY AND FOR ACCEPTANCE OF A FRESH SURETY UNDER SECTIONS 484, 486, 489 AND 490 OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023

MOST RESPECTFULLY SHOWETH:

1. That the Applicant No. 1 (the accused) was released on bail by this Hon'ble Court vide order dated _____ on his executing a bail bond in the sum of Rs. _____ with surety/sureties in the like amount, and the Applicant No. 2 stood surety for him.

2. That [grounds — for example: (i) the amount of the bond fixed is excessive having regard to the nature of the accusation, the means of the accused and the circumstances of the case, contrary to Section 484(1) of the BNSS, 2023; and/or (ii) the Applicant No. 2 is unable to continue as surety as he/she is [proceeding abroad / retiring from service and relocating to _____ / suffering from a serious ailment as per the medical record annexed / facing insolvency proceedings], and has, therefore, become unable to discharge the obligations of a surety].

3. That the Applicant No. 1 is a permanent resident of _____, has never absconded and has appeared before this Hon'ble Court and before the Investigating Officer on every occasion; he has not breached any condition of the bail order.

4. That on _____, the Applicant No. 2 informed this Hon'ble Court/ the Investigating Officer in writing of his/her inability to continue as surety, and requested that the Applicant No. 1 be permitted to furnish a fresh surety.

5. That [the fresh surety proposed, namely _____, S/o _____, R/o _____, is a person of sufficient means, holding property/income as per the documents annexed, and has made the declaration required by Section 486 of the BNSS, 2023 / the Applicant No. 1 proposes to deposit a sum of Rs. _____ in lieu of the bond, as permitted by Section 490 of the BNSS, 2023].

6. That no prejudice whatsoever will be caused to the prosecution by the relief sought; on the other hand, the Applicant No. 1 stands to suffer grave prejudice, as a failure to replace the surety would result in his being taken into custody despite having complied with every condition of the bail order.

PRAYER

In the premises aforesaid, it is most respectfully prayed that this Hon'ble Court may kindly be pleased to:

(a) reduce the amount of the bond/bail bond from Rs. _____ to Rs. _____, having regard to the circumstances of the case and to Section 484 of the BNSS, 2023 [before the High Court or Court of Session];

(b) discharge the Applicant No. 2 from the bail bond in terms of Section 489 of the BNSS, 2023, and accept the fresh surety proposed above / permit the deposit of Rs. _____ in lieu of the bond under Section 490 BNSS;

(c) [where the relief is sought on the ground of the surety's death or insolvency] direct the Applicant No. 1 to furnish fresh security under Section 493 of the BNSS, 2023, without requiring him to surrender; and

(d) pass such other orders as may be deemed fit and proper in the interest of justice.

(ADVOCATE FOR THE APPLICANTS)
(APPLICANT NO. 1 — ACCUSED)
(APPLICANT NO. 2 — SURETY)

Place: _____

Date: _____

DECLARATION OF SURETY (Section 486, BNSS, 2023)

I, _____, son/daughter of _____, aged _____ years, resident of _____, do hereby solemnly declare that I have stood surety for the following persons, and that the particulars furnished below are true:

1. _____ (present case) — Bail Application No. _____ of 20____;

2. _____ — Case/FIR No. _____ of ____, Court _____;

3. [If none: I have not stood surety for any other person.]

I further declare that I am a person of sufficient means, that the documents of my identity, residence and property annexed herewith are true, and that I am aware of the consequences of a false declaration.

PART II — ILLUSTRATION (SPECIMEN DRAFT WITH SAMPLE FACTS)

The specimen uses illustrative parties, dates and figures only. Replace every particular with the facts of your own case.

IN THE COURT OF THE METROPOLITAN MAGISTRATE-07, SAKET COURTS, NEW DELHI

CRIMINAL MISC. APPLICATION NO. _____ OF 2026

(Arising out of FIR No. 0417 of 2026, Police Station Lajpat Nagar, under Sections 115(2) and 351(2) BNS, 2023)

IN THE MATTER OF:

Rajesh Menon, son of Shri K.P. Menon, resident of C-19, Lajpat Nagar-III, New Delhi ... APPLICANT NO. 1 / ACCUSED

And

Suresh Menon, son of Shri K.P. Menon, resident of 11-A, South Extension-II, New Delhi ... APPLICANT NO. 2 / SURETY

VERSUS

State (Govt. of NCT of Delhi) ... RESPONDENT

APPLICATION FOR DISCHARGE OF THE SURETY AND FOR ACCEPTANCE OF A FRESH SURETY UNDER SECTIONS 486 AND 489 OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023

MOST RESPECTFULLY SHOWETH:

1. That the Applicant No. 1 was released on bail by this Hon'ble Court vide order dated 22.06.2026 on his executing a personal bond in the sum of Rs. 30,000/- with one surety in the like amount, and the Applicant No. 2, his elder brother, stood surety for him.

2. That the Applicant No. 2 is employed as a Project Manager with M/s. Larsen & Toubro Ltd. and has been transferred to the company's Doha (Qatar) office with effect from 15.11.2026, where he is required to relocate along with his family. As he will not be residing in India, he is unable to discharge the obligations of a surety in the above case, and he has, accordingly, requested the discharge of his bond.

3. That the Applicant No. 1 has faithfully complied with every condition of the bail order; he has appeared before this Hon'ble Court on all the eleven dates of hearing since his release and has appeared before the Investigating Officer whenever called. He has never sought any adjournment on the ground of illness or otherwise, and no complaint of any breach has ever been made by the prosecution.

4. That the Applicant No. 1 proposes to furnish his uncle, Shri Mohan Menon, son of late Shri R.P. Menon, resident of B-6, Greater Kailash-I, New Delhi, as the fresh surety. The proposed surety is a retired government servant receiving a monthly pension of Rs. 62,000/- and is the owner of the immovable property bearing No. B-6, Greater Kailash-I, New Delhi, as per the documents annexed. He

has made the declaration required under Section 486 of the BNSS, 2023.

5. That the Applicant No. 1 is ready to appear before this Hon'ble Court for the purpose of identification and to comply with any direction that this Hon'ble Court may pass in terms of Section 489(2) of the BNSS, 2023.

PRAYER

It is, therefore, most respectfully prayed that this Hon'ble Court may kindly discharge the Applicant No. 2 from the bail bond under Section 489 of the BNSS, 2023, and accept Shri Mohan Menon as the fresh surety for the Applicant No. 1 on his executing a bond in the sum of Rs. 30,000/-, and pass such other orders as may be deemed fit.

(Advocate for the Applicants)
(Rajesh Menon) — Applicant No. 1
(Suresh Menon) — Applicant No. 2

Place: New Delhi Date: 18.10.2026

DECLARATION OF SURETY (Section 486, BNSS, 2023)

I, Mohan Menon, son of late Shri R.P. Menon, aged 63 years, resident of B-6, Greater Kailash-I, New Delhi — 110048, do hereby solemnly declare that: (i) I have stood surety for no other person as on date; (ii) I am a retired government servant receiving a monthly pension of Rs. 62,000/-; (iii) I am the owner of immovable property bearing No. B-6, Greater Kailash-I, New Delhi, as per the registered sale deed dated 14.03.2001; and (iv) the particulars furnished above are true to my knowledge. I am aware that a false declaration is punishable in law.

Drafting notes / common errors: Where the surety has died or become insolvent, or where the bond has been forfeited, the correct provision is Section 493 BNSS — the Court may require fresh security without necessarily taking the accused into custody, so plead that expressly. Reduction of the bond amount under Section 484(2) lies only before the High Court or the Court of Session; before the Magistrate, seek acceptance of a personal bond or deposit under Section 490 instead.

B9. APPLICATION FOR SUSPENSION OF SENTENCE AND RELEASE ON BAIL PENDING APPEAL

Legal basis: Section 430, BNSS, 2023 read with Sections 415 and 423 [corresponding to Sections 389 and 374, CrPC, 1973]

Stage: After conviction and sentence, pending the hearing of the appeal

Filed by: Convicted person (appellant)

Filed before: The Appellate Court (the Court of Session or the High Court, as the case may be)

Timeline / Limitation: To be moved along with, or immediately after, the filing of the appeal — the right to liberty of the appellant pending appeal is the consideration, and delay weakens the plea.

Key points to plead:

- Section 430(1) BNSS empowers the Appellate Court to suspend the execution of the sentence and release the convict on bail or on his own bond, for reasons recorded in writing.
- The first proviso requires the Appellate Court to give the Public Prosecutor an opportunity of showing cause in writing before releasing a convict sentenced for an offence punishable with death, imprisonment for life or imprisonment of not less than ten years.
- The second proviso permits the Public Prosecutor to apply for cancellation of bail later.
- Plead: the sentence is short or has already been substantially undergone; the appeal is likely to take long; the appellant was on bail during trial and did not misuse it; there are arguable grounds in the appeal; and the appellant is not a flight risk.
- Where the sentence is less than the period already undergone, the appellant is entitled to be released forthwith — make an express prayer to that effect.

Documents generally enclosed: Copy of the judgment of conviction and order on sentence; Memo of appeal filed; Proof of surrender/period of custody; Surety documents; Medical records where the convict is sick.

PART I — BLANK FORMAT

IN THE COURT OF _____, AT _____

CRIMINAL APPEAL NO. _____ OF 20____

(Arising out of Judgment dated _____ passed in Case No. _____ of 20____ by the learned _____, _____)

IN THE MATTER OF:

_____ S/o _____, R/o _____ ... APPELLANT / CONVICT

VERSUS

State (Government of _____) ... RESPONDENT

APPLICATION FOR SUSPENSION OF SENTENCE AND FOR RELEASE ON BAIL PENDING APPEAL UNDER SECTION 430 OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023

MOST RESPECTFULLY SHOWETH:

1. That by judgment dated _____ the Appellant has been convicted under Sections _____ of the Bharatiya Nyaya Sanhita, 2023 and sentenced to [set out the sentence — for example, rigorous imprisonment for two years and a fine of Rs. 10,000/-]. The Appellant has preferred the accompanying appeal against the said judgment, which is pending before this Hon'ble Court.

2. That the Appellant was on bail throughout the trial and has never misused the liberty granted to him; he appeared on every date before the trial Court until the conclusion of the trial, and he surrendered before the trial Court on _____ in compliance with the order on sentence.

3. That the Appellant has been in custody since _____, having undergone about _____ days of the sentence imposed, out of the total sentence of _____.

4. That the appeal involves arguable questions of law and of fact, which require detailed consideration by this Hon'ble Court, and the appeal is not likely to be heard in the near future, having regard to the pendency of other matters. The Sentence of imprisonment is short and, in the ordinary course, the Appellant would have undergone the whole of it before the appeal is taken up for hearing, thereby rendering the appeal infructuous and making a mockery of the right of appeal.

5. That the Hon'ble Supreme Court has consistently held that where the sentence is short and the appeal is not likely to be decided early, the sentence ought to be suspended and the convict released on bail {Bhagwan Rama Shinde Gosai v. State of Gujarat, (1999) 4 SCC 421; K.C. Das v. State of West Bengal, (2019) 9 SCC 710}.

6. That the appellant is a permanent resident of _____ with roots in society, has no other criminal case pending against him, and is not a flight risk. He undertakes to abide by all conditions that may be imposed, to appear on every date of hearing and not to seek adjournments.

7. That [where applicable] the Appellant is the sole breadwinner of his family and his continued incarceration will cause irreparable hardship to his dependents.

8. That the Public Prosecutor has been served with notice of this application, in compliance with the first proviso to Section 430(1) of the BNSS, 2023 [in cases where the offence is punishable with death, imprisonment for life or imprisonment for not less than ten years].

PRAYER

In the premises aforesaid, it is most respectfully prayed that this Hon'ble Court may kindly be pleased to:

(a) suspend the execution of the sentence imposed by the judgment dated _____ and release the Appellant on bail on his executing a bond/bail bond to the satisfaction of this Hon'ble Court, pending the hearing and disposal of the accompanying appeal;

(b) in the alternative, release the Appellant on his own bond, having regard to the period of sentence already undergone; and

(c) pass such other orders as may be deemed fit and proper in the interest of justice.

(ADVOCATE FOR THE APPELLANT)

(APPELLANT / CONVICT)

Place: _____

Date: _____

VERIFICATION

I, _____, the Appellant above named, verify that the contents of paragraphs 1 to 8 are true to my knowledge and belief, based on the record, and that nothing material has been concealed therefrom.

APPELLANT

PART II — ILLUSTRATION (SPECIMEN DRAFT WITH SAMPLE FACTS)

The specimen uses illustrative parties, dates and figures only. Replace every particular with the facts of your own case.

IN THE COURT OF THE ADDITIONAL SESSIONS JUDGE-01, SAKET COURTS, NEW DELHI

CRIMINAL APPEAL NO. _____ OF 2026

(Arising out of Judgment dated 25.09.2026 passed in Case No. 1120 of 2024 by the learned Metropolitan Magistrate-02, Saket Courts, New Delhi)

IN THE MATTER OF:

Deepak Sharma, son of Shri Vijay Sharma, resident of 24/7, Zamrudpur, New Delhi — 110048 ... APPELLANT

VERSUS

State (Govt. of NCT of Delhi) ... RESPONDENT

APPLICATION FOR SUSPENSION OF SENTENCE AND FOR RELEASE ON BAIL PENDING APPEAL UNDER SECTION 430 OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023

MOST RESPECTFULLY SHOWETH:

1. That by judgment dated 25.09.2026, the Appellant has been convicted under Section 318(4) of the BNS, 2023 and sentenced to rigorous imprisonment for one year and six months with a fine of Rs. 15,000/-, and in default of payment of fine, to simple imprisonment for one month. The accompanying appeal challenges the said judgment.

2. That the Appellant was on bail throughout the trial of twenty-two months, and there is not a single order recording his absence or misuse of liberty. He surrendered before the trial Court on 26.09.2026 immediately upon pronouncement of the sentence and has been in custody since then.

3. That the Appellant has already undergone about one month of the sentence, and the substantive sentence is only of eighteen months. Given the pendency of appeals before this Hon'ble Court, the appeal will not be taken up for hearing for at least two to three years, by which time the Appellant would have served the entire sentence, rendering the appeal academic.

4. That the appeal raises substantial questions, including the failure of the trial Court to appreciate that the transaction in question was a loan repayable in instalments and that the complainant's own documents (Annexure A-3) establish part-payment, and the improper reliance on the sole testimony of the complainant without corroboration.

5. That the Appellant is the sole earning member of his family, comprising his wife and two school-going children, and is the proprietor of a small hardware business which will be ruined by his continued absence. The Appellant has no other criminal case pending against him and is a permanent resident of New Delhi.

6. That the Hon'ble Supreme Court in Bhagwan Rama Shinde Gosai v. State of Gujarat, (1999) 4 SCC 421 has held that when a conviction is for a short sentence, and the appeal is not likely to be decided soon, the sentence should be suspended and the convict released on bail, more so when the convict was on bail during trial and did not misuse that liberty.

PRAYER

It is, therefore, most respectfully prayed that this Hon'ble Court may kindly suspend the execution of the sentence imposed by judgment dated 25.09.2026 and release the Appellant on bail pending the hearing and disposal of the accompanying appeal, on his furnishing a bond in the sum of Rs. 25,000/- with one

surety in the like amount, with a direction to the Appellant to deposit the fine amount and to appear on every date of hearing.

(Advocate for the Appellant)
(Deepak Sharma) — Appellant

Place: New Delhi Date: 12.10.2026

VERIFICATION

I, Deepak Sharma, the Appellant above named, verify that the contents of paragraphs 1 to 6 are true to my knowledge and belief and that nothing material has been concealed therefrom.

APPELLANT

Drafting notes / common errors: Move this application together with the appeal, and annex a copy of the judgment and the grounds of appeal. Where the offence falls in the category mentioned in the first proviso (death, life or ten years or more), serve the Public Prosecutor before the application is taken up so that the Court is not obliged to adjourn it. If the sentence is short and the appellant has already served it, seek an order of release without demanding sureties, and to be heard on merits.

PART C — TRIAL-STAGE FORMATS BEFORE A MAGISTRATE

Warrant-cases are tried under Chapter XX (Sections 261 to 273) and summons-cases under Chapter XXI (Sections 274 to 282) of the BNSS. Section 262 governs discharge in warrant-cases and Section 268 discharge after evidence; the BNSS has introduced a time limit of sixty days for a discharge application in each case — a departure from the CrPC.

C1. APPLICATION FOR SUPPLY OF POLICE REPORT AND DOCUMENTS TO THE ACCUSED

Legal basis: Section 230 read with Section 231, BNSS, 2023 [corresponding to Section 207, CrPC, 1973]

Stage: On the first appearance of the accused in a case instituted on a police report

Filed by: Accused, through an advocate

Filed before: The Magistrate before whom the accused appears or is produced

Timeline / Limitation: The documents must be furnished without delay and in no case beyond fourteen days from the date of production or appearance of the accused. Non-compliance vitiates further proceedings (Section 261 BNSS).

Key points to plead:

- The entitlement covers the police report, the FIR, statements of the witnesses whom the prosecution proposes to examine (recorded under Section 180(3)), confessions and statements recorded under Section 183, and every other document forwarded with the police report, including the Section 63(4) BSA certificate for electronic records.
- Documents must be supplied free of cost to the accused and, where the victim is represented by an advocate, to the victim's advocate as well.
- Where the offence is triable exclusively by the Court of Session, the corresponding provision is Section 231 read with Section 232 BNSS.
- If the police have sought exclusion of any part of a statement under Section 193(7) BNSS, the Magistrate decides that claim; press for a reasoned order.

Documents generally enclosed: Memo of appearance/vakalatnama; Copy of the FIR, if available.

PART I — BLANK FORMAT

IN THE COURT OF _____, AT _____

CRIMINAL CASE NO. _____ OF 20____

(Arising out of FIR No. _____ of 20____, Police Station _____, under Sections _____ BNS, 2023)

IN THE MATTER OF:

State through the Public Prosecutor ... PROSECUTION

VERSUS

_____ S/o _____, R/o _____ ... ACCUSED / APPLICANT

APPLICATION FOR SUPPLY OF THE POLICE REPORT AND OTHER DOCUMENTS UNDER SECTION 230 OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023

MOST RESPECTFULLY SHOWETH:

1. That the police report under Section 193(3) of the BNSS, 2023 has been filed in the above case and the Applicant has appeared before this Hon'ble Court on _____ in compliance with the process issued to him.

2. That Section 230 of the BNSS, 2023 requires the Magistrate, in any case instituted on a police report, to furnish to the accused free of cost — without delay and in no case beyond fourteen days from the date

of production or appearance of the accused — a copy of (i) the police report; (ii) the FIR recorded under Section 173; (iii) the statements recorded under Section 180(3) of all persons whom the prosecution proposes to examine as its witnesses; (iv) the confessions and statements, if any, recorded under Section 183; and (v) any other document or relevant extract forwarded to the Magistrate with the police report under Section 193(6).

3. That the records of this Hon'ble Court would show that the prescribed documents have not been furnished to the Applicant till date, [though the Applicant applied for the same on _____ and deposited the requisite copying charges], and that more than fourteen days have elapsed since the date of his appearance.

4. That Section 261 of the BNSS, 2023 mandates compliance with Section 230 before the case proceeds further, and any failure of compliance vitiates the subsequent proceedings.

5. That in particular, the Applicant seeks (i) the certificate under Section 63(4) of the Bharatiya Sakshya Adhiniyam, 2023 relating to the electronic records relied upon by the prosecution, namely _____; and (ii) the statements of the witnesses _____ and _____ whose names appear in column (c) of the police report, but whose statements have not been supplied.

6. That the Applicant is unable to prepare his defence and to cross-examine the witnesses without the supply of the said documents, and grave prejudice will be caused to him in the trial.

PRAYER

It is, therefore, most respectfully prayed that this Hon'ble Court may kindly direct the supply, free of cost, of the copies of the police report, FIR, the statements of all the witnesses whom the prosecution proposes to examine, the confessions and statements recorded under Section 183 BNSS, the certificate under Section 63(4) of the BSA, 2023 in respect of the electronic records, and all other documents forwarded with the police report, as required by Section 230 of the BNSS, 2023, and may further direct that the case be not proceeded with until compliance is made.

(ADVOCATE FOR THE APPLICANT / ACCUSED)

Place: _____

Date: _____

PART II — ILLUSTRATION (SPECIMEN DRAFT WITH SAMPLE FACTS)

The specimen uses illustrative parties, dates and figures only. Replace every particular with the facts of your own case.

IN THE COURT OF THE JUDICIAL MAGISTRATE FIRST CLASS-03, KARKARDOOMA COURTS, DELHI

CRIMINAL CASE NO. 4471 OF 2026

(Arising out of FIR No. 0366 of 2026, Police Station New Ashok Nagar, under Sections 303(2), 316(2) and 61(2) BNS, 2023)

IN THE MATTER OF:

State (Govt. of NCT of Delhi) ... PROSECUTION

VERSUS

Manoj Pandey, son of Shri Ravi Pandey, resident of A-77, New Ashok Nagar, Delhi — 110096 ... ACCUSED / APPLICANT

APPLICATION FOR SUPPLY OF THE POLICE REPORT AND OTHER DOCUMENTS UNDER SECTION 230 OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023

MOST RESPECTFULLY SHOWETH:

1. That the charge sheet in the above case was filed on 18.08.2026 and the Applicant appeared before this Hon'ble Court on 24.08.2026 in compliance with the summons issued to him.

2. That more than sixty days have elapsed since the date of the Applicant's appearance, but the copies of the documents required to be furnished free of cost under Section 230 of the BNSS, 2023 have not been supplied to the Applicant despite an application dated 08.09.2026 and the deposit of copying charges of Rs. 150/- vide receipt No. 441 of 2026.

3. That in particular, the following documents have not been supplied: (i) the statement of witness Shri Kailash Chand, accountant of the complainant firm, recorded under Section 180(3) BNSS; (ii) invoice No. 8891 dated 02.07.2026 stated to have been recovered from the Applicant; and (iii) the certificate under Section 63(4) of the Bharatiya Sakshya Adhiniyam, 2023 in respect of the CCTV footage of 12.07.2026 relied upon by the prosecution.

4. That the Applicant cannot effectively cross-examine the witnesses or prepare his defence without these documents, and the trial would be reduced to an empty formality in their absence.

PRAYER

It is, therefore, most respectfully prayed that this Hon'ble Court may kindly direct the supply, free of cost, of all the documents specified in Section 230 of the BNSS, 2023, including the statement recorded under Section 180(3) and the certificate under Section 63(4) of the BSA, 2023, and be pleased not to proceed with the trial until compliance is made.

(Advocate for the Applicant)

(Manoj Pandey) — Accused

Place: Delhi Date: 29.09.2026

Drafting notes / common errors: Check the fourteen-day outer limit in Section 230 BNSS against the date of the accused's first appearance and make the non-compliance a specific ground, since Section 261 BNSS makes compliance a condition of further proceedings. Ask specifically for the Section 63(4) BSA certificate in the case of electronic evidence: without it, the electronic record cannot be proved (evidence of a file copied onto a pen drive is secondary electronic evidence).

C2. APPLICATION FOR DISCHARGE IN A WARRANT-CASE

Legal basis: Section 262, BNSS, 2023 [corresponding to Section 239, CrPC, 1973]

Stage: After the supply of documents under Section 230 and before the framing of the charge

Filed by: Accused, through an advocate

Filed before: The Magistrate trying the warrant-case

Timeline / Limitation: The application MUST be preferred within sixty days from the date of supply of copies of documents under Section 230 BNSS; after sixty days, the application cannot be entertained — a new limitation introduced by the BNSS.

Key points to plead:

- The test is identical to the one under the CrPC: whether the materials placed with the police report disclose a ground for presuming that the accused has committed the offence — the Court is not to conduct a roving enquiry or weigh the evidence as at trial.
- Rely on the absence of an essential ingredient of the offence, the civil nature of the dispute, the absence of the applicant from the scene, want of sanction, or the fact that the dispute is purely a matter of civil liability.
- The discharge application must be supported by the record and the documents already supplied; do not annex fresh material of doubtful admissibility in the first instance.
- If discharge is refused, the order is revisable under Section 438/442 BNSS, and the charge can also be challenged in revision.

Documents generally enclosed: Copies of the police report and the documents supplied under Section 230 BNSS; Documents relied upon in the discharge application; Vakalatnama.

PART I — BLANK FORMAT

IN THE COURT OF _____, AT _____

CRIMINAL CASE NO. _____ OF 20____

(Arising out of FIR No. _____ of 20____, Police Station _____, under Sections _____ BNS, 2023)

IN THE MATTER OF:

State through the Public Prosecutor ... PROSECUTION

VERSUS

_____ S/o _____, R/o _____ ... APPLICANT / ACCUSED

APPLICATION FOR DISCHARGE UNDER SECTION 262 OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023 READ WITH SECTION 263 THEREOF

MOST RESPECTFULLY SHOWETH:

1. That the police report under Section 193(3) of the BNSS, 2023 has been filed in the above case alleging the commission of offences punishable under Sections _____ of the Bharatiya Nyaya Sanhita, 2023 against the Applicant, and the copies of the documents required by Section 230 BNSS were supplied to the Applicant on _____.

2. That the present application is being filed within sixty days from the date of supply of the copies, in compliance with the period prescribed by Section 262(1) of the BNSS, 2023.

3. That the brief prosecution case, as disclosed in the police report, is: [set out the material allegations against the applicant].

4. That the Applicant is innocent and is entitled to be discharged, as the material placed on record, taken at its highest, does not disclose the commission of the offence alleged. The grounds are as follows:

(a) That none of the ingredients of Section _____ of the BNS, 2023 are made out against the Applicant, inasmuch as [specify the missing ingredient — e.g., there is no entrustment of property, hence no criminal breach of trust under Section 316; there is no dishonest inducement, but a mere breach of a commercial contract, hence no cheating under Section 318; the applicant was not present at the place of occurrence, as is borne out by the prosecution's own record].

(b) That the dispute between the parties is essentially civil in nature, arising out of _____, and a civil suit/arbitration proceedings bearing No. _____ of 20____ are pending between the parties in respect of the same subject matter.

(c) That the main accused, namely _____, has himself stated in his statement under Section 180 BNSS that the Applicant had no role in the transaction; the Applicant has been implicated solely on account of _____.

(d) That the prosecution has failed to obtain the sanction required under Section _____ of the BNSS, 2023 [where applicable — for example Section 218 or Section 215 BNSS], which is fatal to the cognizance taken.

(e) That there is no legal evidence against the Applicant; the allegations are vague, omnibus and unsupported by any documentary material, and the continuation of criminal proceedings against the Applicant would amount to an abuse of the process of the Court.

5. That it is well settled that at the stage of framing of charge the Court must apply its judicial mind to the material on record and discharge the accused where the material is not sufficient to raise a strong suspicion founded on good grounds, and that a roving inquiry into the merits is impermissible {State of Bihar v. Ramesh Singh, (1977) 4 SCC 39; Union of India v. Prafulla Kumar Samal, (1979) 3 SCC 4; Dilawar Balu Kurane v. State of Maharashtra, (2002) 2 SCC 135}.

6. That the prosecution witnesses are [official witnesses / employees of the complainant], and their statements, even if taken as true, do not advance the case beyond the realm of a civil dispute.

7. That the Applicant has already suffered the ordeal of trial and is exposed to irreparable damage to his reputation and livelihood; the pendency of the proceedings is itself a punishment.

PRAYER

In the premises aforesaid, it is most respectfully prayed that this Hon'ble Court may kindly be pleased to discharge the Applicant from the above case under Section 262 of the BNSS, 2023, in respect of the offences alleged against him, and pass such other orders as may be deemed fit and proper in the interest of justice.

(ADVOCATE FOR THE APPLICANT / ACCUSED)

Place: _____

Date: _____

VERIFICATION

I, _____, the Applicant above named, verify that the contents of paragraphs 1 to 7 are true to my knowledge and belief, based on the record, and that nothing material has been concealed therefrom.

APPLICANT

PART II — ILLUSTRATION (SPECIMEN DRAFT WITH SAMPLE FACTS)

The specimen uses illustrative parties, dates and figures only. Replace every particular with the facts of your own case.

IN THE COURT OF THE METROPOLITAN MAGISTRATE-06, PATIALA HOUSE COURTS, NEW DELHI

CRIMINAL CASE NO. 3902 OF 2026

(Arising out of FIR No. 0774 of 2026, Police Station Connaught Place, under Sections 318(4), 336(2) and 61(2) BNS, 2023)

IN THE MATTER OF:

State (Govt. of NCT of Delhi) ... PROSECUTION

VERSUS

Sudhir Malhotra, son of late Shri Ram Malhotra, resident of 5/12, Shanti Niketan, New Delhi — 110021 ... APPLICANT / ACCUSED

APPLICATION FOR DISCHARGE UNDER SECTION 262 OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023

MOST RESPECTFULLY SHOWETH:

1. That the charge sheet has been filed against the Applicant alleging the commission of offences under Sections 318(4), 336(2) and 61(2) of the BNS, 2023 on the complaint of one Shri Anoop Bansal, who alleges that he was induced to purchase a shop in Karol Bagh on the strength of a forged no-objection certificate and a power of attorney. The copies of the documents under Section 230 BNSS were supplied to the Applicant on 04.09.2026.

2. That the present application is filed within sixty days of the said supply, as required by Section 262(1) of the BNSS, 2023.

3. That the prosecution's own record shows that the Applicant is (i) a purchaser of the said shop for valuable consideration of Rs. 41,00,000/- by a registered sale deed dated 19.03.2026 executed by the co-accused Kiran Bansal, who was the recorded owner; and (ii) a bona fide purchaser who had no knowledge of, or participation in, the alleged forgery of the no-objection certificate, which was created, if at all, by the vendors.

4. That none of the ingredients of cheating under Section 318(4) BNS are made out against the Applicant: there is no dishonest inducement by the Applicant, no delivery of property by the complainant to the Applicant, and no deception practised by the Applicant. The transaction between the Applicant and the vendor is of a civil nature and is before the competent Civil Court in Suit No. 779 of 2026.

5. That the offence of forgery under Section 336(2) BNS cannot be attributed to the Applicant, as the document alleged to be forged (the no-objection certificate dated 02.11.2025) was neither executed nor used by the Applicant, and the prosecution's own FSL report states that the handwriting on the document does not match that of the Applicant.

6. That the statement of the complainant recorded under Section 180(3) BNSS shows that the complainant's grievance is really against the vendor Kiran Bansal and her husband, and the Applicant is sought to be implicated only because he refused the complainant's demand to cancel the sale deed.

7. That the registration of the FIR against the Applicant is a clear abuse of the process of law, and the Applicant, a 62-year-old cardiac patient, has been put to grave harassment. The continuation of the trial would cause him irreparable injury.

PRAYER

It is, therefore, most respectfully prayed that this Hon'ble Court may kindly discharge the Applicant under Section 262 of the BNSS, 2023 in respect of the offences under Sections 318(4), 336(2) and 61(2) BNS, 2023, and pass such other orders as may be deemed fit in the interest of justice.

(Advocate for the Applicant)
(Sudhir Malhotra) — Accused

Place: New Delhi Date: 22.09.2026

VERIFICATION

I, Sudhir Malhotra, verify that the contents of paragraphs 1 to 7 are true to my knowledge and belief, based on the record, and that nothing material has been concealed therefrom.

APPLICANT

Drafting notes / common errors: The sixty-day limit in Section 262(1) BNSS is a trap for the unwary — diarise it from the date of supply of copies under Section 230 and file within time. Present the discharge application on the material already on record and avoid producing defence documents that invite a mini-trial; the Court's enquiry is limited to whether the material discloses a ground for presuming the offence.

C3. APPLICATION FOR DISMISSAL OF A COMPLAINT / DROPPING OF PROCEEDINGS

Legal basis: Sections 226 and 225, BNSS, 2023 [corresponding to Sections 203 and 202, CrPC, 1973]

Stage: At the stage of cognizance on a complaint, before the issue of process

Filed by: The accused (who is entitled to be heard under the proviso to Section 223(1) BNSS), or the accused after process, seeking recall/dropping of proceedings

Filed before: The Magistrate before whom the complaint is filed

Timeline / Limitation: No limitation, but the application must be moved at the earliest; delay may be taken as acquiescence.

Key points to plead:

- Section 223(1) BNSS now requires the Magistrate to give the accused an opportunity of being heard before taking cognizance on a complaint — a new safeguard, and the accused can use this opportunity to seek dismissal.
- Section 226 BNSS permits dismissal of the complaint if, upon considering the statements on oath and the result of any inquiry or investigation, there is no sufficient ground for proceeding; the Magistrate must record brief reasons.
- Grounds: the complaint does not disclose an offence; the dispute is civil; the complaint is false and motivated; the complainant suppressed material facts.
- Where the process has already been issued, the appropriate relief is to seek quashing under Section 528 BNSS before the High Court — do not ask the Magistrate to review his own order of process.

Documents generally enclosed: Copy of the complaint; Copy of the order taking cognizance/issuing process; Documents relied upon by the applicant.

PART I — BLANK FORMAT

IN THE COURT OF _____, AT _____

CRIMINAL COMPLAINT CASE NO. _____ OF 20____

(Complaint of _____ v. _____)

IN THE MATTER OF:

_____ S/o _____, R/o _____ ... APPLICANT / PROPOSED ACCUSED

VERSUS

_____ S/o _____, R/o _____ ... COMPLAINANT / OPPOSITE PARTY

APPLICATION FOR DISMISSAL OF THE COMPLAINT UNDER SECTION 226 OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023

MOST RESPECTFULLY SHOWETH:

1. That the Opposite Party has filed the above complaint against the Applicant alleging the commission of offences punishable under Sections _____ of the Bharatiya Nyaya Sanhita, 2023, and this Hon'ble Court has been pleased to [take cognizance/examine the complainant on oath under Section 223 BNSS].

2. That in terms of the proviso to Section 223(1) of the BNSS, 2023, the Applicant is entitled to an opportunity of being heard before cognizance is taken, and the present application is moved in the exercise of the said right of hearing.

3. That the complaint is liable to be dismissed, as it discloses no sufficient ground for proceeding against the Applicant, for the following reasons:

(a) That the allegations in the complaint do not disclose any of the ingredients of the offences alleged, inasmuch as [specify].

(b) That the dispute between the parties is civil in nature, arising out of _____, and [a civil suit bearing No. _____ of 20____ is already pending between the parties before _____].

(c) That the complaint is an afterthought, having been filed on _____ in retaliation to [set out the applicant's complaint dated _____ / the police complaint lodged by the Applicant].

(d) That the complainant has suppressed material facts, namely _____, and the documents annexed by the complainant themselves contradict the averments made in the complaint.

(e) That the complaint is vague and omnibus; no specific date, time or act is attributed to the Applicant, and the allegations are, at their highest, hearsay.

4. That the examination of the complainant on oath and the statements of the witnesses examined under Section 223 BNSS, read with the documents annexed, do not disclose a prima facie case; the present application is filed before the issue of process and the Court may, after considering the statements on oath and the result of any inquiry, dismiss the complaint under Section 226 BNSS, recording its brief reasons.

5. That the continuation of the proceedings will cause grave prejudice and harassment to the Applicant, who is a person of _____, and will amount to an abuse of the process of the Court.

PRAYER

It is, therefore, most respectfully prayed that this Hon'ble Court may kindly:

(a) hear the Applicant before taking cognizance of the offence, as required by the proviso to Section 223(1) of the BNSS, 2023; and

(b) dismiss the above complaint under Section 226 of the BNSS, 2023, in so far as it concerns the Applicant, and discharge/drop the proceedings against the Applicant; and

(c) pass such other orders as may be deemed fit and proper in the interest of justice.

(ADVOCATE FOR THE APPLICANT / PROPOSED ACCUSED)

Place: _____

Date: _____

VERIFICATION

I, _____, the Applicant above named, verify that the contents of paragraphs 1 to 5 are true to my knowledge and belief, based on the record, and that nothing material has been concealed therefrom.

APPLICANT

PART II — ILLUSTRATION (SPECIMEN DRAFT WITH SAMPLE FACTS)

The specimen uses illustrative parties, dates and figures only. Replace every particular with the facts of your own case.

IN THE COURT OF THE ADDITIONAL CHIEF JUDICIAL MAGISTRATE, GURUGRAM, HARYANA

CRIMINAL COMPLAINT CASE NO. 1554 OF 2026

IN THE MATTER OF:

Poonam Yadav, wife of Shri Sandeep Yadav, resident of House No. 221, Sector 9, Gurugram ... APPLICANT / PROPOSED ACCUSED

VERSUS

Sushila Devi, wife of Shri Hari Singh, resident of House No. 88, Sector 9, Gurugram ... COMPLAINANT

APPLICATION FOR DISMISSAL OF THE COMPLAINT UNDER SECTION 226 OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023

MOST RESPECTFULLY SHOWETH:

1. That the Complainant, Sushila Devi, has filed the above complaint against the Applicant alleging the commission of offences under Sections 115(2) and 352 of the BNS, 2023 on the allegation that on 02.07.2026 the Applicant abused and pushed her in the presence of neighbours. The Complainant has already been examined on oath under Section 223 BNSS.

2. That the Applicant is the daughter-in-law of the Complainant's sister and the complaint is the culmination of a property dispute between the families regarding House No. 88, Sector 9, Gurugram. The dispute is already the subject matter of Civil Suit No. 611 of 2026 for partition and permanent injunction pending before the learned Civil Judge (Senior Division), Gurugram, in which the Complainant has filed a written statement.

3. That the Applicant was not even present in Gurugram on 02.07.2026; she was at Faridabad, attending the wedding of her cousin, as is established by the photographs and the wedding invitation card annexed. The Complainant's own witnesses named in the complaint, namely Smt. Kamlesh and Smt. Bimla, have not been examined despite repeated opportunities.

4. That the complaint is an afterthought filed on 25.08.2026, that is, after the Applicant's husband moved an application before the Civil Court on 11.08.2026 seeking a temporary injunction against the Complainant. The Complaint contains no specific date, time or act of abuse attributed to the Applicant and is wholly vague.

5. That no prima facie case is made out against the Applicant and the complaint deserves to be dismissed under Section 226 of the BNSS, 2023, with brief reasons.

PRAYER

It is, therefore, most respectfully prayed that this Hon'ble Court may kindly dismiss the above complaint under Section 226 of the BNSS, 2023, in so far as it concerns the Applicant, and drop the proceedings against her.

(Advocate for the Applicant)

(Poonam Yadav) — Applicant

Place: Gurugram Date: 30.09.2026

Drafting notes / common errors: Use the hearing rights under the proviso to Section 223(1) BNSS at the stage of cognizance itself — this is a new safeguard introduced by the BNSS and is frequently overlooked. Do not seek 'review' of an order issuing process before the same Magistrate: after cognizance, the remedy against the order of process lies before the High Court under Section 528 BNSS.

C4. APPLICATION FOR ALTERATION OR ADDITION OF THE CHARGE

Legal basis: Sections 239 and 240, BNSS, 2023 [corresponding to Sections 216 to 218, CrPC, 1973]

Stage: At any time before the judgment is pronounced

Filed by: Accused (usually) or the prosecution

Filed before: The Court trying the case

Timeline / Limitation: The application may be made at any time before judgment is pronounced; the right of recall of witnesses under Section 240 BNSS arises only if the alteration is made after the commencement of the trial.

Key points to plead:

- Section 239(1) BNSS permits the Court to alter or add to any charge at any time before judgment; the altered or added charge must be read and explained to the accused.
- For the defence, the usual grounds are: the charge is not referable to the allegations; the charge discloses a different offence from the one for which the accused was summoned or committed; or the charge has been altered so as to prejudice the defence.
- For the prosecution, the ground is a defect in the charge and the joinder or non-joinder of counts.
- Whenever a charge is altered after the trial has begun, both sides may recall or re-summon witnesses and call fresh evidence (Section 240 BNSS) — a right that must be exercised at once.

Documents generally enclosed: Copy of the charge framed; Copy of the FIR/police report and the statements of witnesses; Order sheets.

PART I — BLANK FORMAT

IN THE COURT OF _____, AT _____

CRIMINAL CASE NO. _____ OF 20____

(Arising out of FIR No. _____ of 20____, Police Station _____)

IN THE MATTER OF:

State through the Public Prosecutor ... PROSECUTION

VERSUS

_____ S/o _____, R/o _____ ... APPLICANT / ACCUSED

APPLICATION FOR ALTERATION/ADDITION OF THE CHARGE UNDER SECTIONS 239 AND 240 OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023

MOST RESPECTFULLY SHOWETH:

1. That by order dated _____ this Hon'ble Court was pleased to frame the charge against the Applicant under Section _____ of the Bharatiya Nyaya Sanhita, 2023, and the trial has since [commenced/is at the stage of framing of the charge].

2. That the charge as framed [does not disclose the offence alleged / materially differs from the allegations in the police report / has omitted the essential particulars required by Section 234 BNSS read with Sections 235 and 236 BNSS, namely the time, place and manner of the alleged offence and the part attributed to the Applicant], and is, in the circumstances, contrary to the material on record.

3. That the Applicant will be seriously prejudiced in his defence if the trial proceeds on the charge as framed, inasmuch as [specify — for example, the Applicant has been called upon to meet a case of criminal breach of trust under Section 316, whereas the transaction alleged is in the nature of a civil contract; or the charge under Section 61(2) BNS is not supported by any act of conspiracy pleaded or proved by the prosecution].

4. That in the alternative, and without prejudice to the above, if this Hon'ble Court is pleased to alter or add to the charge, the Applicant is entitled, under Section 240 of the BNSS, 2023, to recall or re-summon and examine with reference to such alteration or addition any witness who may have been examined, and to call further evidence, and the Applicant craves leave to do so.

5. That Section 239(1) of the BNSS, 2023 expressly empowers this Hon'ble Court to alter or add to any charge at any time before judgment is pronounced, and the alteration sought is necessary to secure a fair trial and to avoid a failure of justice.

PRAYER

It is, therefore, most respectfully prayed that this Hon'ble Court may kindly be pleased to:

(a) alter/modify the charge framed against the Applicant in the manner set out above [or, as the case may be, add the following charge: _____]; and

(b) grant leave to the Applicant to recall/re-summon the witnesses already examined and to lead further evidence under Section 240 of the BNSS, 2023; and

(c) pass such other orders as may be deemed fit and proper in the interest of justice.

(ADVOCATE FOR THE APPLICANT / ACCUSED)

Place: _____

Date: _____

PART II — ILLUSTRATION (SPECIMEN DRAFT WITH SAMPLE FACTS)

The specimen uses illustrative parties, dates and figures only. Replace every particular with the facts of your own case.

IN THE COURT OF THE CHIEF JUDICIAL MAGISTRATE, KANPUR NAGAR, UTTAR PRADESH

CRIMINAL CASE NO. 2214 OF 2026

(Arising out of FIR No. 0198 of 2026, Police Station Kotwali, under Section 316(2) BNS, 2023)

IN THE MATTER OF:

State of Uttar Pradesh through the Public Prosecutor ... PROSECUTION

VERSUS

Keshav Traders (through its proprietor Shri Keshav Gupta), resident of 12/4, Civil Lines, Kanpur Nagar ... APPLICANT / ACCUSED

APPLICATION FOR ALTERATION OF THE CHARGE UNDER SECTIONS 239 AND 240 OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023

MOST RESPECTFULLY SHOWETH:

1. That this Hon'ble Court was pleased to frame a charge against the Applicant under Section 316(2) of the BNS, 2023 (criminal breach of trust) by order dated 18.08.2026, and the prosecution has since examined three witnesses.

2. That the police report itself records that the amount of Rs. 6,80,000/- allegedly entrusted to the Applicant was received by the Applicant's proprietor as a loan at an agreed rate of interest of 1.5% per month, evidenced by a written acknowledgment dated 07.03.2025 annexed with the charge sheet, and that the parties had agreed that the principal would be repaid by 31.03.2026.

3. That a transaction of loan simpliciter, where the money is taken for the borrower's own use, does not constitute entrustment, and consequently the essential ingredient of Section 316 of the BNS, 2023 is absent. The dispute, if any, is one of civil liability and is already pending before the learned Civil Judge (Junior Division), Kanpur Nagar, in Suit No. 490 of 2026 filed by the complainant's firm itself.

4. That in these circumstances the charge as framed is contrary to the material on record, and the Applicant is being called upon to meet a case of criminal breach of trust where the record discloses only a civil debt.

5. That if this Hon'ble Court is pleased to alter or add to the charge, the Applicant may be granted leave under Section 240 of the BNSS, 2023 to recall the witnesses P.W. 1 to P.W. 3 for examination with reference to the alteration.

PRAYER

It is, therefore, most respectfully prayed that this Hon'ble Court may kindly alter the charge framed against the Applicant so as to bring it in conformity with the allegations in the police report, after hearing the parties, and may grant leave to the Applicant under Section 240 BNSS, 2023 to recall the witnesses already examined.

(Advocate for the Applicant)

For Keshav Traders — Applicant

Place: Kanpur Date: 26.09.2026

Drafting notes / common errors: Where the charge is altered after some witnesses have been examined, exercise the Section 240 BNSS right immediately and in writing — the right is lost if the alteration is accepted without objection. Always ask for the altered charge to be read over and explained to the accused on the record, since the omission is a serious irregularity.

C5. APPLICATION FOR SUMMONING DOCUMENTS OR WITNESSES (ELECTRONIC RECORDS AND OFFICIAL RECORDS)

Legal basis: Sections 94 and 348, BNSS, 2023 read with Section 63 of the Bharatiya Sakshya Adhiniyam, 2023 [corresponding to Sections 91, 311 and 65B, IEA/CrPC]

Stage: At any stage of the inquiry, trial or other proceeding

Filed by: Accused or the prosecution

Filed before: The Court before which the case is pending

Timeline / Limitation: No limitation; to be moved sufficiently before the evidence is closed, as the motion to recall after closure is entertained only where necessary for a just decision.

Key points to plead:

- Section 94 BNSS covers production of documents and electronic communication, including communication devices likely to contain digital evidence — used to summon CDRs, CCTV footage, emails, hard disks and mobile phones.
- Section 348 BNSS gives the Court the power to summon any person as a witness, examine a person in attendance, or recall and re-examine a person already examined, and makes it mandatory where the evidence appears essential for a just decision.
- For electronic records, couple the application with a request for the certificate under Section 63(4) BSA from the person in custody of the device, and formulate the certificate as required by the Schedule to the BSA (Part A and Part B).
- Where the record is in the custody of a service provider (telecom, bank, platform), give the exact period, subscriber and identifiers to make the summons workable.

Documents generally enclosed: List of documents/electronic records sought, with the period and the custodian; Relevancy memo explaining the purpose of each record; Copy of the application to the custodian, if any, and proof of refusal.

PART I — BLANK FORMAT

IN THE COURT OF _____, AT _____

CRIMINAL CASE NO. _____ OF 20____

(Arising out of FIR No. _____ of 20____, Police Station _____)

IN THE MATTER OF:

State through the Public Prosecutor ... PROSECUTION

VERSUS

_____ S/o _____, R/o _____ ... APPLICANT / ACCUSED

APPLICATION UNDER SECTIONS 94 AND 348 OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023 READ WITH SECTION 63 OF THE BHARATIYA SAKSHYA ADHINIYAM, 2023, FOR SUMMONING DOCUMENTS, ELECTRONIC RECORDS AND WITNESSES

MOST RESPECTFULLY SHOWETH:

1. That the prosecution has cited [name of the witness] as P.W. _____ in the above case and is relying upon the [electronic record/document described] to establish its case.

2. That the following documents/electronic records are necessary for the just decision of the case but have not been produced by the prosecution: [specify each item precisely — for example: (i) the complete call detail records of mobile No. 98XXXXXX21 for the period 01.06.2026 to 15.06.2026, in respect of the subscriber _____; (ii) the full CCTV footage of the entrance of _____ for the period 09.06.2026, 7.00 p.m. to 9.00 p.m., stored in the DVR of _____; (iii) the

visitor register of _____ for the month of June 2026].

3. That Section 94 of the BNSS, 2023 empowers this Hon'ble Court to summon the production of any document, electronic communication including communication devices which are likely to contain digital evidence, or any other thing that is necessary or desirable for the purposes of any inquiry, trial or other proceeding.

4. That the said records are in the custody of _____ at _____; the Applicant has [approached the said authority vide application dated _____, which has been declined/not responded to], and the record cannot otherwise be obtained.

5. That the records are material and relevant to the issues involved, as they will establish [set out the precise fact to be established — for example, that the Applicant was in another city at the time of the incident / that the complainant was in regular contact with the accused / the exact time of the occurrence].

6. That in respect of the electronic record sought, a certificate under Section 63(4) of the Bharatiya Sakshya Adhiniyam, 2023 from the person in charge of the device/record and from an expert, in the form prescribed in the Schedule to the said Adhiniyam, may kindly be called for, so that the record may be proved in accordance with law.

7. That the following witnesses are also necessary to be examined and are in attendance/readily available: (i) _____, the custodian of the record; (ii) _____, who is a material witness to the occurrence. Section 348 of the BNSS, 2023 requires this Hon'ble Court to summon and examine them if their evidence appears essential to a just decision.

PRAYER

In the premises aforesaid, it is most respectfully prayed that this Hon'ble Court may kindly be pleased to:

(a) summon the documents and electronic records described above from the concerned authority/custodian under Section 94 of the BNSS, 2023, with a direction to produce the certificate under Section 63(4) of the Bharatiya Sakshya Adhiniyam, 2023;

(b) summon and examine the witnesses named above under Section 348 of the BNSS, 2023; and

(c) pass such other orders as may be deemed fit and proper to enable the Applicant to prove his defence.

(ADVOCATE FOR THE APPLICANT / ACCUSED)

Place: _____

Date: _____

PART II — ILLUSTRATION (SPECIMEN DRAFT WITH SAMPLE FACTS)

The specimen uses illustrative parties, dates and figures only. Replace every particular with the facts of your own case.

IN THE COURT OF THE ADDITIONAL SESSIONS JUDGE-04, SAKET COURTS, NEW DELHI

SESSIONS CASE NO. 187 OF 2026

(Arising out of FIR No. 0299 of 2026, Police Station Hauz Khas, under Section 103(1) read with Section 61(2) BNS, 2023)

IN THE MATTER OF:

State (Govt. of NCT of Delhi) ... PROSECUTION

VERSUS

Rahul Chauhan, son of Shri Mahender Chauhan, resident of 118, Gautam Nagar, New Delhi ... APPLICANT / ACCUSED

APPLICATION UNDER SECTIONS 94 AND 348 OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023 FOR SUMMONING DOCUMENTS, ELECTRONIC RECORDS AND WITNESSES

MOST RESPECTFULLY SHOWETH:

1. That the Applicant is facing trial under Section 103(1) of the BNS, 2023 on the allegation that he took the deceased in a car on the fateful night and caused his death. The prosecution's case rests substantially on the last-seen theory and on the call detail records already filed.

2. That the complete call detail records (CDR) of mobile No. 98XXXXXX21 (stated to be the Applicant's number) have not been filed; what has been filed is a selective extract of three calls. The complete CDR for the period 01.06.2026 to 12.06.2026 would show that the Applicant's phone was in the Cellular Tower of _____ (Faridabad) and not in the locality of the incident at 9.45 p.m. on 09.06.2026, when the deceased is said to have been last seen in the Applicant's company.

3. That the Applicant has applied to the nodal officer concerned under the Right to Information Act on 20.08.2026 for the said record, and the same has been declined on 05.09.2026 on the ground that the record can only be furnished to a Court.

4. That the record is in the custody of the Nodal Officer, Bharti Airtel Ltd., Nelson Mandela Road, Vasant Kunj, New Delhi, and is required to be summoned under Section 94 of the BNSS, 2023, along with the certificate under Section 63(4) of the Bharatiya Sakshya Adhiniyam, 2023 from the person in charge and from an expert, in the form prescribed in the Schedule to the Adhiniyam.

5. That the following witnesses are also essential for a just decision: (i) Shri Devender Singh, the landlord of House No. 44, Gautam Nagar, in whose presence the Applicant's phone was handed over to the Investigating Officer on 10.06.2026; and (ii) Smt. Sunita, the shopkeeper at the corner of the street, who is on record in the case diary as having seen the deceased leaving alone at 9.30 p.m. Neither witness has been cited by the prosecution, though their evidence is material.

PRAYER

It is, therefore, most respectfully prayed that this Hon'ble Court may kindly summon the complete CDR of mobile No. 98XXXXXX21 for the period 01.06.2026 to 12.06.2026 from the Nodal Officer, Bharti Airtel Ltd., along with the certificate under Section 63(4) of the BSA, 2023, and further summon and examine the witnesses named above in exercise of the powers under Section 348 of the BNSS, 2023.

(Advocate for the Applicant)

(Rahul Chauhan) — Accused

Place: New Delhi Date: 07.10.2026

Drafting notes / common errors: Section 94 BNSS expressly covers 'electronic communication, including communication devices' — a wider power than old Section 91 CrPC. Be specific about the period, the subscriber and the identity of the custodian; a vague request for 'call records' is routinely declined. Always ask for the Section 63(4) BSA certificate in the same application, or the record produced may be inadmissible.

C6. APPLICATION (JOINT OR BY THE ACCUSED) FOR COMPOUNDING OF OFFENCES

Legal basis: Section 359, BNSS, 2023 [corresponding to Section 320, CrPC, 1973]

Stage: At any stage, and even where the accused has been committed for trial or an appeal is pending — with the leave of the Court concerned

Filed by: The person competent to compound under the third column of the Table in Section 359(1) BNSS, or the accused with the consent of the Court

Filed before: The Court before which the case is pending; the High Court or Court of Session in revision, under Section 359(6)

Timeline / Limitation: No limitation. Where the accused has been committed for trial or convicted and an appeal is pending, no composition is allowed without the leave of the Court to which he is committed or before which the appeal is to be heard (Section 359(5)).

Key points to plead:

- Only the offences listed in the Table in Section 359(1) BNSS (with the permission of the Court, where so indicated) and those notified under Section 359(2) can be compounded.
- Section 359(7) BNSS bars compounding where the accused is, by reason of a previous conviction, liable to enhanced punishment or to a punishment of a different kind.
- The composition has the effect of an acquittal of the accused (Section 359(8)) — a fact that matters for future proceedings and for service/employment records.
- Ensure that the compromise is lawful and voluntary; a composition obtained by coercion is liable to be set aside, and courts now insist on the physical presence or video-verified consent of the parties.

Documents generally enclosed: Affidavit of compromise signed by the complainant/victim and the accused (with identity proof); Copy of the FIR/charge sheet; Proof of payment of the agreed compensation, where money is involved; Identity proof of the parties.

PART I — BLANK FORMAT

IN THE COURT OF _____, AT _____

CRIMINAL CASE NO. _____ OF 20____

(Arising out of FIR No. _____ of 20____, Police Station _____)

IN THE MATTER OF:

(1) _____ (complainant/victim)

(2) _____ ... APPLICANTS / PARTIES

State through the Public Prosecutor ... PROSECUTION

JOINT APPLICATION FOR COMPOUNDING OF OFFENCES UNDER SECTION 359 OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023

MOST RESPECTFULLY SHOWETH:

1. That the above case has been registered against the Applicant No. 2 on the complaint of the Applicant No. 1 under Sections _____ of the Bharatiya Nyaya Sanhita, 2023, which are compoundable offences within the meaning of Section 359(1) of the BNSS, 2023 [and, where the section is compoundable only with the permission of the Court, state: "which are compoundable with the permission of this Hon'ble Court"].

2. That during the pendency of the case, with the intervention of well-wishers and respectable members of the family/society, the parties have resolved the dispute amicably and have arrived at a compromise, the terms whereof are set out in the affidavit of compromise annexed herewith as Annexure A-1.

3. That in terms of the compromise, the Applicant No. 2 has [paid a sum of Rs. _____ to the Applicant No. 1 in full and final settlement / withdrawn the counter-complaint / handed over possession of the property / undertaken not to repeat the conduct complained of], as is evidenced by the receipt/document annexed as Annexure A-2.

4. That the compromise is voluntary, lawful and free from coercion, fraud or misrepresentation, and both the Applicants have entered into the compromise with full knowledge of its consequences. Both the Applicants are personally present before this Hon'ble Court / have joined through video conferencing duly verified by this Hon'ble Court, and they confirm the compromise.

5. That no public interest is involved, the dispute is private and personal in nature, and no useful purpose will be served by continuing the criminal proceedings, which would only embitter the relations between the parties. The parties are [neighbours/relatives/colleagues] and desire to live in peace.

6. That there is no legal bar to the compounding of the offences, inasmuch as the Applicant No. 2 has not been previously convicted of any offence so as to attract the bar under Section 359(7) of the BNSS, 2023, and the offence[s] alleged are covered by the Table under Section 359(1) BNSS.

7. That upon composition, the offence stands compounded and has the effect of an acquittal of the accused under Section 359(8) of the BNSS, 2023.

PRAYER

It is, therefore, most respectfully prayed that this Hon'ble Court may kindly be pleased to:

(a) permit the parties to compound the offences specified above under Section 359 of the BNSS, 2023;

(b) record the compromise and, on such composition, acquit the Applicant No. 2 of the offences alleged against him, in terms of Section 359(8) of the BNSS, 2023; and

(c) pass such other orders as may be deemed fit and proper in the interest of justice.

(ADVOCATE FOR THE APPLICANTS)
(COMPLAINANT / VICTIM — APPLICANT NO. 1)
(ACCUSED — APPLICANT NO. 2)

Place: _____

Date: _____

AFFIDAVIT OF COMPROMISE (to be signed by both the parties and attested)

We, _____ and _____, do hereby solemnly affirm and state that: (i) we have settled all the disputes between us of our own free will, without any coercion or inducement; (ii) the Applicant No. 2 has paid/restituted _____ in full and final settlement; (iii) we have no further claim or grievance against each other in respect of the subject matter of the above case; and (iv) we request this Hon'ble Court to permit the compounding of the offences and to acquit the accused.

Verified at _____ on this _____ day of _____, 20____.

DEPONENT NO. 1
DEPONENT NO. 2

PART II — ILLUSTRATION (SPECIMEN DRAFT WITH SAMPLE FACTS)

The specimen uses illustrative parties, dates and figures only. Replace every particular with the facts of your own case.

IN THE COURT OF THE JUDICIAL MAGISTRATE FIRST CLASS-02, ROHINI COURTS, DELHI

CRIMINAL CASE NO. 2688 OF 2026

(Arising out of FIR No. 0451 of 2026, Police Station Prashant Vihar, under Sections 115(2), 351(2), 352 and 329(4) BNS, 2023)

IN THE MATTER OF:

(1) Balbir Singh, son of Shri Kartar Singh, resident of House No. 61, Pocket-4, Rohini, Delhi (complainant) ... APPLICANT NO. 1

(2) Gurpreet Singh, son of Shri Balbir Singh, resident of House No. 61, Pocket-4, Rohini, Delhi (accused) ... APPLICANT NO. 2

State through the Public Prosecutor ... PROSECUTION

JOINT APPLICATION FOR COMPOUNDING OF OFFENCES UNDER SECTION 359 OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023

MOST RESPECTFULLY SHOWETH:

1. That FIR No. 0451 of 2026 was registered at Police Station Prashant Vihar on the complaint of the Applicant No. 1 (father of the Applicant No. 2) under Sections 115(2), 351(2), 352 and 329(4) of the BNS, 2023, which are compoundable offences under Section 359(1) BNSS.

2. That the dispute arose out of a disagreement over the partition of the family property and a heated exchange between the father and the son on 12.05.2026, which unfortunately escalated into a police complaint.

3. That the parties, with the intervention of the elders of the family and the local RWA, have since resolved the entire dispute amicably on 20.09.2026, and the Applicant No. 2 has executed a registered family settlement dated 24.09.2026, by which he has given up his claim to the ground floor of the family house and has undertaken to look after his parents in their old age.

4. That the compromise is voluntary and free from coercion; both the parties are present in person before this Hon'ble Court and confirm the settlement. The Applicant No. 1 states that he does not wish to proceed against his own son and that no purpose will be served by continuing the proceedings.

5. That no public interest is involved, the offence is of a personal nature, and the parties are father and son who reside in the same house and have to live together.

PRAYER

It is, therefore, most respectfully prayed that this Hon'ble Court may kindly permit the compounding of the offences under Section 359 of the BNSS, 2023, record the compromise and acquit the Applicant No. 2 of the offences alleged against him.

(Advocate for the Applicants)

(Balbir Singh) — Applicant No. 1

(Gurpreet Singh) — Applicant No. 2

Place: Delhi Date: 28.09.2026

AFFIDAVIT OF COMPROMISE

We, Balbir Singh and Gurpreet Singh, do hereby solemnly affirm that we have settled all disputes between us voluntarily; that the Applicant No. 2 has executed a registered family settlement dated 24.09.2026 in full and final settlement; and that we request this Hon'ble Court to compound the offences and acquit the accused. We are present in Court and confirm the above.

DEPONENT NO. 1

DEPONENT NO. 2

Drafting notes / common errors: Verify the offence against the Table in Section 359(1) before moving the application — the wrong provision is the commonest cause of rejection. For offences compoundable 'with the permission of the Court', the Court considers the nature of the offence, the conduct of the parties and whether compounding would defeat the ends of justice. Where the offence is not compoundable (for example, a serious offence under the BNS), the parties may still put the compromise on record for mitigation of sentence, but the offence cannot be compounded.

C7. APPLICATION FOR WITHDRAWAL OF COMPLAINT / WITHDRAWAL FROM PROSECUTION

Legal basis: Section 280 (withdrawal of complaint) and Section 360 (withdrawal from prosecution), BNSS, 2023 [corresponding to Sections 257 and 321, CrPC, 1973]

Stage: At any time before the final order in a summons-case (Section 280) or before judgment (Section 360)

Filed by: Complainant (Section 280) and the Public Prosecutor/Assistant Public Prosecutor (Section 360)

Filed before: The Magistrate trying the case

Timeline / Limitation: Section 280: at any time before a final order is passed. Section 360: at any time before the judgment is pronounced.

Key points to plead:

- Withdrawal under Section 280 BNSS is available only in a case under Chapter XXI (summons-cases) instituted on complaint, and results in the acquittal of the accused against whom the complaint is withdrawn.
- Withdrawal from prosecution under Section 360 BNSS is to be made by the Public Prosecutor or Assistant Public Prosecutor in charge of the case, with the consent of the Court — the complainant personally has no such power in a police case.
- In deciding consent under Section 360, the Court must satisfy itself that the withdrawal is not motivated by extraneous considerations; record the reasons for withdrawal.
- A withdrawal without the consent of the Court is impermissible, and a withdrawal cannot be permitted to circumvent the mandatory provisions relating to sanction.

Documents generally enclosed: Affidavit/appointment of the parties recording the settlement; Copy of the complaint and the order sheet; Draft of the Public Prosecutor's application, where the withdrawal is under Section 360.

PART I — BLANK FORMAT

IN THE COURT OF _____, AT _____

CRIMINAL COMPLAINT CASE / CRIMINAL CASE NO. _____ OF 20____

IN THE MATTER OF:

_____ S/o _____, R/o _____ ... APPLICANT / COMPLAINANT

VERSUS

_____ S/o _____, R/o _____ ... ACCUSED

APPLICATION FOR WITHDRAWAL OF THE COMPLAINT UNDER SECTION 280 OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023

MOST RESPECTFULLY SHOWETH:

1. That the Applicant/complainant has filed the above complaint against the accused, in which [the accused has been summoned/the trial is at the stage of _____], and no final order has yet been passed.

2. That during the pendency of the case, the dispute between the parties has been amicably settled out of court, the terms whereof are recorded in the compromise dated _____ (Annexure A-1).

3. That in view of the settlement, the Applicant does not wish to prosecute the complaint any further and is satisfied that there are sufficient grounds for permitting the withdrawal of the complaint against the accused.

4. That the settlement is voluntary and free from coercion, and the Applicant is withdrawing the complaint of his/her own free will for maintaining peace and harmony between the parties, and not for

any extraneous consideration.

5. That Section 280 of the BNSS, 2023 empowers this Hon'ble Court, at any time before the passing of a final order, to permit the complainant to withdraw the complaint where the complainant satisfies the Court that there are sufficient grounds for doing so, and provides that upon such withdrawal the accused shall be acquitted.

6. That the withdrawal will not cause any prejudice to the public interest, as the offence is private in nature and no other person is affected.

PRAYER

It is, therefore, most respectfully prayed that this Hon'ble Court may kindly be pleased to permit the Applicant to withdraw the above complaint under Section 280 of the BNSS, 2023, and to acquit the accused in terms thereof.

(APPLICANT / COMPLAINANT)

Place: _____

Date: _____

APPLICATION BY THE PUBLIC PROSECUTOR FOR WITHDRAWAL FROM PROSECUTION (Section 360, BNSS, 2023)

[To be used where the case is instituted on a police report. Section 360 requires the Public Prosecutor or Assistant Public Prosecutor in charge of the case to move the application, with the consent of the Court. Suggested form:]

"It is respectfully submitted that the Public Prosecutor, having considered the material on record and the report of the Investigating Officer, and being satisfied that the withdrawal is in the interest of justice and has been made after an independent application of mind, withdraws from the prosecution of the accused _____ in the above case with the consent of this Hon'ble Court. The grounds of withdrawal are: (i) _____; (ii) _____. The withdrawal is not based on any extraneous consideration and is being made after full application of mind to the material on record. It is accordingly prayed that this Hon'ble Court may kindly grant consent to the withdrawal under Section 360 of the BNSS, 2023 and acquit/discharge the accused in accordance with law."

(PUBLIC PROSECUTOR)

PART II — ILLUSTRATION (SPECIMEN DRAFT WITH SAMPLE FACTS)

The specimen uses illustrative parties, dates and figures only. Replace every particular with the facts of your own case.

IN THE COURT OF THE JUDICIAL MAGISTRATE FIRST CLASS-01, ROHINI COURTS, DELHI

CRIMINAL COMPLAINT CASE NO. 0912 OF 2026

IN THE MATTER OF:

Rakesh Kumar Jain, son of Shri Phool Chand Jain, resident of 31, Pocket 12, Rohini, Delhi ... APPLICANT / COMPLAINANT

VERSUS

Naresh Kumar Jain, son of Shri Phool Chand Jain, resident of 31, Pocket 12, Rohini, Delhi ... ACCUSED

APPLICATION FOR WITHDRAWAL OF THE COMPLAINT UNDER SECTION 280 OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023

MOST RESPECTFULLY SHOWETH:

1. That the Applicant has filed the above complaint against his elder brother, the accused, alleging the commission of offences under Sections 316(2) and 351(2) of the BNS, 2023 in relation to the distribution of the rent of the ancestral shop. The accused has been summoned and the case is at the stage of the complainant's evidence.

2. That during the pendency of the case, the parties, at the intervention of their mother Smt. Shanti Devi and the Arya Samaj mediator, have arrived at a family settlement dated 12.09.2026, under which the rent of the shop is to be shared equally and the accused has paid Rs. 2,10,000/- towards the Applicant's share for the period from April 2024 (Annexure A-1).

3. That the Applicant is satisfied with the settlement, has received the amount, and does not wish to prosecute the complaint any further, so that peace may prevail in the family. The withdrawal is entirely voluntary and is not the result of any pressure or inducement.

4. That the parties are real brothers residing in the same house, and the continuation of the proceedings would only cause further bitterness in the family and would not serve any useful purpose.

PRAYER

It is, therefore, most respectfully prayed that this Hon'ble Court may kindly permit the Applicant to withdraw the above complaint under Section 280 of the BNSS, 2023, and acquit the accused in terms thereof.

(Rakesh Kumar Jain)

Complainant / Applicant

Place: Delhi Date: 22.09.2026

Drafting notes / common errors: Withdrawal under Section 280 BNSS is confined to summons-cases instituted on complaint; in police cases, only the Public Prosecutor can withdraw, with the consent of the Court under Section 360 BNSS. If an accused wants the proceedings closed in a non-compoundable case, the correct route is an application under Section 528 BNSS before the High Court and not a 'withdrawal' before the Magistrate.

C8. APPLICATION FOR GRANT OF PARDON TO AN ACCOMPLICE (APPROVER)

Legal basis: Sections 343, 344 and 345, BNSS, 2023 [corresponding to Sections 306 to 308, CrPC, 1973]

Stage: At any stage of the investigation, inquiry or trial

Filed by: The accused/applicant seeking to be made an approver (usually through the investigating agency), or the prosecution

Filed before: The Chief Judicial Magistrate, or a Magistrate of the first class inquiring into or trying the offence; after commitment, the Court of Session under Section 344 BNSS

Timeline / Limitation: No limitation, but the application is best made early, before the trial is substantially over, when the value of the evidence is greatest.

Key points to plead:

- Pardon is tendered on the condition of a full and true disclosure of the whole circumstances within the knowledge of the applicant relative to the offence and to every other person concerned, whether as principal or abettor.
- The pardon is not absolute: if the applicant conceals anything essential or gives false evidence, he may be tried for the offence notwithstanding the pardon (Section 345 BNSS).
- The applicant should, therefore, be ready with a complete disclosure, and the application should be accompanied by a statement of the facts he will disclose.
- Where the accused has been committed to the Court of Session, the power lies with that Court under Section 344 BNSS, and an application before the Magistrate would be an application before the wrong forum.

Documents generally enclosed: Application of the accused/prosecution for tender of pardon; The proposed statement/disclosure of the applicant; Copy of the FIR and the charge sheet; Order sheet showing the stage of the case.

PART I — BLANK FORMAT

IN THE COURT OF _____, AT _____

CRIMINAL CASE NO. _____ OF 20____

(Arising out of FIR No. _____ of 20____, Police Station _____)

IN THE MATTER OF:

_____ S/o _____, R/o _____ ... APPLICANT / ACCUSED

VERSUS

State through the Public Prosecutor ... RESPONDENT

APPLICATION FOR TENDER OF PARDON UNDER SECTIONS 343 AND 345 OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023

MOST RESPECTFULLY SHOWETH:

1. That the Applicant is one of the accused in the above case, which relates to the commission of offences punishable under Sections _____ of the Bharatiya Nyaya Sanhita, 2023, the investigation/trial whereof is at the stage of _____ before this Hon'ble Court.

2. That the Applicant is in possession of material information relating to the circumstances of the commission of the offence and the role of the other persons concerned, whether as principal or abettor, which is not otherwise available to the prosecution, namely: [set out the nature of the information in brief].

3. That the Applicant is willing to make a full and true disclosure of the whole of the circumstances within his knowledge relative to the offence and to every other person concerned, whether as principal or abettor, in the commission thereof, and to give evidence in the case accordingly.

4. That Section 343 of the BNSS, 2023 empowers this Hon'ble Court, with a view to obtaining the evidence of any person supposed to have been directly or indirectly concerned in, or privy to, the offence, to tender a pardon to such person on condition of his making a full and true disclosure as aforesaid.

5. That the disclosure of the Applicant is necessary for the just decision of the case and for bringing the real offenders to book, and the Applicant's evidence is likely to unfold the conspiracy and the manner in which the offence was committed.

6. That the Applicant undertakes (i) to make a full and true disclosure of all the facts within his knowledge; (ii) to appear before this Hon'ble Court and to give evidence on all dates as directed; (iii) not to conceal or suppress any material fact or to give false evidence; and (iv) to abide by all conditions that may be imposed by this Hon'ble Court.

7. That the Applicant is aware that, under Section 345 of the BNSS, 2023, if he fails to comply with the conditions of the pardon, he may be tried for the offence notwithstanding the tender of pardon, and he accepts the said condition.

PRAYER

It is, therefore, most respectfully prayed that this Hon'ble Court may kindly be pleased to:

(a) tender pardon to the Applicant under Sections 343 and 345 of the BNSS, 2023, on the condition of his making a full and true disclosure of the whole of the circumstances relating to the offence and of his evidence in the case; and

(b) direct that the Applicant be examined as an approver and be granted such protection as may be necessary; and

(c) pass such other orders as may be deemed fit and proper in the interest of justice.

(ADVOCATE FOR THE APPLICANT)

(APPLICANT / ACCUSED)

Place: _____

Date: _____

ENCLOSURE

A statement of the facts proposed to be disclosed by the Applicant, enclosed in a sealed cover for the perusal of this Hon'ble Court, if the Court so directs.

PART II — ILLUSTRATION (SPECIMEN DRAFT WITH SAMPLE FACTS)

The specimen uses illustrative parties, dates and figures only. Replace every particular with the facts of your own case.

IN THE COURT OF THE CHIEF JUDICIAL MAGISTRATE, BHOPAL, MADHYA PRADESH

CRIMINAL CASE NO. 3388 OF 2026

(Arising out of FIR No. 0211 of 2026, Police Station Habibganj, under Sections 318(4), 336(2), 338 and 61(2) BNS, 2023, read with Sections 66C and 66D of the Information Technology Act, 2000)

IN THE MATTER OF:

Aftab Sheikh, son of Shri Rashid Sheikh, resident of 21, Nehru Nagar, Bhopal ... APPLICANT / ACCUSED

VERSUS

State of Madhya Pradesh ... RESPONDENT

APPLICATION FOR TENDER OF PARDON UNDER SECTIONS 343 AND 345 OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023

MOST RESPECTFULLY SHOWETH:

1. That the Applicant is accused No. 3 in the above case relating to a syndicate which induced hundreds of persons to part with money through a fraudulent online investment scheme in the name of "Wealth Mantra Capital", and the case is pending investigation/trial before this Hon'ble Court.

2. That the Applicant joined the syndicate in January 2026 as a "tele-calling executive" and was paid a monthly remuneration of Rs. 18,000/-. He is not the mastermind, but he is in a position to disclose the identity of the persons who established the scheme, the manner in which the call centres were operated, the accounts into which the collections were deposited, and the identity of the persons who withdrew the amounts.

3. That the prime accused, namely _____ and _____, are still at large and are operating from a neighbouring State; the evidence of the Applicant is essential to establish the chain of the conspiracy and the flow of funds collected from the victims.

4. That the Applicant has already furnished to the Investigating Officer the details of the bank accounts, the SIM cards issued in the names of persons who never existed and the mobile applications used by the syndicate, as recorded in his disclosure statement dated 04.09.2026.

5. That the Applicant undertakes to make a full and true disclosure of all the facts within his knowledge and to give evidence in the trial; he is aware that in the event of his failing to comply with the conditions of the pardon, he may be tried for the offence notwithstanding the pardon, in terms of Section 345 of the BNSS, 2023.

PRAYER

It is, therefore, most respectfully prayed that this Hon'ble Court may kindly tender pardon to the Applicant under Sections 343 and 345 of the BNSS, 2023, on the condition of his making a full and true disclosure and giving evidence in the case, and may grant such protection to the Applicant and his family as may be necessary.

(Advocate for the Applicant)

(Aftab Sheikh) — Applicant

Place: Bhopal Date: 18.09.2026

Drafting notes / common errors: Tender of pardon is not a device to escape the offence — the approver's value to the prosecution must be demonstrated. Where the case has already been committed to the Court of Session, the application must be made before that Court under Section 344 BNSS. The approver's evidence is corroborative in nature, and the trial Court will look for independent material (Section 343 read with the law on accomplice evidence under the BSA).

C9. APPLICATION FOR SPECIMEN SIGNATURES, HANDWRITING, FINGER IMPRESSIONS OR VOICE SAMPLE

Legal basis: Section 349, BNSS, 2023 [corresponding to Section 311A, CrPC, 1973, and Section 5 of the Identification of Prisoners Act, 1920]

Stage: During investigation or any proceeding under the BNSS

Filed by: Investigating agency or the prosecution; the accused may also apply to resist an illegal direction

Filed before: A Magistrate of the first class

Timeline / Limitation: No limitation. The proviso to Section 349 BNSS requires that the person shall have been arrested at some time in connection with the investigation or proceeding.

Key points to plead:

- Section 349 BNSS is wider than the earlier law: it covers specimen signatures, finger impressions, handwriting and voice samples, and expressly includes an accused person.
- The proviso requires that the person shall have been arrested at some time in connection with the investigation or proceeding — plead the fact of arrest or its absence as the case may be.
- The application must specify the exemplar sought with precision — which document, which disputed signature, and the purpose of the comparison.
- The sample must be taken in the presence of the Magistrate and with the safeguards for the person's dignity and privacy; a woman's sample should ordinarily be taken by a woman officer in the presence of a woman.

Documents generally enclosed: Copy of the FIR/charge sheet and the disputed document; FSL requisition or the report requiring the exemplar; Order sheet showing the stage of the case.

PART I — BLANK FORMAT

IN THE COURT OF THE JUDICIAL MAGISTRATE FIRST CLASS, _____,

_____

CRIMINAL MISC. APPLICATION NO. _____ OF 20____

(Arising out of FIR No. _____ of 20____, Police Station _____)

IN THE MATTER OF:

State through the Station House Officer, Police Station _____ ... APPLICANT

VERSUS

_____ S/o _____, R/o _____ ... RESPONDENT / ACCUSED

APPLICATION FOR DIRECTING THE RESPONDENT/ACCUSED TO GIVE SPECIMEN SIGNATURES, HANDWRITING, FINGER IMPRESSIONS AND/OR VOICE SAMPLE UNDER SECTION 349 OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023

MOST RESPECTFULLY SHOWETH:

1. That the Respondent/accused is facing investigation/trial in the above case registered under Sections _____ of the Bharatiya Nyaya Sanhita, 2023, in which the following documents/electronic records are material: [specify — for example, a disputed agreement dated _____, a cheque bearing No. _____, an anonymous call recording dated _____].

2. That the Respondent was arrested in the case on _____ [or: the Respondent has been summoned and has appeared in the case], and the condition in the proviso to Section 349 of the BNSS, 2023 that the person shall have been arrested at some time in connection with the investigation or proceeding is satisfied.

3. That the disputed signature/handwriting/thumb impression/voice is required to be compared with the specimen of the Respondent; the disputed document/recording has been sent to the Forensic Science Laboratory vide letter dated _____ and the said Laboratory has, vide its letter dated _____, called for the specimen of the Respondent for comparison.

4. That Section 349 of the BNSS, 2023 empowers a Magistrate of the first class, if satisfied that it is expedient for the purposes of any investigation or proceeding under the Sanhita, to direct any person, including an accused person, to give specimen signatures, finger impressions, handwriting or voice sample, and requires the person to attend at the time and place specified in the order.

5. That the specimen is necessary for the just and proper investigation of the case, and no prejudice will be caused to the Respondent, as the taking of a specimen does not amount to testimonial compulsion and does not offend Article 20(3) of the Constitution of India {State of Bombay v. Kathi Kalu Oghad, AIR 1961 SC 1808; Selvi v. State of Karnataka, (2010) 7 SCC 263}.

6. That the Applicant undertakes to take the specimen in the presence of this Hon'ble Court or such officer as this Hon'ble Court may direct, and to maintain the dignity and privacy of the Respondent, who shall be given a copy of the specimen so taken.

PRAYER

It is, therefore, most respectfully prayed that this Hon'ble Court may kindly direct the Respondent/accused to give his specimen [signatures/handwriting/finger impressions/voice sample] before this Hon'ble Court or before such officer as may be directed, on such date and time as may be fixed by this Hon'ble Court, for the purposes of comparison with the disputed document/recording, and pass such other orders as may be deemed fit.

(PUBLIC PROSECUTOR / ADVOCATE FOR THE APPLICANT)

Place: _____

Date: _____

[FORMAT FOR RESISTING AN ILLEGAL DIRECTION — where the applicant is the accused]

1. That the direction sought is contrary to the proviso to Section 349 of the BNSS, 2023, as the Applicant has never been arrested in connection with the investigation or proceeding, and the power under the section is therefore not available.

2. That the specimen is being sought not for comparison with a disputed document, but in the nature of a roving enquiry to gather evidence against the Applicant, which is impermissible.

3. That the taking of a voice sample or handwriting sample in the manner proposed violates the safeguards laid down by the Hon'ble Supreme Court in Selvi v. State of Karnataka, (2010) 7 SCC 263, inasmuch as the Applicant has not been informed of the consequences and has not been given a copy of the sample.

PART II — ILLUSTRATION (SPECIMEN DRAFT WITH SAMPLE FACTS)

The specimen uses illustrative parties, dates and figures only. Replace every particular with the facts of your own case.

IN THE COURT OF THE CHIEF JUDICIAL MAGISTRATE, JAIPUR METROPOLITAN, RAJASTHAN

CRIMINAL MISC. APPLICATION NO. 1552 OF 2026

(Arising out of FIR No. 0334 of 2026, Police Station Jyoti Nagar, under Sections 336(2), 338, 340(2) and 61(2) BNS, 2023)

IN THE MATTER OF:

State of Rajasthan through the Station House Officer, Police Station Jyoti Nagar ... APPLICANT

VERSUS

Arun Agarwal, son of Shri Ram Gopal Agarwal, resident of 44, Adarsh Nagar, Jaipur ... RESPONDENT

APPLICATION UNDER SECTION 349 OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023 FOR DIRECTING THE RESPONDENT TO GIVE SPECIMEN SIGNATURES AND HANDWRITING

MOST RESPECTFULLY SHOWETH:

1. That the Respondent is an accused in FIR No. 0334 of 2026 in which a forged sale deed dated 07.02.2026 purporting to convey a plot bearing No. 17, Vishwakarma Industrial Area, Jaipur, is the central document. The said sale deed bears the signature of the Respondent as the vendor and the signature of the purchaser's witness.

2. That the Respondent was arrested in the case on 18.06.2026 and was released on bail by the learned Sessions Judge, Jaipur, vide order dated 04.07.2026; the condition in the proviso to Section 349 BNSS is thus satisfied.

3. That the disputed sale deed and the agreement to sell dated 21.01.2026, allegedly bearing the Respondent's signature, have been sent to the Forensic Science Laboratory, Jaipur, vide letter No. 889 dated 12.08.2026. The Assistant Director, FSL, has called for the specimen signature and handwriting of the Respondent vide letter No. FSL/QC/2277 dated 02.09.2026, without which the comparison is not possible and the case is held up.

4. That the taking of the specimen is necessary for the investigation and the ends of justice, and no prejudice will be caused to the Respondent, as he will be given a copy of the specimen taken and the same will be taken in the presence of this Hon'ble Court.

PRAYER

It is, therefore, most respectfully prayed that this Hon'ble Court may kindly direct the Respondent, Arun Agarwal, to give his specimen signatures and handwriting (of the disputed text in the sale deed dated 07.02.2026 and agreement dated 21.01.2026) before this Hon'ble Court on such date as may be fixed, in the presence of the Investigating Officer, and to forward the same to the FSL, Jaipur, along with the records, for comparison.

(Public Prosecutor)
For the State of Rajasthan

Place: Jaipur Date: 15.09.2026

Drafting notes / common errors: The BNSS version of this provision is materially wider than the old Section 311A CrPC because it expressly covers voice samples and repeats the proviso that the person must have been arrested at some time. Where the accused has never been arrested, an application under Section 349 without more is liable to be dismissed — and a direction to give a voice sample raises the question of self-incrimination, which must be addressed on the lines of Selvi (supra).

C10. APPLICATION FOR PLEA BARGAINING

Legal basis: Sections 289 to 300, BNSS, 2023 (Chapter XXIII) [corresponding to Sections 265A to 265L, CrPC, 1973]

Stage: After the framing of charge, in a case where the maximum punishment is seven years or less

Filed by: The accused, with an affidavit

Filed before: The Court in which the offence is pending for trial

Timeline / Limitation: The application MUST be filed within thirty days from the date of framing of charge — the BNSS has made plea bargaining time bound, and an application filed thereafter cannot be entertained (Section 290(1) BNSS).

Key points to plead:

- Plea bargaining under Chapter XXIII BNSS applies to a case instituted on a police report where the offence is not punishable with death, imprisonment for life or imprisonment exceeding seven years, and to a complaint case where the Magistrate has issued process for such an offence.
- It does not apply to offences affecting the socio-economic condition of the country notified by the Central Government, to offences against a woman or a child below fourteen years, and not at all to a juvenile or child.
- The application must be accompanied by an affidavit sworn by the accused stating that he has voluntarily preferred the application after understanding the nature and extent of the punishment, and that he has not previously been convicted of the same offence.
- Once the Court is satisfied that the application is voluntary, it gives not more than sixty days for the parties to work out a mutually satisfactory disposition, which may include payment of compensation to the victim; thereafter the Court disposes of the case, and the judgment under Section 294 is final (Section 295).

Documents generally enclosed: Affidavit of the accused as required by Section 290(2) BNSS; Copy of the charge framed; Particulars of the victim and the compensation proposed.

PART I — BLANK FORMAT

IN THE COURT OF _____, AT _____

CRIMINAL CASE NO. _____ OF 20____

(Arising out of FIR No. _____ of 20____, Police Station _____)

IN THE MATTER OF:

_____ S/o _____, aged about _____ years, R/o _____ ... APPLICANT / ACCUSED

VERSUS

State through the Public Prosecutor ... RESPONDENT

APPLICATION FOR PLEA BARGAINING UNDER SECTION 290 OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023

MOST RESPECTFULLY SHOWETH:

1. That the charge against the Applicant was framed by this Hon'ble Court on _____ for the offence punishable under Section _____ of the Bharatiya Nyaya Sanhita, 2023, and the present application is being filed within thirty days from the date of framing of the charge, as required by Section 290(1) of the BNSS, 2023.

2. That the offence with which the Applicant is charged is punishable with imprisonment of not more than seven years, and the case is one to which Chapter XXIII of the BNSS, 2023 applies, as the offence is not punishable with death, imprisonment for life or imprisonment exceeding seven years, and does not fall within the excluded categories specified in Sections 289 and 290 of the BNSS, 2023 (offences affecting the socio-economic condition of the country notified by the Central Government, and offences against a woman or a child below fourteen years of age).

3. That the Applicant is not a juvenile or a child within the meaning of the Juvenile Justice (Care and Protection of Children) Act, 2015, and has not previously been convicted in a case in which he was charged with the same offence.

4. That the brief description of the case, including the offence to which it relates, is as follows: [give a brief description of the facts, the offence charged and the stage of the trial].

5. That the Applicant has voluntarily preferred the present application after understanding the nature and extent of the punishment provided under the law for the offence, and the same is evidenced by the affidavit sworn by the Applicant, annexed herewith as Annexure A-1, as required by Section 290(2) of the BNSS, 2023.

6. That the Applicant is ready and willing to work out a mutually satisfactory disposition of the case, which may include payment of compensation and other expenses to the victim, as contemplated by Section 290(4)(a) and Section 291 of the BNSS, 2023, and to abide by the further procedure prescribed in Sections 291 to 293 BNSS.

7. That the Applicant does not wish to prolong the trial, which would entail expenditure and inconvenience to the victim as well, and he seeks to avail of the remedy of plea bargaining in the interest of justice.

PRAYER

In the premises aforesaid, it is most respectfully prayed that this Hon'ble Court may kindly be pleased to:

(a) take the present application on record under Section 290 of the BNSS, 2023 and issue notice to the Public Prosecutor/complainant and to the victim as required by Section 290(3) BNSS;

(b) examine the Applicant in camera as contemplated by Section 290(4) BNSS and, on being satisfied that the application is voluntary, grant time not exceeding sixty days to work out a mutually satisfactory disposition of the case under Section 291 BNSS; and

(c) thereafter dispose of the case in accordance with Sections 293 and 294 of the BNSS, 2023; and

(d) pass such other orders as may be deemed fit and proper in the interest of justice.

(ADVOCATE FOR THE APPLICANT)

(APPLICANT / ACCUSED)

Place: _____

Date: _____

AFFIDAVIT OF THE ACCUSED (Section 290(2), BNSS, 2023)

I, _____, son of _____, aged _____ years, resident of _____, do hereby solemnly affirm and state as follows:

1. That I am the accused in the above case and I have been charged under Section _____ of the Bharatiya Nyaya Sanhita, 2023, on _____.

2. That I have voluntarily preferred the accompanying application for plea bargaining, of my own free will and without any coercion, undue influence or inducement.

3. That I have understood the nature and extent of the punishment provided under the law for the offence to which the case relates, namely imprisonment which may extend to _____ years and/or fine, and I understand that the Court may, under Section 293 BNSS, impose a sentence of imprisonment of

one-fourth (or one-sixth, as the case may be) of the punishment prescribed for the offence, or may release me on probation of good conduct.

4. That I have not previously been convicted by any Court in a case in which I was charged with the same offence.

5. That I undertake to abide by the mutually satisfactory disposition that may be worked out and to comply with the orders of this Hon'ble Court, including payment of compensation to the victim, if any.

Verified at _____ on this _____ day of _____, 20____.

DEPONENT

PART II — ILLUSTRATION (SPECIMEN DRAFT WITH SAMPLE FACTS)

The specimen uses illustrative parties, dates and figures only. Replace every particular with the facts of your own case.

IN THE COURT OF THE METROPOLITAN MAGISTRATE-03, DISTRICT COURT, GURUGRAM

CRIMINAL CASE NO. 6142 OF 2026

(Arising out of FIR No. 0289 of 2026, Police Station Sadar, under Sections 303(2) and 329(4) BNS, 2023)

IN THE MATTER OF:

Ashok Kumar Yadav, son of Shri Bhagwan Yadav, aged about 34 years, resident of 219, Bhim Nagar, Gurugram ... APPLICANT / ACCUSED

VERSUS

State of Haryana ... RESPONDENT

APPLICATION FOR PLEA BARGAINING UNDER SECTION 290 OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023

MOST RESPECTFULLY SHOWETH:

1. That the charge against the Applicant was framed by this Hon'ble Court on 08.09.2026 under Section 303(2) of the BNS, 2023 for the theft of copper wire from an electricity sub-station of the Dakshin Haryana Bijli Vitran Nigam. The present application is filed on 16.09.2026, that is, within thirty days of the framing of the charge, as required by Section 290(1) BNSS.

2. That the offence under Section 303(2) BNS is punishable with rigorous imprisonment of not less than one year but which may extend to five years and fine, and is thus punishable with imprisonment of not more than seven years; the case does not fall within any excluded category under Sections 289 and 290 BNSS.

3. That the Applicant is 34 years of age, is not a juvenile or a child, and has not previously been convicted of the same offence. The Applicant has been in custody for 61 days and is the sole earning member of his family.

4. That the Applicant has volunteered to pay compensation of Rs. 45,000/- to the Dakshin Haryana Bijli Vitran Nigam, being the value of the stolen copper wire and the cost of the damage caused to the sub-station, and to render community service if the Hon'ble Court so directs.

5. That the accompanying affidavit, sworn by the Applicant and annexed as Annexure A-1, records that the application is voluntary and that he has understood the nature and extent of the punishment.

PRAYER

It is, therefore, most respectfully prayed that this Hon'ble Court may kindly take this application on record, issue notice to the Public Prosecutor and the victim, examine the Applicant in camera under Section 290(4) BNSS, grant time for working out a mutually satisfactory disposition, and thereafter dispose of the case in accordance with Sections 293 and 294 of the BNSS, 2023.

(Advocate for the Applicant)

(Ashok Kumar Yadav) — Applicant

Place: Gurugram Date: 16.09.2026

AFFIDAVIT OF THE ACCUSED (Section 290(2), BNSS, 2023)

I, Ashok Kumar Yadav, do hereby solemnly affirm that I have voluntarily filed the accompanying application for plea bargaining after understanding the nature and extent of the punishment provided for the offence under Section 303(2) BNS; that I have not been previously convicted of the same offence; and that I undertake to comply with the mutually satisfactory disposition and the orders of this Hon'ble Court, including the payment of compensation.

DEPONENT

Drafting notes / common errors: Two BNSS changes are vital: the thirty-day period from framing of charge, and the statutory entitlement under Section 293(2) to be sentenced to one-fourth (or one-sixth for a first-time offender) of the prescribed punishment. Do not use plea bargaining in cases excluded by Section 289 BNSS or for a juvenile; and remember that the Court examines the accused in camera, so the accused must be personally present.

C11. APPLICATION FOR EXEMPTION FROM PERSONAL APPEARANCE

Legal basis: Sections 355 and 228, BNSS, 2023 [corresponding to Sections 317 and 205, CrPC, 1973]

Stage: At any stage of an inquiry or trial

Filed by: Accused (who must be represented by an advocate)

Filed before: The Court before which the case is pending

Timeline / Limitation: No limitation; to be moved before the date on which personal appearance would otherwise be required, and preferably at the first appearance under Section 228 BNSS.

Key points to plead:

- The Court may dispense with the personal attendance of the accused if it is satisfied, for reasons to be recorded, that such attendance is not necessary in the interests of justice, provided the accused is represented by an advocate.
- Exemption is generally granted where the accused resides outside the jurisdiction, is a woman, an elderly or infirm person, or where the appearance is required only for a formal purpose such as an adjournment or the filing of documents.
- The accused must be present on the date of framing of the charge, on the date of the recording of the plea, and for the recording of the statement under Section 351 BNSS, unless specifically exempted for those dates.
- An application under Section 228 BNSS at the first appearance — seeking exemption from personal appearance until the conclusion of the trial and permitting appearance through the advocate — is usually granted, subject to conditions.
- Where exemption is sought permanently, an affidavit and an undertaking to appear as and when directed are essential.

Documents generally enclosed: Vakalatnama of the advocate; Affidavit of the accused with grounds — distance, age, illness, disability, employment; Medical certificate where illness is pleaded; Proof of residence outside the jurisdiction.

PART I — BLANK FORMAT

IN THE COURT OF _____, AT _____

CRIMINAL CASE NO. _____ OF 20____

(Arising out of FIR No. _____ of 20____, Police Station _____)

IN THE MATTER OF:

State through the Public Prosecutor ... PROSECUTION

VERSUS

_____ S/o _____, R/o _____ ... APPLICANT / ACCUSED

APPLICATION FOR EXEMPTION FROM PERSONAL APPEARANCE UNDER SECTION 355 OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023

MOST RESPECTFULLY SHOWETH:

1. That the Applicant is an accused in the above case and is represented by the undersigned advocate, who has filed the vakalatnama/memo of appearance in this Hon'ble Court.

2. That the personal attendance of the Applicant before this Hon'ble Court is not necessary in the interests of justice, for the following reasons: [state the grounds — for example: (i) the Applicant is permanently residing at _____, which is about _____ km away from this Hon'ble Court, and is employed as _____ at _____, where his presence is required on all working days; (ii) the Applicant is a woman with a minor child, aged _____ years, and is unable to travel alone; (iii) the Applicant is aged about _____ years and is suffering from _____, as per the medical certificate annexed; (iv) the case is pending for [service of notice/filing of documents/examination of formal witnesses], and the presence of the Applicant is not required].

3. That the Applicant has never sought an adjournment on any frivolous ground, has never absented himself without leave, and undertakes to appear before this Hon'ble Court on the dates on which his personal presence is required, including the date of framing of charge/examination under Section 351 BNSS and the date of pronouncement of judgment, as and when directed by this Hon'ble Court.

4. That the Applicant has authorised the undersigned advocate to represent him in all proceedings and to do all acts necessary for the conduct of the case, and there is no possibility of the trial being delayed or prejudiced by reason of the exemption sought.

5. That Section 355 of the BNSS, 2023 empowers this Hon'ble Court, at any stage of an inquiry or trial, to dispense with the personal attendance of the accused if it is satisfied, for reasons to be recorded, that such attendance is not necessary in the interests of justice, the accused being represented by an advocate.

PRAYER

It is, therefore, most respectfully prayed that this Hon'ble Court may kindly be pleased to:

(a) dispense with the personal attendance of the Applicant during the pendency of the trial, and to permit him to be represented by the undersigned advocate, on such conditions as this Hon'ble Court may deem fit to impose; and

(b) direct that the Applicant shall appear personally before this Hon'ble Court on such dates as may be fixed by this Hon'ble Court, including for the purposes of identification, the recording of the plea, the examination under Section 351 BNSS, and the pronouncement of judgment; and

(c) pass such other orders as may be deemed fit and proper in the interest of justice.

(ADVOCATE FOR THE APPLICANT)
(APPLICANT / ACCUSED)

Place: _____

Date: _____

AFFIDAVIT

I, _____, the Applicant above named, do hereby solemnly affirm and state that the facts stated in the accompanying application are true to my knowledge; that I am unable to attend this Hon'ble Court in person on every date of hearing for the reasons stated therein; and that I undertake to appear before this Hon'ble Court as and when directed, and not to seek any unnecessary adjournment. I am aware that the exemption may be withdrawn at any point in the interests of justice.

Verified at _____ on this _____ day of _____, 20____.

DEPONENT

PART II — ILLUSTRATION (SPECIMEN DRAFT WITH SAMPLE FACTS)

The specimen uses illustrative parties, dates and figures only. Replace every particular with the facts of your own case.

IN THE COURT OF THE JUDICIAL MAGISTRATE FIRST CLASS-01, NOIDA, GAUTAM BUDDHA NAGAR, UTTAR PRADESH

CRIMINAL CASE NO. 9984 OF 2026

(Arising out of FIR No. 0522 of 2026, Police Station Sector 39, Noida, under Sections 318(2) and 351(2) BNS, 2023)

IN THE MATTER OF:

State of Uttar Pradesh ... PROSECUTION

VERSUS

Vaibhav Srivastava, son of Shri R.K. Srivastava, resident of 402, Sunrise Residency, Sector 39, Noida ... APPLICANT / ACCUSED

APPLICATION FOR EXEMPTION FROM PERSONAL APPEARANCE UNDER SECTION 355 OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023

MOST RESPECTFULLY SHOWETH:

1. That the Applicant is an accused in the above case and is represented by the undersigned advocate, the vakalatnama having been filed on 14.08.2026.

2. That the Applicant is working as a Merchant Navy officer and is presently on a six-month sailing assignment on board M.V. Ocean Star, which is outside Indian territorial waters, from 02.09.2026 to 28.02.2027. He is thus unable to attend this Hon'ble Court in person during this period. The copy of his contract of employment and the letter of the shipping company dated 20.08.2026 are annexed as Annexure A-1.

3. That the presence of the Applicant is not required for the purpose of any substantive step in the trial, which is presently at the stage of service of notice to the complainant and filing of documents. The Applicant has duly authorised the undersigned advocate to represent him and to take all steps in the case.

4. That the Applicant has never absented himself without leave; he appeared in person on 14.08.2026 and 25.08.2026, and he undertakes to appear in person before this Hon'ble Court within fifteen days of his return to India, as well as on any date specifically fixed by this Hon'ble Court for his examination under Section 351 BNSS or for the pronouncement of judgment.

5. That no prejudice will be caused to the prosecution by the exemption sought, and the same is necessary to prevent avoidable hardship to the Applicant, who would otherwise lose his employment.

PRAYER

It is, therefore, most respectfully prayed that this Hon'ble Court may kindly dispense with the personal attendance of the Applicant during the pendency of the trial and permit him to be represented by the undersigned advocate, with a direction that the Applicant shall appear personally within fifteen days of his return to India or as and when directed by this Hon'ble Court.

(Advocate for the Applicant)

(Vaibhav Srivastava) — Applicant (through advocate)

Place: Noida Date: 02.09.2026

AFFIDAVIT

I, Vaibhav Srivastava, do hereby solemnly affirm that I am on a sailing assignment outside India from 02.09.2026 to 28.02.2027; that I have authorised my advocate to appear on my behalf; and that I undertake to appear personally before this Hon'ble Court within fifteen days of my return or on any date fixed by the Court.

DEPONENT

Drafting notes / common errors: Exemption is not an end in itself: the Court must record reasons, and an accused exempted under Section 355 BNSS must still appear for identification, plea, examination under Section 351 and judgment. Where the accused resides abroad or outside the jurisdiction, annex documentary proof of employment or residence, and give

a concrete undertaking about the date of appearance — vague assurances are routinely rejected. Where the Court insists on presence for a formal date, seek the alternative of appearance through audio-video electronic means under Section 530 BNSS.

PART D — FORMATS FOR THE COURT OF SESSION AND PROCEDURAL APPLICATIONS

A case triable exclusively by the Court of Session is committed to it under Section 232 BNSS. Section 250 introduces a sixty-day limit for an application for discharge from the date of commitment, and Section 248 requires the trial to be conducted by a Public Prosecutor.

D1. APPLICATION FOR DISCHARGE BEFORE THE COURT OF SESSION

Legal basis: Section 250, BNSS, 2023 [corresponding to Section 227, CrPC, 1973]

Stage: After commitment of the case under Section 232 BNSS and before the framing of the charge

Filed by: Accused, through an advocate

Filed before: The Court of Session (or the Additional Sessions Judge to whom the case is made over)

Timeline / Limitation: The application must be preferred within sixty days from the date of commitment of the case under Section 232 BNSS; beyond that period it cannot be entertained (Section 250(1) BNSS).

Key points to plead:

- The test is whether there is 'sufficient ground for proceeding' against the accused — the Court considers the record of the case and the documents submitted with it, and hears the accused and the prosecution.
- At this stage, the Court does not weigh the evidence or conduct a trial; a prima facie view on the material is all that is required, and the benefit of doubt on the material goes to the accused.
- If the Court finds no sufficient ground, it shall discharge the accused and record reasons (Section 250(2)) — the discharge is not a bar to a fresh prosecution with the sanction of the competent authority in the limited circumstances of Section 300 BNSS (analogous to the CrPC provision).
- Grounds usually advanced: absence of an essential ingredient, a purely civil dispute, an unexplained delay in the FIR, the complainant's own conduct, want of sanction, and the accused's absence from the scene.

Documents generally enclosed: Copy of the order of commitment; Copies of the police report and documents supplied under Sections 230/231 BNSS; Documents relied upon by the accused; Vakalatnama.

PART I — BLANK FORMAT

IN THE COURT OF THE SESSIONS JUDGE, _____

SESSIONS CASE NO. _____ OF 20____

(Arising out of FIR No. _____ of 20____, Police Station _____, under Sections _____ BNS/other law, committed by the learned _____ vide order dated _____)

IN THE MATTER OF:

State through the Public Prosecutor ... PROSECUTION

VERSUS

_____ S/o _____, R/o _____ ... APPLICANT / ACCUSED

APPLICATION FOR DISCHARGE UNDER SECTION 250 OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023

MOST RESPECTFULLY SHOWETH:

1. That the case has been committed to this Hon'ble Court by the learned _____ vide order dated _____ passed under Section 232 of the BNSS, 2023, and the present application is being filed within sixty days from the date of the said commitment, as required by Section 250(1) of the BNSS, 2023.

2. That the case of the prosecution, as disclosed in the record and the documents submitted therewith, is: [set out the prosecution case in a compact paragraph].

3. That the Applicant is innocent and no sufficient ground exists for proceeding against him, for the following reasons:

(a) That the record does not disclose the essential ingredients of the offence under Section _____ of the Bharatiya Nyaya Sanhita, 2023, inasmuch as [specify the missing ingredient with reference to the statements and the documents].

(b) That the prosecution's own material — namely the statements of _____ recorded under Section 180 BNSS and the document at page _____ of the record — ex facie establishes that the Applicant was not present at the place of occurrence and had no role in the commission of the offence.

(c) That the dispute between the parties is of a civil nature, arising out of _____, and is pending before _____ in _____ No. _____ of 20____.

(d) That the FIR has been lodged after a delay of _____ days, which remains wholly unexplained, and the genesis of the dispute is the applicant's refusal to accede to the complainant's demand of _____.

(e) That the sanction required under Section _____ of the BNSS, 2023 has not been obtained, and the prosecution is therefore not maintainable.

4. That the law relating to discharge is well settled: the Court must sift the material to find out whether there is sufficient ground for proceeding, and if the material is such that a conviction is not reasonably possible, the accused ought to be discharged {Union of India v. Prafulla Kumar Samal, (1979) 3 SCC 4; Dilawar Balu Kurane v. State of Maharashtra, (2002) 2 SCC 135; State of Tamil Nadu v. Suresh, (1998) 2 SCC 372}.

5. That the Applicant has been on bail throughout and has never misused the liberty granted to him; the continuation of the trial would cause him grave prejudice to his reputation, livelihood and personal liberty, without any corresponding benefit to the prosecution.

6. That the Applicant is ready to abide by any condition that this Hon'ble Court may impose and to face the trial if this Hon'ble Court is not inclined to discharge him.

PRAYER

In the premises aforesaid, it is most respectfully prayed that this Hon'ble Court may kindly be pleased to:

(a) consider the record of the case and the documents submitted therewith and hear the Applicant and the prosecution, as provided by Section 250(2) of the BNSS, 2023; and

(b) discharge the Applicant of the offences alleged against him, holding that there is no sufficient ground for proceeding against him, and record reasons for so doing; and

(c) pass such other orders as may be deemed fit and proper in the interest of justice.

(ADVOCATE FOR THE APPLICANT / ACCUSED)

Place: _____

Date: _____

VERIFICATION

I, _____, the Applicant above named, verify that the contents of paragraphs 1 to 6 are true to my knowledge and belief, based on the record of the case, and that nothing material has been concealed therefrom.

APPLICANT

PART II — ILLUSTRATION (SPECIMEN DRAFT WITH SAMPLE FACTS)

The specimen uses illustrative parties, dates and figures only. Replace every particular with the facts of your own case.

IN THE COURT OF THE SESSIONS JUDGE, LUCKNOW, UTTAR PRADESH

SESSIONS CASE NO. 442 OF 2026

(Arising out of FIR No. 0509 of 2026, Police Station Hazratganj, under Sections 105 and 61(2) BNS, 2023, committed by the learned Chief Judicial Magistrate, Lucknow, vide order dated 11.08.2026)

IN THE MATTER OF:

State of Uttar Pradesh ... PROSECUTION

VERSUS

Dr. Shalini Mishra, wife of Shri Anurag Mishra, resident of 12, Lalbagh, Lucknow ... APPLICANT / ACCUSED

APPLICATION FOR DISCHARGE UNDER SECTION 250 OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023

MOST RESPECTFULLY SHOWETH:

1. That the case has been committed to this Hon'ble Court by the learned Chief Judicial Magistrate, Lucknow, vide order dated 11.08.2026, and the present application is filed on 06.10.2026, that is, within sixty days of the date of commitment, as required by Section 250(1) of the BNSS, 2023.

2. That the prosecution alleges that the Applicant, a practising gynaecologist, conducted a surgery on the deceased, Smt. Rekha Verma, on 02.04.2026 at Sanjeevani Hospital, Lucknow, with such gross negligence that the patient died on 05.04.2026, and that the Applicant thereafter conspired with the hospital staff to alter the medical records.

3. That the prosecution's own record discloses no sufficient ground for proceeding against the Applicant, inasmuch as:

(a) That the cause of death, as per the post-mortem report and the opinion of the Board of Doctors constituted by the Chief Medical Officer (page 118 of the record), was "septicemia following peritonitis consequent upon a pre-existing intestinal perforation unrelated to the surgery performed by the Applicant". The death was thus not attributable to any act or omission of the Applicant.

(b) That the essential ingredient of 'gross negligence' or 'criminal rashness' under Section 105 BNS (culpable homicide not amounting to murder) or of a conspiracy under Section 61(2) BNS is entirely absent. The record shows that the Applicant obtained the informed consent of the patient, followed the standard operative protocol, and immediately arranged for a senior surgeon's consultation on 03.04.2026.

(c) That the allegation of alteration of medical records is unsupported by any material: the Notional Investigation Report and the original case sheet produced by the hospital (seized vide seizure memo dated 20.04.2026) are identical, and the FSL report dated 14.07.2026 (page 201) found no overwriting or interpolation.

(d) That the deceased's daughter, Smt. Anjali Verma, in her statement under Section 180 BNSS, has stated that the Applicant had saved her mother's life during the same admission by timely management of a cardiac complication, which belies the theory of negligence.

(e) That the complaint was lodged on 18.05.2026, that is, forty-six days after the death, only after the hospital refused to accede to the demand of Rs. 30,00,000/- made by the complainant, as recorded in the statement of the hospital administrator, Shri V.K. Srivastava.

4. That in these circumstances, the continuation of the trial against the Applicant would amount to an abuse of the process of the Court and would cause irreparable harm to the Applicant's professional reputation and career of twenty-two years, during which she has performed more than six thousand surgeries without a single such complaint.

PRAYER

It is, therefore, most respectfully prayed that this Hon'ble Court may kindly discharge the Applicant of the offences under Sections 105 and 61(2) of the BNS, 2023, holding that there is no sufficient ground for proceeding against her, and may record reasons for the discharge as required by Section 250(2) of the BNSS, 2023.

(Advocate for the Applicant)

(Dr. Shalini Mishra) — Accused

Place: Lucknow Date: 06.10.2026

VERIFICATION

I, Dr. Shalini Mishra, verify that the contents of paragraphs 1 to 4 are true to my knowledge and belief, based on the record of the case, and nothing material has been concealed therefrom.

APPLICANT

Drafting notes / common errors: The sixty-day clock in Section 250(1) BNSS runs from the date of commitment, not from the date of the accused's appearance — an application after that period is barred, and the accused is then left to seek a discharge at a later stage or to go to trial. Refer to the exact pages of the record in the application, since the Sessions Court decides on the record alone.

D2. APPLICATION FOR TRANSFER OF A CRIMINAL CASE

Legal basis: Section 447 (High Court) and Section 448 (Sessions Judge), BNSS, 2023 [corresponding to Sections 406 and 407, CrPC, 1973]

Stage: At any stage of the inquiry or trial

Filed by: Any party interested, the accused, the complainant/victim, or the Court on its own initiative

Filed before: The High Court under Section 447; the Sessions Judge of the sessions division under Section 448

Timeline / Limitation: No limitation. The Sessions Judge may act on the report of the lower Court, on the application of a party, or on his own initiative (Section 448(2)). Section 452 BNSS requires reasons to be recorded for an order under Sections 448 to 451.

Key points to plead:

- Section 447 BNSS permits transfer where a fair and impartial inquiry or trial cannot be had, where a question of law of unusual difficulty is likely to arise, or where the transfer is required by any provision of the Sanhita, or will tend to the general convenience of the parties or witnesses, or is expedient for the ends of justice.
- For the Sessions Judge the ground is that the transfer is expedient for the ends of justice (Section 448 BNSS).
- Plead local prejudice, threats to the applicant or the witnesses, the complainant's influence in the locality, the convenience of witnesses, or the transfer of the presiding officer and consequent delay.
- The application to the Sessions Judge must be supported by an affidavit; the Court may require the applicant to give notice to the other side, and may impose costs not exceeding ten thousand rupees (Section 448(3) BNSS).

Documents generally enclosed: Affidavit in support setting out the grounds; Evidence of threats or local prejudice — police complaints, medical records, witness statements; Copy of the FIR/charge sheet and the order sheets of the trial Court; List of witnesses with their places of residence.

PART I — BLANK FORMAT

IN THE COURT OF THE SESSIONS JUDGE, _____

CRIMINAL MISC. APPLICATION NO. _____ OF 20____

IN THE MATTER OF:

_____ S/o _____, R/o _____ ... APPLICANT / ACCUSED

VERSUS

State through the Public Prosecutor ... RESPONDENT

APPLICATION FOR TRANSFER OF THE CASE UNDER SECTION 448 OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023

MOST RESPECTFULLY SHOWETH:

1. That the Applicant is an accused in [FIR No. _____ of 20____ pending as Criminal Case No. _____ of 20____] before the learned _____, _____.

2. That the case is at the stage of _____, and the next date of hearing is _____.

3. That the Applicant seeks the transfer of the case from the Court of the learned _____, _____, to the Court of _____ [any other Court of competent jurisdiction in the sessions division], for the following reasons:

(a) That an atmosphere of hostility and prejudice has been created against the Applicant in the locality where the trial Court is situate, as the complainant, _____, is an influential person holding the office of _____ and has mobilised persons against the Applicant, as borne out by the complaint dated _____ lodged by the Applicant at Police Station _____ (Annexure A-2).

(b) That the Applicant and his family members have been threatened with dire consequences by the complainant's supporters on _____ and _____, and on the last date of hearing a mob gathered outside the Court premises and obstructed the Applicant's vehicle.

(c) That all the witnesses cited by the Applicant, namely _____, _____ and _____, reside at _____, and it would be a matter of great inconvenience and expense for them and for the Applicant to attend the Court at _____, which is about _____ km away.

(d) That the ends of justice will be better served by the transfer of the case, and no prejudice will be caused to the prosecution, as the witnesses of the prosecution, being official witnesses, are not inconvenienced by the transfer.

4. That the Applicant has not filed any other application for transfer either before the High Court or before any other Court, and the present application is the first such application. The Applicant has also not invoked the appellate or revisional jurisdiction in respect of any interlocutory matter in the case, and this application is confined to the relief of transfer.

5. That the Applicant undertakes to pay such costs as this Hon'ble Court may impose and to abide by all conditions that may be imposed in the matter of the transfer.

PRAYER

It is, therefore, most respectfully prayed that this Hon'ble Court may kindly be pleased to:

(a) transfer [Criminal Case No. _____ of 20____] from the Court of the learned _____, _____, to any other Court of competent jurisdiction within the sessions division, in terms of Section 448 of the BNSS, 2023, in the interest of a fair and impartial trial; and

(b) pass such other orders as may be deemed fit and proper in the interest of justice.

(ADVOCATE FOR THE APPLICANT)

(APPLICANT / ACCUSED)

Place: _____

Date: _____

AFFIDAVIT IN SUPPORT

I, _____, the Applicant above named, do hereby solemnly affirm and state that the facts stated in paragraphs 1 to 5 of the accompanying application are true to my knowledge; that the apprehension set out therein is genuine and bona fide; and that I have not concealed any material fact. I undertake to pay such costs as may be imposed by this Hon'ble Court.

Verified at _____ on this _____ day of _____, 20____.

DEPONENT

ALTERNATIVE FORMAT FOR THE HIGH COURT (Section 447, BNSS, 2023)

"IN THE HIGH COURT OF _____ AT _____ — CRIMINAL MISC. TRANSFER APPLICATION NO. _____ OF 20____ — (i) that a fair and impartial inquiry or trial cannot be had in the Court of _____ on account of the reasons set out in paragraph _____ above; (ii) that a question of law of unusual difficulty is likely to arise, namely _____; and (iii) that the transfer is expedient for the ends of justice. It is prayed that

the case be withdrawn from the said Court and transferred to any other Court of equal or superior jurisdiction competent to try the case."

PART II — ILLUSTRATION (SPECIMEN DRAFT WITH SAMPLE FACTS)

The specimen uses illustrative parties, dates and figures only. Replace every particular with the facts of your own case.

IN THE COURT OF THE SESSIONS JUDGE, ERNAKULAM, KERALA

CRIMINAL MISC. APPLICATION NO. 771 OF 2026

IN THE MATTER OF:

Sebastian Joseph, son of Shri Thomas Joseph, resident of Kanjoor House, Kizhakkambalam P.O., Ernakulam District ... APPLICANT / ACCUSED

VERSUS

State of Kerala through the Public Prosecutor, Ernakulam ... RESPONDENT

APPLICATION FOR TRANSFER OF THE CASE UNDER SECTION 448 OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023

MOST RESPECTFULLY SHOWETH:

1. That the Applicant is an accused in FIR No. 0877 of 2026, Police Station Puthencruz, pending as C.C. No. 3311 of 2026 before the learned Judicial Magistrate First Class, Kolenchery, alleging offences under Sections 115(2), 117(2) and 351(2) of the BNS, 2023, arising out of a boundary dispute with the de facto complainant, Shri Roy Varghese.

2. That the case is at the stage of the complainant's evidence and the next date of hearing is 12.11.2026.

3. That the Applicant seeks the transfer of the case to any other Court of competent jurisdiction in the district for the following reasons:

(a) That the de facto complainant, Shri Roy Varghese, is the President of the Kolenchery Merchants' Association and the Chairman of the local Co-operative Bank, and exercises considerable influence in the locality; on 21.08.2026 and 04.09.2026, the Applicant's witnesses, namely Sri George Kutty, Sri Anto Thomas and Sri Bineesh Kumar, were visited at their respective places of work by the complainant's associates and were told that "it would be better for them to forget what they saw".

(b) That the Applicant lodged a complaint in this regard before the Inspector of Police, Puthencruz, on 06.09.2026 (Annexure A-2), and the said complaint has been verified by the local Sub Inspector. A further complaint dated 18.09.2026 was filed before the Collector, Ernakulam.

(c) That on 09.09.2026, when the Applicant appeared before the trial Court, a group of about thirty persons organised by the complainant staged a demonstration in front of the Court gate and attempted to obstruct the Applicant's vehicle, and the Applicant had to be escorted out by the police personnel on duty.

(d) That in these circumstances the Applicant genuinely apprehends that a fair and impartial trial cannot be had before the Court at Kolenchery, and the ends of justice require the transfer of the case to any other Court of competent jurisdiction in the sessions division.

4. That the Applicant has not filed any other application for transfer before the High Court or any other Court, and no prejudice will be caused to the prosecution by the transfer, as all the prosecution witnesses are residents of the same locality and the distance involved is only about 22 km.

PRAYER

It is, therefore, most respectfully prayed that this Hon'ble Court may kindly transfer C.C. No. 3311 of 2026 pending before the learned Judicial Magistrate First Class, Kolenchery, to the Court of the learned Judicial Magistrate First Class, Ernakulam, or to any other Court of competent jurisdiction within the sessions division, in terms of Section 448 of the BNSS, 2023, in the interest of a fair trial.

(Advocate for the Applicant)
(Sebastian Joseph) — Applicant

Place: Ernakulam Date: 24.09.2026

AFFIDAVIT IN SUPPORT

I, Sebastian Joseph, do hereby solemnly affirm that the facts stated in the accompanying application are true to my knowledge; that I genuinely apprehend that a fair and impartial trial cannot be had in the Court at Kolenchery on account of the influence and conduct of the de facto complainant; and that I have not concealed any material fact.

DEPONENT

Drafting notes / common errors: A mere allegation of influence is not enough: produce the complaint lodged with the police, the medical or documentary record of the threats, and, if possible, the names of the persons who witnessed the incident. Where the ground is the convenience of witnesses, give their addresses and the distance involved in a tabular form. Remember that an order under Section 448 BNSS must record reasons (Section 452 BNSS).

D3. APPLICATION FOR EXAMINATION OF A WITNESS ON COMMISSION

Legal basis: Sections 319, 320 and 321, BNSS, 2023 [corresponding to Sections 284 to 286, CrPC, 1973]

Stage: At any stage of an inquiry, trial or other proceeding

Filed by: Prosecution or the accused

Filed before: The Court before which the proceeding is pending; the commission is ordinarily directed to the Chief Judicial Magistrate within whose local jurisdiction the witness is found (Section 320 BNSS)

Timeline / Limitation: No limitation; move early, before the closure of evidence, as a later application invites the objection of delay and the possible loss of the evidence.

Key points to plead:

- A commission may issue where the attendance of the witness cannot be procured without unreasonable delay, expense or inconvenience; the Court must be satisfied that the examination is necessary for the ends of justice.
- The proviso to Section 319(1) BNSS deals with the examination of the presiding officer of a Court or a public servant (and the permission of the head of the office concerned).
- Plead the age, illness, residence abroad or official position of the witness, with documents; the Court will ordinarily insist on a medical certificate for a witness who cannot travel.
- In respect of a witness outside India, Section 320(3) BNSS and the Central Government notification govern the form of the commission; the letter of request route under Sections 112 to 123 BNSS applies to evidence from a country with reciprocal arrangements.

Documents generally enclosed: Affidavit/medical certificate of the witness; Details of the witness — name, age, address, and the purpose of the evidence; Evidence of the witness's inability to travel (passport with visa, hospital records, official posting order); List of the questions proposed to be put, where required.

PART I — BLANK FORMAT

IN THE COURT OF _____, AT _____

CRIMINAL CASE NO. _____ OF 20____

(Arising out of FIR No. _____ of 20____, Police Station _____)

IN THE MATTER OF:

State through the Public Prosecutor ... PROSECUTION

VERSUS

_____ S/o _____, R/o _____ ... APPLICANT / ACCUSED

APPLICATION FOR ISSUE OF A COMMISSION FOR THE EXAMINATION OF A WITNESS UNDER SECTIONS 319 TO 321 OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023

MOST RESPECTFULLY SHOWETH:

1. That the Applicant seeks to examine Shri/Smt. _____, aged about _____ years, resident of _____, as a defence/prosecution witness (D.W./P.W. _____) in the above case. The said witness is material, as his/her evidence will establish [state the precise fact to be established].

2. That the attendance of the said witness before this Hon'ble Court cannot be procured without an amount of delay, expense and inconvenience which, under the circumstances, would be unreasonable, inasmuch as:

(a) That the witness is a permanent resident of _____, which is about _____ km away from this Hon'ble Court, and is [employed as _____ / a person with

disability / aged about _____ years];

(b) That the witness is suffering from _____ and is unable to travel, as per the medical certificate of Dr. _____, _____ Hospital, dated _____ (Annexure A-1);

(c) That the witness [is residing abroad at _____ and holds a work visa valid up to _____ / is a serving officer in the _____ and is posted at _____].

3. That Section 319 of the BNSS, 2023 empowers this Hon'ble Court, where the examination of a witness is necessary for the ends of justice and attendance cannot be procured without unreasonable delay, expense or inconvenience, to dispense with the personal attendance of the witness and to issue a commission for his/her examination.

4. That the examination of the witness is necessary for the just decision of the case, and the Applicant's defence would be seriously prejudiced in the absence of the evidence of the said witness.

5. That the Applicant is ready and willing to bear the costs of the commission and to deposit such sum as this Hon'ble Court may direct towards the commission's expenses, including the fee of the Commissioner and the costs of the witnesses.

6. That the issue of the commission will not cause any prejudice to the prosecution, as the Public Prosecutor shall be at liberty to cross-examine the witness through the Commissioner, and the accused shall have the right to be present or to be represented, as this Hon'ble Court may direct.

PRAYER

In the premises aforesaid, it is most respectfully prayed that this Hon'ble Court may kindly be pleased to:

(a) issue a commission under Sections 319 and 320 of the BNSS, 2023, for the examination of Shri/Smt. _____ of _____, directing the commission to the learned Chief Judicial Magistrate, _____, or such other Court or officer as this Hon'ble Court may deem fit;

(b) fix the interrogatories/questions to be put to the witness and the sum to be paid as the Commissioner's fee and expenses, and permit the Applicant and the Public Prosecutor to cross-examine the witness through the Commissioner;

(c) direct that the commission be returned to this Hon'ble Court with the deposition, documents marked and the report of the Commissioner, in terms of Sections 321 and 323 BNSS; and

(d) pass such other orders as may be deemed fit and proper in the interest of justice.

(ADVOCATE FOR THE APPLICANT / ACCUSED)

Place: _____

Date: _____

LIST OF ANNEXURES

A-1: Medical certificate of the witness. A-2: Proof of residence/employment abroad. A-3: Identity proof of the witness.

PART II — ILLUSTRATION (SPECIMEN DRAFT WITH SAMPLE FACTS)

The specimen uses illustrative parties, dates and figures only. Replace every particular with the facts of your own case.

IN THE COURT OF THE ADDITIONAL SESSIONS JUDGE-03, THIRUVANANTHAPURAM, KERALA

SESSIONS CASE NO. 96 OF 2026

(Arising out of FIR No. 0219 of 2026, Police Station Thampanoor, under Sections 318(4) and 61(2) BNS, 2023)

IN THE MATTER OF:

State of Kerala ... PROSECUTION

VERSUS

Mohammed Ashiq, son of Shri Abdul Khader, resident of 17, Karimadom Colony, Thiruvananthapuram ... APPLICANT / ACCUSED

APPLICATION FOR ISSUE OF A COMMISSION FOR THE EXAMINATION OF A WITNESS UNDER SECTIONS 319 TO 321 OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023

MOST RESPECTFULLY SHOWETH:

1. That the Applicant seeks to examine Dr. Sandeep Nair, Associate Professor of Forensic Medicine, Government Medical College, Thiruvananthapuram, as D.W. 2 in the above case. The evidence of the said witness is material, as it will establish that the signature appearing on the disputed agreement dated 14.02.2026 was not written by the Applicant, and that the opinion of the prosecution's handwriting expert (P.W. 9) proceeds on a comparison with an unauthenticated specimen.

2. That Dr. Nair has been appointed as the Director of the Regional Institute of Forensic Sciences at Bhubaneswar and has been residing at Bhubaneswar since 01.07.2026. He has deposed in his statement that he is willing to appear before the Court at Bhubaneswar but is unable to travel to Thiruvananthapuram on account of his official duties, which require his presence in the Institute on all working days. A copy of his appointment letter and his willingness letter are annexed as Annexures A-1 and A-2.

3. That the attendance of the witness cannot be procured without an amount of delay, expense and inconvenience which would be unreasonable, since his travel would require a minimum of four days of absence from a teaching institution and the Applicant would have to bear the expenses of his travel, stay and an expert's fee of Rs. 25,000/- per appearance, in addition to the risk of the witness's evidence being lost by reason of his frequent official travel.

4. That the examination of the witness on commission will not cause any prejudice to the prosecution, as the learned Public Prosecutor shall be at liberty to cross-examine the witness through the Commissioner, and the entire deposition will be recorded in the presence of the Commissioner with the usual safeguards.

5. That the Applicant is ready to deposit Rs. 30,000/- towards the Commissioner's fee and the expenses of the commission, and to bear all costs thereof.

PRAYER

It is, therefore, most respectfully prayed that this Hon'ble Court may kindly issue a commission under Sections 319 to 321 of the BNSS, 2023, directing the learned Chief Judicial Magistrate, Khurda at Bhubaneswar, to record the examination and cross-examination of Dr. Sandeep Nair, and to return the commission with the deposition, in the presence of the Applicant's advocate, who shall remain present at Bhubaneswar with the leave of this Hon'ble Court.

(Advocate for the Applicant)

(Mohammed Ashiq) — Accused

Place: Thiruvananthapuram Date: 28.09.2026

Drafting notes / common errors: Courts insist on proof of the witness's inability to attend — a bare assertion of inconvenience is not enough. Offer to bear the costs and to make the commission workable by consenting to the presence of the Public Prosecutor; a commission opposed by the prosecution on the ground that it deprives the accused of a fair hearing is generally granted only where the defence offers reciprocal safeguards.

D4. APPLICATION FOR CONDUCT OF PROCEEDINGS IN ELECTRONIC MODE

Legal basis: Section 530, BNSS, 2023 (a new provision), read with Sections 2(1)(a), 105, 185 and 183 BNSS

Stage: At any stage of trial, inquiry, appellate or other proceedings

Filed by: Either party; the Court may also act on its own motion

Filed before: The Court conducting the trial, inquiry or proceeding

Timeline / Limitation: No limitation; the application should be moved sufficiently before the date of the proceeding to enable the Court to make arrangements and to give notice to the other side.

Key points to plead:

- Section 530 BNSS expressly permits trials, inquiries and proceedings, including the issue and service of summons and warrants, the examination of the complainant and witnesses, the recording of evidence, and appellate proceedings, to be held in electronic mode by the use of electronic communication or audio-video electronic means.
- The convenience of the parties and witnesses, the age, illness or disability of the witness, and the distance involved are the usual grounds; a request for audio-video hearing is to be balanced against the requirement of a public trial in Section 366 BNSS.
- For a witness who cannot attend, the alternative of a commission under Sections 319 to 321 BNSS should also be considered.
- For an accused who is in custody, seek appearance through video conferencing from the jail, which the BNSS facilitates.

Documents generally enclosed: Application setting out the grounds, with supporting documents (medical certificate, travel documents, official posting orders); Consent of the witness concerned; Proposed platform/arrangements with the e-court facility.

PART I — BLANK FORMAT

IN THE COURT OF _____, AT _____

CRIMINAL CASE NO. _____ OF 20____

(Arising out of FIR No. _____ of 20____, Police Station _____)

IN THE MATTER OF:

State through the Public Prosecutor ... PROSECUTION

VERSUS

_____ S/o _____, R/o _____ ... APPLICANT / ACCUSED

APPLICATION FOR CONDUCTING THE PROCEEDINGS IN ELECTRONIC MODE UNDER SECTION 530 OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023

MOST RESPECTFULLY SHOWETH:

1. That the above case is pending before this Hon'ble Court, and the next date of hearing is _____.

2. That the Applicant seeks the conduct of the proceedings in electronic mode (through audio-video electronic means) for the following reasons: [state grounds — for example: (i) the Applicant is employed at _____ and is unable to obtain leave; (ii) the Applicant is a senior citizen/sick and unable to travel; (iii) the witness _____ whose evidence is to be recorded on the next date resides at _____ and has consented to deposing through video conferencing; (iv) the Applicant is in custody and appearance through video conferencing from the jail would save the cost and risk of physical production].

3. That Section 530 of the BNSS, 2023 expressly provides that all trials, inquiries and proceedings under the Sanhita, including the issuance, service and execution of summons and warrants, the examination of the complainant and the witnesses, the recording of evidence, and all appellate proceedings, may be held in electronic mode by the use of electronic communication or audio-video electronic means.

4. That conducting the proceeding in electronic mode will not prejudice any party, as the identity of the parties and the witnesses can be verified to the satisfaction of this Hon'ble Court, and the recording of the deposition can be preserved in accordance with law.

5. That the Applicant is ready to bear all the costs of the video conferencing arrangements and to comply with all directions of this Hon'ble Court, including the filing of documents in advance and the furnishing of the coordinates and identity documents of the participants before the hearing.

PRAYER

It is, therefore, most respectfully prayed that this Hon'ble Court may kindly permit the conduct of the proceedings in the above case in electronic mode, through audio-video electronic means, on the dates fixed by this Hon'ble Court, and to that end, be pleased to give such directions as may be necessary for the identification of the participants and the preservation of the record.

(ADVOCATE FOR THE APPLICANT)

Place: _____

Date: _____

PART II — ILLUSTRATION (SPECIMEN DRAFT WITH SAMPLE FACTS)

The specimen uses illustrative parties, dates and figures only. Replace every particular with the facts of your own case.

IN THE COURT OF THE SPECIAL JUDGE (POCSO), KARKARDOOMA COURTS, DELHI

SESSIONS CASE NO. 233 OF 2026

(Arising out of FIR No. 0338 of 2026, Police Station Shahdara, under Sections 64(2) and 6 of the Protection of Children from Sexual Offences Act, 2012 and Section 64 of the BNS, 2023)

IN THE MATTER OF:

State (Govt. of NCT of Delhi) ... PROSECUTION

VERSUS

Jagdish Prasad, son of Shri Ram Prasad, presently in judicial custody in District Jail No. 11, Mandoli ... APPLICANT / ACCUSED

APPLICATION FOR CONDUCTING THE PROCEEDINGS IN ELECTRONIC MODE UNDER SECTION 530 OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023

MOST RESPECTFULLY SHOWETH:

1. That the Applicant is the accused in the above case and is in judicial custody since 04.04.2026, lodged in District Jail No. 11, Mandoli.

2. That the victim (P.W. 1), a child aged 9 years, has shifted with her mother to her maternal village at Village Balua, District Supaul, Bihar, after the incident, and is to be examined on the next date of hearing, that is, 18.11.2026.

3. That the said witness is a child below ten years of age and it would be detrimental to her mental well-being to be brought to Delhi for deposition; the Victim Support Person appointed in the case has

also recommended in her report dated 12.09.2026 that the child's evidence be recorded through video conferencing from the Child Welfare Committee, Supaul. The child's mother has consented to the deposition being recorded through video conferencing.

4. That Section 530 of the BNSS, 2023 permits the examination of witnesses and the recording of evidence in electronic mode through audio-video electronic means; moreover, Section 366 BNSS permits the Court, in cases involving a child victim, to hold proceedings in camera, and the recording of the child's evidence in electronic mode from her own district would be consistent with the mandate of Section 397 BNSS (treatment of victims) and the provisions of the POCSO Act, 2012.

5. That the Applicant also seeks that his own appearance on subsequent dates be through video conferencing from the jail, which will save the cost and security risk of physical production from Mandoli Jail, and the jail authorities have the necessary facility.

PRAYER

It is, therefore, most respectfully prayed that this Hon'ble Court may kindly permit the recording of the evidence of P.W. 1 (the child victim) on 18.11.2026 through audio-video electronic means from the office of the Child Welfare Committee, Supaul, Bihar, in the presence of the Victim Support Person, and further permit the appearance of the Applicant on subsequent dates through video conferencing from District Jail No. 11, Mandoli, in terms of Section 530 of the BNSS, 2023.

(Advocate for the Applicant)

(Jagdish Prasad) — Accused (through advocate)

Place: Delhi Date: 06.10.2026

Drafting notes / common errors: Address the two most common objections — identity verification and the openness of the trial — in the application itself: offer to file identity documents in advance, propose that the recording be preserved, and suggest that the video conferencing be conducted from an official centre (jail, Child Welfare Committee or District Legal Services Authority office). Where the witness is abroad, a commission under Sections 319 to 321 BNSS may be the safer route.

PART E — APPEAL, REVISION AND QUASHING FORMATS

Appeals are governed by Chapter XXXI (Sections 413 to 435) and revision by Chapter XXXII (Sections 436 to 445) of the BNSS. Limitation is drawn from the Schedule to the Limitation Act, 1963 — thirty days for an appeal from any other sentence to a court other than the High Court, sixty days to the High Court, thirty days from a sentence of death, ninety days for an appeal against acquittal by the State, and ninety days for a criminal revision (Article 131).

E1. PETITION OF APPEAL TO THE COURT OF SESSION AGAINST CONVICTION

Legal basis: Section 415(3) read with Sections 423 and 427, BNSS, 2023 [corresponding to Sections 374(3), 382 and 386, CrPC, 1973]

Stage: After conviction by a Magistrate

Filed by: Convicted person, or any person convicted at the same trial whose sentence is affected

Filed before: The Court of Session of the sessions division (where the trial was held by a Magistrate of the first or second class)

Timeline / Limitation: Thirty days from the date of the sentence or order (Article 115(b)(ii), Limitation Act, 1963). Where the appeal is to the High Court, sixty days (Article 115(b)(i)). Where a sentence of death has been passed by the Court of Session, thirty days (Article 115(a)).

Key points to plead:

- Section 423 BNSS requires every appeal to be in the form of a petition in writing presented by the appellant or his advocate, accompanied by a copy of the judgment or order appealed against.
- An appeal against conviction may lie both on questions of fact and of law, since the Sessions Court is the first appellate court for a magisterial trial.
- Do not forget the companion application for suspension of sentence and bail under Section 430 BNSS (Format B9) — the appeal and the bail application should be filed together.
- Grounds should be categorised: (i) errors in appreciation of evidence; (ii) perversity or non-consideration of material evidence; (iii) errors of law, including misapplication of the burden of proof; and (iv) sentencing grounds.

Documents generally enclosed: Certified copy of the judgment and order on sentence; Copy of the trial court record or the relevant depositions, where available; Application for suspension of sentence (Form B9); Vakalatnama and memo of appearance.

PART I — BLANK FORMAT

IN THE COURT OF THE SESSIONS JUDGE, _____

CRIMINAL APPEAL NO. _____ OF 20____

(Arising out of Judgment and Order on Sentence dated _____ passed by the learned _____, _____, in Case No. _____ of 20____)

IN THE MATTER OF:

_____ S/o _____, aged about _____ years, R/o _____ ... APPELLANT / CONVICT

VERSUS

State (Government of _____) ... RESPONDENT

MEMORANDUM OF APPEAL UNDER SECTION 415(3) OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023

The Appellant above named respectfully submits as follows:

1. That the Appellant was the accused in Case No. _____ of 20____ before the learned _____, _____, and by judgment dated _____ he has been

convicted under Section _____ of the Bharatiya Nyaya Sanhita, 2023 and sentenced to [specify the sentence].

2. That the present appeal is filed within thirty days of the date of the judgment/order on sentence, and is therefore within the period of limitation prescribed by Article 115(b)(ii) of the Schedule to the Limitation Act, 1963. A certified copy of the judgment and order on sentence is annexed as Annexure A-1.

3. That the prosecution case, in brief, was that [set out the prosecution case in a paragraph].

4. That the learned trial Court, by the impugned judgment, has erred in law and on facts, as set out in the grounds below.

GROUNDS

5. That the impugned judgment is contrary to law and to the evidence on record, inasmuch as the learned trial Court has failed to appreciate the material contradictions in the testimony of the prosecution witnesses, in particular the contradiction between P.W. 1 and P.W. 3 as to the time of the incident and the person who inflicted the alleged injury.

6. That the learned trial Court has convicted the Appellant on the sole testimony of P.W. 1, without the corroboration required in law, and has failed to notice that P.W. 1 is an interested witness who had a subsisting monetary dispute with the Appellant.

7. That the learned trial Court has erred in placing reliance upon [the alleged recovery/document] which was not proved in accordance with law — the recovery was not supported by an independent witness, and the memo of recovery (Exhibit P-4) was prepared in the absence of the Appellant and does not bear his signature.

8. That the learned trial Court has failed to consider the defence evidence, particularly the testimony of D.W. 1 and D.W. 2, and the documents Exhibits D-1 to D-4, which establish that the Appellant was not present at the place of occurrence and was, in fact, on duty at _____.

9. That the learned trial Court has misapplied the burden of proof, by requiring the Appellant to prove his innocence, contrary to the fundamental principle that the prosecution must prove its case beyond reasonable doubt.

10. That assuming but not admitting the findings on merit, the sentence imposed is excessive having regard to the age of the Appellant (_____ years), his clean antecedents, the fact that he has already undergone _____ months of custody, and the reformative object of sentencing; the benefit of probation or of a lesser sentence ought to have been granted.

11. That the Appellant was on bail throughout the trial, has never misused the liberty, and has surrendered before the trial Court on _____ in compliance with the order on sentence.

12. That the Appellant has filed, along with this appeal, an application under Section 430 of the BNSS, 2023 for suspension of sentence and release on bail, which may kindly be considered along with the appeal.

PRAYER

In the premises aforesaid, it is most respectfully prayed that this Hon'ble Court may kindly be pleased to:

(a) admit this appeal;

(b) call for the record of Case No. _____ of 20____ from the Court of the learned _____;

(c) set aside the judgment dated _____ and the order on sentence dated _____, and acquit the Appellant of the offences alleged against him; and

(d) in the alternative, reduce the sentence imposed upon the Appellant to the period already undergone, or to such period as this Hon'ble Court may deem fit; and

(e) pass such other and further orders as may be deemed fit and proper in the interest of justice.

(ADVOCATE FOR THE APPELLANT)
(APPELLANT / CONVICT)

Place: _____

Date: _____

GROUNDS OF APPEAL (to be annexed in the form of a separate statement, if required by the rules of the Court)

As set out in paragraphs 5 to 10 above.

PART II — ILLUSTRATION (SPECIMEN DRAFT WITH SAMPLE FACTS)

The specimen uses illustrative parties, dates and figures only. Replace every particular with the facts of your own case.

IN THE COURT OF THE ADDITIONAL SESSIONS JUDGE-02, SAKET COURTS, NEW DELHI

CRIMINAL APPEAL NO. _____ OF 2026

(Arising out of Judgment and Order on Sentence dated 25.09.2026 passed by the learned Metropolitan Magistrate-02, Saket Courts, New Delhi, in Case No. 1120 of 2024)

IN THE MATTER OF:

Deepak Sharma, son of Shri Vijay Sharma, aged about 44 years, resident of 24/7, Zamrudpur, New Delhi — 110048 ... APPELLANT

VERSUS

State (Govt. of NCT of Delhi) ... RESPONDENT

MEMORANDUM OF APPEAL UNDER SECTION 415(3) OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023

The Appellant above named respectfully submits as follows:

1. That by judgment dated 25.09.2026, the learned Metropolitan Magistrate-02 has convicted the Appellant under Section 318(4) of the BNS, 2023 for allegedly cheating one Shri Ashok Bansal of Rs. 4,20,000/-, and has sentenced him to rigorous imprisonment for one year and six months with a fine of Rs. 15,000/-, in default, simple imprisonment for one month.

2. That this appeal is filed on 12.10.2026, that is, within thirty days of the impugned judgment, and is within the period of limitation prescribed by Article 115(b)(ii) of the Schedule to the Limitation Act, 1963.

3. That the prosecution case was that the Appellant induced the complainant to advance a loan of Rs. 4,20,000/- in December 2023 on the promise of returning the same within three months with interest, and that the amount was never returned.

4. That the learned trial Court has erred in law and on the evidence, in the following respects:

(a) That the transaction between the parties was a simple loan advanced by the complainant to the Appellant, evidenced by the promissory note Exhibit D-1 and the ledger statement Exhibit D-2, which the trial Court has failed to consider at all. A mere failure to repay a loan does not amount to cheating, as the essential ingredient of dishonest inducement at the inception is wholly absent;

(b) That the trial Court has ignored the receipts Exhibits D-3 and D-4, which establish that a sum of Rs. 1,72,000/- was returned by the Appellant by two bank transfers dated 14.06.2024 and 09.11.2024, and that the complainant's own statement in cross-examination (at page 14 of the depositions) records the receipt of these amounts;

(c) That the trial Court has failed to appreciate that the complainant and the Appellant were engaged in a joint business venture and that the accounts between them are yet to be settled; the complainant himself filed an application before the trial Court seeking production of the books of accounts (an application dated 02.05.2025) which was allowed, but the books were never produced;

(d) That the testimony of P.W. 1 is full of material improvements over his statement recorded under Section 180 BNSS, as demonstrated by a comparison of paragraph 3 of the FIR with his deposition, and the trial Court has failed to deal with the contradictions proved by the defence; and

(e) That assuming the case of the prosecution to be true, the same discloses only a civil liability, and the dispute is already the subject matter of Civil Suit No. 331 of 2025 pending before the learned Civil Judge, Saket Courts.

5. That the sentence is, in any event, excessive. The Appellant is 44 years of age, is the sole earning member of his family, has no previous conviction, has already undergone one month of the sentence, and has deposited the fine amount of Rs. 15,000/- vide receipt No. 771 dated 07.10.2026. The trial Court has not assigned any special reason for denying the benefit of the Probation of Offenders Act, 1958 or of Section 401 BNSS.

6. That the Appellant has also filed an application under Section 430 BNSS for suspension of sentence and release on bail, which may kindly be taken up along with this appeal.

PRAYER

It is, therefore, most respectfully prayed that this Hon'ble Court may kindly admit this appeal, call for the record, set aside the judgment dated 25.09.2026 and acquit the Appellant, and, in the alternative, reduce the sentence to the period already undergone by the Appellant, and grant such further relief as may be deemed fit.

(Advocate for the Appellant)

(Deepak Sharma) — Appellant

Place: New Delhi Date: 12.10.2026

LIST OF ANNEXURES

A-1: Certified copy of the judgment and order on sentence dated 25.09.2026. A-2: Copy of the promissory note Exhibit D-1 and bank transfer receipts. A-3: Copy of the plaint in Civil Suit No. 331 of 2025. A-4: Receipt of deposit of fine.

Drafting notes / common errors: File the appeal together with the application under Section 430 BNSS, the certified copy of the judgment and the power of attorney/vakalatnama — an appeal without a certified copy of the judgment is returned by the registry. Frame the grounds on the record, with page references to depositions and exhibits; a general plea that 'the judgment is bad in law' is of no assistance to the appellate Court.

E2. PETITION OF APPEAL TO THE HIGH COURT

Legal basis: Section 415(2), BNSS, 2023 [corresponding to Section 374(2), CrPC, 1973]

Stage: After conviction by the Court of Session or by a court that has imposed a sentence of imprisonment for more than seven years

Filed by: Convicted person; where the sentence is death, the appeal lies to the High Court through the confirmation proceedings under Section 407 BNSS

Filed before: The High Court

Timeline / Limitation: Sixty days from the date of the sentence or order (Article 115(b)(i), Limitation Act, 1963); thirty days in the case of a sentence of death passed by the Court of Session (Article 115(a)).

Key points to plead:

- The grounds of appeal to the High Court are usually confined to substantial questions of law and to perversity in the appreciation of evidence, although the appeal is a full appeal on facts and law.
- Where the High Court convicts in an appeal against acquittal and imposes a sentence, the sentence of death requires confirmation under Section 407 BNSS and must be signed by two Judges (Section 410 BNSS).
- In a capital case, the appeal to the High Court and the confirmation proceedings under Section 407 BNSS proceed together.
- Do not forget the application under Section 430 BNSS read with the first proviso (notice to the Public Prosecutor before release in respect of grave offences).

Documents generally enclosed: Certified copy of the judgment and order on sentence; Lower court record requisition application; Grounds of appeal, with the citation of the judgments relied upon; Application for suspension of sentence.

PART I — BLANK FORMAT

IN THE HIGH COURT OF _____ AT _____

CRIMINAL APPEAL NO. _____ OF 20____

(Arising out of Judgment and Order on Sentence dated _____ passed by the learned _____, _____, in Sessions Case No. _____ of 20____)

IN THE MATTER OF:

_____ S/o _____, R/o _____ ... APPELLANT

VERSUS

State (Government of _____) ... RESPONDENT

MEMORANDUM OF APPEAL UNDER SECTION 415(2) OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023

The Appellant above named respectfully submits as follows:

1. That by the impugned judgment dated _____, the learned Sessions Judge, _____, has convicted the Appellant under Sections _____ of the Bharatiya Nyaya Sanhita, 2023 and sentenced him to [specify], whereupon the present appeal is maintainable before this Hon'ble Court under Section 415(2) of the BNSS, 2023.

2. That the appeal is filed within sixty days from the date of the impugned judgment/order, and is therefore within the period prescribed by Article 115(b)(i) of the Schedule to the Limitation Act, 1963.

3. That the case of the prosecution, briefly stated, was: [set out the prosecution case].

4. That the case of the Appellant, as put in his examination under Section 351 BNSS, is: [set out the defence].

GROUNDS

5. That the impugned judgment suffers from a perverse appreciation of evidence, in that the learned trial Court has convicted the Appellant upon the testimony of P.W. 2 and P.W. 4, which is demonstrably untrustworthy, being irreconcilable with the medical evidence (Exhibit P-22) and with the FSL report (Exhibit P-30).

6. That the learned trial Court has failed to consider the material admitted by the prosecution witnesses in cross-examination, in particular the admission of P.W. 4 that the Appellant was not present at the spot at the time of the occurrence.

7. That the learned trial Court has erred in relying upon the [recovery/confessional statement/call record] contrary to the law laid down by the Hon'ble Supreme Court in _____, (reference).

8. That the prosecution has failed to establish the chain of circumstances, and the circumstances proved do not exclude a reasonable hypothesis of innocence of the Appellant; the benefit of doubt ought to have been extended to the Appellant.

9. That the learned trial Court has erred in refusing the benefit of Section 401 BNSS and of the Probation of Offenders Act, 1958, without assigning special reasons as required by Section 402 BNSS.

10. That the sentence is disproportionate to the nature of the offence, and the mitigating circumstances — the age of the Appellant (_____ years), his responsibility for aged parents and minor children, the period of custody already undergone (_____ years and _____ months), and his conduct during trial — have not been taken into account.

11. That the Appellant has filed along with this appeal an application under Section 430 BNSS for suspension of sentence and release on bail; the Public Prosecutor has been served separately as required by the first proviso to Section 430(1) BNSS.

PRAYER

It is, therefore, most respectfully prayed that this Hon'ble Court may kindly be pleased to:

(a) admit this appeal and call for the records of Sessions Case No. _____ of 20____;

(b) suspend the execution of the sentence and release the Appellant on bail pending the hearing and disposal of the appeal, on such terms as this Hon'ble Court may deem fit;

(c) allow the appeal and set aside the conviction and sentence, and acquit the Appellant of all the charges; and

(d) in the alternative, reduce the sentence to the period already undergone or to such lesser sentence as this Hon'ble Court may deem appropriate; and

(e) pass such other and further orders as may be deemed fit and proper in the interest of justice.

(ADVOCATE FOR THE APPELLANT)

(APPELLANT)

Place: _____

Date: _____

LIST OF AUTHORITIES RELIED UPON

1. _____ , (20____) ____ SCC _____. 2. _____ , (20____) ____ SCC _____.

PART II — ILLUSTRATION (SPECIMEN DRAFT WITH SAMPLE FACTS)

The specimen uses illustrative parties, dates and figures only. Replace every particular with the facts of your own case.

IN THE HIGH COURT OF DELHI AT NEW DELHI

CRIMINAL APPEAL NO. _____ OF 2026

(Arising out of Judgment and Order on Sentence dated 25.08.2026 passed by the learned Additional Sessions Judge-03, Karkardooma Courts, Delhi, in Sessions Case No. 442 of 2024)

IN THE MATTER OF:

Mohd. Faizan, son of Shri Mohd. Salim, resident of H. No. 88, Jafrabad, Delhi — 110053 ... APPELLANT (IN CUSTODY SINCE 25.08.2026)

VERSUS

State (Govt. of NCT of Delhi) ... RESPONDENT

MEMORANDUM OF APPEAL UNDER SECTION 415(2) OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023

The Appellant above named respectfully submits as follows:

1. That by judgment dated 25.08.2026, the learned Additional Sessions Judge-03 has convicted the Appellant under Sections 308(2) and 61(2) of the BNS, 2023 for the offence of extortion, and has sentenced him to rigorous imprisonment for five years with a fine of Rs. 25,000/-, in default, simple imprisonment for three months.

2. That this appeal is filed on 20.10.2026, within sixty days of the impugned judgment, and is within the period prescribed by Article 115(b)(i) of the Schedule to the Limitation Act, 1963.

3. That the prosecution alleged that on 14.05.2024 the Appellant, along with his brother, threatened one Shri Ramesh Chand, a scrap dealer, at his shop and extorted Rs. 1,50,000/- from him.

4. That the Appellant denied the charge and pleaded that he was employed as a driver with _____ and was on duty at Jaipur on the date of the incident, as deposed by D.W. 1 and D.W. 2, whose evidence the trial Court has brushed aside on the sole ground that they are related to the Appellant.

5. That the impugned judgment is unsustainable on the following grounds:

(a) That the alleged occurrence is said to have taken place at 8.30 p.m. on 14.05.2024, whereas the FIR was registered on 19.06.2024, that is, after thirty-six days, and the complainant's explanation for the delay — that he was "busy with work" — is no explanation at all in law;

(b) That the prosecution's own witness, P.W. 2 (Shri Naresh Gupta), an independent witness present at the shop, has stated in cross-examination that no money was handed over by the complainant to the Appellant and that the Appellant merely came to the shop to ask for his wages of Rs. 9,000/- due from the complainant;

(c) That the alleged recovery of Rs. 1,40,000/- from the Appellant, said to have been effected on 20.06.2024, is not supported by any independent witness, and the seizure memo (Exhibit P-7) suffers from the fatal defect that the mobile phone allegedly recovered has not been produced in Court and has not been connected to any transaction;

(d) That the call detail record relied upon by the prosecution (Exhibit P-11) was admitted in evidence without the certificate required by Section 63(4) of the Bharatiya Sakshya Adhiniyam, 2023, and is therefore inadmissible;

(e) That the trial Court has ignored the settled position that in an offence of extortion the prosecution must prove that the consent of the victim was obtained by putting him in fear of injury, which has neither been pleaded with particularity nor established by evidence; and

(f) That the conviction of the Appellant is founded on the uncorroborated testimony of a complainant who admitted in cross-examination that the Appellant had earlier filed a complaint against him for non-payment of wages.

6. That the sentence of five years' rigorous imprisonment is excessive; the Appellant is a first-time offender, the sole earning member of a family of six, and has already undergone fourteen months of custody.

PRAYER

It is, therefore, most respectfully prayed that this Hon'ble Court may kindly suspend the sentence and release the Appellant on bail pending the hearing of this appeal, allow the appeal, set aside the judgment dated 25.08.2026 and acquit the Appellant, and, in the alternative, reduce the sentence to the period already undergone.

(Advocate for the Appellant)

(Mohd. Faizan) — Appellant

Place: New Delhi Date: 20.10.2026

LIST OF ANNEXURES

A-1: Certified copy of the judgment and order on sentence. A-2: Copy of the statement of P.W. 2 (relevant extract). A-3: Application under Section 430 BNSS for suspension of sentence.

Drafting notes / common errors: In the High Court, precision is everything: cite the exhibit number, the page of the deposition and the paragraph of the judgment under challenge. Where a document has been proved without the certificate under Section 63(4) BSA, or where the certificate is defective, take a specific ground of inadmissibility — this has become the most productive ground in appeals involving electronic evidence.

E3. APPLICATION FOR CONDONATION OF DELAY IN FILING AN APPEAL OR REVISION

Legal basis: Section 5 of the Limitation Act, 1963 read with Sections 415, 419 and 438, BNSS, 2023

Stage: Along with a belated appeal, revision or application

Filed by: Appellant/petitioner

Filed before: The Court before which the belated appeal or revision is filed

Timeline / Limitation: To be filed simultaneously with the appeal or revision — the delay is computed from the date of expiry of the prescribed period of limitation.

Key points to plead:

- Explain the delay day by day and with documents; a vague assertion of 'illness' or 'lack of knowledge' is insufficient.
- Cause must be shown to be beyond the control of the applicant, and the delay must not be on account of the applicant's negligence or inaction.
- The expression 'sufficient cause' is to be construed liberally, and the merits of the case are ordinarily not to be gone into at this stage, though a demonstrably meritless appeal may be dismissed.
- A separate affidavit of the applicant, or of the advocate/legal representative, explaining the delay is essential, and where the delay is attributable to the advocate, an affidavit of the advocate is advisable.

Documents generally enclosed: Affidavit explaining the delay; Documents evidencing the cause of the delay — medical records, death certificate, official correspondence, copies of the application for the certified copy with the date of delivery; The appeal/petition in question.

PART I — BLANK FORMAT

IN THE COURT OF _____, AT _____

CRIMINAL MISC. APPLICATION NO. _____ OF 20____

(IN CRIMINAL APPEAL/REVISION NO. _____ OF 20____)

IN THE MATTER OF:

_____ S/o _____, R/o _____ ... APPLICANT / APPELLANT

VERSUS

State (Government of _____) ... RESPONDENT

APPLICATION FOR CONDONATION OF DELAY UNDER SECTION 5 OF THE LIMITATION ACT, 1963

MOST RESPECTFULLY SHOWETH:

1. That the Applicant has filed the accompanying appeal/revision against the judgment/order dated _____, the certified copy whereof was applied for on _____ and was made available/delivered to the Applicant on _____.

2. That the period of limitation prescribed for the said appeal/revision expired on _____, and the accompanying appeal/revision has been presented on _____, that is, after a delay of _____ days.

3. That the delay in filing the appeal/revision has been caused by the following reasons, which are beyond the control of the Applicant: [state precisely — for example: (i) the Applicant was hospitalised from _____ to _____ for the treatment of _____, as per the discharge summary of _____ Hospital, annexed as Annexure A-2; (ii) the Applicant's father expired on _____ and the Applicant was occupied with the last rites and the consequent family responsibilities, as per the death certificate annexed as Annexure A-3; (iii) the Applicant was on

official duty abroad from _____ to _____, as per the passport stamp/employer's certificate annexed as Annexure A-4; (iv) the certified copy was applied for within time on _____ but was made available only on _____, as per the copy stamp of the Copying Section of the Court].

4. That the delay is neither wilful nor deliberate, and has not been caused by the negligence of the Applicant, who has been diligent in pursuing the remedy available in law.

5. That the Applicant has a strong case on merits, inasmuch as [briefly set out two or three of the principal grounds], and the refusal to condone the delay would result in the failure of justice and the denial of an effective remedy.

6. That the law relating to condonation of delay under Section 5 of the Limitation Act, 1963 is liberal, and the expression "sufficient cause" is to receive a construction which advances the cause of substantial justice, particularly in criminal matters {Collector, Land Acquisition, Anantnag v. Mst. Katiji, (1987) 2 SCC 107}.

PRAYER

It is, therefore, most respectfully prayed that this Hon'ble Court may kindly condone the delay of _____ days in filing the accompanying appeal/revision and hear the said appeal/revision on merits.

(ADVOCATE FOR THE APPLICANT)
(APPLICANT / APPELLANT)

Place: _____

Date: _____

AFFIDAVIT IN SUPPORT

I, _____, the Applicant above named, do hereby solemnly affirm and state as follows:

1. That the facts stated in paragraphs 1 to 5 of the accompanying application are true to my knowledge.

2. That I was unable to file the accompanying appeal/revision within the prescribed period for the reasons stated in the application, which were beyond my control.

3. That the delay in filing the appeal/revision was neither wilful nor deliberate, and I have not abandoned my right to challenge the impugned judgment/order.

4. That nothing material has been suppressed or concealed.

Verified at _____ on this _____ day of _____, 20____.

DEPONENT

PART II — ILLUSTRATION (SPECIMEN DRAFT WITH SAMPLE FACTS)

The specimen uses illustrative parties, dates and figures only. Replace every particular with the facts of your own case.

IN THE COURT OF THE ADDITIONAL SESSIONS JUDGE-01, DWARKA COURTS, NEW DELHI

CRIMINAL MISC. APPLICATION NO. _____ OF 2026

(IN CRIMINAL APPEAL NO. _____ OF 2026)

IN THE MATTER OF:

Satbir Singh, son of Shri Kartar Singh, resident of 219, Najafgarh, New Delhi ... APPLICANT / APPELLANT

VERSUS

State (Govt. of NCT of Delhi) ... RESPONDENT

APPLICATION FOR CONDONATION OF DELAY UNDER SECTION 5 OF THE LIMITATION ACT, 1963

MOST RESPECTFULLY SHOWETH:

1. That the Applicant has filed the accompanying appeal against the judgment and order on sentence dated 18.06.2026 passed by the learned Metropolitan Magistrate-05, Dwarka Courts, convicting him under Section 115(2) of the BNS, 2023 and sentencing him to imprisonment till the rising of the Court and a fine of Rs. 5,000/-.

2. That the certified copy of the judgment was applied for on 20.06.2026 and was delivered on 26.06.2026. The period of limitation of thirty days expired on 18.07.2026, whereas the appeal has been filed on 04.09.2026, that is, after a delay of forty-eight days.

3. That the delay has been caused by the following reasons, which were beyond the control of the Applicant:

(a) That the Applicant met with a road accident on 21.07.2026 and was admitted to Sanjay Gandhi Memorial Hospital, Mangolpuri, where he remained admitted till 09.08.2026 and underwent surgery for a fracture of the right femur, as per the discharge summary annexed as Annexure A-2;

(b) That the Applicant was advised bed rest for a further period of three weeks, as per the medical certificate dated 27.08.2026 annexed as Annexure A-3, and was in no position to instruct counsel or to travel to the Court; and

(c) That the Applicant engaged the present counsel only on 01.09.2026, when he was able to move with the help of a walker, and the appeal was prepared and filed immediately thereafter.

4. That the delay of forty-eight days is neither wilful nor deliberate; the Applicant has been diligent and has not abandoned his right of appeal.

5. That the Applicant has a good case on merits, as the alleged injury caused to the complainant was simple in nature, the complaint was lodged after a delay of eleven days, and the parties have since settled the dispute out of court, as recorded in the compromise deed dated 30.08.2026 annexed as Annexure A-4.

PRAYER

It is, therefore, most respectfully prayed that this Hon'ble Court may kindly condone the delay of forty-eight days in filing the accompanying appeal and hear the appeal on merits.

(Advocate for the Applicant)

(Satbir Singh) — Applicant

Place: New Delhi Date: 04.09.2026

AFFIDAVIT IN SUPPORT

I, Satbir Singh, do hereby solemnly affirm that the facts stated in paragraphs 1 to 5 of the accompanying application are true to my knowledge; that I met with an accident on 21.07.2026 and was hospitalised till

09.08.2026; that the delay in filing the appeal was neither wilful nor deliberate; and that nothing material has been concealed.

DEPONENT

Drafting notes / common errors: The application must contain a day-wise explanation and the annexures must support each limb of it. Where the certified copy was applied for within time and delivered late, annex the copy stamp/application — that period is liable to be excluded under Section 12 of the Limitation Act, 1963. Remember that the delay in an appeal against acquittal by the State is generally viewed more liberally than one by a private party.

E4. CRIMINAL REVISION PETITION AGAINST AN ORDER OR JUDGMENT

Legal basis: Sections 438, 440 and 442, BNSS, 2023 [corresponding to Sections 397, 399 and 401, CrPC, 1973]

Stage: Against any finding, sentence or order of an inferior Criminal Court, where no appeal lies or where an appeal has been filed but not decided

Filed by: Any person aggrieved, including the accused, the complainant or the victim (with the limitations in Section 442(5) BNSS on a second revision)

Filed before: The Sessions Judge under Section 438/440; the High Court under Section 442

Timeline / Limitation: Ninety days from the date of the order or sentence sought to be revised (Article 131, Limitation Act, 1963). The Court retains the suo motu power to call for the record, to which limitation does not apply.

Key points to plead:

- The revisional power is discretionary and is exercised to correct errors of law, procedural impropriety, or a failure of justice — not to re-appreciate evidence.
- No order may be made to the prejudice of the accused unless he has had an opportunity of being heard (Section 442(2)); and the High Court cannot convert a finding of acquittal into one of conviction (Section 442(3)).
- A second revision at the instance of the same party is barred by Section 442(5) BNSS after the Sessions Judge has decided the revision — with the limited exception of the High Court's power under Section 442(1) acting suo motu or on a different party's application.
- Where the party has already filed a revision before the Sessions Judge, the High Court should be cautious; and where an appeal lies and has not been filed, a revision is ordinarily not entertained (Section 442(4)).

Documents generally enclosed: Certified copy of the impugned order/judgment; Copy of the FIR/complaint and the relevant orders; Affidavit in support; Documents relied upon to establish the error of law or the failure of justice.

PART I — BLANK FORMAT

IN THE COURT OF THE SESSIONS JUDGE, _____ / IN THE HIGH COURT OF _____

CRIMINAL REVISION PETITION NO. _____ OF 20____

IN THE MATTER OF:

_____ S/o _____, R/o _____ ... PETITIONER / REVISIONIST

VERSUS

(1) State (Government of _____)

(2) _____ S/o _____, R/o _____ ... RESPONDENTS

PETITION FOR REVISION UNDER SECTIONS 438 AND 442 OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023

MOST RESPECTFULLY SHOWETH:

1. That the Petitioner is [the accused/complainant/victim] in [Case No. _____ of 20____] pending before the learned _____, _____, and is aggrieved by the order dated _____ passed by the said Court, whereby [state the operative effect of the impugned order].

2. That the present revision is filed within ninety days from the date of the impugned order, as prescribed by Article 131 of the Schedule to the Limitation Act, 1963 [or: the present revision is filed beyond the said period, and a separate application under Section 5 of the Limitation Act, 1963 for condonation of delay is being filed along with this petition].

3. That the facts necessary for the disposal of this revision are: [set out the facts in a compact paragraph].

4. That the impugned order is illegal, improper and irregular, and it has occasioned a failure of justice, in the following manner:

(a) That the learned trial Court has acted without jurisdiction / in excess of its jurisdiction, in that [specify — for example, the Court has taken cognizance without the sanction required by Section 218 BNSS, or has entertained the complaint which is barred by the limitation under Section 514 BNSS];

(b) That the learned trial Court has failed to exercise a jurisdiction vested in it, in that [for example, it has refused to comply with the mandatory provisions of Section 230 BNSS, or has declined to hear the victim under Section 397 BNSS];

(c) That the impugned order is vitiated by a material irregularity of procedure, namely [specify — for example, the charge was framed without giving the prosecution and the accused an opportunity of being heard, as required by Section 263 BNSS];

(d) That the impugned order is based on no evidence / on a misconstruction of the statutory provision, namely [specify]; and

(e) That the impugned order is contrary to the settled law laid down in [cite the authority].

5. That the Petitioner has no other adequate remedy: no appeal lies against the impugned order [or: the Petitioner has not filed any appeal, and the failure to do so was on account of _____].

6. That the revisional jurisdiction of this Hon'ble Court is discretionary and is to be exercised where there has been a failure of justice; the present case squarely falls within the ambit of Sections 438 and 442 of the BNSS, 2023.

7. That the Petitioner [is not seeking any enhancement of sentence/is not seeking to convert an acquittal into a conviction] and confines the relief to the setting aside of the impugned order, in compliance with Section 442(3) of the BNSS, 2023.

8. That the Petitioner has not filed any other revision or application in respect of the same subject matter before this Hon'ble Court or before any other Court, and the present petition is being filed bona fide.

PRAYER

In the premises aforesaid, it is most respectfully prayed that this Hon'ble Court may kindly be pleased to:

(a) call for the record of [Case No. _____ of 20____] from the Court of the learned _____;

(b) stay the operation of the impugned order dated _____ and of further proceedings in the case; and

(c) set aside the impugned order dated _____ and pass such orders/directions as this Hon'ble Court may deem fit; and

(d) pass such other and further orders as may be deemed fit and proper in the interest of justice.

(ADVOCATE FOR THE PETITIONER)
(PETITIONER / REVISIONIST)

Place: _____

Date: _____

AFFIDAVIT IN SUPPORT

I, _____, the Petitioner above named, do hereby solemnly affirm and state that the contents of paragraphs 1 to 8 above are true to my knowledge and belief, based on the record; that the impugned order has occasioned a failure of justice and has caused irreparable injury to me; and that nothing material has been concealed.

Verified at _____ on this _____ day of _____, 20____.

DEPONENT

PART II — ILLUSTRATION (SPECIMEN DRAFT WITH SAMPLE FACTS)

The specimen uses illustrative parties, dates and figures only. Replace every particular with the facts of your own case.

IN THE COURT OF THE SESSIONS JUDGE, SOUTH DISTRICT, SAKET COURTS, NEW DELHI

CRIMINAL REVISION PETITION NO. _____ OF 2026

IN THE MATTER OF:

Smt. Rita Verma, wife of Shri Anil Verma, resident of 55, Sangam Vihar, New Delhi ... PETITIONER / VICTIM

VERSUS

(1) State (Govt. of NCT of Delhi); (2) Anil Verma, son of Shri Ram Kishan Verma, resident of 55, Sangam Vihar, New Delhi ... RESPONDENTS

PETITION FOR REVISION UNDER SECTIONS 438 AND 442 OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023

MOST RESPECTFULLY SHOWETH:

1. That the Petitioner is the complainant/victim in FIR No. 0221 of 2026 registered at Police Station Sangam Vihar under Sections 85 and 115(2) of the BNS, 2023 and is aggrieved by the order dated 12.08.2026 passed by the learned Metropolitan Magistrate-09, Saket Courts, whereby the learned Magistrate was pleased to discharge the Respondent No. 2 under Section 262 of the BNSS, 2023.

2. That this revision is filed within ninety days of the impugned order, as prescribed by Article 131 of the Schedule to the Limitation Act, 1963.

3. That the Petitioner was married to the Respondent No. 2 on 04.12.2019 and was subjected to cruelty by him and his family members on account of a demand for dowry. The Petitioner lodged the FIR on 18.02.2026 after she was turned out of the matrimonial home on 09.02.2026.

4. That by the impugned order, the learned Magistrate has discharged the Respondent No. 2 on the ground that "the allegations are vague and the demand of dowry is not specific" — a finding which is contrary to the record, inasmuch as:

(a) That the Petitioner's statement under Section 183 BNSS, recorded on 24.02.2026, specifically mentions the demand of Rs. 5,00,000/- and a motorcycle made by the Respondent No. 2 in November 2025, and the harassment occasioned thereby;

(b) That the statement of Smt. Kamlesh Devi, the Petitioner's mother, recorded under Section 180 BNSS, also refers to specific instances of cruelty on 14.01.2026 and 02.02.2026;

(c) That the Petitioner's medical record from Safdarjung Hospital (Exhibit P-6) records that she was examined on 10.02.2026 with "multiple bruises on the left forearm and back", which is consistent

with her allegations;

(d) That the learned Magistrate has failed to notice that the offence under Section 85 of the BNS, 2023 is complete upon the conduct of the husband even in the absence of a specific demand being repeated on every occasion, and the test is whether the conduct was of such a nature as to drive the woman to commit suicide or cause grave injury or danger to life, limb or health; and

(e) That the discharge of the Respondent No. 2, while the case against the other accused persons is pending trial, has caused a serious failure of justice to the Petitioner, who has been deprived of the opportunity of establishing the offence.

5. That no appeal lies against an order of discharge passed under Section 262 BNSS, and the Petitioner has therefore no other adequate remedy than this revision. The Petitioner has not filed any other revision or application in respect of the impugned order.

6. That the Petitioner does not seek the conversion of an acquittal into a conviction and confines the relief to the setting aside of the impugned order and the remittal of the case for a fresh consideration, in keeping with Section 442(3) of the BNSS, 2023.

PRAYER

It is, therefore, most respectfully prayed that this Hon'ble Court may kindly call for the record of the case, set aside the order dated 12.08.2026 discharging the Respondent No. 2, and direct the learned Magistrate to proceed against the Respondent No. 2 in accordance with law, and pass such other orders as may be deemed fit.

(Advocate for the Petitioner)

(Rita Verma) — Petitioner

Place: New Delhi Date: 22.09.2026

AFFIDAVIT IN SUPPORT

I, Rita Verma, do hereby solemnly affirm that the contents of paragraphs 1 to 6 above are true to my knowledge and belief, based on the record, and that nothing material has been concealed.

DEPONENT

Drafting notes / common errors: A revision is not an appeal: do not invite the Court to re-weigh the evidence — plead jurisdictional error, material irregularity or a failure of justice. Where the order is appealable, a revision is normally not entertained (Section 442(4) BNSS), so state clearly why the remedy by way of appeal is not available or has not been exhausted. A victim is entitled to maintain a revision, and the victim's right of participation under Section 397 BNSS supports the locus.

E5. PETITION FOR QUASHING OF AN FIR, COMPLAINT OR CRIMINAL PROCEEDINGS

Legal basis: Section 528, BNSS, 2023 (inherent powers of the High Court) [corresponding to Section 482, CrPC, 1973]

Stage: At any stage, before or after the framing of the charge

Filed by: Accused, or any person aggrieved by the proceedings

Filed before: The High Court

Timeline / Limitation: No limitation; but the petition should be filed promptly, and delay may be taken as a ground of acquiescence where the trial has advanced.

Key points to plead:

- Three recognized categories: (i) the allegations, taken at their face value, do not constitute the offence alleged; (ii) the allegations constitute an offence, but there is an express legal bar to the institution or continuance of the proceedings (want of sanction, limitation, or a statutory bar); and (iii) the proceedings are manifestly attended with mala fides or are instituted with an ulterior motive for wreaking vengeance {State of Haryana v. Bhajan Lal, 1992 Supp (1) SCC 335}.
- The Court does not conduct a mini-trial at this stage, and disputed questions of fact are ordinarily not to be resolved; but the Court may consider undisputed documents of unimpeachable character produced by the accused.
- Where the dispute is essentially civil and the criminal proceeding is an instrument of harassment, quashing is warranted; the distinction between a civil breach and a criminal offence must be shown from the documents.
- Where the FIR discloses an offence but there is a settlement, the Court may quash on the basis of the compromise in appropriate cases, particularly where the offence is private in nature and the dispute is between parties of the same family.

Documents generally enclosed: Copy of the FIR/complaint and the charge sheet, if filed; Documents of unimpeachable character showing that no offence is made out; Affidavit in support; Copies of civil proceedings between the parties, where relevant.

PART I — BLANK FORMAT

IN THE HIGH COURT OF _____ AT _____

CRIMINAL MISC. CASE NO. _____ OF 20____

(Arising out of FIR No. _____ of 20____, Police Station _____, under Sections _____ BNS, 2023 / Complaint Case No. _____ of 20____ pending before the learned _____)

IN THE MATTER OF:

(1) _____ S/o _____, R/o _____

(2) _____ S/o _____, R/o _____ ... PETITIONERS

VERSUS

(1) State (Government of _____)

(2) _____ S/o _____, R/o _____ ... RESPONDENTS

PETITION UNDER SECTION 528 OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023 FOR QUASHING THE FIR / CRIMINAL PROCEEDINGS

MOST RESPECTFULLY SHOWETH:

1. That the Petitioners are arrayed as accused in FIR No. _____ of 20____ registered at Police Station _____ for offences punishable under Sections _____ of the Bharatiya Nyaya

Sanhita, 2023 [or: that the Petitioners are the accused in Complaint Case No. _____ of 20____ pending before the learned _____].

2. That the Petitioners seek the quashing of the said FIR and the consequential proceedings, in exercise of the inherent powers of this Hon'ble Court under Section 528 of the BNSS, 2023, on the grounds set out below.

3. That the brief facts, taken from the FIR/complaint itself and the documents annexed, are: [set out the facts and the allegations of the complainant, and then the material which the petitioners rely upon].

4. That even if the allegations in the FIR and the material collected during the investigation are taken at their face value and accepted in their entirety, no offence is made out against the Petitioners, inasmuch as:

(a) That none of the ingredients of Section _____ of the BNS, 2023 are made out; the essential ingredient of _____ is wholly absent;

(b) That the transaction of which the complainant makes grievance is admitted by the complainant's own documents [specify the document at page _____ of the petition] to be a transaction of _____, which is civil in nature and is already the subject matter of [Civil Suit/Arbitration] No. _____ of 20____;

(c) That the FIR is the product of an ulterior motive, namely [specify], as is evident from the sequence of events set out in paragraph _____ above;

(d) That the dispute is entirely between the parties in their private capacity and no element of public interest is involved.

5. That the prosecution of the Petitioners is therefore an abuse of the process of the Court and is attended by mala fides, and the present case falls within the categories enumerated by the Hon'ble Supreme Court in State of Haryana v. Bhajan Lal, 1992 Supp (1) SCC 335 and subsequently affirmed in Neeharika Infrastructure Pvt. Ltd. v. State of Maharashtra, (2021) SCC OnLine SC 315, namely that the allegations, taken at their face value, do not constitute an offence and that the proceedings are manifestly attended with mala fides.

6. That this Hon'ble Court, while exercising its power under Section 528 BNSS, 2023, does not conduct a roving enquiry into the disputed questions of fact; the petition is founded on the admitted documents and the record of the investigation, and not on any disputed question of fact.

7. That the continuation of the proceedings will cause irreparable injury to the reputation, liberty and livelihood of the Petitioners, who are _____, whereas no prejudice will be caused to the prosecution by the quashing of the proceedings, as the police investigation has not disclosed any material of substance.

8. That no other petition with respect to the same subject matter and the same FIR has been filed by the Petitioners before this Hon'ble Court or before any other Court; the Petitioners have also not invoked any other remedy in respect of the FIR.

9. That [where the parties have settled the matter] the parties have, during the pendency of the proceedings, amicably settled all disputes between them by a written compromise dated _____ (Annexure _____), and the continuance of the criminal proceedings would be contrary to the interest of justice and would destroy the peace brought about by the settlement.

PRAYER

In the premises aforesaid, it is most respectfully prayed that this Hon'ble Court may kindly be pleased to:

(a) issue notice to the Respondents and call for the records of FIR No. _____ of 20____ / the complaint, and the status report of the investigation;

(b) quash and set aside FIR No. _____ of 20____ registered at Police Station _____ and all consequential proceedings arising therefrom, in exercise of the powers under Section 528 of the BNSS, 2023; and

(c) pass such other and further orders as may be deemed fit and proper in the interest of justice.

(ADVOCATE FOR THE PETITIONERS)

(PETITIONERS)

Place: _____

Date: _____

AFFIDAVIT IN SUPPORT

I, _____, the Petitioner No. 1 above named, do hereby solemnly affirm and state that the contents of paragraphs 1 to 9 above are true to my knowledge and belief, based on the record; that the documents annexed to the accompanying petition are true copies of their originals; and that nothing material has been concealed.

Verified at _____ on this _____ day of _____, 20____.

DEPONENT

PART II — ILLUSTRATION (SPECIMEN DRAFT WITH SAMPLE FACTS)

The specimen uses illustrative parties, dates and figures only. Replace every particular with the facts of your own case.

IN THE HIGH COURT OF JUDICATURE AT ALLAHABAD

CRIMINAL MISC. WRIT PETITION / APPLICATION NO. _____ OF 2026

(Arising out of FIR No. 0441 of 2026, Police Station Cantt., Varanasi, under Sections 318(4) and 61(2) BNS, 2023)

IN THE MATTER OF:

(1) Mahesh Chandra Agarwal, son of late Shri Ram Chandra Agarwal, resident of D-19/77, Bhelupur, Varanasi

(2) Smt. Sunita Agarwal, wife of Shri Mahesh Chandra Agarwal, resident of the same address ... PETITIONERS

VERSUS

(1) State of Uttar Pradesh through the Principal Secretary, Home, Lucknow; (2) Shri Deepak Sahu, son of Shri Ramesh Sahu, resident of K-22, Sigra, Varanasi ... RESPONDENTS

PETITION UNDER SECTION 528 OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023 FOR QUASHING OF THE FIR AND CONSEQUENTIAL PROCEEDINGS

MOST RESPECTFULLY SHOWETH:

1. That the Petitioners are arrayed as accused in FIR No. 0441 of 2026 registered at Police Station Cantt., Varanasi, at the instance of the Respondent No. 2, for offences under Sections 318(4) and 61(2) of the BNS, 2023.

2. That the FIR alleges that the Petitioners, who run a building materials business, induced the Respondent No. 2 to pay Rs. 22,00,000/- between January and April 2026 for the supply of cement and steel, and thereafter failed to supply the material or to refund the money. The Petitioners seek the quashing of the FIR.

3. That the Respondent No. 2 was, at the material time, himself the General Manager of the Petitioners' firm and the entire transaction was conducted under the supervision of the Petitioners, as is established by the following documents:

(a) The Registered Partnership Deed dated 12.04.2019 (Annexure P-3), which shows that the Respondent No. 2 was the General Manager of M/s. Agarwal Building Materials with a 12% share of profits and express authority to negotiate and conclude contracts;

(b) The Ledger Account of the Respondent No. 2 for the financial year 2025-26 (Annexure P-4), duly certified by the firm's Chartered Accountant, which shows that a total sum of Rs. 22,00,000/- received from the Respondent No. 2 was treated as his capital contribution to the firm and not as advance for the supply of goods, and the amounts due to him are the subject matter of the statement of accounts;

(c) The Minutes of the Partners' Meeting dated 02.05.2026 (Annexure P-5), in which the Respondent No. 2 himself proposed the reconstitution of the firm and the settlement of accounts; and

(d) The Notice dated 03.06.2026 issued by the Petitioners calling upon the Respondent No. 2 to render accounts (Annexure P-6), in reply to which the Respondent No. 2 filed the present FIR on 12.06.2026.

4. That the highest case that emerges from the FIR and the documents is of a dispute between partners regarding the settlement of accounts, which is squarely covered by the arbitration clause in the Partnership Deed, and which is already the subject matter of Arbitration Case No. 881 of 2026 pending before the learned Arbitrator. A dispute of accounts between partners cannot, by any stretch, be converted into an offence of cheating; there is no dishonest inducement at the inception and no delivery of property by the Respondent No. 2 to the Petitioners.

5. That the FIR is manifestly an instrument of coercion, lodged as a counterblast to the lawful notice dated 03.06.2026 calling upon the Respondent No. 2 to render accounts, and is thus attended with mala fides within the meaning of the third category of Bhajan Lal (supra).

6. That the Petitioners, who are senior citizens aged 71 and 68 years respectively, are exposed to arrest despite the dispute being civil in nature, and the continuation of the criminal proceedings would cause them irreparable harm to their reputation in a city where they have run their business for over four decades.

PRAYER

It is, therefore, most respectfully prayed that this Hon'ble Court may kindly quash FIR No. 0441 of 2026 registered at Police Station Cantt., Varanasi and all consequential proceedings arising therefrom, and pass such other orders as may be deemed fit in the interest of justice.

(Advocate for the Petitioners)

(Mahesh Chandra Agarwal) — Petitioner No. 1

(Smt. Sunita Agarwal) — Petitioner No. 2

Place: Allahabad Date: 08.10.2026

AFFIDAVIT IN SUPPORT

I, Mahesh Chandra Agarwal, do hereby solemnly affirm that the contents of paragraphs 1 to 6 above are true to my knowledge and belief, based on the record; that the documents annexed are true copies of their originals; and that nothing material has been concealed.

DEPONENT

Drafting notes / common errors: Quashing is decided on the allegations in the FIR plus documents of unimpeachable quality produced by the accused; do not annex disputable material or invite the Court to record findings of fact. Where the FIR discloses an offence but there is a compromise between the parties, place the compromise on record and rely on the line of cases beginning with Gian Singh v. State of Punjab, (2012) 10 SCC 303, while acknowledging that heinous offences cannot be quashed on the basis of a settlement.

E6. APPLICATION FOR SPECIAL LEAVE TO APPEAL AGAINST AN ORDER OF ACQUITTAL

Legal basis: Section 419(4) and (5), BNSS, 2023 [corresponding to Section 378(4) and (5), CrPC, 1973]

Stage: After an order of acquittal in a case instituted upon complaint

Filed by: Complainant (where the complainant is a public servant, or a private complainant in a case instituted on complaint)

Filed before: The High Court

Timeline / Limitation: The application for special leave must be made within sixty days from the date of the order of acquittal in every case, except where the complainant is a public servant, in which case the period is six months (Section 419(5) BNSS). If special leave is refused, no appeal lies under Section 419(1) or (2).

Key points to plead:

- An appeal against an order of acquittal by the State lies under Section 419(1)(b) and (2) BNSS to the High Court with the leave of the Court (Section 419(3)); the District Magistrate may direct an appeal to the Court of Session from an order of acquittal passed by a Magistrate in respect of a cognizable and non-bailable offence (Section 419(1)(a)).
- A private complainant in a complaint case must first obtain special leave under Section 419(4) and may then present the appeal — the leave stage is a threshold requirement.
- The appellate Court's power in an appeal against acquittal is prescribed by Section 427(a) BNSS; the presumption of innocence is strengthened by the acquittal, and interference is warranted only where the acquittal is perverse or based on a misreading of the record.
- Limitation for a State appeal against acquittal is ninety days under Article 114(a) of the Limitation Act, 1963.

Documents generally enclosed: Certified copy of the judgment of acquittal; Copy of the complaint and the evidence led at trial (the relevant depositions); Application for condonation of delay, where the application is beyond time; Affidavit in support.

PART I — BLANK FORMAT

IN THE HIGH COURT OF _____ AT _____

CRIMINAL MISC. APPLICATION NO. _____ OF 20____

(Arising out of Judgment dated _____ passed in Complaint Case No. _____ of 20____ by the learned _____, _____)

IN THE MATTER OF:

_____ S/o _____, R/o _____ ... APPLICANT / COMPLAINANT

VERSUS

(1) State (Government of _____); (2) _____ S/o _____, R/o _____ ... RESPONDENTS

APPLICATION FOR SPECIAL LEAVE TO APPEAL AGAINST AN ORDER OF ACQUITTAL UNDER SECTION 419(4) OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023

MOST RESPECTFULLY SHOWETH:

1. That the Applicant had filed Complaint Case No. _____ of 20____ against the Respondent No. 2 alleging the commission of offences punishable under Sections _____ of the Bharatiya Nyaya Sanhita, 2023, in which the learned _____ was pleased to acquit the Respondent No. 2 by judgment dated _____.

2. That the present application is being made within sixty days from the date of the order of acquittal, as required by Section 419(5) of the BNSS, 2023 [or: the present application is being made after the expiry

of the said period of sixty days; a separate application for condonation of delay under Section 5 of the Limitation Act, 1963, with an affidavit, is being filed along with this application].

3. That the facts of the case, in brief, are: [set out the case of the complainant and the substance of the evidence led].

4. That the judgment of acquittal is perverse and has resulted in a gross miscarriage of justice, for the following reasons:

(a) That the learned trial Court has acquitted the Respondent No. 2 principally on the ground that P.W. 2 and P.W. 3 turned hostile, ignoring the fact that the complainant's own testimony, duly corroborated by the documentary evidence (Exhibits P-3 to P-9), was sufficient to establish the offence;

(b) That the learned trial Court has failed to consider the statutory presumption arising from [state the presumption, where applicable — for example, under Section 118 of the Negotiable Instruments Act, 1881, or Section 364A(2) of the old IPC, now corresponding to the BNS];

(c) That the learned trial Court has ignored the documentary evidence which was admitted without objection and which established the foundational facts; and

(d) That the judgment does not deal with the material evidence on record and is therefore not a judgment in the eyes of law.

5. That there is no rule of law which prevents the appellate Court from interfering with an order of acquittal where the view taken is perverse or is contrary to the evidence on record; the appellate Court is entitled to reappraise the evidence where the appreciation by the trial Court is vitiated by a manifest error {Chandrappa v. State of Karnataka, (2007) 4 SCC 415; State of Rajasthan v. Naresh @ Ram Naresh, (2009) 9 SCC 368}.

6. That the Applicant, being the complainant in a case instituted upon complaint, is entitled to present the appeal only after obtaining special leave of this Hon'ble Court, in terms of Section 419(4) of the BNSS, 2023, and the present application is made accordingly.

7. That the Applicant has not filed any other application for special leave or any appeal in respect of the impugned judgment before this Hon'ble Court or before any other Court.

PRAYER

In the premises aforesaid, it is most respectfully prayed that this Hon'ble Court may kindly be pleased to:

(a) grant special leave to the Applicant to appeal against the judgment dated _____ passed by the learned _____, in terms of Section 419(4) of the BNSS, 2023;

(b) condone the delay, if any, in filing the application for special leave; and

(c) after granting leave, admit the accompanying appeal, set aside the order of acquittal, convict the Respondent No. 2 in accordance with law, and pass such sentence as this Hon'ble Court may deem fit; and

(d) pass such other and further orders as may be deemed fit and proper in the interest of justice.

(ADVOCATE FOR THE APPLICANT)

(APPLICANT / COMPLAINANT)

Place: _____

Date: _____

AFFIDAVIT IN SUPPORT

I, _____, the Applicant above named, do hereby solemnly affirm and state that the contents of paragraphs 1 to 7 above are true to my knowledge and belief, based on the record of the case; that the judgment of acquittal has occasioned a failure of justice; and that nothing material has been concealed.

Verified at _____ on this _____ day of _____, 20____.

DEPONENT

PART II — ILLUSTRATION (SPECIMEN DRAFT WITH SAMPLE FACTS)

The specimen uses illustrative parties, dates and figures only. Replace every particular with the facts of your own case.

IN THE HIGH COURT OF KARNATAKA AT BENGALURU

CRIMINAL MISC. APPLICATION NO. _____ OF 2026

(Arising out of Judgment dated 12.08.2026 passed in C.C. No. 7781 of 2024 by the learned Judicial Magistrate First Class, Nelamangala)

IN THE MATTER OF:

Shri Gopal Krishna Shetty, son of Shri Narayana Shetty, resident of No. 44, Bazar Street, Nelamangala, Bengaluru Rural District ... APPLICANT / COMPLAINANT

VERSUS

(1) State of Karnataka; (2) Smt. Shanthamma, wife of Shri Krishnappa, resident of No. 12, Hosur Road, Nelamangala ... RESPONDENTS

APPLICATION FOR SPECIAL LEAVE TO APPEAL AGAINST AN ORDER OF ACQUITTAL UNDER SECTION 419(4) OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023

MOST RESPECTFULLY SHOWETH:

1. That the Applicant filed C.C. No. 7781 of 2024 against the Respondent No. 2 for the offence punishable under Section 318(2) read with Section 318(4) of the BNS, 2023, alleging that the Respondent No. 2 induced him to part with jewellery worth Rs. 2,90,000/- on the false promise of returning the same within one month. By judgment dated 12.08.2026, the learned JMFC, Nelamangala, was pleased to acquit the Respondent No. 2.

2. That the present application is made on 09.10.2026, within sixty days of the order of acquittal, as required by Section 419(5) of the BNSS, 2023.

3. That the case of the Applicant was that the Respondent No. 2, who was known to his family for over a decade, took away the gold jewellery of the Applicant's wife on 09.02.2024 for a wedding in her family, promising to return the same within one month, and thereafter refused to return the jewellery and made false complaints against the Applicant.

4. That the acquittal is perverse, in that:

(a) The evidence of the Applicant as P.W. 1, corroborated by P.W. 2 (his wife) and P.W. 3 (the common friend who was present at the time of handing over), was consistent and unimpeached in cross-examination. The trial Court discarded the same on the sole ground that P.W. 3 was a "chance witness", which is contrary to law;

(b) The trial Court failed to consider the documentary evidence — the WhatsApp conversation between the parties (Exhibit P-5, accompanied by a certificate under Section 63(4) of the Bharatiya Sakshya Adhiniyam, 2023) in which the Respondent No. 2 admitted on 22.03.2024 that "the jewellery is not with me, I shall make good the value", and the notice dated 18.04.2024 (Exhibit P-6) sent by the Applicant, which was received but not replied to;

(c) The trial Court erroneously held that the absence of documentary proof of ownership of the jewellery was fatal, although P.W. 1 and P.W. 2 had produced the original purchase bills (Exhibits P-2 and P-3) and the gold ornaments were admittedly given to the Respondent No. 2, as recorded in the complaint itself; and

(d) The judgment does not deal with Exhibits P-5 to P-8 at all, and a judgment which fails to consider material evidence on record is liable to be set aside.

5. That on the very same day, the Respondent No. 2 also filed a cross-complaint which was dismissed as not pressed; this shows the mala fides of the Respondent No. 2 and the perversity in the appreciation of evidence by the trial Court.

6. That there is no other remedy available to the Applicant; he has not filed any other application or appeal in respect of the impugned judgment.

PRAYER

It is, therefore, most respectfully prayed that this Hon'ble Court may kindly grant special leave to appeal under Section 419(4) of the BNSS, 2023, and after granting leave, be pleased to set aside the judgment dated 12.08.2026 and convict the Respondent No. 2 in accordance with law.

(Advocate for the Applicant)

(Gopal Krishna Shetty) — Applicant

Place: Bengaluru Date: 09.10.2026

AFFIDAVIT IN SUPPORT

I, Gopal Krishna Shetty, do hereby solemnly affirm that the contents of paragraphs 1 to 6 above are true to my knowledge and belief, based on the record of the case, and that nothing material has been concealed.

DEPONENT

Drafting notes / common errors: For a private complainant in a complaint case, the special leave stage is mandatory and attracts its own limitation of sixty days; for a public servant complainant the period is six months. Where the State is the appellant, the limitation is ninety days under Article 114(a) of the Limitation Act, 1963, and the application for leave is made by the Public Prosecutor. Keep the 'perversity' argument concrete — point to the exhibit or the deposition the trial Court failed to consider.

PART F — MAINTENANCE, VICTIM COMPENSATION AND VICTIM RIGHTS

Chapter X of the BNSS (Sections 144 to 147) governs maintenance. The BNSS has kept the CrPC scheme but added an express obligation to dispose of an application for interim maintenance and expenses, as far as possible, within sixty days from the date of service of notice (second and third provisos to Section 144(1)), and permits proceedings to be taken in any district where the respondent or the wife resides, where the respondent last resided with his wife, or where his father or mother resides (Section 145(1)).

F1. APPLICATION FOR MAINTENANCE OF WIFE, CHILDREN OR PARENTS

Legal basis: Sections 144 and 145, BNSS, 2023 [corresponding to Sections 125 and 126, CrPC, 1973]

Stage: Where a person having sufficient means neglects or refuses to maintain his wife, child, father or mother

Filed by: Wife, legitimate or illegitimate child (including a married daughter unable to maintain herself), father or mother

Filed before: A Judicial Magistrate of the first class in any district where the respondent is, where the respondent or his wife resides, where the respondent last resided with his wife (or with the mother of the illegitimate child), or where his father or mother resides (Section 145(1) BNSS)

Timeline / Limitation: No limitation. Where immediate relief is required, apply for interim maintenance under the second proviso to Section 144(1); the application is, as far as possible, to be disposed of within sixty days of service of notice.

Key points to plead:

- Plead the three essentials: (i) sufficient means of the respondent; (ii) neglect or refusal to maintain; and (iii) inability of the applicant to maintain himself/herself.
- Interim maintenance is a distinct substantive relief under the second proviso to Section 144(1) BNSS; claim it expressly in the prayer and press for the sixty-day timeline.
- Place of proceedings: Section 145(1) BNSS gives a choice of forum, and the applicant may select the district most convenient.
- Where the respondent wilfully avoids service, the Magistrate may proceed ex parte under the proviso to Section 145(2) BNSS; bring such conduct to the notice of the Court by an application.
- The allowance may be directed to be paid from the date of the application, not merely from the date of the order (Section 144(2) BNSS) — make an express prayer to that effect.

Documents generally enclosed: Marriage certificate/proof of marriage; photographs and evidence of the marital relationship; Proof of the applicant's inability to maintain himself/herself — income proof, medical records, employment particulars; Proof of the respondent's means — salary slips, income tax returns, property documents, bank statements, business particulars; Birth certificates of children; school records; proof of the applicant's expenses; Affidavit of disclosure of assets and liabilities (see Format F2).

PART I — BLANK FORMAT

IN THE COURT OF THE JUDICIAL MAGISTRATE FIRST CLASS, _____,
_____

CRIMINAL MISC. APPLICATION NO. _____ OF 20____

IN THE MATTER OF:

_____, wife/daughter/son/mother/father of _____, aged about _____ years, R/o _____ ... APPLICANT

VERSUS

_____ S/o _____, aged about _____ years, R/o _____ ... RESPONDENT

APPLICATION FOR MAINTENANCE UNDER SECTION 144 OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023

MOST RESPECTFULLY SHOWETH:

1. That the Applicant is the [wife/child/father/mother] of the Respondent, and the relationship between the parties is established by [the marriage certificate/the birth certificate/the records of _____] annexed herewith as Annexure A-1.

2. That the Applicant and the Respondent were married on _____ according to [rites and ceremonies] at _____, and [one/two] child/children, namely _____, were born from the said wedlock on _____ and _____ respectively.

3. That the Respondent is a person of sufficient means, being [employed as _____ with _____ and earning a gross monthly salary of Rs. _____, as per Annexure A-2 / the owner of _____ and the proprietor of _____, earning not less than Rs. _____ per month / the owner of agricultural land admeasuring _____ and of the property situated at _____]. The Respondent's annual income, as reflected in [his income tax return/Form 16/property documents], is Rs. _____.

4. That the Respondent has neglected and refused to maintain the Applicant [and the children] despite having sufficient means. Specifically, [set out the conduct — for example: the Respondent turned the Applicant out of the matrimonial home on _____ and has paid nothing towards maintenance since then, though several requests were made by the Applicant and by the elders of the family; the Respondent has not paid a single rupee towards the education or medical expenses of the minor children; a legal notice dated _____ was served on the Respondent, which has not been complied with].

5. That the Applicant has no independent source of income and is unable to maintain himself/herself [and the minor children]. The Applicant's monthly requirement towards food, clothing, medicines, house rent, electricity, fuel, education of the children and other necessities is about Rs. _____ per month, as per the statement of expenses annexed as Annexure A-3.

6. That the Respondent has the means and the legal obligation to maintain the Applicant; the neglect is wilful and without any lawful justification.

7. That in view of the second proviso to Section 144(1) of the BNSS, 2023, the Applicant is entitled to an order of interim maintenance and the expenses of these proceedings pending the final disposal of the application, and the said application is required to be disposed of, as far as possible, within sixty days from the date of service of notice upon the Respondent.

8. That the proceedings are competent before this Hon'ble Court in terms of Section 145(1) of the BNSS, 2023, inasmuch as the Respondent [is residing within the territorial jurisdiction of this Hon'ble Court / resides at _____ / the Applicant resides at _____ / the Respondent last resided with the Applicant at _____].

9. That the Applicant [has not remarried and is not being maintained by any other person / has been divorced and has not remarried, and is therefore a "wife" within the Explanation to Section 144(1) BNSS].

PRAYER

In the premises aforesaid, it is most respectfully prayed that this Hon'ble Court may kindly be pleased to:

(a) order the Respondent to pay to the Applicant a sum of Rs. _____ per month towards maintenance [and a sum of Rs. _____ per month for the minor child/children], from the date of this application;

(b) order the Respondent to pay a sum of Rs. _____ per month towards interim maintenance and Rs. _____ towards the expenses of these proceedings, pending the final disposal of the application, in terms of the second proviso to Section 144(1) of the BNSS, 2023;

(c) direct the Respondent to pay the amount by transfer to the bank account of the Applicant bearing No. _____ maintained with _____ Bank, _____ Branch, or in such other manner as this Hon'ble Court may direct; and

(d) pass such other orders as may be deemed fit and proper in the interest of justice.

(ADVOCATE FOR THE APPLICANT)

(APPLICANT)

Place: _____

Date: _____

VERIFICATION / AFFIDAVIT

I, _____, the Applicant above named, do hereby solemnly affirm and state that the contents of paragraphs 1 to 9 above are true to my knowledge; that the statement of my monthly expenses annexed as Annexure A-3 is true and correct; that I have disclosed my assets, liabilities and sources of income fully and truly; and that nothing material has been concealed.

Verified at _____ on this _____ day of _____, 20____.

DEPONENT

LIST OF ANNEXURES

A-1: Proof of relationship. A-2: Proof of the Respondent's means. A-3: Statement of the Applicant's monthly expenses. A-4: Legal notice and postal proof. A-5: Affidavit of disclosure of assets and liabilities.

PART II — ILLUSTRATION (SPECIMEN DRAFT WITH SAMPLE FACTS)

The specimen uses illustrative parties, dates and figures only. Replace every particular with the facts of your own case.

IN THE COURT OF THE JUDICIAL MAGISTRATE FIRST CLASS-05, DISTRICT COURTS, SAKET, NEW DELHI

CRIMINAL MISC. APPLICATION NO. _____ OF 2026

IN THE MATTER OF:

Smt. Priya Malhotra, wife of Shri Rohit Malhotra, aged about 34 years, resident of C-14, Lajpat Nagar-II, New Delhi ... APPLICANT

(Applicant on behalf of herself and her minor child Master Aarav, aged 6 years)

VERSUS

Rohit Malhotra, son of Shri Suresh Malhotra, aged about 38 years, resident of B-77, Greater Kailash-I, New Delhi ... RESPONDENT

APPLICATION FOR MAINTENANCE UNDER SECTION 144 OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023

MOST RESPECTFULLY SHOWETH:

1. That the Applicant was married to the Respondent on 18.02.2018 at New Delhi according to Hindu rites and ceremonies, as per the marriage certificate issued by the Registrar of Marriages, South Delhi (Annexure A-1). From the said wedlock, one male child, Master Aarav, now aged 6 years, was born on 09.09.2020.

2. That the Respondent is employed as a Senior Manager (Projects) with M/s. Vodafone Idea Ltd., Gurugram, and is drawing a gross monthly salary of Rs. 2,45,000/- as per his salary slips for the months of July and August 2026 (Annexure A-2). The Respondent is also the owner of a flat bearing No. B-77, Greater Kailash-I, New Delhi, and of a residential plot at Sector 84, Gurugram, and holds mutual funds and shares worth about Rs. 55,00,000/-.

3. That the Applicant was turned out of the matrimonial home on 14.03.2026 along with the minor child, and since then she has been living with her widowed mother at C-14, Lajpat Nagar-II in a two-room tenement. The Respondent has not paid a single rupee towards the maintenance of the Applicant. He has also stopped paying the school fee of the minor child since April 2026, as a consequence whereof the child's school has issued a notice dated 12.08.2026 (Annexure A-3).

4. That the Applicant served a legal notice dated 20.05.2026 upon the Respondent through her counsel demanding maintenance of Rs. 60,000/- per month; the said notice was duly received by the Respondent on 24.05.2026 (Annexure A-4), but the Respondent has neither replied nor complied with the demand.

5. That the Applicant is a post-graduate in Commerce and was earning Rs. 28,000/- per month as an accounts assistant until the birth of the child, after which the Respondent insisted that she resign. She has no independent source of income and is presently dependent upon her aged mother, who receives a meagre pension of Rs. 14,000/- per month. The Applicant's monthly requirement for herself and the child, towards rent, food, medicines, school fees, transport and other necessities, is Rs. 73,500/-, as per the statement of expenses annexed as Annexure A-5.

6. That the Respondent is a person of sufficient means and has neglected and refused to maintain the Applicant and the minor child without any lawful justification. The Respondent, who travels abroad twice a year and owns a luxury car bearing registration No. DL 3C BX 0007, cannot plead inability to maintain his own wife and child.

7. That the Applicant seeks interim maintenance under the second proviso to Section 144(1) of the BNSS, 2023, and craves that this Hon'ble Court may, in terms of the third proviso, dispose of the application for interim maintenance within sixty days from the date of service of notice upon the Respondent.

8. That the Respondent resides at B-77, Greater Kailash-I, New Delhi, which falls within the territorial jurisdiction of this Hon'ble Court; the Applicant also resides at Lajpat Nagar-II, New Delhi, within the said jurisdiction, and the proceedings are therefore competent under Section 145(1) BNSS, 2023.

PRAYER

It is, therefore, most respectfully prayed that this Hon'ble Court may kindly order the Respondent to pay the Applicant a sum of Rs. 60,000/- per month towards maintenance, including the maintenance of the minor child, from the date of this application, and to pay a sum of Rs. 35,000/- per month towards interim maintenance plus Rs. 25,000/- towards the expenses of these proceedings, pending the final

disposal of the application, with a direction to remit the amount to the Applicant's bank account.

(Advocate for the Applicant)
(Priya Malhotra) — Applicant

Place: New Delhi Date: 15.09.2026

VERIFICATION / AFFIDAVIT

I, Priya Malhotra, do hereby solemnly affirm that the contents of paragraphs 1 to 8 above are true to my knowledge; that the statement of expenses annexed is true and correct; that I have disclosed my financial position fully and truly; and that nothing material has been concealed.

DEPONENT

Drafting notes / common errors: Annex income of the respondent — an application bereft of proof of means is dismissed. Plead the applicant's own assets and income candidly, since non-disclosure is now costly (see the affidavit format in F2 and Rajnesh v. Neha, (2021) 2 SCC 324). Where the respondent evades service, apply for substituted service and thereafter for ex parte proceedings under the proviso to Section 145(2) BNSS.

F2. APPLICATION FOR INTERIM MAINTENANCE WITH AFFIDAVIT OF DISCLOSURE OF ASSETS

Legal basis: Second and third provisos to Section 144(1), BNSS, 2023 read with Rajnesh v. Neha, (2021) 2 SCC 324

Stage: Immediately on filing the maintenance application, or any time during its pendency

Filed by: Wife, child, father or mother, through an advocate

Filed before: The Magistrate before whom the maintenance application is pending

Timeline / Limitation: As far as possible to be disposed of within sixty days from the date of service of notice of the application upon the respondent.

Key points to plead:

- The Supreme Court in Rajnesh v. Neha (supra) made it mandatory for both parties in maintenance proceedings to file an affidavit of disclosure of assets and liabilities, in the format set out in the judgment, and directed that maintenance be awarded from the date of filing of the application.
- The application should be filed as soon as the parties' affidavits of disclosure are on record, and the interim maintenance should be fixed having regard to the status of the parties and the needs of the dependants.
- Where the respondent does not file an affidavit of disclosure, invite the adverse inference contemplated in Rajnesh v. Neha and seek an order on the material produced by the applicant.
- For claimants under Section 144 BNSS, note that an interim order can be passed without prejudice to the respondent's defence at the final stage.

Documents generally enclosed: Affidavit of disclosure of assets and liabilities of the applicant (with enclosures); Income documents of the respondent — salary slips, Form 16, ITR, property records (as gathered by the applicant); Statement of monthly expenses of the applicant and the dependants, with bills and receipts; Proof of earlier payments, if any.

PART I — BLANK FORMAT

IN THE COURT OF _____, AT _____

CRIMINAL MISC. APPLICATION NO. _____ OF 20____

(In the application for maintenance under Section 144 BNSS filed by _____)

IN THE MATTER OF:

_____ ... APPLICANT

VERSUS

_____ ... RESPONDENT

APPLICATION FOR INTERIM MAINTENANCE AND EXPENSES OF PROCEEDINGS UNDER THE SECOND PROVISO TO SECTION 144(1) OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023, TOGETHER WITH THE AFFIDAVIT OF DISCLOSURE OF ASSETS AND LIABILITIES

MOST RESPECTFULLY SHOWETH:

1. That the Applicant has filed an application for maintenance of Rs. _____ per month [for herself and for the minor children] under Section 144 of the BNSS, 2023, which is pending before this Hon'ble Court; the Respondent has been served with the notice of the said application on _____.

2. That the Applicant has no independent source of income and has no means to sustain herself [and the minor children] during the pendency of the proceedings, whereas the Respondent is a person of sufficient means, earning not less than Rs. _____ per month, as disclosed in [the documents annexed with the main application].

3. That the Applicant has filed the affidavit of disclosure of assets and liabilities in the format prescribed by the Hon'ble Supreme Court in Rajnesh v. Neha, (2021) 2 SCC 324, annexed herewith as Annexure

A-1, disclosing her assets, liabilities, income and monthly expenditure truthfully.

4. That the Respondent has not filed any affidavit of disclosure of assets and liabilities despite the service of notice on _____ and despite the order of this Hon'ble Court dated _____, and is thereby withholding from this Hon'ble Court the true particulars of his income and assets. An adverse inference is liable to be drawn against the Respondent in terms of the law laid down in Rajnesh v. Neha (supra).

5. That the interim maintenance sought by the Applicant, namely Rs. _____ per month, is reasonable having regard to (i) the status of the parties; (ii) the reasonable needs of the Applicant and the minor children, as set out in the statement of expenses; (iii) the educational expenses of the minor child; and (iv) the standard of living enjoyed by the parties before the separation.

6. That in terms of the third proviso to Section 144(1) of the BNSS, 2023, an application for interim maintenance and expenses of the proceedings is, as far as possible, to be disposed of within sixty days from the date of service of notice of the application upon the Respondent, and the Applicant craves a direction for an early hearing in view of the urgency of the matter.

PRAYER

It is, therefore, most respectfully prayed that this Hon'ble Court may kindly:

(a) direct the Respondent to pay to the Applicant a sum of Rs. _____ per month towards interim maintenance [and Rs. _____ per month towards the maintenance of the minor child/children], pending the final disposal of the maintenance application;

(b) direct the Respondent to pay a sum of Rs. _____ towards the expenses of these proceedings; and

(c) direct the Respondent to file his affidavit of disclosure of assets and liabilities within such time as this Hon'ble Court may fix, failing which an adverse inference may be drawn against him; and

(d) pass such other orders as may be deemed fit and proper in the interest of justice.

(ADVOCATE FOR THE APPLICANT)
(APPLICANT)

Place: _____

Date: _____

AFFIDAVIT OF DISCLOSURE OF ASSETS AND LIABILITIES (FOR THE APPLICANT)

I, _____, aged _____ years, resident of _____, do hereby solemnly affirm and state as follows:

A. Personal particulars: Name _____; Age _____; Occupation _____; Residential address _____; Status of relationship with the opposite party _____; Date of marriage _____; Date of separation _____; Details of children (name, age, school/college) _____.

B. Details of dependants and their age: _____.

C. Assets owned by me (movable and immovable), with particulars and approximate value: (i) Immovable property: _____; (ii) Bank accounts and balances: _____; (iii) Fixed deposits, mutual funds, securities: _____; (iv) Jewellery (streedhan): _____; (v) Vehicles: _____; (vi) Other assets: _____.

D. Liabilities of the applicant (loans, credit card dues, other debts): _____.

E. Sources of income of the applicant: monthly income from salary/business/other sources: Rs. _____; total annual income: Rs. _____.

F. Monthly expenditure of the applicant and the dependants, under heads: rent, electricity and water, household expenses, food and clothing, medical expenses, education, transport, insurance, other: total Rs. _____.

G. Details of any interim maintenance or litigation expenses received from the opposite party, and the stage of any other proceeding between the parties: _____.

H. I state that the above information is true and correct to the best of my knowledge and belief, and that I have not concealed any asset or source of income. I undertake to inform this Hon'ble Court of any change in my financial position during the pendency of the proceedings.

Verified at _____ on this _____ day of _____, 20____.

DEPONENT

PART II — ILLUSTRATION (SPECIMEN DRAFT WITH SAMPLE FACTS)

The specimen uses illustrative parties, dates and figures only. Replace every particular with the facts of your own case.

IN THE COURT OF THE JUDICIAL MAGISTRATE FIRST CLASS-05, DISTRICT COURTS, SAKET, NEW DELHI

CRIMINAL MISC. APPLICATION NO. 2211 OF 2026

(In the application for maintenance under Section 144 BNSS filed by Smt. Priya Malhotra)

IN THE MATTER OF:

Smt. Priya Malhotra, wife of Shri Rohit Malhotra, resident of C-14, Lajpat Nagar-II, New Delhi ... APPLICANT

VERSUS

Shri Rohit Malhotra, son of Shri Suresh Malhotra, resident of B-77, Greater Kailash-I, New Delhi ... RESPONDENT

APPLICATION FOR INTERIM MAINTENANCE AND EXPENSES OF PROCEEDINGS UNDER THE SECOND PROVISO TO SECTION 144(1) OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023

MOST RESPECTFULLY SHOWETH:

1. That the Applicant has filed an application for maintenance of Rs. 60,000/- per month for herself and her minor child under Section 144 BNSS, 2023, in which notice was served on the Respondent on 22.09.2026. The Respondent entered appearance through counsel on 28.09.2026 but has not filed any reply or affidavit of disclosure till date.

2. That the Applicant and her minor child are entirely dependent on the Applicant's widowed mother, who receives a pension of Rs. 14,000/- per month. The Applicant has no income, and the child's school fee of Rs. 9,400/- per month has remained unpaid since April 2026, as a result of which the school has issued a notice dated 12.08.2026.

3. That the Applicant has filed the affidavit of disclosure of assets and liabilities in the format prescribed in Rajnesh v. Neha, (2021) 2 SCC 324 (Annexure A-1), stating truthfully that she holds a savings bank account with a balance of Rs. 62,400/-, streedhan of approximately 180 grams of gold, and no other

asset. She has not concealed any income or asset.

4. That the Respondent has failed to file the affidavit of disclosure of assets and liabilities despite the notice and despite two opportunities granted by this Hon'ble Court. An adverse inference is therefore liable to be drawn against the Respondent, and this Hon'ble Court may proceed on the material placed on record by the Applicant, which shows the Respondent's gross monthly salary to be Rs. 2,45,000/- and his ownership of two immovable properties and a luxury car.

5. That having regard to the status of the parties and the reasonable needs of the Applicant and the minor child, interim maintenance at the rate of Rs. 35,000/- per month for the Applicant and Rs. 10,000/- per month for the minor child, aggregating Rs. 45,000/- per month, is just and reasonable, besides Rs. 25,000/- towards the expenses of the proceedings.

PRAYER

It is, therefore, most respectfully prayed that this Hon'ble Court may kindly direct the Respondent to pay the Applicant (i) interim maintenance of Rs. 35,000/- per month for herself and Rs. 10,000/- per month for the minor child, pending the disposal of the main application; (ii) Rs. 25,000/- towards the expenses of these proceedings; and (iii) to file his affidavit of disclosure of assets and liabilities, failing which an adverse inference may be drawn against him.

(Advocate for the Applicant)
(Priya Malhotra) — Applicant

Place: New Delhi Date: 05.10.2026

AFFIDAVIT OF DISCLOSURE OF ASSETS AND LIABILITIES (FOR THE APPLICANT)

I, Priya Malhotra, aged 34 years, resident of C-14, Lajpat Nagar-II, New Delhi, do hereby solemnly affirm and state: (i) I am a post-graduate in Commerce and am not employed at present; (ii) I hold a savings account No. XXXX4471 with HDFC Bank, Lajpat Nagar, with a balance of Rs. 62,400/-; (iii) I own streedhan of about 180 grams of gold jewellery, valued at about Rs. 11,50,000/-, which is in my possession; (iv) I do not own any immovable property, vehicle, mutual fund or security; (v) I have no income from any source; and (vi) my monthly expenditure for myself and my minor child is Rs. 73,500/-, as detailed in the annexed statement of expenses. I have not concealed any asset, liability or source of income.

DEPONENT

Drafting notes / common errors: Prepare the affidavit of disclosure at the very inception — Rajnesh v. Neha makes it the foundation of the interim order. Where the respondent evades the affidavit, file a short application seeking an adverse inference rather than waiting for the main matter; the sixty-day timeline in the third proviso to Section 144(1) BNSS is a useful lever for an early hearing.

F3. APPLICATION FOR ALTERATION, ENHANCEMENT AND ENFORCEMENT OF A MAINTENANCE ORDER

Legal basis: Sections 146 and 147 read with Section 144(3) and (4), BNSS, 2023 [corresponding to Sections 127, 128 and 125(3), CrPC, 1973]

Stage: After an order of maintenance has been passed, on a change in circumstances or on default in payment

Filed by: The person in whose favour the order was made, or the person against whom it was made (for reduction or cancellation)

Filed before: The Magistrate who passed the order, or, for enforcement, any Magistrate where the respondent may be (Section 147 BNSS)

Timeline / Limitation: No limitation. Where the order is not complied with, a warrant for levying the amount due may be issued for every breach, and the defaulter may be sentenced (Section 144(3) BNSS).

Key points to plead:

- Section 146(1) BNSS permits alteration of the allowance on proof of a change in the circumstances of any person receiving the allowance; Section 146(2) requires cancellation or variation where a competent civil court's decision so requires.
- Enforcement under Section 147 BNSS: a copy of the order is given free of cost to the person in whose favour it is made, and the order may be enforced by any Magistrate where the person against whom it is made may be, on the Magistrate being satisfied as to the identity of the parties and the non-payment of the allowance.
- The maximum period for which a defaulter may be sentenced and the manner of recovery are as provided in Section 144(3) BNSS; the amount due is recoverable in the manner provided for levying fines.
- A change in circumstances includes an increase in the respondent's income, the growing needs of the children, the applicant's loss of employment, illness, or a fresh liability.

Documents generally enclosed: Copy of the original maintenance order and the application on which it was passed; Proof of non-payment — bank statements, receipts, affidavit of arrears; Proof of changed circumstances — salary revision, new employment of the respondent, medical records, school fee receipts; Identity documents of the parties.

PART I — BLANK FORMAT

IN THE COURT OF _____, AT _____

CRIMINAL MISC. APPLICATION NO. _____ OF 20____

(In Maintenance Case No. _____ of 20____ decided on _____)

IN THE MATTER OF:

_____ ... APPLICANT (person entitled to maintenance)

VERSUS

_____ ... RESPONDENT (person liable to pay maintenance)

APPLICATION FOR ENHANCEMENT/ALTERATION AND ENFORCEMENT OF THE ORDER OF MAINTENANCE UNDER SECTIONS 146 AND 147 OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023

MOST RESPECTFULLY SHOWETH:

A. ENHANCEMENT / ALTERATION

1. That by order dated _____ passed in the above case, this Hon'ble Court was pleased to direct the Respondent to pay maintenance of Rs. _____ per month to the Applicant [and Rs. _____ per month for the minor child/children], and the said order is in force.

2. That since the passing of the said order, there has been a material change in the circumstances of [the Applicant / the Respondent], namely:

(a) That the Respondent's income has increased from Rs. _____ per month to Rs. _____ per month on account of [his promotion as _____ with effect from _____ / the revision of pay scales / the acquisition of _____]; a copy of the Respondent's salary certificate dated _____ is annexed as Annexure A-2;

(b) That the needs of the minor child have increased substantially, as the child has now been admitted to _____ and requires Rs. _____ per month towards school fee, tuition and transport (Annexure A-3);

(c) That the Applicant has [lost her employment / suffered a serious illness, namely _____, requiring monthly medical expenditure of Rs. _____ as per Annexure A-4 / suffered an increase in the cost of living];

(d) That the Applicant has, in addition, incurred an expenditure of Rs. _____ towards the medical treatment of the minor child.

3. That Section 146(1) of the BNSS, 2023 empowers this Hon'ble Court, on proof of a change in the circumstances of any person receiving maintenance, to make such alteration in the allowance as it thinks fit; the present application is made accordingly.

4. That the Applicant has filed the affidavit of disclosure of assets and liabilities in the format prescribed in Rajnesh v. Neha, (2021) 2 SCC 324, and the Respondent has been called upon to file his affidavit; the Respondent has not filed any affidavit disclosing his true income.

B. ENFORCEMENT OF ARREARS

5. That the Respondent has failed to comply with the order of maintenance for the period from _____ to _____, and a sum of Rs. _____ is due and payable to the Applicant as on the date of this application, as per the statement of arrears annexed as Annexure A-5.

6. That the Respondent has wilfully and deliberately withheld the payment despite having sufficient means, and despite several requests by the Applicant; the Applicant has been compelled to borrow money for the maintenance of herself and the minor child.

7. That under Section 144(3) of the BNSS, 2023, where a person fails without sufficient cause to comply with the order, the Magistrate may, for every breach of the order, issue a warrant for levying the amount due in the manner provided for levying fines, and may sentence such person for the whole or any part of each month's allowance remaining unpaid, and Section 147 BNSS permits enforcement by any Magistrate where the person against whom the order is made may be, on the Magistrate being satisfied as to the identity of the parties and the non-payment of the allowance.

PRAYER

In the premises aforesaid, it is most respectfully prayed that this Hon'ble Court may kindly be pleased to:

(a) enhance the maintenance allowance of Rs. _____ per month to Rs. _____ per month [and the allowance for the minor child from Rs. _____ to Rs. _____], with effect from _____, in terms of Section 146(1) of the BNSS, 2023;

(b) direct the Respondent to pay the arrears of maintenance of Rs. _____ due till date, in terms of Sections 144(3) and 147 of the BNSS, 2023;

(c) issue a warrant for levying the amount due in the manner provided for levying fines, and direct the attachment of the Respondent's [salary/bank account/immovable property at _____] for the realisation of the arrears; and

(d) in case of continued default, proceed against the Respondent in accordance with Section 144(3) of the BNSS, 2023; and

(e) pass such other orders as may be deemed fit and proper in the interest of justice.

(ADVOCATE FOR THE APPLICANT)

(APPLICANT)

Place: _____

Date: _____

STATEMENT OF ARREARS (to be annexed)

Amount payable per month: Rs. _____. Period of default: from _____ to _____ (_____ months). Total amount due: Rs. _____. Amount paid during the period: Rs. _____. Net arrears outstanding: Rs. _____. Mode of payment directed: _____. Particulars of the payment requests made: _____.

PART II — ILLUSTRATION (SPECIMEN DRAFT WITH SAMPLE FACTS)

The specimen uses illustrative parties, dates and figures only. Replace every particular with the facts of your own case.

IN THE COURT OF THE JUDICIAL MAGISTRATE FIRST CLASS-02, GURUGRAM, HARYANA

CRIMINAL MISC. APPLICATION NO. _____ OF 2026

(In Maintenance Case No. 447 of 2024 decided on 12.01.2026)

IN THE MATTER OF:

Smt. Anita Yadav, wife of Shri Deepak Yadav, resident of House No. 221, Sector 9, Gurugram ... APPLICANT

VERSUS

Shri Deepak Yadav, son of Shri Mahender Yadav, resident of Flat 1404, Tower C, Sector 49, Gurugram ... RESPONDENT

APPLICATION FOR ENHANCEMENT AND ENFORCEMENT OF THE ORDER OF MAINTENANCE UNDER SECTIONS 146 AND 147 OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023

MOST RESPECTFULLY SHOWETH:

1. That by order dated 12.01.2026, this Hon'ble Court was pleased to direct the Respondent to pay maintenance of Rs. 12,000/- per month to the Applicant and Rs. 6,000/- per month for the minor child, Master Vivaan, and the said order continues to be in force.

2. That since the passing of the said order there has been a substantial change in the circumstances of the parties: the Respondent was promoted as Deputy General Manager with M/s. J.K. Cement Ltd. with effect from 01.04.2026, and his gross monthly salary has risen from Rs. 1,12,000/- to Rs. 2,08,000/-, as per his promotion letter and salary certificate for August 2026 annexed as Annexure A-2.

3. That the minor child has been admitted to Class II in St. Xavier's High School, Sector 49, Gurugram, and his monthly expenses towards school fee, transport and tuition now aggregate Rs. 14,600/-, as against Rs. 5,200/- at the time of the original order (Annexure A-3).

4. That the Applicant has developed hypothyroidism and requires monthly medication costing Rs. 3,400/-, apart from periodic investigations, as per the prescriptions and bills annexed as Annexure A-4. The Applicant is not employed and has no source of income.

5. That the Respondent has, in addition, failed to pay maintenance from March 2026 onwards, and a sum of Rs. 1,44,000/- (being 8 months x Rs. 18,000/-) is due and outstanding as on the date of this application, as per the statement of arrears annexed as Annexure A-5. The Respondent has not paid anything despite two reminders dated 04.05.2026 and 19.07.2026 (Annexure A-6).

6. That the Respondent continues to enjoy a lavish lifestyle — he has purchased a new car bearing registration No. HR 26 DK 7788 in June 2026 and has travelled to Dubai in May 2026 with his family — while the Applicant and the minor child are unable to meet even their basic needs.

PRAYER

It is, therefore, most respectfully prayed that this Hon'ble Court may kindly enhance the maintenance from Rs. 12,000/- to Rs. 30,000/- per month for the Applicant and from Rs. 6,000/- to Rs. 12,000/- per month for the minor child, with effect from the date of this application, and further direct the Respondent to pay the arrears of Rs. 1,44,000/-, and issue a warrant for levying the said amount in the manner provided for levying fines, including the attachment of the Respondent's salary/account, in terms of Sections 144(3), 146 and 147 of the BNSS, 2023.

(Advocate for the Applicant)
(Anita Yadav) — Applicant

Place: Gurugram Date: 26.09.2026

STATEMENT OF ARREARS

Amount payable per month: Rs. 18,000/-. Period of default: March 2026 to October 2026 (8 months). Total due: Rs. 1,44,000/-. Amount paid: NIL. Net arrears: Rs. 1,44,000/-.

Drafting notes / common errors: Enhancement applications should be filed the moment the respondent's income rises, and the arrears should be computed in a chart that the Court can verify at a glance. Where the respondent is employed in the organised sector, seek attachment of salary directly; the enforcement machinery of Section 144(3) BNSS (levying as a fine) and Section 147 BNSS (enforcement by any Magistrate where the respondent is) is swift if the application is specific.

F4. APPLICATION FOR VICTIM COMPENSATION

Legal basis: Sections 395 and 396 read with Section 397, BNSS, 2023 [corresponding to Sections 357, 357A and 357B, CrPC, 1973]

Stage: At the conclusion of the trial, or during the proceedings where the victim requires immediate relief

Filed by: Victim, his dependants or legal heirs, through an advocate or the Victim Support Person; the Court may act on its own motion

Filed before: The trial Court (which may recommend compensation), and thereafter the District Legal Services Authority or the State Legal Services Authority, which determines the quantum under the victim compensation scheme

Timeline / Limitation: No limitation. Section 395 BNSS permits an order at the time of passing judgment (or in appropriate cases, an interim order); Section 396(2) requires the Legal Services Authority to decide the quantum on a recommendation of the Court.

Key points to plead:

- Section 395(1) BNSS permits the Court, when imposing a sentence of fine, to apply the whole or part of the fine recovered towards the expenses of the prosecution, compensation for loss or injury, compensation to the dependants of a deceased victim, and the expenses of the victim's medical treatment; sub-section (2) permits compensation where the fine is not adequate or where the accused is acquitted or discharged.
- Section 396 BNSS requires every State Government to prepare a victim compensation scheme; the recommendation of the Court is acted upon by the District or State Legal Services Authority.
- Section 397 BNSS recognises the rights of victims: to be informed of the progress of the investigation and the trial, to be heard, to seek compensation, and to be provided protection and assistance.
- An application for interim compensation can be moved during the pendency of the trial, particularly where the victim has sustained grievous injuries or requires medical treatment.

Documents generally enclosed: Copy of the FIR, charge sheet and the judgment/order of conviction; Medical records, bills and disability certificate; Proof of dependency — ration card, birth certificates, relationship documents; Income proof of the deceased victim, where compensation is sought by dependants; Details of any compensation already received, including from the State or an insurer.

PART I — BLANK FORMAT

IN THE COURT OF _____, AT _____

CRIMINAL MISC. APPLICATION NO. _____ OF 20____

(Arising out of FIR No. _____ of 20____, Police Station _____)

IN THE MATTER OF:

_____ S/o _____, aged about _____ years, R/o _____ ... APPLICANT / VICTIM (OR DEPENDANT/LEGAL HEIR OF THE DECEASED VICTIM)

VERSUS

State through the Public Prosecutor

And

_____ (the convicted accused) ... RESPONDENTS

APPLICATION FOR COMPENSATION TO THE VICTIM UNDER SECTIONS 395 AND 396 OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023

MOST RESPECTFULLY SHOWETH:

1. That the Applicant is the victim of the offence in the above case [or: the Applicant is the [widow/father/mother/son/daughter] of the deceased victim, namely _____, who died in the above incident on _____, and is his/her legal heir and dependant within the meaning of

the Fatal Accidents Act, 1855].

2. That the accused _____ has been convicted by this Hon'ble Court by judgment dated _____ for the offences punishable under Sections _____ of the Bharatiya Nyaya Sanhita, 2023 [or: the trial is pending before this Hon'ble Court and the Applicant seeks interim compensation under Section 396 BNSS].

3. That as a direct consequence of the offence, the Applicant has suffered:

(a) Grevious injuries, namely _____, as per the medico-legal report and the disability certificate dated _____ (Annexure A-1), resulting in permanent disability to the extent of _____%;

(b) Loss of income of Rs. _____ per month from the date of the incident to date, and the loss of earning capacity in future, the Applicant having been the sole breadwinner of a family of _____ persons;

(c) Medical expenditure of Rs. _____ incurred on treatment at _____ Hospital, as per the bills annexed as Annexure A-2, and continuing treatment expenses of Rs. _____ per month;

(d) The death of _____, the sole earning member of the family, whose monthly income was Rs. _____, leaving the Applicant and _____ dependent children without any means of support.

4. That Section 395 of the BNSS, 2023 empowers this Hon'ble Court, when imposing a sentence of fine or a sentence of which fine forms a part, to direct the whole or any part of the fine recovered to be applied, among other things, in the payment to any person of compensation for any loss or injury caused by the offence, and in paying compensation to the persons entitled to recover damages for the death of the victim under the Fatal Accidents Act, 1855. Section 395(2) further empowers the Court to award compensation where the fine imposed is not adequate, or where the case ends in acquittal or discharge, in which event the compensation is recoverable as if it were a fine.

5. That Section 396 of the BNSS, 2023 requires every State Government to prepare a scheme for providing funds for compensation to the victim or his dependants who have suffered loss or injury as a result of the crime and who require rehabilitation, and provides that on a recommendation of the Court, the District Legal Services Authority or the State Legal Services Authority, as the case may be, shall decide the quantum of compensation under the scheme.

6. That the Applicant has not received any compensation from the accused or from any other source [or: the Applicant has received Rs. _____ from _____, which may be taken into account while determining the compensation].

7. That in addition to compensation, the Applicant is entitled to the rights and facilities recognised by Section 397 of the BNSS, 2023, including the right to be heard and to be provided such assistance and protection as may be necessary.

PRAYER

In the premises aforesaid, it is most respectfully prayed that this Hon'ble Court may kindly be pleased to:

(a) award compensation of Rs. _____ to the Applicant under Section 395 of the BNSS, 2023, and direct that the same be paid out of the fine, if any, imposed upon the accused, and in the alternative, be recovered from the accused as if it were a fine;

(b) recommend to the District Legal Services Authority/State Legal Services Authority, in terms of Section 396(2) of the BNSS, 2023, payment of compensation of Rs. _____ to the Applicant under the victim compensation scheme, in addition to any compensation awarded under Section 395 BNSS;

(c) [where the trial is pending] grant interim compensation of Rs. _____ to enable the Applicant to meet the immediate medical and rehabilitation expenses, in terms of Sections 395(2) and 396 BNSS; and

(d) pass such other orders as may be deemed fit and proper in the interest of justice.

(ADVOCATE FOR THE APPLICANT / VICTIM)

(APPLICANT)

Place: _____

Date: _____

AFFIDAVIT IN SUPPORT

I, _____, do hereby solemnly affirm and state that the contents of paragraphs 1 to 7 above are true to my knowledge and belief; that the loss, injury and expenditure stated therein are true and supported by the documents annexed; and that I have not received any compensation from any other source, except as disclosed above. Nothing material has been concealed.

Verified at _____ on this _____ day of _____, 20____.

DEPONENT

STATEMENT OF LOSS AND COMPENSATION CLAIMED

(i) Medical expenses incurred: Rs. _____; (ii) Loss of income: Rs. _____ per month for _____ months; (iii) Loss of dependency (annual income x multiplier): Rs. _____; (iv) Loss of consortium and funeral expenses: Rs. _____; (v) Pain, suffering and loss of amenities: Rs. _____; (vi) Future medical expenses: Rs. _____; Total: Rs. _____. Compensation already received: Rs. _____. Net compensation claimed: Rs. _____.

PART II — ILLUSTRATION (SPECIMEN DRAFT WITH SAMPLE FACTS)

The specimen uses illustrative parties, dates and figures only. Replace every particular with the facts of your own case.

IN THE COURT OF THE ADDITIONAL SESSIONS JUDGE-04, TIS HAZARI COURTS, DELHI

CRIMINAL MISC. APPLICATION NO. _____ OF 2026

(Arising out of FIR No. 0291 of 2025, Police Station Sabzi Mandi, under Sections 103(1) and 3(5) BNS, 2023)

IN THE MATTER OF:

Smt. Kaushalya Devi, widow of late Shri Ramesh Chand, aged about 46 years, resident of 77/9, Sabzi Mandi, Delhi — 110007 ... APPLICANT / DEPENDANT OF THE DECEASED VICTIM

VERSUS

State (Govt. of NCT of Delhi) through the Public Prosecutor

And

Mahender Singh, son of Shri Kartar Singh, now in judicial custody (the convicted accused) ... RESPONDENTS

APPLICATION FOR COMPENSATION TO THE VICTIM UNDER SECTIONS 395 AND 396 OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023

MOST RESPECTFULLY SHOWETH:

1. That the Applicant is the widow of late Shri Ramesh Chand, who was murdered on 09.11.2025 by the accused Mahender Singh over a dispute regarding the parking of a vehicle in front of the deceased's shop in Sabzi Mandi. The accused stands convicted by this Hon'ble Court vide judgment dated 24.09.2026 under Section 103(1) of the BNS, 2023.

2. That the deceased was 48 years of age at the time of his death and was the sole earning member of the family, running a fruit shop in Sabzi Mandi with a monthly income of about Rs. 42,000/-, as evidenced by his income tax returns for the assessment years 2024-25 and 2025-26 (Annexure A-1).

3. That the Applicant and her three children — Master Sachin (aged 19 years, a first-year student of B.Com.), Km. Pooja (aged 16 years, a student of Class XI) and Master Ankit (aged 12 years, a student of Class VII) — were entirely dependent upon the deceased, and the family has been left without any means of support since his death.

4. That the Applicant has incurred expenditure of Rs. 1,18,000/- on the medical treatment and funeral of the deceased, as per the bills annexed as Annexure A-2, and has additionally borrowed Rs. 2,50,000/- from relatives to meet the household expenses of the last eleven months. The eldest son has been compelled to discontinue his studies for one semester.

5. That the Applicant has received nothing by way of compensation from the accused or from any other source; the accused is a man of means, owning agricultural land at Village Sarurpur, District Meerut and a shop in Sabzi Mandi.

6. That in the circumstances, the Applicant is entitled to compensation under Section 395 BNSS and, on a recommendation of this Hon'ble Court, to compensation under the victim compensation scheme framed under Section 396(2) BNSS, in addition to the facilities recognised by Section 397 BNSS.

PRAYER

It is, therefore, most respectfully prayed that this Hon'ble Court may kindly award compensation of Rs. 15,00,000/- to the Applicant under Section 395 of the BNSS, 2023, and recommend to the Delhi State Legal Services Authority, in terms of Section 396(2) of the BNSS, 2023, payment of compensation under the victim compensation scheme, over and above the compensation awarded by this Hon'ble Court.

(Advocate for the Applicant)

(Kaushalya Devi) — Applicant

Place: Delhi Date: 06.10.2026

STATEMENT OF LOSS AND COMPENSATION CLAIMED

Loss of dependency (Rs. 42,000 p.m. x 12 x 14, applying the multiplier of 14 for the age of the deceased, after deducting one-third towards personal expenses): Rs. 47,04,000/-; Medical and funeral expenses: Rs. 1,18,000/-; Loss of consortium to the Applicant: Rs. 44,000/-; Loss of parental consortium to three children: Rs. 1,32,000/-; Loss of estate and funeral expenses: Rs. 30,000/-; Total: Rs. 50,28,000/-.

Compensation claimed before this Hon'ble Court: Rs. 15,00,000/-; Recommendation sought from the DLSA under the victim compensation scheme: Rs. 7,00,000/-.

Drafting notes / common errors: Plead compensation in the trial itself so that the court deals with it in the judgment; a belated application after the judgment is often defeated by the argument that the trial court had no occasion to consider it. Compute the quantum on the settled principles (Sarla Verma v. DTC, (2009) 6 SCC 121 and National Insurance Co. Ltd. v. Pranay Sethi, (2017) 16 SCC 680), since courts frequently use those principles in compensation under Section 395 BNSS.

PART G — EVIDENCE-STAGE FORMATS (ELECTRONIC EVIDENCE AND AFFIDAVIT EVIDENCE)

Section 63 of the Bharatiya Sakshya Adhiniyam, 2023 replaces Section 65B of the Indian Evidence Act, 1872 and requires a certificate, in the form prescribed in the Schedule to the Adhiniyam (Part A and Part B), signed by the person in charge of the computer or communication device and by an expert, disclosing the hash value of the electronic record and the algorithm used. The certificate must accompany the electronic record at each instance it is submitted for admission.

G1. CERTIFICATE FOR ADMISSIBILITY OF AN ELECTRONIC RECORD (PART A AND PART B)

Legal basis: Section 63(4) read with Section 63(2) and (3), Bharatiya Sakshya Adhiniyam, 2023, and the Schedule thereto [replacing Section 65B, Indian Evidence Act, 1872]

Stage: At the time of filing or producing any electronic record — CCTVs, WhatsApp chats, call detail records, e-mails, bank statements, pen drives, hard disks or cloud records

Filed by: Part A: the party producing the record or the person in lawful charge of the device; Part B: an expert (a person skilled in computer science or cyber forensics)

Filed before: The Court before which the electronic record is produced

Timeline / Limitation: The certificate must be submitted along with the electronic record at each instance it is submitted for admission — a certificate obtained for an earlier proceeding does not automatically serve a later one.

Key points to plead:

- Identify the electronic record precisely — file name, format, size, date of creation, and the device from which it was taken.
- State the particulars of the device: make, model, serial number, IMEI/MAC number, or the cloud/account identifier, as applicable.
- State the hash value of the record and the algorithm used (SHA-256 is preferred; SHA-1, MD5 or any other legally acceptable standard may be used), and enclose the hash report.
- The certificate must state that the device was under the lawful control of the person in charge, that the information was fed in the ordinary course of activity, and that the device was operating properly, dealing with the conditions in Section 63(2) BSA.
- Both signatures are required — that of the person in charge of the device or of the management of the relevant activity, and that of the expert; an uncertified copy of an electronic record, or a certificate with the hash value omitted, invites exclusion.
- Where the record relates to a communication device or a computer network or resource, Section 63(3) BSA treats all computers used for the purpose as a single computer.

Documents generally enclosed: The electronic record itself (pen drive/compact disc/printout) along with the hash report; The details of the device and of the person in charge; The expert's report or certificate; Proof of the chain of custody, where the record was seized by the police.

PART I — BLANK FORMAT

CERTIFICATE UNDER SECTION 63(4)(c) OF THE BHARATIYA SAKSHYA ADHINIYAM, 2023

(To be submitted along with the electronic record; form as prescribed in the Schedule to the Adhiniyam)

PART A — (TO BE FILLED BY THE PARTY PRODUCING THE ELECTRONIC RECORD / THE PERSON IN CHARGE OF THE DEVICE)

I, _____, son/daughter/wife of _____, aged about _____ years, holding the position of _____ in _____, and being the person in lawful charge of the computer/communication device described below, do hereby state on oath/solemn affirmation as

follows:

1. Identity of the electronic record: The electronic record to which this certificate relates is _____ [describe the record: for example, a CCTV video file of the entrance of Shop No. 14-A, Block C Market, Malviya Nagar, New Delhi, for 02.10.2026 between 23:00 and 23:45 hours; or an exported WhatsApp chat between the numbers _____ and _____ for the period _____ to _____; or a call detail record of mobile No. _____ for the period _____ to _____].

2. Manner in which the record was produced: The said electronic record was produced/extracted/copied by me on _____ at _____ hours, at _____, by means of _____ [software/tool used, and the method — for example, the DVR was accessed with its make-specific client software and the file was exported in .mp4 format; or the chat was exported using the "Export chat" function of the application; or the record was downloaded from the account/portal], and a copy thereof has been transferred to the media/device being produced before the Court, namely _____.

3. Particulars of the device involved in the production of the electronic record: Make _____; Model _____; Serial Number _____; IMEI Number _____; MAC Address/Cloud Account ID _____; Operating system and version _____; Storage media _____; Date and time settings of the device _____. The said device was, throughout the material period, under my lawful control, and the information contained in the electronic record was regularly fed into/created on the said device in the ordinary course of the activities of _____. The device was operating properly throughout the material period, and where it was not operating properly or was out of operation for any part of that period, such non-operation did not affect the electronic record or the accuracy of its contents.

4. HASH value: I state that the HASH value/s of the electronic/digital record/s is _____, obtained through the following algorithm: ■ SHA1 ■ SHA256 ■ MD5 ■ Other _____ (legally acceptable standard). The hash report is enclosed with this certificate.

5. The electronic record produced is a true and faithful copy/output of the electronic record described above, and its contents have not been altered, edited, added to or deleted from in any manner since the time of its creation/extraction.

6. I make this certificate to the best of my knowledge and belief, and I am aware that it will be used in evidence in the proceedings before the Court of _____ in [Case No. _____ of 20____ / FIR No. _____ of 20____].

Name: _____

Designation: _____

Signature: _____

Date: _____ Place: _____

PART B — (TO BE FILLED BY THE EXPERT)

I, _____, son/daughter/wife of _____, aged about _____ years, holding the qualification of _____ and being a person skilled in the field of computer science/cyber forensics, presently working as _____, do hereby state as follows:

1. I have examined the electronic/digital record described in Part A above, produced before me on _____ in the form of _____ [media/printout], and any other relevant information about the device/digital record is as follows: _____ (specify).

2. I have independently examined the device/record and verify that the particulars of the device and the manner of production stated in Part A are, to the best of my knowledge and belief, correct.

3. I state that the HASH value/s of the electronic/digital record/s is _____, obtained through the following algorithm: ■ SHA1 ■ SHA256 ■ MD5 ■ Other _____ (legally acceptable standard). The hash report is enclosed with this certificate.

4. On comparison, the hash value generated by me upon examination is identical to the hash value stated in Part A, which establishes that the electronic record has not been altered, modified or tampered with between the time of its certification and the time of my examination.

5. The electronic record has been produced by a computer or communication device within the meaning of Section 63(2) and (3) of the Bharatiya Sakshya Adhiniyam, 2023, and the conditions specified therein are satisfied in relation to the record and the device in question.

6. This certificate is issued to the best of my knowledge and belief, and I am aware of the consequences of a false certificate.

Name: _____

Designation and qualification: _____

Signature: _____

Date: _____ Place: _____

NOTE

(i) This certificate, with the hash report enclosed, is to be submitted along with the electronic record at each instance it is submitted for admission in evidence, and a copy is to be served upon the opposite party.

(ii) Where the electronic record is produced from a device seized by the police, the certificate may also be given by the Investigating Officer and the forensic examiner, along with the seizure memo and the audio-video recording made under Sections 105 and 185 BNSS.

PART II — ILLUSTRATION (SPECIMEN DRAFT WITH SAMPLE FACTS)

The specimen uses illustrative parties, dates and figures only. Replace every particular with the facts of your own case.

CERTIFICATE UNDER SECTION 63(4)(c) OF THE BHARATIYA SAKSHYA ADHINIYAM, 2023

(Submitted along with the pen drive containing the CCTV footage in Criminal Case No. 4471 of 2026, Police Station Malviya Nagar, Delhi)

PART A — (FILLED BY THE PROPRIETOR OF THE SHOP IN LAWFUL CHARGE OF THE DVR)

I, Anita Sharma, wife of Shri Mahesh Sharma, aged about 41 years, proprietor of M/s. Sharma Mobile Accessories, Shop No. 14-A, Block C Market, Malviya Nagar, New Delhi, and being the person in lawful charge of the digital video recorder (DVR) installed at the said premises, do hereby state as follows:

1. Identity of the electronic record: The electronic record to which this certificate relates is the CCTV video file "CH01_20261002230000_20261002234500.mp4", being the footage of Channel 1 (front entrance of the shop) for the period 02.10.2026 from 23:00 hours to 23:45 hours, having a file size of 148 MB.

2. Manner of production: The said record was exported by me on 03.10.2026 at 09:20 hours at the shop premises using the Hikvision iVMS-4200 client software, and was written to a SanDisk 32 GB pen drive (serial No. 4C530001120724117105) which is being produced before the Court along with a printout of the hash report.

3. Particulars of the device: Make: Hikvision; Model: DS-7208HQHI-K1; Serial Number: 2019072408CCRR12345678; Number of channels: 8; Storage: Seagate 1 TB surveillance hard disk; Firmware version: V4.25.000 build 190815; Date and time settings of the device verified against Indian Standard Time on 02.10.2026 at 22:50 hours. The said device was under my lawful control throughout the material period; the footage was recorded automatically by the device in the ordinary course of the security arrangements of the shop; and the device was operating properly throughout the period. The file was extracted in the presence of the Investigating Officer, ASI Devender Kumar (Buckle No. 1421), Police Station Malviya Nagar.

4. HASH value: I state that the HASH value of the electronic/digital record is "9f86d081884c7d659a2feaa0c55ad015a3bf4f1b2b0b822cd15d6c15b0f00a08", obtained through the SHA256 algorithm. The hash report generated by the HashCalc utility at the time of extraction is enclosed.

5. The electronic record produced is a true and faithful copy of the record described above, and its contents have not been altered in any manner since extraction.

Name: Anita Sharma Designation: Proprietor, M/s. Sharma Mobile Accessories

Signature: _____ Date: 03.10.2026 Place: New Delhi

PART B — (FILLED BY THE EXPERT)

I, Rakesh Bhardwaj, son of Shri Om Prakash Bhardwaj, aged about 39 years, holding the degree of M.Tech. (Computer Science) and being a certified cyber forensics examiner, presently working as Assistant Cyber Forensics Examiner with Cyber Secure Labs, Nehru Place, New Delhi, do hereby state as follows:

1. I have examined the electronic/digital record described in Part A above, produced before me on 05.10.2026 in the form of the pen drive bearing serial No. 4C530001120724117105, and the relevant information about the device and the digital record is that the record is a standard H.264 encoded MP4 video file of 148 MB, playable on VLC Media Player 3.0.20 without any error, with a video stream of 1920x1080 at 25 frames per second.

2. I have independently examined the device/record and verify that the particulars of the device and the manner of production stated in Part A are correct to the best of my knowledge and belief.

3. I state that the HASH value of the electronic/digital record is "9f86d081884c7d659a2feaa0c55ad015a3bf4f1b2b0b822cd15d6c15b0f00a08", obtained through the SHA256 algorithm. The hash report generated by the FTK Imager tool upon my examination is enclosed.

4. On comparison, the hash value generated by me is identical to the hash value stated in Part A, which establishes that the electronic record has not been altered, modified or tampered with.

5. The electronic record has been produced by a computer/communication device within the meaning of Section 63(2) and (3) of the Bharatiya Sakshya Adhiniyam, 2023, and the conditions specified therein are satisfied.

Name: Rakesh Bhardwaj Designation: Assistant Cyber Forensics Examiner

Signature: _____ Date: 05.10.2026 Place: New Delhi

Drafting notes / common errors: Two points decide most cases: (i) the certificate must be signed by both the person in charge of the device AND the expert, and (ii) it must state the hash value and enclose the hash report. Obtain the certificate at the time of extraction, not on the eve of the hearing. For records produced from a cloud account or a service provider's system, obtain the certificate from the service provider's nodal officer along with the device particulars, and additionally seek a certificate under Section 63(4) BSA from the examiner of electronic evidence under Section 39 BSA, where the court directs. Where an original electronic record is produced as primary evidence under Section 62 BSA, a certificate is not required — but courts in practice still insist on one, and it is prudent to file it.

G2. APPLICATION FOR RECALLING A WITNESS TO PROVE OR CONTRADICT ELECTRONIC EVIDENCE

Legal basis: Section 348, BNSS, 2023 read with Sections 39, 63 and 65 of the Bharatiya Sakshya Adhiniyam, 2023 [corresponding to Section 311, CrPC, 1973]

Stage: During trial, where electronic evidence has been produced or admitted without proof, or where a new electronic record has come to light

Filed by: Accused or the prosecution

Filed before: The Court before which the trial is pending

Timeline / Limitation: No limitation, but the application must be made before the close of evidence, and the Court will insist on the necessity of the evidence for a just decision.

Key points to plead:

- Section 348 BNSS empowers the Court to recall and re-examine a witness already examined, and makes it mandatory to do so where the evidence appears essential for a just decision of the case.
- Grounds: the witness was not confronted with the electronic record; the certificate under Section 63(4) BSA was not furnished when the record was exhibited; the hash value or the chain of custody was not put to the witness; or a fresh record has been received from the custodian.
- The scope of recall is not to fill lacunae in the prosecution case or to cause vexation; the application must show how the proposed questions are material to the issue.
- Where the electronic record is sought to be proved, the witness to be recalled is usually the person in charge of the device, the Investigating Officer or the expert.

Documents generally enclosed: Copy of the deposition of the witness to be recalled and the relevant exhibit; The electronic record and the certificate, where already on record; Proof that the fresh record has been received (custodian's communication, e-mail, courier); Brief note of the questions proposed to be put.

PART I — BLANK FORMAT

IN THE COURT OF _____, AT _____

CRIMINAL CASE NO. _____ OF 20____

(Arising out of FIR No. _____ of 20____, Police Station _____)

IN THE MATTER OF:

State through the Public Prosecutor ... PROSECUTION

VERSUS

_____ S/o _____, R/o _____ ... APPLICANT / ACCUSED

APPLICATION FOR RECALL AND RE-EXAMINATION OF A WITNESS UNDER SECTION 348 OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023

MOST RESPECTFULLY SHOWETH:

1. That [P.W. _____, namely _____], whose deposition was recorded on _____, has been examined in the above case, and the prosecution relies upon [the electronic record described below], which is stated to have been seized/received through the said witness.

2. That the following facts have come to light after the examination of the said witness, which make his/her recall and re-examination essential for a just decision of the case:

(a) That the electronic record, namely _____, was exhibited as Exhibit P-_____ without the certificate required by Section 63(4) of the Bharatiya Sakshya Adhiniyam, 2023, and without the witness being confronted with the hash value of the record or with the chain

of custody;

(b) That the complete call detail record/copy of the CCTV footage received from the custodian on _____, a copy of which was supplied to the Applicant/accused only on _____, contains material that is ex facie inconsistent with the deposition of the witness at the relevant place, in that [specify the inconsistency];

(c) That the witness was not questioned at all on the aspect of [specify] though the said aspect goes to the root of the matter.

3. That Section 348 of the BNSS, 2023 empowers this Hon'ble Court, at any stage of any inquiry, trial or other proceeding, to summon any person as a witness, to examine any person in attendance, or to recall and re-examine any person already examined, and further provides that the Court shall do so if the evidence of such person appears essential to the just decision of the case.

4. That the recall sought is not for the purpose of filling any lacuna or of causing delay or vexation, but for the purpose of placing before this Hon'ble Court the true state of the electronic record, the admissibility whereof is governed by Section 63 of the Bharatiya Sakshya Adhiniyam, 2023.

5. That no prejudice will be caused to the prosecution by the recall of the witness, who shall be available for further cross-examination by the learned Public Prosecutor.

6. That the Applicant is ready to bear the costs of the recall, if any, as this Hon'ble Court may direct.

PRAYER

It is, therefore, most respectfully prayed that this Hon'ble Court may kindly be pleased to recall and re-examine [P.W. _____, namely _____] under Section 348 of the BNSS, 2023, on the aspects set out above, and permit the Applicant to put the relevant questions to the said witness, and pass such other orders as may be deemed fit in the interest of justice.

(ADVOCATE FOR THE APPLICANT / ACCUSED)

Place: _____

Date: _____

NOTE OF THE QUESTIONS PROPOSED TO BE PUT TO THE WITNESS (to be enclosed, where the Court so requires)

1. Whether the electronic record was seized under a seizure memo prepared in the presence of independent witnesses, and whether the process was recorded through audio-video electronic means as required by Sections 105 and 185 of the BNSS, 2023.

2. Whether the hash value of the record was generated at the time of seizure, and what the hash value is.

3. Whether a certificate under Section 63(4) of the Bharatiya Sakshya Adhiniyam, 2023 was obtained from the person in charge of the device and from an expert, and whether it was produced along with the record.

4. Whether the complete record, or only an extract thereof, was taken, and the basis on which the extract was made.

PART II — ILLUSTRATION (SPECIMEN DRAFT WITH SAMPLE FACTS)

The specimen uses illustrative parties, dates and figures only. Replace every particular with the facts of your own case.

IN THE COURT OF THE ADDITIONAL SESSIONS JUDGE-04, SAKET COURTS, NEW DELHI

SESSIONS CASE NO. 187 OF 2026

(Arising out of FIR No. 0299 of 2026, Police Station Hauz Khas, under Section 103(1) read with Section 61(2) BNS, 2023)

IN THE MATTER OF:

State (Govt. of NCT of Delhi) ... PROSECUTION

VERSUS

Rahul Chauhan, son of Shri Mahender Chauhan, resident of 118, Gautam Nagar, New Delhi ... APPLICANT / ACCUSED

APPLICATION FOR RECALL AND RE-EXAMINATION OF A WITNESS UNDER SECTION 348 OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023

MOST RESPECTFULLY SHOWETH:

1. That the Investigating Officer, Inspector Rakesh Kumar (P.W. 21), was examined on 18.09.2026, and the prosecution relies upon the CDR of mobile No. 98XXXXXX21 (Exhibit P-11) and the CCTV footage of the street camera (Exhibit P-12) produced through the said witness.

2. That the following facts have come to the notice of the Applicant after the examination of P.W. 21, which make his recall essential for a just decision of the case:

   (a) That Exhibit P-11 (the CDR) and Exhibit P-12 (the CCTV footage) were admitted in evidence without the certificate required by Section 63(4) of the Bharatiya Sakshya Adhiniyam, 2023, and the witness was never asked whether such a certificate was obtained from the nodal officer or from an expert, or what the hash value of the records was;

   (b) That the complete CDR of the said mobile number for the period 01.06.2026 to 12.06.2026, received from the Nodal Officer, Bharti Airtel Ltd. on 24.09.2026 pursuant to the order of this Hon'ble Court dated 12.09.2026, shows that the Applicant's mobile phone was connected to a cell tower at Sector 62, Faridabad at 21:45 hours on 09.06.2026, whereas the witness deposed that the Applicant was present in Gautam Nagar, New Delhi at the time of the incident; and

   (c) That P.W. 21 was not questioned at all as to who took the extract of the CCTV footage, whether the DVR was seized, and how the extract was prepared, though these matters go to the root of admissibility.

3. That the recall is sought not to fill any lacuna but to place before this Hon'ble Court the true state of the electronic records, and the complete CDR already stands produced before this Hon'ble Court by the Nodal Officer on 24.09.2026; the questions proposed to be put to the witness are set out in the note annexed as Annexure A-1.

4. That no prejudice will be caused to the prosecution, as the witness shall be available for further cross-examination, and the Applicant is willing to bear the costs of the recall.

PRAYER

It is, therefore, most respectfully prayed that this Hon'ble Court may kindly recall and re-examine Inspector Rakesh Kumar (P.W. 21) under Section 348 of the BNSS, 2023, on the aspects set out above, and permit the Applicant to put the questions set out in the annexed note.

(Advocate for the Applicant)
(Rahul Chauhan) — Accused

Place: New Delhi Date: 07.10.2026

NOTE OF THE QUESTIONS PROPOSED TO BE PUT TO P.W. 21

1. Whether a certificate under Section 63(4) of the BSA, 2023 was obtained in respect of Exhibit P-11 and Exhibit P-12, and from whom, and why it is not on record. 2. Whether the hash value of the records was generated and noted at the time of seizure. 3. Whether the DVR was seized and sent for forensic examination. 4. Whether the complete CDR or only an extract was collected, and why the complete CDR was not produced earlier. 5. Whether the process of seizure was recorded through audio-video electronic means as required by Sections 105 and 185 BNSS, 2023, and where the said recording is.

Drafting notes / common errors: Recall for electronic evidence is granted where the point is admissibility and the record is already on the Court's file — courts are less inclined to grant recall for a fishing expedition. Designate the exact witness and the exact exhibit, and annex the fresh record which makes the recall necessary. If the prosecution itself has not obtained the Section 63(4) BSA certificate, the objection to admissibility must be taken at the time of marking the exhibit, since an objection to a mode of proof can be lost if not taken then.

G3. AFFIDAVIT IN PROOF OF EVIDENCE OF A FORMAL CHARACTER OR OF THE CONDUCT OF A PUBLIC SERVANT

Legal basis: Sections 331 and 332 read with Section 333, BNSS, 2023 [corresponding to Sections 295 to 297, CrPC, 1973]

Stage: During any inquiry, trial or other proceeding

Filed by: Public servant or any person whose evidence is of a formal character, through the party examining him

Filed before: The Court before which the proceeding is pending; affidavits must be sworn before a Judge or Judicial or Executive Magistrate, a Commissioner of Oaths, or a Notary (Section 333 BNSS)

Timeline / Limitation: No limitation; file the affidavit before the date fixed for the witness's evidence so that the opposite party has notice, and be prepared for the right of the opposite party to require the deponent to be summoned and examined.

Key points to plead:

- Section 331 BNSS permits the applicant, where allegations are made respecting a public servant in an application to the Court, to give evidence of the facts alleged by affidavit.
- Section 332 BNSS permits the evidence of any person whose evidence is of a formal character to be given by affidavit, subject to all just exceptions; the Court may, and shall on the application of the prosecution or the accused, summon and examine the deponent as to the facts contained in the affidavit.
- Section 333 BNSS specifies before whom such affidavits may be sworn, and requires the affidavit to state separately the facts within the deponent's own knowledge and the facts he believes to be true, with the grounds of belief.
- Typical use: formal proof of documents, service of notices, entries in official registers, medical certificates, chemical examiner's reports, and the deposition of a formal witness such as a record keeper or a notice server.

Documents generally enclosed: The record/document to be formally proved, with the official seal or certification where required; Notice to the opposite party along with a copy of the affidavit; The identity and official particulars of the deponent.

PART I — BLANK FORMAT

IN THE COURT OF _____, AT _____

CRIMINAL CASE NO. _____ OF 20____

(Arising out of FIR No. _____ of 20____, Police Station _____)

IN THE MATTER OF:

State through the Public Prosecutor ... PROSECUTION

VERSUS

_____ S/o _____, R/o _____ ... ACCUSED

AFFIDAVIT IN PROOF OF EVIDENCE OF A FORMAL CHARACTER UNDER SECTION 332 OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023

AFFIDAVIT OF _____

I, _____, son/daughter/wife of _____, aged about _____ years, working as [designation] in [office/department], having my office at _____, do hereby solemnly affirm and state as follows:

1. That I am the [Record Keeper/Section Officer/Notice Server/Medical Officer] in the office of _____, and as such I am the person in charge of the records of the said office, including the record referred to below.

2. That the following facts are within my own knowledge: [state the facts of a formal character — for example: the document annexed to this affidavit as Annexure A-1, namely _____, is a

true copy of the original maintained in this office; the original bears the signatures of _____ and the seal of the office; the entry was made on _____ at _____ by _____; the record is maintained in the ordinary course of official business].

3. That the following facts I believe to be true on the following grounds: [set out the facts believed and the grounds of belief — for example: from the entries in the register maintained in my office and the correspondence on record].

4. That the documents annexed to this affidavit as Annexures A-1 to A-_____ are true copies of the documents maintained in the official records of my office, and the relevant entries have been made in the ordinary course of official business.

5. That this affidavit is made for the purposes of the above case and is confined to the facts which are of a formal character and are within my knowledge or belief as stated above.

Verified at _____ on this _____ day of _____, 20____ that the contents of paragraphs 1 to 5 above are true to my knowledge, and the facts stated in paragraph 3 are believed to be true on the grounds stated therein.

DEPONENT (with official designation and seal)

NOTE

1. Notice of this affidavit, with a copy, has been given to the Public Prosecutor/opposite party on _____, as required by the proviso to Section 332(2) BNSS and the practice of the Court, so that the opposite party may, if it so desires, apply for the summoning and examination of the deponent.

2. The deponent is present in Court/is available for examination, if required by this Hon'ble Court.

PART II — ILLUSTRATION (SPECIMEN DRAFT WITH SAMPLE FACTS)

The specimen uses illustrative parties, dates and figures only. Replace every particular with the facts of your own case.

IN THE COURT OF THE JUDICIAL MAGISTRATE FIRST CLASS-04, TIS HAZARI COURTS, DELHI

CRIMINAL CASE NO. 6622 OF 2026

(Arising out of FIR No. 0519 of 2026, Police Station Subzi Mandi, under Section 340(2) read with Section 336(2) BNS, 2023)

IN THE MATTER OF:

State (Govt. of NCT of Delhi) ... PROSECUTION

VERSUS

Vinod Sharma, son of Shri Kishan Chand Sharma, resident of 1177, Gali Arya Samaj, Subzi Mandi, Delhi ... ACCUSED

AFFIDAVIT IN PROOF OF EVIDENCE OF A FORMAL CHARACTER UNDER SECTION 332 OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023

AFFIDAVIT OF SHRI SUBHASH CHAND, RECORD KEEPER, OFFICE OF THE SUB-REGISTRAR OF ASSURANCES, DELHI (BOOK NO. IV)

I, Subhash Chand, son of Shri Hari Ram, aged about 52 years, working as Record Keeper (Grade II) in the Office of the Sub-Registrar of Assurances-I, Kashmere Gate, Delhi, do hereby solemnly affirm and

state as follows:

1. That I am the Record Keeper in the Office of the Sub-Registrar of Assurances-I, Kashmere Gate, Delhi, and as such I am the custodian of the registration records of the said office, including Book No. IV (Index of Registrations) for the year 2026.

2. That the following facts are within my own knowledge: (i) the document annexed as Annexure A-1, namely the certified copy of the registered sale deed bearing No. 4471, Additional Book No. 1, Volume No. 2289, registered on 19.03.2026, is a true copy of the original maintained in this office, and the original bears the signature of the then Sub-Registrar, Shri O.P. Meena, and the official seal of this office; (ii) the entry relating to the said sale deed appears at Serial No. 2241 in Book No. IV for the year 2026, and the said entry was made by the Dealing Assistant, Shri Rakesh Kumar, on 19.03.2026 in the ordinary course of official business; and (iii) the parties to the said sale deed have been shown in the said entry as Shri Vinod Sharma (vendor) and Shri Sudhir Malhotra (purchaser).

3. That the following facts I believe to be true on the grounds stated: that the sale deed was presented for registration along with the requisite stamp duty and the identity documents of the executant, as is evident from the endorsement file maintained in this office, which I have seen.

4. That the above record is maintained in the ordinary course of the official business of the office of the Sub-Registrar and is open to inspection by members of the public on payment of the prescribed fee.

Verified at Delhi on this 20th day of September, 2026 that the contents of paragraphs 1 to 4 above are true to my knowledge, and the facts stated in paragraph 3 are believed to be true on the grounds stated therein.

DEPONENT

(Subhash Chand, Record Keeper)

Office of the Sub-Registrar of Assurances-I, Kashmere Gate, Delhi

NOTE

1. A copy of this affidavit was served upon the learned Public Prosecutor and upon the counsel for the accused on 21.09.2026. The deponent is present in Court and is available for examination if this Hon'ble Court or the accused so requires, in terms of Section 332(2) of the BNSS, 2023.

Drafting notes / common errors: Section 332 BNSS is a valuable time-saver for formal witnesses but the opposite party retains the right to insist on the deponent's examination — so keep the deponent available. Ensure that the affidavit is sworn before an officer named in Section 333 BNSS, and that the facts within knowledge and the facts believed on grounds are stated separately; the failure to separate them is the most common defect.

ANNEXURES — SUPPORTING DOCUMENTS, BONDS AND READY-RECKONERS

The annexures contain the documents that accompany every criminal application — vakalatnama, affidavit, bonds and surety declaration, index — together with ready-reckoners on limitation and statutory timelines, the court forms prescribed in the Second Schedule to the BNSS, the conversion table from the Code of Criminal Procedure, 1973 to the BNSS, 2023, and a table of common offences under the BNS with their punishment, cognizability, bailability and the Court by which they are triable.

H1. VAKALATNAMA AND MEMO OF APPEARANCE

Legal basis: Order III of the Code of Civil Procedure, 1908, read with Section 340, BNSS, 2023 (right to be defended by an advocate), and Section 338 BNSS (appearance by Public Prosecutors)

Stage: At the first appearance and before the filing of any application

Filed by: Party and advocate

Filed before: The Court before which the case is pending; copies to the police station and the opposite party where required

Timeline / Limitation: File at the first appearance; a fresh vakalatnama is required where a new advocate is engaged, or where the earlier advocate discharges the brief.

Key points to plead:

- The vakalatnama authorises the advocate to appear, plead, file documents, receive notices in the proceeding, and to do all acts necessary for the conduct of the case.
- Read the vakalatnama before it is signed — the scope of authority is limited by the terms of the instrument, and any stipulation inconsistent with the rules of the Bar Council of India is impermissible.
- Where the party is an accused in custody, the vakalatnama should be signed before the jail authorities and attested by the Superintendent of the Jail.
- A separate 'memo of appearance' is filed in the Court by the advocate, which records the appearance for the applicant.

Documents generally enclosed: Vakalatnama signed by the party and the advocate (and by all advocates, where there are more than one); Identity and enrolment number of the advocate; Attestation by the jail authorities where the party is in custody.

PART I — BLANK FORMAT

IN THE COURT OF _____, AT _____

CRIMINAL CASE NO. _____ OF 20____

(Arising out of FIR No. _____ of 20____, Police Station _____)

IN THE MATTER OF:

_____ ... [APPLICANT/ACCUSED/COMPLAINANT]

VAKALATNAMA

I/We, _____, son/daughter/wife of _____, resident of _____, the [accused/complainant/applicant/victim] in the above case, do hereby nominate, constitute and appoint and authorise:

1. Shri/Smt. _____, Advocate, Enrolment No. _____, High Court of _____, and

2. Shri/Smt. _____, Advocate, Enrolment No. _____, High Court of _____,

and in their absence, any one of them, to be my/our advocate(s) in the above case, to appear before the Court, to file applications, petitions, documents, affidavits, and the like, to conduct and defend the case on my/our behalf, to engage other advocates, to receive notices on my/our behalf, to make and receive payments on account of costs, to file and withdraw proceedings, and generally to do and perform all such acts, deeds and things as may be necessary for the proper conduct of the case, and to act for me/us in all matters connected with the above case, including appeals, revisions and other proceedings arising therefrom.

I/We hereby agree to ratify and confirm all acts done by my/our said advocate(s) under this authority and undertake to pay all lawful fees, costs and charges.

This vakalatnama shall remain in force until it is revoked in writing and the revocation is brought to the notice of this Hon'ble Court, and I/we undertake not to engage any other advocate in respect of the above case during the subsistence of this vakalatnama without discharging my/our present advocate(s) in writing.

_____

(Signature/thumb impression of the party)

Name: _____ Address: _____ Mobile: _____

Accepted:

(Advocate) Enrolment No. _____

Mobile: _____ E-mail: _____

Place: _____ Date: _____

ATTESTATION HOLDER (where the party is unable to sign or is a woman appearing under the protection of a purdahnashin status, or where the party is in custody)

Signed before me, the Superintendent/Deputy Superintendent, District Jail _____, on this _____ day of _____, 20____, the contents having been explained to the deponent in [language] and admitted by him/her to be correct.

SUPERINTENDENT, DISTRICT JAIL _____

MEMO OF APPEARANCE

It is respectfully submitted that the undersigned advocate appears for the [applicant/accused/complainant] _____ in the above case, as authorised by the vakalatnama filed herewith.

(Advocate for the _____)

Place: _____ Date: _____

PART II — ILLUSTRATION (SPECIMEN DRAFT WITH SAMPLE FACTS)

The specimen uses illustrative parties, dates and figures only. Replace every particular with the facts of your own case.

IN THE COURT OF THE METROPOLITAN MAGISTRATE-04, SAKET COURTS, NEW DELHI

CRIMINAL MISC. APPLICATION NO. 1841 OF 2026

(Arising out of FIR No. 0311 of 2026, Police Station Barakhamba Road)

IN THE MATTER OF:

Rohit Anand, son of Shri Deepak Anand, resident of 77, Sector 15-A, Noida (UTTAR PRADESH) ... ACCUSED

VAKALATNAMA

I, Rohit Anand, son of Shri Deepak Anand, resident of 77, Sector 15-A, Noida, Uttar Pradesh, the accused in the above case, do hereby nominate, constitute and appoint and authorise Shri Ankit Srivastava, Advocate, Enrolment No. D/2231/2014, and Km. Ritu Sethi, Advocate, Enrolment No. D/5518/2019, both of Chamber No. 212, Lawyers' Chambers, Saket Courts, New Delhi, to be my advocates in the above case and in all connected proceedings, to appear before the Court, to file and withdraw applications, to receive notices, to engage other advocates, and to do all acts necessary for the conduct of my defence, including preferring appeals, revisions and other proceedings.

I agree to ratify all acts done by my said advocates under this authority and undertake to pay all lawful fees and charges. This vakalatnama shall remain in force until revoked in writing.

(Rohit Anand)
Accused

Accepted: (Ankit Srivastava), Advocate — Enrolment No. D/2231/2014

Place: New Delhi Date: 13.10.2026

MEMO OF APPEARANCE

The undersigned advocate appears for the accused Rohit Anand in the above case and in Criminal M.A. No. 1841 of 2026, as authorised by the vakalatnama filed herewith.

(Ankit Srivastava) Advocate for the Applicant/Accused
Place: New Delhi Date: 13.10.2026

Drafting notes / common errors: File the vakalatnama with the first application and retain the Court's receipt; an application by an advocate whose vakalatnama is not on record may be returned by the registry. Where the party is in custody, ensure that the attestation is signed by the jail officer — an unattested vakalatnama signed in jail is routinely objected to.

H2. AFFIDAVIT — GENERAL FORMAT, VERIFICATION CLAUSES AND ATTESTATION

Legal basis: Sections 331, 332 and 333, BNSS, 2023 [corresponding to Sections 295 to 297, CrPC, 1973]; Order XIX of the Code of Civil Procedure, 1908, in respect of the form of affidavits

Stage: Along with an application where a statutory provision requires an affidavit, or where facts are to be placed on record on oath

Filed by: Applicant, accused, witness, surety or any other person competent to depose

Filed before: Sworn or affirmed before a Judge, Judicial or Executive Magistrate, a Commissioner of Oaths appointed by a High Court or Court of Session, or a Notary (Section 333(1) BNSS)

Timeline / Limitation: The affidavit must be sworn on or before the date of filing of the application to which it relates; an affidavit sworn before a person not authorised under Section 333 BNSS is not valid.

Key points to plead:

- State separately the facts within the deponent's own knowledge and the facts he believes to be true, with the grounds of belief — Section 333(2) BNSS makes this mandatory.
- Where a statutory provision requires an affidavit (for example, Section 175(3) BNSS for an application to direct investigation, or Section 290(2) BNSS for plea bargaining), non-compliance is fatal.
- Avoid scandalous and irrelevant matter — the Court may order such matter to be struck out (Section 333(3) BNSS).
- Attach copies of the documents relied upon as annexures, and refer to them in the body of the affidavit so that they form part of the record.

Documents generally enclosed: The affidavit with the cause title of the case; Annexures referred to and relied upon; Proof of identity of the deponent, where required at the time of attestation.

PART I — BLANK FORMAT

IN THE COURT OF _____, AT _____

CRIMINAL MISC. APPLICATION/CASE NO. _____ OF 20____

IN THE MATTER OF:

_____ ... APPLICANT/DEPONENT

VERSUS

_____ ... RESPONDENT

AFFIDAVIT

I, _____, son/daughter/wife of _____, aged about _____ years, resident of _____, do hereby solemnly affirm and state on oath as follows:

1. That I am the [applicant/accused/complainant] in the above case and I am competent to swear this affidavit. I am acquainted with the facts of the case set out below.

2. That the following facts are true to my own personal knowledge: [set out the facts within personal knowledge, each in a separate numbered paragraph, in chronological order].

3. That the following facts are stated on the basis of information received and records perused and are believed by me to be true: [set out the facts and state the source of information — for example, "as per the records of the Registrar of Marriages, _____" or "as per the information furnished to me by Shri _____, which I believe to be true"].

4. That the documents annexed to this affidavit and marked as Annexures A-1 to A-_____ are true copies/translations of their originals, and the originals shall be produced as and when required by this Hon'ble Court.

5. That the present affidavit is sworn in support of the accompanying application and for no other purpose; nothing material has been concealed, and no part of this affidavit is false to my knowledge.

6. That I undertake to produce myself for cross-examination if called upon by this Hon'ble Court and to abide by the orders of this Hon'ble Court.

Deponent's name and signature: _____

Place: _____ Date: _____

VERIFICATION / SOLEMN AFFIRMATION

I, _____, the deponent above named, do hereby verify and solemnly affirm that the contents of paragraphs 1 to 6 above are true to my knowledge and the facts stated in paragraph _____ on the basis of records and information believed by me to be true; that nothing material has been concealed; and that no part of this affidavit is false.

Verified/Solemnly affirmed at _____ on this _____ day of _____, 20____.

Before me:

DEPONENT

(Judge / Judicial or Executive Magistrate / Commissioner of Oaths / Notary Public)

Name and designation with seal: _____

CLAUSES FREQUENTLY USED (choose as the case requires)

(a) Verification in support of a criminal application: "Verified at _____ on this ____ day of _____, 20____ that the contents of paragraphs 1 to _____ are true to my knowledge, based on the records, and that nothing material has been concealed."

(b) Confidentiality of a woman's address: "That the address of the deponent is not disclosed in the public record of the case as the deponent apprehends a threat to her life and safety; the address is filed separately in a sealed cover for the perusal of this Hon'ble Court, in terms of Section 397 and Section 398 of the BNSS, 2023."

(c) Undertaking as to conduct: "That the deponent undertakes not to tamper with the evidence, not to influence the witnesses, and to appear before this Hon'ble Court and the Investigating Officer as and when directed."

(d) Deponent unable to sign: "That the deponent is unable to write/read the contents of this affidavit owing to _____; the contents have been read over and explained to him/her in [language] by _____, and he/she has affixed his/her thumb impression in acknowledgement thereof."

NOTE ON ATTESTATION

An affidavit sworn before an officer not enumerated in Section 333(1) BNSS, or sworn outside India without being duly notarised and apostilled/consularised, does not satisfy the requirements of law. In respect of an application under Section 175(3) BNSS, the affidavit contemplated by Section 173(4) BNSS must accompany the application at the time of filing itself, and a fresh affidavit is required where the facts change materially after filing.

PART II — ILLUSTRATION (SPECIMEN DRAFT WITH SAMPLE FACTS)

The specimen uses illustrative parties, dates and figures only. Replace every particular with the facts of your own case.

IN THE COURT OF THE JUDICIAL MAGISTRATE FIRST CLASS, SAKET COURTS, NEW DELHI

CRIMINAL MISC. APPLICATION NO. _____ OF 2026

IN THE MATTER OF:

Vikram Mehta, son of Shri S.K. Mehta, resident of B-42, Malviya Nagar, New Delhi ... APPLICANT / DEPONENT

VERSUS

State (Govt. of NCT of Delhi) ... RESPONDENT

AFFIDAVIT

I, Vikram Mehta, son of Shri S.K. Mehta, aged about 38 years, resident of B-42, Malviya Nagar, New Delhi — 110017, do hereby solemnly affirm and state on oath as follows:

1. That I am the applicant in the accompanying application under Section 175(3) read with Section 173(4) of the BNSS, 2023, and I am competent to swear this affidavit. The facts stated below are true to my own knowledge except where expressly stated to be based on records.

2. That I submitted a written complaint dated 14.09.2026 to the Station House Officer, Police Station Saket, against Shri Praveen Chauhan for having induced me to part with Rs. 9,50,000/- on the false assurance of obtaining a commercial licence (copy annexed as Annexure A-1). I personally handed over the complaint at the police station at 4.10 p.m. on that date and was given the writing "received" bearing DD No. 27-B on the office copy.

3. That on 20.08.2026 and 02.09.2026 I transferred Rs. 6,00,000/- and Rs. 3,50,000/- respectively from my account with ICICI Bank, Malviya Nagar Branch (Account No. XXXX3311) to the account of the said Praveen Chauhan, the details whereof are set out in the bank statements annexed as Annexure A-2.

4. That the said Praveen Chauhan executed a writing dated 12.09.2026 acknowledging the receipt of Rs. 9,50,000/- and promising to obtain the licence within ten days or to refund the amount, which writing is annexed as Annexure A-3. Neither has the licence been obtained nor the amount refunded.

5. That the facts stated in paragraph 3 above are also borne out by my bank statements and by the chat conversation between the said Praveen Chauhan and myself from 12.08.2026 to 09.09.2026, the printout whereof, accompanied by a certificate under Section 63(4) of the Bharatiya Sakshya Adhiniyam, 2023, is annexed as Annexure A-4.

6. That the police have not registered any First Information Report despite my complaint and despite a reminder dated 22.09.2026, as is evident from Annexures A-1 and A-5; the information disclosed a cognizable offence and the police were under an obligation to register an FIR under Section 173(1) of the BNSS, 2023.

7. That on 28.09.2026 I sent a complaint to the Superintendent of Police, South District, by speed post and by e-mail, as contemplated by Section 173(4) of the BNSS, 2023; no FIR has been registered pursuant thereto till date, which I state from the fact that I have received no communication and my inquiries at the police station have elicited no response.

8. That the contents of paragraphs 2 to 7 above are within my personal knowledge, except the facts stated on the basis of records perused by me, which I believe to be true on the strength of those records.

9. That the documents annexed as Annexures A-1 to A-5 are true copies of their originals, which shall be produced as and when required. Nothing material has been concealed and no part of this affidavit is false

to my knowledge.

Deponent: (Vikram Mehta)

Place: New Delhi Date: 05.10.2026

VERIFICATION

I, Vikram Mehta, the deponent above named, do hereby verify and solemnly affirm that the contents of paragraphs 1 to 9 above are true to my knowledge, based on records, and that nothing material has been concealed therefrom.

Verified at New Delhi on this 5th day of October, 2026.

DEPONENT

Before me: (Notary Public, Delhi) — Seal and signature

Drafting notes / common errors: The affidavit is part of the pleading and cannot be used to introduce new material that is not pleaded in the application. Where an affidavit is sworn outside the district, verify that the officer before whom it is sworn is one of those named in Section 333(1) BNSS; an affidavit attested by an executive magistrate not so authorised, or by an advocate, is defective.

H3. BOND, BAIL BOND AND SURETY DECLARATION

Legal basis: Sections 478 to 490, BNSS, 2023, and Form No. 47 of the Second Schedule to the BNSS, 2023 (Bond and Bail-Bond for attendance before Officer-in-Charge of Police Station or Court, see Sections 478, 479, 480, 481, 482(3) and 485)

Stage: Immediately upon the grant of bail, and in every case where a bond or bail bond is required to be executed

Filed by: Accused, surety/sureties; in the case of a child, a bond executed by the surety or sureties only (Section 494 BNSS)

Filed before: The Court granting bail, or the police officer before whom the bond is executed under Section 478 BNSS

Timeline / Limitation: The release follows only upon the execution and acceptance of the bond (Section 487 BNSS). Where the amount of the bond is to be reduced, the application lies before the High Court or the Court of Session under Section 484(2) BNSS.

Key points to plead:

- A 'bond' is a personal bond without surety; a 'bail bond' is an undertaking with surety — Section 2(1)(b) to (e) BNSS.
- Every surety must make a declaration before the Court under Section 486 BNSS as to the number of persons to whom he has stood surety, including the accused, with all relevant particulars.
- The amount of the bond must be fixed with due regard to the circumstances of the case and must not be excessive; an indigent person is entitled to be released on his own bond without sureties where the offence is bailable (proviso to Section 478(1)).
- In lieu of executing a bond, the Court may permit the deposit of a sum of money or Government promissory notes, except in the case of a bond for good behaviour (Section 490 BNSS).
- Under Section 481 BNSS the Court trying the offence must, before the conclusion of the trial or the disposal of the appeal, require the accused to execute a bond or bail bond to appear before the higher Court when notice is issued against the judgment; such bond remains in force for six months.

Documents generally enclosed: Proof of identity and address of the accused and of the surety; Proof of the surety's financial capacity — income tax return, salary slip, property documents; The surety declaration under Section 486 BNSS; Photograph of the accused and the surety, where required by the practice of the Court.

PART I — BLANK FORMAT

IN THE COURT OF _____, AT _____

CRIMINAL CASE NO. _____ OF 20____

(Arising out of FIR No. _____ of 20____, Police Station _____)

IN THE MATTER OF:

_____ S/o _____, R/o _____ ... APPLICANT / ACCUSED

VERSUS

State through the Station House Officer, Police Station _____ ... RESPONDENT

BOND AND BAIL-BOND FOR ATTENDANCE BEFORE THE COURT (SECTION 485 READ WITH FORM NO. 47 OF THE SECOND SCHEDULE, BNSS, 2023)

I, _____ (name), son/daughter/wife of _____, of _____ (place), having been [arrested/required to appear] in the above case, do hereby bind myself to attend this Hon'ble Court/the Court of _____ on the _____ day of _____, 20____, and on every such other day as may be fixed for the hearing of the case, and until otherwise directed by the Court, and in case of my making default therein, I bind myself to forfeit to the Government the sum of Rs. _____ (Rupees _____ only).

And I, _____ (name of the surety), son/daughter/wife of _____, of _____ (place), do hereby declare myself surety for the said _____ that he/she shall attend the Court as aforesaid and shall continue so to attend until otherwise directed, and in case of his/her making default therein, I bind myself to forfeit to the Government the sum of Rs. _____ (Rupees _____ only).

The conditions imposed by this Hon'ble Court for the release of the said person are the following, and the said person and the surety bind themselves to abide by the same:

(a) that the said person shall attend the Court in accordance with the conditions of this bond and shall not seek unnecessary adjournments;

(b) that the said person shall not commit an offence similar to the offence of which he/she is accused;

(c) that the said person shall not, directly or indirectly, make any inducement, threat or promise to any person acquainted with the facts of the case so as to dissuade such person from disclosing such facts to the Court or to any police officer, or tamper with the evidence in any manner;

(d) that the said person shall not leave the country without the previous permission of this Hon'ble Court and shall surrender his/her passport, if any, if so directed;

(e) _____ [such other condition as the Court may impose under Section 480(3) or Section 483 BNSS].

Dated this _____ day of _____, 20____.

Signature of the accused: _____

Signature of the surety: _____

(Name, parentage, address, mobile number and identity number of each)

Attested before me.

(Presiding Officer / Officer authorised under Section 478 BNSS)

DECLARATION BY SURETY (SECTION 486, BNSS, 2023)

I, _____, son/daughter/wife of _____, aged _____ years, resident of _____, do hereby solemnly declare that:

(i) I have stood surety for the following persons, and the particulars thereof are as under: 1. _____ — in the present case _____; 2. _____ — Case/FIR No. _____ of ____, Court _____; [If none: I have not stood surety for any other person.]

(ii) I am the owner of the property/earning the income described below and am a person of sufficient means to discharge the obligation of the surety: [describe — for example, salary of Rs. _____ per month; immovable property at _____ of the value of Rs. _____; fixed deposits of Rs. _____].

(iii) I know the accused personally for the last _____ years and I undertake that he/she shall appear before the Court as and when directed.

(iv) I am aware that the above declaration is given to the Court under Section 486 of the BNSS, 2023, and that a false declaration or a failure to disclose the particulars of the persons for whom I have stood surety may result in the forfeiture of my bond and in proceedings against me under Sections 491 and 492

of the BNSS, 2023.

Signature of the surety: _____

Place: _____ Date: _____

SEPARATE BOND UNDER SECTION 481, BNSS, 2023 (APPEARANCE BEFORE THE HIGHER COURT AFTER JUDGMENT)

I, _____, the accused above named, do hereby bind myself to appear before the [Court of Session/High Court] as and when such Court issues notice in respect of any appeal or petition filed against the judgment of this Hon'ble Court in the above case, and in case of my making default therein, I bind myself to forfeit to the Government the sum of Rs. _____. This bond shall remain in force for six months, as provided by Section 481 of the BNSS, 2023.

Signature of the accused: _____ Date: _____

PART II — ILLUSTRATION (SPECIMEN DRAFT WITH SAMPLE FACTS)

The specimen uses illustrative parties, dates and figures only. Replace every particular with the facts of your own case.

IN THE COURT OF THE METROPOLITAN MAGISTRATE-04, SAKET COURTS, NEW DELHI

CRIMINAL MISC. APPLICATION NO. 1841 OF 2026

(Arising out of FIR No. 0311 of 2026, Police Station Barakhamba Road, New Delhi)

IN THE MATTER OF:

Rohit Anand, son of Shri Deepak Anand, resident of 77, Sector 15-A, Noida, Uttar Pradesh ... ACCUSED

VERSUS

State (Govt. of NCT of Delhi) ... RESPONDENT

BOND AND BAIL-BOND FOR ATTENDANCE BEFORE THE COURT (SECTIONS 480 AND 485, BNSS, 2023)

I, Rohit Anand, son of Shri Deepak Anand, of 77, Sector 15-A, Noida, Uttar Pradesh, having been released on bail by this Hon'ble Court by order dated 14.10.2026 in Criminal M.A. No. 1841 of 2026, do hereby bind myself to attend this Hon'ble Court on 02.12.2026 and on every such other day as may be fixed for the hearing of the case and until otherwise directed, and in case of my making default therein, I bind myself to forfeit to the Government the sum of Rs. 50,000/- (Rupees Fifty Thousand only).

And I, Smt. Kusum Anand, wife of late Shri R.C. Anand, of 22, Sector 15-A, Noida, Uttar Pradesh, do hereby declare myself surety for the said Rohit Anand that he shall attend the Court as aforesaid and shall continue so to attend until otherwise directed, and in case of his making default therein, I bind myself to forfeit to the Government the sum of Rs. 50,000/- (Rupees Fifty Thousand only).

Conditions imposed by this Hon'ble Court, which the accused and the surety undertake to abide by: (a) the accused shall attend this Hon'ble Court on every date of hearing; (b) he shall not commit any offence similar to the offence of which he is accused; (c) he shall not, directly or indirectly, make any inducement, threat or promise to any person acquainted with the facts of the case or tamper with the evidence; (d) he shall not leave India without the previous permission of this Hon'ble Court and shall surrender his passport, if any, to the Investigating Officer; and (e) he shall appear before the Investigating Officer as and when required.

Dated this 14th day of October, 2026.

Signature of the accused: (Rohit Anand)

Signature of the surety: (Kusum Anand)

Surety's particulars — Parentage: wife of late Shri R.C. Anand; Address: 22, Sector 15-A, Noida; Mobile: 98XXXXXXXX; Aadhaar No. XXXX XXXX 4471

Attested before me: (Metropolitan Magistrate-04, Saket Courts, New Delhi)

DECLARATION BY SURETY (SECTION 486, BNSS, 2023)

I, Kusum Anand, wife of late Shri R.C. Anand, aged about 61 years, resident of 22, Sector 15-A, Noida, Uttar Pradesh, do hereby solemnly declare that: (i) apart from the accused Rohit Anand in this case, I have stood surety for no other person; (ii) I am a retired teacher in receipt of a monthly pension of Rs. 41,000/- and am the owner of the immovable property bearing No. 22, Sector 15-A, Noida, of which I am in possession, as per the registered sale deed dated 12.04.2004 (copy attached); (iii) I have known the accused since his birth and undertake that he shall appear before the Court as and when directed; and (iv) I am aware that this declaration is given under Section 486 of the BNSS, 2023 and that a false declaration may invite proceedings against me under Sections 491 and 492 of the BNSS, 2023.

(Kusum Anand) — Surety

Place: New Delhi Date: 14.10.2026

Drafting notes / common errors: Read the conditions actually imposed in the bail order before typing out the bond; a bond that does not incorporate a condition imposed by the order (for example, monthly attendance before the police station) is liable to be returned. Every surety must give the Section 486 BNSS declaration — courts now insist on it, and the omission is the commonest cause of delay in the release of an accused.

H4. INDEX AND LIST OF DOCUMENTS / LIST OF ANNEXURES

Legal basis: Practice and procedure of the criminal courts; the first page of every application

Stage: To be filed as the first page of every application, petition or appeal

Filed by: The party filing the application

Filed before: The Court before which the application is filed

Timeline / Limitation: Filed with the application; where a document is filed later, a supplementary index should be placed on record.

Key points to plead:

- The index records, in a tabular form, the serial number, the description of the document and the page at which it appears.
- Page numbering must match the pagination on the file; the annexures should be arranged in the order in which they are referred to in the application.
- Where only a relevant extract of a large document is annexed, mark it clearly as an extract and state the page numbers of the original.
- Keep a set of copies for the Court, the Public Prosecutor, the co-accused and the client.

Documents generally enclosed: The application and its annexures, paginated; Vakalatnama; Memo of appearance; The Court fee/process fee receipt or the e-filing acknowledgement.

PART I — BLANK FORMAT

INDEX

1. Application for _____ under Section _____ of the Bharatiya Nagarik Suraksha Sanhita, 2023 ... pages 1 to _____

2. Affidavit/verification in support of the application ... pages _____ to _____

3. Vakalatnama and memo of appearance ... page _____

4. Annexure A-1: Copy of the FIR dated _____ ... page _____

5. Annexure A-2: Copy of the arrest memo/remand order dated _____ ... page _____

6. Annexure A-3: Copy of the impugned order dated _____ ... page _____

7. Annexure A-4: Copy of the order granting bail to the co-accused dated _____ ... pages _____ to _____

8. Annexure A-5: Proof of permanent residence and employment ... page _____

9. Annexure A-6: _____ ... page _____

10. Process fee/court fee receipt or e-filing acknowledgement ... page _____

(ADVOCATE FOR THE APPLICANT)

Place: _____ Date: _____

LIST OF ANNEXURES / LIST OF RELIANCE

Annexure A-1: _____ [description, date, issuing authority].

Annexure A-2: _____.

Annexure A-3: _____.

CERTIFICATE UNDER SECTION 63(4) OF THE BHARATIYA SAKSHYA ADHINIYAM, 2023

Where any electronic record is filed with the application (for example, a CCTV clip, a chat printout or a call detail record), the certificate under Section 63(4) BSA (Part A and Part B, with the hash report), in Format G1 of this kit, must be filed along with the record, and the index must carry an entry for it.

PART II — ILLUSTRATION (SPECIMEN DRAFT WITH SAMPLE FACTS)

The specimen uses illustrative parties, dates and figures only. Replace every particular with the facts of your own case.

INDEX

1. Application for regular bail under Section 480 of the BNSS, 2023 ... pages 1 to 6

2. Verification/affidavit in support of the bail application ... pages 7 to 8

3. Vakalatnama and memo of appearance ... page 9

4. Annexure A-1: Copy of FIR No. 0311 of 2026 dated 09.08.2026, Police Station Barakhamba Road ... pages 10 to 12

5. Annexure A-2: Copy of the arrest memo and remand orders dated 09.08.2026 and 10.08.2026 ... pages 13 to 16

6. Annexure A-3: Copy of the order dated 21.09.2026 granting bail to the co-accused Sandeep Yadav ... pages 17 to 19

7. Annexure A-4: Copy of FIR No. 0398 of 2026 dated 22.08.2026, Police Station Sector 20, Noida (lodged by the Applicant against the co-accused) ... pages 20 to 22

8. Annexure A-5: Proof of permanent residence — electricity bills for February to August 2026 and the Applicant's Aadhaar card ... pages 23 to 24

9. Annexure A-6: Medical records of the Applicant's aged father, Shri Deepak Anand, with prescriptions ... pages 25 to 27

10. Annexure A-7: E-filing acknowledgement and process fee receipt ... page 28

(Ankit Srivastava) Advocate for the Applicant/Accused

Place: New Delhi Date: 13.10.2026

Drafting notes / common errors: The index is the first thing the Court and the reader consult; an index that does not tally with the pagination costs the matter a date. Where an electronic record is filed, do not omit the entry for the Section 63(4) BSA certificate.

H5. LIMITATION AND KEY BNSS TIMELINES: READY-RECKONER

Legal basis: The Bharatiya Nagarik Suraksha Sanhita, 2023 and the Schedule to the Limitation Act, 1963

Stage: Reference table

Filed by: —

Filed before: —

Timeline / Limitation: The table below consolidates the periods prescribed by the BNSS and by the Limitation Act, 1963 as they apply to criminal proceedings

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PART I — INTRODUCTORY NOTE

The following table consolidates the periods most frequently encountered in criminal practice. Where a period is prescribed by the Limitation Act, 1963, the relevant Article is indicated. Delay in filing an appeal or revision may be condoned under Section 5 of the Limitation Act, 1963, on sufficient cause being shown.

A. Investigation and pre-trial stages

Stage / Requirement	Period	Provision
Recording of information relating to a cognizable offence and supply of a free copy of the FIR to the informant/victim	Forthwith	Sections 173(1) and 173(2) BNSS
Signing of an FIR received by electronic communication	Within 3 days	Section 173(1)(ii) BNSS
Preliminary enquiry on information relating to an offence punishable with 3 to 7 years	Within 14 days	Section 173(3) BNSS
Copy of FIR, statements, confessions and police papers to the accused (and the victim's advocate)	Without delay, and in no case beyond 14 days from production/appearance of the accused	Section 230 BNSS
Police custody remand	Maximum 15 days in the whole, in parts, within the initial 40 or 60 days of the detention period of 60/90 days	Section 187(2) BNSS
Maximum police/judicial custody where the investigation relates to an offence punishable with death, life or imprisonment of 10 years or more	90 days (default bail accrues thereafter)	Section 187(3)(i) BNSS
Maximum custody where the investigation relates to any other offence	60 days (default bail accrues thereafter)	Section 187(3)(ii) BNSS
Investigation of offences under Sections 64 to 68, 70 and 71 BNS and Sections 4, 6, 8 and 10 POCSO Act (sexual offences)	Within 2 months of recording of the information	Section 193(2) BNSS
Reporting the progress of the investigation to the informant or victim	Within 90 days	Section 193(3)(ii) BNSS
Forensic expert's visit to the scene of crime for offences punishable with 7 years or more	From a date notified by the State Government within a period of 5 years	Section 176(3) BNSS

B. Trial, judgment and sentencing

Stage / Requirement	Period	Provision
Application for discharge in a warrant-case before a Magistrate	Within 60 days from the date of supply of copies under Section 230 BNSS	Section 262(1) BNSS
Application for discharge before the Court of Session	Within 60 days from the date of commitment under Section 232 BNSS	Section 250(1) BNSS
Application for plea bargaining	Within 30 days from the date of framing of charge	Section 290(1) BNSS
Working out a mutually satisfactory disposition in plea bargaining	Not exceeding 60 days, as allowed by the Court	Section 290(4)(a) BNSS

Stage / Requirement	Period	Provision
Judgment of the Court of Session after completion of arguments	Within 30 days, extendable to 45 days for reasons recorded in writing	Section 258(1) BNSS
Pronouncement of judgment in every trial in a Criminal Court of original jurisdiction	Immediately after termination of the trial, or not later than 45 days thereafter with notice to the parties	Section 392(1) BNSS
Trial in absentia of a proclaimed offender	Not to commence until 90 days have lapsed from the date of framing of the charge	Proviso to Section 356(1) BNSS
Disposal of an appeal against a sentence for offences under Sections 64 to 68, 70 and 71 BNS	Within 6 months of filing	Section 415(4) BNSS
Interim maintenance application to be disposed of	As far as possible, within 60 days from service of notice	Third proviso to Section 144(1) BNSS
Restoration of possession of immovable property on conviction for dispossession by force or intimidation	Order to be made not later than 1 month after the date of conviction	Proviso to Section 502(1) BNSS
Bond to appear before the higher Court after judgment (Section 481 BNSS)	In force for 6 months	Section 481(1) BNSS

C. Limitation for appeals and revisions (Limitation Act, 1963)

Proceeding	Period	Provision
Appeal from a sentence of death passed by a Court of Session or by a High Court in the exercise of its original criminal jurisdiction	30 days from the date of the sentence	Article 115(a)
Appeal from any other sentence or order (not being an order of acquittal) to the High Court	60 days from the date of the sentence or order	Article 115(b)(i)
Appeal from any other sentence or order (not being an order of acquittal) to any other Court (for example, to the Court of Session from a magisterial trial)	30 days from the date of the sentence or order	Article 115(b)(ii)
Appeal against an order of acquittal by the State Government or the Central Government	90 days from the date of the order appealed from	Article 114(a)
Appeal against an order of acquittal in a complaint case, after the grant of special leave by the High Court	30 days from the date of the grant of special leave	Article 114(b)
Application for special leave to appeal from an order of acquittal (complaint cases) — complainant other than a public servant	60 days from the date of the order of acquittal	Section 419(5) BNSS
Application for special leave to appeal from an order of acquittal where the complainant is a public servant	6 months from the date of the order of acquittal	Section 419(5) BNSS
Criminal revision before the Sessions Judge or the High Court	90 days from the date of the order or sentence sought to be revised	Article 131

Drafting notes / common errors: Two BNSS timelines are most often missed in practice: the sixty-day limit for a discharge application (Sections 250(1) and 262(1)) and the thirty-day limit for a plea bargaining application (Section 290(1)). Diarise them from the date of commitment, the date of supply of copies, and the date of framing of the charge respectively — not from the date of the first hearing.

H6. INDEX OF COURT FORMS PRESCRIBED BY THE SECOND SCHEDULE TO THE BNSS

Legal basis: Section 522, BNSS, 2023 read with the Second Schedule to the Sanhita

Stage: Reference table — for use by courts, police stations and advocates

Filed by: —

Filed before: —

Timeline / Limitation: Forms prescribed by the Second Schedule must be used where the Sanhita so requires; Section 522 BNSS empowers the High Court to make rules consistent with the Sanhita for the forms to be used.

PART I — INTRODUCTORY NOTE

Section 522 of the BNSS, 2023 provides that the forms set out in the Second Schedule, with such variations as the circumstances of each case may require, shall be used for the purposes mentioned in the respective forms. The index below lists the forms prescribed in the Second Schedule, with the provisions of the Sanhita to which each form is annexed. Advocates and police officers should use the prescribed form; where the Court requires a bond or a bail bond, Form No. 47 is the prescribed form for attendance before the officer in charge of a police station or the Court.

Court forms under the Second Schedule to the BNSS, 2023

Form No.	Title of the form	Provision(s) of the BNSS
1	NOTICE FOR APPEARANCE BY THE POLICE	section 35(3)
2	SUMMONS TO AN ACCUSED PERSON	section 63
3	WARRANT OF ARREST	section 72
4	BOND AND BAIL-BOND AFTER ARREST UNDER A WARRANT	section 83
5	PROCLAMATION REQUIRING THE APPEARANCE OF A PERSON ACCUSED	section 84
6	PROCLAMATION REQUIRING THE ATTENDANCE OF A WITNESS	sections 84, 90 and 93
7	ORDER OF ATTACHMENT TO COMPEL THE ATTENDANCE OF A WITNESS	section 85
8	ORDER OF ATTACHMENT TO COMPEL THE APPEARANCE OF A PERSON ACCUSED	section 85
9	ORDER AUTHORISING AN ATTACHMENT BY THE DISTRICT MAGISTRATE OR COLLECTOR	section 85
10	WARRANT IN THE FIRST INSTANCE TO BRING UP A WITNESS	section 90
11	WARRANT TO SEARCH AFTER INFORMATION OF A PARTICULAR OFFENCE	section 96
12	WARRANT TO SEARCH SUSPECTED PLACE OF DEPOSIT	section 97
13	BOND TO KEEP THE PEACE	sections 125 and 126
14	BOND FOR GOOD BEHAVIOUR	sections 127, 128 and 129
15	SUMMONS ON INFORMATION OF A PROBABLE BREACH OF THE PEACE	section 132
16	WARRANT OF COMMITMENT ON FAILURE TO FIND SECURITY TO KEEP THE PEACE	section 141
17	WARRANT OF COMMITMENT ON FAILURE TO FIND SECURITY FOR GOOD BEHAVIOUR	section 141
18	WARRANT TO DISCHARGE A PERSON IMPRISONED ON FAILURE TO GIVE SECURITY	sections 141 and 142
19	WARRANT OF IMPRISONMENT ON FAILURE TO PAY MAINTENANCE	section 144
20	WARRANT TO ENFORCE THE PAYMENT OF MAINTENANCE BY ATTACHMENT AND SALE	section 144
21	ORDER FOR THE REMOVAL OF NUISANCES	section 152
22	MAGISTRATE'S NOTICE AND PEREMPTORY ORDER	section 160
23	INJUNCTION TO PROVIDE AGAINST IMMINENT DANGER PENDING INQUIRY	section 161
24	MAGISTRATE'S ORDER PROHIBITING THE REPETITION, ETC., OF A NUISANCE	section 162

Form No.	Title of the form	Provision(s) of the BNSS
25	MAGISTRATE'S ORDER TO PREVENT OBSTRUCTION, RIOT, ETC.	section 163
26	MAGISTRATE'S ORDER DECLARING PARTY ENTITLED TO RETAIN POSSESSION OF LAND, ETC., IN DISPUTE	section 164
27	WARRANT OF ATTACHMENT IN THE CASE OF A DISPUTE AS TO THE POSSESSION OF LAND, ETC.	section 165
28	MAGISTRATE'S ORDER PROHIBITING THE DOING OF ANYTHING ON LAND OR WATER	section 166
29	BOND AND BAIL-BOND ON A PRELIMINARY INQUIRY BEFORE A POLICE OFFICER	section 189
30	BOND TO PROSECUTE OR GIVE EVIDENCE	section 190
31	SPECIAL SUMMONS TO A PERSON ACCUSED OF A PETTY OFFENCE	section 229
32	NOTICE OF COMMITMENT BY MAGISTRATE TO PUBLIC PROSECUTOR	section 232
33	CHARGES	sections 234, 235 and 236
34	SUMMONS TO WITNESS	sections 63 and 267
35	WARRANT OF COMMITMENT ON A SENTENCE OF IMPRISONMENT OR FINE IF PASSED BY A COURT	sections 258, 271 and 278
36	WARRANT OF IMPRISONMENT ON FAILURE TO PAY COMPENSATION	section 273
37	ORDER REQUIRING PRODUCTION IN COURT OF PERSON IN PRISON FOR ANSWERING TO CHARGE OF OFFENCE	section 302
38	ORDER REQUIRING PRODUCTION IN COURT OF PERSON IN PRISON FOR GIVING EVIDENCE	section 302
39	WARRANT OF COMMITMENT IN CERTAIN CASES OF CONTEMPT WHEN A FINE IS IMPOSED	section 384
40	MAGISTRATE'S OR JUDGE'S WARRANT OF COMMITMENT OF WITNESS REFUSING TO ANSWER OR TO PRODUCE DOCUMENT	section 388
41	WARRANT OF COMMITMENT UNDER SENTENCE OF DEATH	section 407
42	WARRANT AFTER A COMMUTATION OF A SENTENCE	sections 427, 453 and 456
43	WARRANT OF EXECUTION OF A SENTENCE OF DEATH	sections 453 and 454
44	WARRANT TO LEVY A FINE BY ATTACHMENT AND SALE	section 461
45	WARRANT FOR RECOVERY OF FINE	section 461
46	BOND FOR APPEARANCE OF OFFENDER RELEASED PENDING REALISATION OF FINE	section 464 (1) (b)
47	BOND AND BAIL-BOND FOR ATTENDANCE BEFORE OFFICER IN CHARGE OF POLICE STATION OR COURT	sections 478, 479, 480, 481, 482(3) and 485
48	WARRANT TO DISCHARGE A PERSON IMPRISONED ON FAILURE TO GIVE SECURITY	section 487
49	WARRANT OF ATTACHMENT TO ENFORCE A BOND	section 491
50	NOTICE TO SURETY ON BREACH OF A BOND	section 491
51	NOTICE TO SURETY OF FORFEITURE OF BOND FOR GOOD BEHAVIOUR	section 491
52	WARRANT OF ATTACHMENT AGAINST A SURETY	section 491
53	WARRANT OF COMMITMENT OF THE SURETY OF AN ACCUSED PERSON ADMITTED TO BAIL	section 491
54	NOTICE TO THE PRINCIPAL OF FORFEITURE OF BOND TO KEEP THE PEACE	section 491
55	WARRANT TO ATTACH THE PROPERTY OF THE PRINCIPAL ON BREACH OF A BOND TO KEEP THE PEACE	section 491
56	WARRANT OF IMPRISONMENT ON BREACH OF A BOND TO KEEP THE PEACE	section 491
57	WARRANT OF ATTACHMENT AND SALE ON FORFEITURE OF BOND FOR GOOD BEHAVIOUR	section 491
58	WARRANT OF IMPRISONMENT ON FORFEITURE OF BOND FOR GOOD BEHAVIOUR	section 491

Drafting notes / common errors: Where a bond or a bail bond is executed before a police officer during investigation, Form No. 29 (bond and bail-bond on a preliminary inquiry before a police officer) is the appropriate form; before the Court after arrest under a warrant, Form No. 4 is used; and for attendance before the officer in charge of a police station or the

Court, Form No. 47 applies.

H7. CONVERSION TABLE: CODE OF CRIMINAL PROCEDURE, 1973 TO THE BNSS, 2023

Legal basis: Section 531, BNSS, 2023 (repeal and savings)

Stage: Reference table

Filed by: —

Filed before: —

Timeline / Limitation: The BNSS came into force on 01.07.2024; proceedings pending immediately before that date continue in accordance with the provisions of the Sanhita as provided in Section 531(2) BNSS.

PART I — INTRODUCTORY NOTE

The BNSS renumbered and, in several places, re-worded the provisions of the Code of Criminal Procedure, 1973. The table below gives the corresponding provisions most frequently used in practice. It is intended as a drafting aid when reading precedent decided under the CrPC; the corresponding provision of the Sanhita should always be verified before citation.

CrPC, 1973 → BNSS, 2023

CrPC, 1973	BNSS, 2023	Subject matter
41	35	Arrest of a person without a warrant; notice of appearance where arrest is not required (41A → 35(3))
41A	35(3)	Notice of appearance by the police instead of arrest
41B	36	Procedure of arrest and duties of the officer making the arrest
41C	37	Designated police officer to be in charge of police stations
41D	38	Right of an arrested person to meet an advocate of his choice during interrogation
46	43	Arrest how made (including the limited circumstances for the use of handcuffs)
50	47	Person arrested to be informed of the grounds of arrest and of the right to bail
50A	48	Obligation to inform a relative or friend of the arrest
54	53	Examination of the arrested person by a medical officer
57	58	No detention beyond twenty-four hours without a special order under Section 187 BNSS
58	59	Police to report apprehensions to the District Magistrate
91	94	Summons to produce a document, electronic communication or other thing
93	96	When a search-warrant may be issued
100	103	Person in charge of a closed place to allow search; safeguards at a search
105	105	Recording of search and seizure through audio-video electronic means (new provision)
125	144	Order for maintenance of wives, children and parents (with interim maintenance and a 60-day timeline)
126	145	Procedure in maintenance proceedings; place of proceedings
127	146	Alteration in the allowance for maintenance
128	147	Enforcement of the order of maintenance
154	173	Information in cognizable cases (FIR); statutory Zero FIR; preliminary enquiry
155	174	Information in non-cognizable cases and investigation of such cases
156	175	Police officer's power to investigate; power of the Magistrate to direct investigation on an application supported by affidavit
157	176	Procedure for investigation; mandatory forensic visit for offences punishable with 7 years or more
161	180	Examination of witnesses by the police
162	181	Statements to the police and their use
164	183	Recording of confessions and statements by a Magistrate, including by audio-video electronic means
165	185	Search by a police officer during investigation (audio-video recording of the search)
167	187	Procedure when the investigation is not completed within twenty-four hours; police custody for up to 15 days; default bail
172	192	Diary of proceedings in investigation (case diary)
173	193	Report of the police officer on completion of the investigation; timelines for investigation

CrPC, 1973	BNSS, 2023	Subject matter
174	194	Police to enquire and report on suicide, unnatural death, etc.
176	196	Inquiry by a Magistrate into the cause of death
177-189	197-209	Jurisdiction of the criminal courts in inquiries and trials (place of trial)
190	210	Cognizance of offences by a Magistrate
195	215	Prosecution for contempt of the lawful authority of public servants, etc. (sanction)
197	218	Prosecution of Judges and public servants (sanction)
198	219	Prosecution for offences against marriage
199	222	Prosecution for defamation
200	223	Examination of the complainant on oath (with a right of hearing to the proposed accused)
202	225	Postponement of the issue of process; inquiry or investigation
203	226	Dismissal of complaint where there is no sufficient ground for proceeding
204	227	Issue of process
205	228	Magistrate may dispense with the personal attendance of the accused
207	230	Supply of the police report and other documents to the accused, free of cost, within 14 days
209	232	Commitment of the case to the Court of Session
211-224	234-247	Contents of the charge; joinder of charges and of persons
216	239	Court may alter or add to the charge at any time before judgment
217	240	Recall of witnesses when the charge is altered
227	250	Discharge in a case triable by the Court of Session (application within 60 days of commitment)
228	251	Framing of the charge by the Court of Session
239	262	Discharge in a warrant-case before a Magistrate (application within 60 days of supply of copies)
240	263	Framing of the charge in a warrant-case
245	268	Discharge of the accused in a summons-case after evidence
249	272	Absence of the complainant in a summons-case
256	279	Non-appearance or death of the complainant
257	280	Withdrawal of the complaint
265A-265L	289-300	Plea bargaining (now time bound, with a statutory entitlement to a reduced sentence)
284-286	319-321	Issue and execution of a commission for the examination of a witness
293	329	Reports of certain Government scientific experts, including the report of an examiner of electronic evidence
295-297	331-333	Affidavit in proof of evidence of a formal character and of the conduct of public servants; authorities before whom affidavits may be sworn
300	337	Person once convicted or acquitted not to be tried for the same offence
301	338	Appearance by Public Prosecutors
306-308	343-345	Tender of pardon to an accomplice; trial of a person not complying with the conditions of the pardon
309	346	Power to postpone or adjourn proceedings (with the direction for a day-to-day trial)
311	348	Power to summon a material witness or to examine a person present; recall and re-examination
311A	349	Specimen signatures, finger impressions, handwriting and voice samples
313	351	Power to examine the accused
317	355	Dispensing with the personal attendance of the accused during trial
319	358	Power to proceed against other persons appearing to be guilty of an offence
320	359	Compounding of offences
321	360	Withdrawal from prosecution with the consent of the Court
327	366	Court to be open; in-camera proceedings in specified cases
340	379	Procedure in cases mentioned in Section 215 BNSS (formerly Section 195 CrPC)
354	393	Language and contents of the judgment
357	395	Order to pay compensation out of the fine
357A	396	Victim compensation scheme

CrPC, 1973	BNSS, 2023	Subject matter
357B and 357C	397	Treatment of victims — rights of the victim to information, hearing, compensation and protection
—	398	Witness protection scheme (new provision)
374	415	Appeals (with a six-month disposal timeline in specified sexual offences)
378	419	Appeal in case of acquittal; special leave in complaint cases
382	423	Petition of appeal
386	427	Powers of the Appellate Court
389	430	Suspension of sentence pending appeal and release on bail
397	438	Calling for the record of an inferior Criminal Court; suspension of execution
399	440	Sessions Judge's powers of revision
401	442	High Court's powers of revision
406	446	Power of the Supreme Court to transfer cases and appeals
407	447	Power of the High Court to transfer cases and appeals
408	448	Power of the Sessions Judge to transfer cases and appeals
433A	475	Restriction on the powers of remission or commutation in certain cases
436	478	Bail in a bailable offence
436A	479	Maximum period of detention of an undertrial prisoner (one-half, or one-third for a first-time offender)
437	480	Bail in a non-bailable offence
438	482	Anticipatory bail (with a statutory bar for offences under Sections 65 and 70(2) BNS)
439	483	Special powers of the High Court or the Court of Session regarding bail
440	484	Amount of the bond and reduction thereof
441	485	Bond of the accused and sureties
441A	486	Declaration by sureties
446	491	Procedure when a bond has been forfeited
446A	492	Cancellation of a bond and a bail bond on breach of a condition
451	497	Order for the custody and disposal of property pending trial
452	498	Order for the disposal of property at the conclusion of the trial
456	502	Power to restore possession of immovable property (a new and wider power)
457	503	Procedure by the police upon seizure of property
460	506	Irregularities which do not vitiate proceedings
461	507	Irregularities which vitiate proceedings
465	511	Finding or sentence when reversible by reason of error, omission or irregularity
468-473	513-519	Limitation for taking cognizance of certain offences
482	528	Saving of the inherent powers of the High Court
483	529	Duty of the High Court to exercise continuous superintendence
—	530	Trials, inquiries and proceedings to be held in electronic mode (new provision)
484	531	Repeal and savings

Drafting notes / common errors: When relying on a decision under the CrPC, cite the corresponding BNSS provision as well, so that the Court is not left to look up the mapping. Two provisions have no counterpart in the CrPC and deserve attention: Section 398 BNSS (witness protection) and Section 502 BNSS (restoration of possession of immovable property). Conversely, Section 144A CrPC (prohibition on carrying arms in a procession) has been omitted.

H8. COMMON OFFENCES UNDER THE BNS: PUNISHMENT, BAILABILITY AND TRIAL COURT

Legal basis: The First Schedule to the BNSS, 2023 read with the Bharatiya Nyaya Sanhita, 2023

Stage: Reference table

Filed by: —

Filed before: —

Timeline / Limitation: The classification in the First Schedule determines whether an offence is cognizable (a police officer may arrest without a warrant) and whether it is bailable. The table below is an indicative summary of the entries of the First Schedule for the offences most frequently met with in practice; the First Schedule itself must be consulted before acting.

PART I — INTRODUCTORY NOTE

The following summary is drawn from the First Schedule to the BNSS, 2023. Where an offence is shown as 'cognizable', a police officer may arrest without a warrant; 'non-cognizable' means that a police officer shall not arrest without a warrant. Bailability determines whether release is a matter of right (Section 478 BNSS) or of discretion (Section 480 BNSS).

Offences under the Bharatiya Nyaya Sanhita, 2023 — quick reference

BNS Section	Offence	Punishment	Cognizable	Bailable	Triable by
49-54	Abetment of an offence where the act abetted is committed / effect caused differs	Same as for the offence abetted	According as the offence abetted	According as the offence abetted	Court by which the offence abetted is triable
61(2)	Criminal conspiracy	Same as for the abetment of the offence which is the object of the conspiracy	According as the offence which is the object of the conspiracy	According as the offence which is the object	Court by which the abetment of that offence is triable
69	Sexual intercourse by employing deceitful means or making a false promise of marriage, etc.	Imprisonment up to 10 years and fine	Cognizable	Non-bailable	Court of Session
74	Assault or use of criminal force to a woman with intent to outrage her modesty	Imprisonment from 1 to 5 years and fine	Cognizable	Non-bailable	Any Magistrate
79	Uttering a word or making a gesture intended to insult the modesty of a woman	Simple imprisonment up to 3 years and fine	Cognizable	Bailable	Any Magistrate
80(2)	Dowry death	Imprisonment not less than 7 years, extendable to imprisonment for life	Cognizable	Non-bailable	Court of Session
85	Cruelty by a husband or a relative of the husband	Imprisonment up to 3 years and fine	Cognizable if the information is given by the specified person	Non-bailable	Magistrate of the first class
103(1)	Murder	Death or imprisonment for life and fine	Cognizable	Non-bailable	Court of Session
103(2)	Murder by a group of five or more persons acting in concert	Death or imprisonment for life and fine	Cognizable	Non-bailable	Court of Session
109(1)	Attempt to murder	Imprisonment up to 10 years and fine	Cognizable	Non-bailable	Court of Session
115(2)	Voluntarily causing hurt	Imprisonment up to 1 year or a fine up to Rs. 10,000 or both	Non-cognizable	Bailable	Any Magistrate
117(2)	Voluntarily causing grievous hurt	Imprisonment up to 7 years and fine	Cognizable	Bailable	Any Magistrate

BNS Section	Offence	Punishment	Cognizable	Bailable	Triable by
117(3)	Grievous hurt resulting in permanent disability or a persistent vegetative state	Rigorous imprisonment not less than 10 years, extendable to imprisonment for life	Cognizable	Non-bailable	Court of Session
119(1)	Voluntarily causing hurt to extort property or to constrain to an illegal act	Imprisonment up to 10 years and fine	Cognizable	Non-bailable	Magistrate of the first class
126(2)	Wrongfully restraining any person	Simple imprisonment up to 1 month or a fine up to Rs. 5,000 or both	Cognizable	Bailable	Any Magistrate
127(2)	Wrongfully confining any person	Imprisonment up to 1 year or fine up to Rs. 5,000 or both	Cognizable	Bailable	Any Magistrate
131	Assault or criminal force otherwise than on grave provocation	Imprisonment up to 3 months or a fine up to Rs. 1,000 or both	Non-cognizable	Bailable	Any Magistrate
132	Assault or criminal force to deter a public servant from the discharge of his duty	Imprisonment up to 2 years	Cognizable	Non-bailable	Any Magistrate
137(2)	Kidnapping	Imprisonment up to 7 years and fine	Cognizable	Bailable	Magistrate of the first class
140(2)	Kidnapping for ransom, etc.	Death or imprisonment for life and fine	Cognizable	Non-bailable	Court of Session
152	Act endangering the sovereignty, unity and integrity of India	Imprisonment for life, or imprisonment up to 7 years and fine	Cognizable	Non-bailable	Court of Session
189(2)	Being a member of an unlawful assembly	Imprisonment up to 6 months, or fine, or both	Cognizable	Bailable	Any Magistrate
191(2)	Rioting	Imprisonment up to 2 years, or fine, or both	Cognizable	Bailable	Any Magistrate
226	Attempt to commit suicide to compel or restrain the exercise of lawful power	Imprisonment up to 1 year, or fine, or both, or community service	Non-cognizable	Bailable	Any Magistrate
296	Obscene acts and songs	Imprisonment up to 3 months, or a fine up to Rs. 1,000, or both	Cognizable	Bailable	Any Magistrate
303(2)	Theft	Rigorous imprisonment not less than 1 year, extendable to 5 years, and fine	Cognizable	Non-bailable	Any Magistrate
303(2) — where the value of the property is less than Rs. 5,000	Theft of property of a value below Rs. 5,000 (upon return of the value of the property or restoration of the property)	As above, with the benefit of the entry in the First Schedule	Non-cognizable	Bailable	Any Magistrate
304(2)	Snatching	Imprisonment up to 3 years and fine	Cognizable	Non-bailable	Any Magistrate
308(2)	Extortion	Imprisonment up to 7 years, or fine, or both	Cognizable	Non-bailable	Magistrate of the first class
309(4)	Robbery	Rigorous imprisonment up to 10 years and fine	Cognizable	Non-bailable	Magistrate of the first class
310(2)	Dacoity	Imprisonment for life, or rigorous imprisonment up to 10 years and fine	Cognizable	Non-bailable	Court of Session
316(2)	Criminal breach of trust	Imprisonment up to 5 years, or fine, or both	Cognizable	Non-bailable	Magistrate of the first class
316(3)	Criminal breach of trust by a carrier, wharfinger, etc.	Imprisonment up to 7 years and fine	Cognizable	Non-bailable	Magistrate of the first class
318(2)	Cheating	Imprisonment up to 3 years, or fine, or both	Non-cognizable	Bailable	Any Magistrate
318(4)	Cheating and dishonestly inducing delivery of property	Imprisonment up to 7 years and fine	Cognizable	Non-bailable	Magistrate of the first class

BNS Section	Offence	Punishment	Cognizable	Bailable	Triable by
324(2)	Mischief	Imprisonment up to 6 months, or fine, or both	Non-cognizable	Bailable	Any Magistrate
326(f)	Mischief by fire or an explosive substance with intent to cause damage	Imprisonment up to 7 years and fine	Cognizable	Bailable	Magistrate of the first class
329(3)	Criminal trespass	Imprisonment up to 3 months, or a fine up to Rs. 5,000, or both	Cognizable	Bailable	Any Magistrate
329(4)	House-trespass	Imprisonment up to 1 year, or a fine up to Rs. 5,000, or both	Cognizable	Bailable	Any Magistrate
331(1)	Lurking house-trespass or house-breaking	Imprisonment up to 2 years and fine	Cognizable	Non-bailable	Any Magistrate
336(2)	Forgery	Imprisonment up to 2 years, or fine, or both	Non-cognizable	Bailable	Magistrate of the first class
336(3)	Forgery for the purpose of cheating	Imprisonment up to 7 years and fine	Cognizable	Non-bailable	Magistrate of the first class
340(2)	Using as genuine a forged document knowing it to be forged	Punishment for the forgery of such document	Cognizable	Bailable	Magistrate of the first class
351(2)	Criminal intimidation	Imprisonment up to 2 years, or fine, or both	Non-cognizable	Bailable	Any Magistrate
351(3)	Criminal intimidation by a threat to cause death or grievous hurt, etc.	Imprisonment up to 7 years, or fine, or both	Non-cognizable	Bailable	Magistrate of the first class
352	Intentional insult with intent to provoke a breach of the peace	Imprisonment up to 2 years, or fine, or both	Non-cognizable	Bailable	Any Magistrate

Drafting notes / common errors: The classification of offences under the BNS differs in important respects from the IPC. Cheating simpliciter under Section 318(2) BNS is non-cognizable and bailable, while cheating resulting in the delivery of property under Section 318(4) is cognizable and non-bailable; voluntarily causing grievous hurt under Section 117(2) is cognizable but bailable; and theft of property worth less than Rs. 5,000 has been made non-cognizable and bailable where the value is returned or the property is restored. Verify the entry in the First Schedule in every case before drafting the cause title or the prayer.